

HOUSE BILL No. 1088

DIGEST OF INTRODUCED BILL

Citations Affected: Numerous citations throughout the Indiana Code.

Synopsis: Technical corrections. Addresses technical issues in the Indiana Code, including those related to spelling, tabulation, formatting, grammar, and cross-references. Resolves technical conflicts from the 2025 legislative session. Makes conforming amendments. (The introduced version of this bill was prepared by the code revision committee.)

Effective: Upon passage; July 1, 2026; July 1, 2027.

Pierce K, Engleman, DeLaney

January 5, 2026, read first time and referred to Committee on Judiciary.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1088

A BILL FOR AN ACT to amend the Indiana Code concerning general provisions.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 1-3-3-8, AS ADDED BY P.L.148-2025, SECTION
2 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1,
3 2026]: Sec. 8. (a) A quorum of the commission consists of at least six
4 (6) members.
5 (b) A quorum is necessary for the commission to take official action.
6 A quorum is not required for the ~~committee~~ **commission** to meet, take
7 testimony, and hold discussion.
8 SECTION 2. IC 3-5-2.1-16, AS ADDED BY P.L.186-2025,
9 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
10 JULY 1, 2026]: Sec. 16. (a) Except as provided in subsections (b), ~~and~~
11 (c), **and (d)**, "candidate" means an individual who:
12 (1) has taken the action necessary to qualify under Indiana law for
13 listing on the ballot at an election or to become a write-in
14 candidate;
15 (2) has publicly announced or declared candidacy for an elected
16 office; or
17 (3) otherwise seeks nomination for or election to an elected office,



regardless of whether the individual wins election to the office.

(b) As used in IC 3-9, an individual becomes a "candidate" when the individual, the candidate's committee, or a person acting with the consent of the individual:

(1) receives more than one hundred dollars (\$100) in contributions;

(2) makes more than one hundred dollars (\$100) in expenditures;

(3) is required to file a written instrument designating a principal committee under IC 3-9-1-5.5 or IC 3-9-5-1;

(4) is subject to campaign contribution limits under IC 3-9-2;

(5) is subject to campaign expense restrictions under IC 3-9-3; or

(6) is subject to requirements for campaign communications including fabricated media under IC 3-9-8.

(c) As used in IC 3-13-1 and IC 3-13-2, "candidate" includes an individual filling a general or municipal election ballot vacancy under IC 3-13-1 or IC 3-13-2 when a county or town election board, the Indiana election commission, or a court has determined that the required action of:

(1) the individual; or

(2) another person under IC 3-13-1 or IC 3-13-2; is void or invalid.

(d) As used in IC 3-14-3-18, "candidate" includes an individual described in IC 3-14-3-18(a).

SECTION 3. IC 3-5-8-4 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. The secretary of state or other state agency posting election information on the state's ~~Internet site~~ **website** shall include the voter's bill of rights on the ~~site~~ **website**.

SECTION 4. IC 3-8-2.5-7, AS AMENDED BY P.L.195-2025, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) A person may not be selected as a candidate by petition of nomination without giving written consent and having it filed with the public official with whom certificates and petitions of nomination are required to be filed.

(b) Each candidate nominated by petition of nomination for a school board office must satisfy all statutory eligibility requirements for the office for which the candidate is nominated, including the filing of statements of economic interest.

(c) A statement questioning the validity of a petition of nomination or contesting the denial of certification under section 6 of this chapter must be filed with the county election board in accordance with IC 3-8-1-2 not later than noon seventy-four (74) days before the date of the general election. A question regarding the validity of a petition



of nomination or the denial of certification shall be referred to and determined by the county election board not later than noon sixty (60) days before the date of the general election.

(d) A statement concerning the validity of a declaration of intent to be a write-in candidate for a school board office under section 4 of this chapter must be filed with the county election board in accordance with IC 3-8-1-2 not later than noon sixty-seven (67) days before the date of the general election. A question regarding the validity of a declaration of intent to be a write-in candidate for a school board office shall be referred to and determined by the county election board not later than noon fifty-four (54) days before the date of the general election.

(e) If a candidate's petition states that the candidate is affiliated with a major political party, that statement may be challenged under this section. A challenge under this subsection succeeds only if the challenger shows both of the following:

(1) The candidate did not vote in the two (2) most recent primary elections in Indiana held by the party with which the candidate claims affiliation.

(2) The county chairman of:

(A) the political party with which the candidate claims affiliation; and

(B) the county in which the candidate resides;

did not certify that the candidate is a member of the political party with which the candidate claims affiliation. If the candidate produces a copy of the certification of the county chairman of the political party with which the candidate claims affiliation at the time the candidate filed the petition, the claim of a challenger under this subdivision is conclusively rebutted.

(f) Unless a challenger shows under subsection (e) that a candidate is not affiliated with the major political party with which the candidate claims affiliation, the candidate's claimed political party affiliation shall be indicated on the ballot as required by section 2.5(a)(5) of this chapter.

(g) A candidate's:

(1) claimed political party affiliation with a party other than a major political party; ~~or~~

(2) statement under section 2.5(a)(5)(B) of this chapter that the candidate is an independent candidate; or

(3) statement under section 2.5(a)(5)(C) of this chapter that the candidate elects not to disclose any affiliation with a political party or that the candidate:

(A) is not affiliated with a political party; and



(B) does not identify as an independent candidate;
is not subject to challenge under this section.

SECTION 5. IC 3-11-13-11, AS AMENDED BY P.L.195-2025,
SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
JULY 1, 2026]: Sec. 11. (a) The ballot information, whether placed on
the ballot card or on the marking device, must be in the order of
arrangement provided for ballots under this section.

(b) Each county election board shall have the names of all
candidates for all elected offices, political party offices, and public
questions printed on a ballot card as provided in this chapter. The
county may:

- (1) print all offices and questions on a single ballot card; and
- (2) include a ballot variation code to ensure that the proper
version of a ballot is used within a precinct.

(c) Each type of ballot card must be of uniform size and of the same
quality and color of paper (except as permitted under IC 3-10-1-17).

(d) The nominees of a political party or an independent candidate
or independent ticket (described in IC 3-11-2-6) nominated by
petitioners shall be listed on the ballot with the name and device set
forth on the certification or petition. The circle containing the device
may be of any size that permits a voter to readily identify the device.
IC 3-11-2-5 applies if the certification or petition does not include a
name or device, or if the same device is selected by two (2) or more
parties or petitioners. In the case of a candidate described in
IC 3-8-2.5-2.5(a)(5)(C), a blank space **must be printed** after the
candidate's name signifying that the candidate elects not to disclose any
affiliation with a political party or that the candidate:

- (1) is not affiliated with a political party; and
- (2) does not identify as an independent candidate.

(e) The offices and public questions on the general election ballot
must be placed on the ballot in the order listed in IC 3-11-2-12,
IC 3-11-2-12.4, IC 3-11-2-12.5, IC 3-11-2-12.7(b), IC 3-11-2-12.9(a),
IC 3-11-2-12.9(c), IC 3-11-2-13(a) through IC 3-11-2-13(c),
IC 3-11-2-14(a), IC 3-11-2-14(d), and IC 3-11-2-14(e). The offices and
public questions may be listed in a continuous column either vertically
or horizontally and on a number of separate pages.

(f) The name of each office must be printed in a uniform size in bold
type. A statement reading substantially as follows must be placed
immediately below the name of the office and above the name of the
first candidate:

- (1) "Vote for one (1) only.", if only one (1) candidate is to be
elected to the office.



(2) "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. To vote for any candidate for this office, you must make a voting mark for each candidate you wish to vote for. A straight party vote will not count as a vote for any candidate for this office.", if more than one (1) candidate is to be elected to the office.

(3) "Vote for one (1) only. A straight party vote will not count as a vote for any candidate for this office.", if only one (1) candidate is to be elected to a school board office.

(g) Below the name of the office and the statement required by subsection (f), the names of the candidates for each office must be grouped together in the following order:

(1) The major political party whose candidate received the highest number of votes in the county for secretary of state at the last election is listed first.

(2) The major political party whose candidate received the second highest number of votes in the county for secretary of state is listed second.

(3) All other political parties listed in the order that the parties' candidates for secretary of state finished in the last election are listed after the party listed in subdivision (2).

(4) If a political party did not have a candidate for secretary of state in the last election or a nominee is an independent candidate or independent ticket (described in IC 3-11-2-6), the party or candidate is listed after the parties described in subdivisions (1), (2), and (3).

(5) If more than one (1) political party or independent candidate or ticket described in subdivision (4) qualifies to be on the ballot, the parties, candidates, or tickets are listed in the order in which the party filed its petition of nomination under IC 3-8-6-12.

(6) The name of a candidate described in IC 3-8-2.5-2.5(a)(5)(C) is placed after the candidates listed in subdivisions (1) through (5), if applicable.

(7) A space for write-in voting is placed after the candidates listed in subdivisions (1) through (6), if required by law.

(8) The name of a write-in candidate may not be listed on the ballot.

(h) The names of the candidates grouped in the order established by subsection (g) must be printed in type with uniform capital letters and have a uniform space between each name. The name of the candidate's political party, or the word "Independent" if the:

(1) candidate; or



(2) ticket of candidates for:

(A) President and Vice President of the United States; or

(B) governor and lieutenant governor;

is independent, must be placed immediately below or beside the name of the candidate and must be printed in a uniform size and type. In the case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), the name of the candidate must be printed with a blank space after the candidate's name signifying that the candidate elects not to disclose any affiliation with a political party or that the candidate is not affiliated with a political party and does not identify as an independent candidate.

(i) All the candidates of the same political party for election to at-large seats on the fiscal or legislative body of a political subdivision must be grouped together:

(1) under the name of the office that the candidates are seeking;

(2) in the order established by subsection (g); and

(3) within the political party, in alphabetical order according to surname.

A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate: "Vote for not more than (insert the number of candidates to be elected) candidate(s) of ANY party for this office."

(j) Candidates for election to at-large seats on the governing body of a school corporation must be grouped:

(1) under the name of the office that the candidates are seeking; and

(2) in alphabetical order according to surname.

A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate: "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. A straight party vote will not count as a vote for any candidate for this office."

(k) The following information must be placed at the top of the ballot before the first public question is listed:

(1) The cautionary statement described in IC 3-11-2-7.

(2) The instructions described in IC 3-11-2-8, IC 3-11-2-10(d), and IC 3-11-2-10(e).

(l) The ballot must include a single connectable arrow, circle, oval, or square, or a voting position for voting a straight party ticket by one (1) mark as required by section 14 of this chapter, and the single connectable arrow, circle, oval, or square, or the voting position for casting a straight party ticket ballot must be identified by:

(1) the name of the political party; and



(2) immediately below or beside the political party's name, the device of that party (described in IC 3-11-2-5).

The name and device of each political party must be of uniform size and type and arranged in the order established by subsection (g) for listing candidates under each office. The instructions described in IC 3-11-2-10(c) for voting a straight party ticket and the statement concerning presidential electors required under IC 3-10-4-3 must be placed on the ballot label. The instructions for voting a straight party ticket must include the statement: "If you do not wish to vote a straight party ticket, do not make a mark in this section and proceed to voting the ballot by office."

(m) A public question must be in the form described in IC 3-11-2-15(a) and IC 3-11-2-15(b), except that a single connectable arrow, a circle, or an oval may be used instead of a square. Except as expressly authorized or required by statute, a county election board may not print a ballot card that contains language concerning the public question other than the language authorized by a statute.

(n) The requirements in this section:

(1) do not replace; and

(2) are in addition to;

any other requirements in this title that apply to optical scan ballots.

(o) The procedure described in IC 3-11-2-16 must be used when a ballot does not comply with the requirements imposed by this title or contains another error or omission that might result in confusion or mistakes by voters.

(p) This subsection applies to an optical scan ballot that does not list:

(1) the names of political parties or candidates; or

(2) the text of public questions;

on the face of the ballot. The ballot must be prepared in accordance with this section, except that the ballot must include a numbered circle or oval to refer to each political party, candidate, or public question.

SECTION 6. IC 3-11-14-3.5, AS AMENDED BY P.L.195-2025, SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3.5. (a) Each county election board shall have the names of all candidates for all elected offices, political party offices, and public questions printed on ballot labels for use in an electronic voting system as provided in this chapter.

(b) The county may:

(1) print all offices and public questions on a single ballot label; and

(2) include a ballot variation code to ensure that the proper



version of a ballot label is used within a precinct.

(c) Each type of ballot label must be of uniform size and of the same quality and color of paper (except as permitted under IC 3-10-1-17).

(d) The nominees of a political party or an independent candidate or independent ticket (described in IC 3-11-2-6) nominated by petitioners must be listed on the ballot label with the name and device set forth on the certification or petition. The circle containing the device may be of any size that permits a voter to readily identify the device. IC 3-11-2-5 applies if the certification or petition does not include a name or device, or if the same device is selected by two (2) or more parties or petitioners. In the case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), a blank space **must be printed** after the candidate's name signifying that the candidate elects not to disclose any affiliation with a political party or that the candidate:

(1) is not affiliated with a political party; and

(2) does not identify as an independent candidate.

(e) The ballot labels must list the offices and public questions on the general election ballot in the order listed in IC 3-11-2-12, IC 3-11-2-12.4, IC 3-11-2-12.5, IC 3-11-2-12.7(b), IC 3-11-2-12.9(a), IC 3-11-2-12.9(c), IC 3-11-2-13(a) through IC 3-11-2-13(c), IC 3-11-2-14(a), IC 3-11-2-14(d), and IC 3-11-2-14(e). Each office and public question may have a separate screen, or the offices and public questions may be listed in a continuous column either vertically or horizontally.

(f) The name of each office must be printed in a uniform size in bold type. A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate:

(1) "Vote for one (1) only.", if only one (1) candidate is to be elected to the office.

(2) "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. To vote for any candidate for this office, you must make a voting mark for each candidate you wish to vote for. A straight party vote will not count as a vote for any candidate for this office.", if more than one (1) candidate is to be elected to the office.

(3) "Vote for one (1) only. A straight party vote will not count as a vote for any candidate for this office.", if only one (1) candidate is to be elected to a school board office.

(g) Below the name of the office and the statement required by subsection (f), the names of the candidates for each office must be grouped together in the following order:



(1) The major political party whose candidate received the highest number of votes in the county for secretary of state at the last election is listed first.

(2) The major political party whose candidate received the second highest number of votes in the county for secretary of state is listed second.

(3) All other political parties listed in the order that the parties' candidates for secretary of state finished in the last election are listed after the party listed in subdivision (2).

(4) If a political party did not have a candidate for secretary of state in the last election or a nominee is an independent candidate or independent ticket (described in IC 3-11-2-6), the party or candidate is listed after the parties described in subdivisions (1), (2), and (3).

(5) If more than one (1) political party or independent candidate or ticket described in subdivision (4) qualifies to be on the ballot, the parties, candidates, or tickets are listed in the order in which the party filed its petition of nomination under IC 3-8-6-12.

(6) The name of a candidate described in IC 3-8-2.5-2.5(a)(5)(C) is placed after the candidates listed in subdivisions (1) through (5), if applicable.

(7) A space for write-in voting is placed after the candidates listed in subdivisions (1) through (6), if required by law. A space for write-in voting for an office is not required if there are no declared write-in candidates for that office. However, procedures must be implemented to permit write-in voting for candidates for federal offices.

(8) The name of a write-in candidate may not be listed on the ballot.

(h) The names of the candidates grouped in the order established by subsection (g) must be printed in type with uniform capital letters and have a uniform space between each name. The name of the candidate's political party, or the word "Independent", if the:

(1) candidate; or

(2) ticket of candidates for:

(A) President and Vice President of the United States; or

(B) governor and lieutenant governor;

is independent, must be placed immediately below or beside the name of the candidate and must be printed in uniform size and type. In the case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), the name of the candidate must be printed with a blank space after the candidate's name signifying that the candidate elects not to disclose any affiliation



1 with a political party or that the candidate is not affiliated with a
 2 political party and does not identify as an independent candidate.

3 (i) All the candidates of the same political party for election to
 4 at-large seats on the fiscal or legislative body of a political subdivision
 5 must be grouped together:

- 6 (1) under the name of the office that the candidates are seeking;
- 7 (2) in the party order established by subsection (g); and
- 8 (3) within the political party, in alphabetical order according to
 9 surname.

10 A statement reading substantially as follows must be placed
 11 immediately below the name of the office and above the name of the
 12 first candidate: "Vote for not more than (insert the number of
 13 candidates to be elected) candidate(s) of ANY party for this office.".

14 (j) Candidates for election to at-large seats on the governing body
 15 of a school corporation must be grouped:

- 16 (1) under the name of the office that the candidates are seeking;
- 17 and
- 18 (2) in alphabetical order according to surname.

19 A statement reading substantially as follows must be placed
 20 immediately below the name of the office and above the name of the
 21 first candidate: "Vote for not more than (insert the number of
 22 candidates to be elected) candidate(s) for this office. A straight party
 23 vote will not count as a vote for any candidate for this office.".

24 (k) The cautionary statement described in IC 3-11-2-7 must be
 25 placed at the top or beginning of the ballot label before the first public
 26 question is listed.

27 (l) The instructions described in IC 3-11-2-8, IC 3-11-2-10(d), and
 28 IC 3-11-2-10(e) may be:

- 29 (1) placed on the ballot label; or
- 30 (2) posted in a location within the voting booth that permits the
 31 voter to easily read the instructions.

32 (m) Except as provided in section 14.5 of this chapter, the ballot
 33 label must include a touch sensitive point or button for voting a straight
 34 political party ticket by one (1) touch, and the touch sensitive point or
 35 button must be identified by:

- 36 (1) the name of the political party; and
- 37 (2) immediately below or beside the political party's name, the
 38 device of that party (described in IC 3-11-2-5).

39 The name and device of each party must be of uniform size and type,
 40 and arranged in the order established by subsection (g) for listing
 41 candidates under each office. The instructions described in
 42 IC 3-11-2-10(c) for voting a straight party ticket and the statement



concerning presidential electors required under IC 3-10-4-3 must be placed on the ballot label. The instructions for voting a straight party ticket must include the statement: "If you do not wish to vote a straight party ticket, press "NEXT" (or replace "NEXT" with the term used by that voting system to permit a voter to skip a ballot screen) to continue voting.".

(n) A public question must be in the form described in IC 3-11-2-15(a) and IC 3-11-2-15(b), except that a touch sensitive point or button must be used instead of a square. Except as expressly authorized or required by statute, a county election board may not print a ballot label that contains language concerning the public question other than the language authorized by a statute.

(o) The requirements in this section:

(1) do not replace; and

(2) are in addition to;

any other requirements in this title that apply to ballots for electronic voting systems.

(p) The procedure described in IC 3-11-2-16 must be used when a ballot label does not comply with the requirements imposed by this title or contains another error or omission that might result in confusion or mistakes by voters.

SECTION 7. IC 4-1-11-9, AS ADDED BY P.L.91-2005, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) ~~This section applies~~ If a state agency demonstrates that:

(1) the cost of providing the notice required under this chapter is at least two hundred fifty thousand dollars (\$250,000);

(2) the number of persons to be notified is at least five hundred thousand (500,000); or

(3) the agency does not have sufficient contact information;

the state agency may use an alternate form of notice set forth in subsection (b).

(b) A state agency may provide the following alternate forms of notice if authorized by subsection (a):

(1) Conspicuous posting of the notice on the state agency's ~~web site~~ **website** if the state agency maintains a ~~web site~~ **website**.

(2) Notification to major statewide media.

SECTION 8. IC 4-12-1-17.2, AS ADDED BY P.L.180-2022(ss), SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 17.2. (a) As used in this section, "fund" refers to the Hoosier Families First Fund established by subsection (b).

(b) The Hoosier Families First Fund is established for the purposes



1 of this section. The fund shall be administered by the budget agency.

2 (c) Forty-five million dollars (\$45,000,000) is appropriated from the
3 state general fund to the fund for the state fiscal year beginning July 1,
4 2022, and ending June 30, 2023, for allotment as set forth in subsection
5 (d).

6 (d) The budget agency may allot money from the fund to the
7 department of child services, the family and social services
8 administration, the Indiana department of health, and the department
9 of homeland security to provide additional funding for existing
10 programs and new programs with the following purposes:

11 (1) To support the health of pregnant women, postpartum
12 mothers, and infants.

13 (2) To support pregnancy planning, including addressing barriers
14 to long acting reversible contraception.

15 (3) To support the needs of families with children less than four
16 years of age who are low income or lack access to resources.

17 (4) To increase the number of families served under the Child
18 Care Development Fund.

19 (5) To support Indiana's foster families and adoptive families.

20 (6) To support prevention based programming that would prevent
21 children from entering the department of child services system.

22 (7) To support funding for newborn safety devices as described in
23 IC 31-34-2.5-1.

24 (8) To provide funding to providers of maternal support services
25 and services to help pregnant women and their families bring their
26 pregnancy to term. To be eligible for funding under this
27 subdivision, providers may not be affiliated with any abortion
28 clinic (as defined in IC 16-18-2-1.5, **before its repeal**).

29 (e) A provider of services described in subsection (d)(8) that wishes
30 to receive money from the fund must apply to, and in the manner
31 prescribed by, the budget agency or the agency administering the
32 program. Any funds awarded to providers under subsection (d)(8) must
33 be awarded on a competitive basis following receipt and review of
34 providers' applications.

35 (f) Money in the fund at the end of the state fiscal year ending June
36 30, 2023, reverts to the state general fund.

37 (g) The budget committee shall review the money allotted under this
38 section at the next regularly scheduled meeting of the budget
39 committee following the release of the funds.

40 SECTION 9. IC 4-13-1-28, AS ADDED BY P.L.60-2025,
41 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
42 JULY 1, 2026]: Sec. 28. (a) As used in this section, "blockchain



1 technology" means distributed ledger technology that uses a
 2 distributed, decentralized, shared, and replicated ledger that may be
 3 public or private, permissioned or permissionless, and that may include
 4 the use of electronic currencies or electronic tokens as a medium of
 5 electronic exchange.

6 (b) As used in this section, "distributed ledger technology" means:

7 (1) a data base that is consensually shared and synchronized
 8 across multiple sites, institutions, or geographies allowing for
 9 public witnesses to transactions; and

10 (2) supporting infrastructure for a data base described in
 11 subdivision (1).

12 (c) Not later than March 1, 2026, the department may issue a
 13 request for information in compliance with IC 5-23-4.5 for purposes of
 14 exploring how the use of blockchain technology could be used by a
 15 state agency to:

16 (1) achieve greater cost efficiency and cost effectiveness; and

17 (2) improve consumer:

18 (A) convenience;

19 (B) experience;

20 (C) data security; and

21 (D) data privacy.

22 If the department issues a request for information, the department must
 23 comply with the requirements of this section.

24 (d) The request for information shall include participation from the
 25 following state agencies:

26 (1) The office of the secretary of state.

27 (2) The office of the secretary of family and social services (IC
 28 12-8-1.5-1).

29 (3) The department of workforce development (IC 22-4.1-2-1).

30 (4) The department of child services (IC 31-25-1-1).

31 (5) The office of technology (IC 4-13.1-1-3).

32 (6) Any other state agency as determined by the office of
 33 technology.

34 (e) The department shall set a deadline of not later than July 1,
 35 2026, for submission of responses to the request for information.

36 (f) Subject to IC 5-23-4.5-3, the department shall prepare a report
 37 that includes:

38 (1) information regarding the responses to the request for
 39 information, including a copy of any portions of a response that
 40 may be disclosed under IC 5-14-3;

41 (2) any recommendations by the department regarding the request
 42 for information or the responses to the request for information;



1 and

2 (3) any other information that the department determines is
3 relevant to the request for information.

4 (g) Not later than October 1, 2026, the department shall submit the
5 report prepared under subsection ~~(g)~~ (f) to the legislative council in an
6 electronic format under IC 5-14-6.

7 (h) This section expires December 31, 2026.

8 SECTION 10. IC 4-13-2-18, AS AMENDED BY P.L.182-2025,
9 SECTION 4, AND AS AMENDED BY P.L.213-2025, SECTION 51,
10 IS CORRECTED AND AMENDED TO READ AS FOLLOWS
11 [EFFECTIVE JULY 1, 2026]: Sec. 18. (a) For the purpose of the
12 administration of the allotment system provided by this section, each
13 fiscal year shall be divided into four (4) quarterly allotment periods,
14 beginning respectively on the first day of July, October, January, and
15 April. In any case where the quarterly allotment period is
16 impracticable, the budget director may prescribe a different period
17 suited to the circumstances but not extending beyond the end of any
18 fiscal year.

19 (b) Except as otherwise expressly provided in this section, the
20 provisions of this chapter relating to the allotment system and to the
21 encumbering of funds shall apply to appropriations and funds of all
22 kinds, including standing or annual appropriations and dedicated funds,
23 from which expenditures are to be made from time to time by or under
24 the authority of any state agency. The provisions relating to the
25 allotment system shall not apply to money made available for the
26 purpose of conducting a post-audit of financial transactions of any state
27 agency. Likewise, appropriations for construction or for the acquisition
28 of real estate for public purposes may be exempted from the allotment
29 system by the budget director. The budget director shall prescribe
30 regulations as will ensure the proper application and encumbering of
31 those funds.

32 (c) No appropriation to any state agency shall become available for
33 expenditure until:

34 (1) the state agency shall have submitted to the budget agency a
35 request for allotment, the request for allotment to consist of an
36 estimate of the amount required for each activity and each
37 purpose for which money is to be expended during the applicable
38 allotment period; and

39 (2) the estimate contained in the request for allotment shall have
40 been approved, increased, or decreased by the budget director and
41 funds allotted as provided.

42 The form of a request for allotment, including a request by hand, mail,



1 facsimile transmission, or other electronic transmission, shall be
 2 prescribed by the budget agency with the approval of the state
 3 comptroller and shall be submitted to them at least twenty-five (25)
 4 days prior to the beginning of the allotment period.

5 (d) *Subject to subsection ~~(k)~~, (m)*, each request for allotment shall
 6 be reviewed by the budget agency and respective amounts shall be
 7 allotted for expenditure if:

8 (1) the estimate is within the terms of the appropriation as to
 9 amount and purpose, having due regard for the probable future
 10 needs of the state agency for the remainder of the fiscal year or
 11 other term for which the appropriation was made; and

12 (2) the agency contemplates expenditure of the allotment during
 13 the period.

14 Otherwise the budget agency shall modify the estimate to conform with
 15 the terms of the appropriation and the prospective needs of the state
 16 agency, and shall reduce the amount to be allotted accordingly. The
 17 budget agency shall act promptly upon all requests for allotment and
 18 shall notify every state agency of its allotments at least five (5) days
 19 before the beginning of each allotment period. The total amount
 20 allotted to any agency for the fiscal year or other term for which the
 21 appropriation was made shall not exceed the amount appropriated for
 22 the year or term.

23 (e) The budget director shall also have authority at any time to
 24 modify or amend any allotment previously made by the budget director.

25 (f) In case the budget director shall discover at any time that:

26 (1) the probable receipts from taxes or other sources for any fund
 27 will be less than were anticipated; and

28 (2) as a consequence the amount available for the remainder of
 29 the term of the appropriation or for any allotment period will be
 30 less than the amount estimated or allotted;

31 the budget director shall, with the approval of the governor, and after
 32 notice to the state agency or agencies concerned, reduce the amount or
 33 amounts allotted or to be allotted to prevent a deficit.

34 (g) The budget agency shall promptly transmit records of all
 35 allotments and modifications to the state comptroller.

36 (h) The state comptroller shall maintain as a part of the central
 37 accounting system for the state, as provided, records showing at all
 38 times, by funds, accounts, and other pertinent classifications, the
 39 amounts appropriated, the estimated revenues, the actual revenues or
 40 receipts; the amounts allotted and available for expenditure, the total
 41 expenditures, the unliquidated obligations, actual balances on hand,
 42 and the unencumbered balances of the allotments for each state agency.



(i) No payment shall be made from any fund, allotment, or appropriation unless the state comptroller shall first certify that there is a sufficient unencumbered balance in the fund, allotment, or appropriation, after taking into consideration all previous expenditures to meet the same. In the case of an obligation to be paid from federal funds, a notice of a federal grant award shall be considered an appropriation against which obligations may be incurred, funds may be allotted, and encumbrances may be made.

(j) Every expenditure or obligation authorized or incurred in violation of the provisions of this chapter shall be void. Every payment made in violation of the provisions of this chapter shall be illegal, and every official authorizing or making a void payment, or taking part in a void payment, and every person receiving a void payment, or any part of a void payment, shall be jointly and severally liable to the state for the full amount paid or received. If any appointive officer or employee of the state shall knowingly incur any obligation or shall authorize or make any expenditure in violation of the provisions of this chapter, or take any part, it shall be ground for removal of the appointive officer or employee of the state by the officer appointing the appointive officer or employee of the state. If the appointing officer is a person other than the governor and fails to remove the officer or employee, the governor may exercise the power of removal after giving notice of the charges and opportunity for hearing to the accused officer or employee and to the officer appointing the accused officer or employee.

(k) *The budget director shall be responsible for the authorization of employee positions. Such authorizations shall be based on the following:*

(1) *A requirement that permanent full-time positions which have been vacant for ninety (90) days or more be reviewed and reauthorized prior to being filled. If requested by the budget director, the state personnel director shall review such vacant positions to determine the proper classification for the position.*

(2) *Other relevant criteria as determined by the budget director.*

(l) *The budget director shall provide a report to the governor not later than January 1, April 1, July 1, and October 1 of each year that lists the permanent full-time positions that were subject to the budget director's review under subsection (k)(1) during the preceding three (3) months.*

~~(m)~~ **(m)** *If the budget director determines at any time that a state agency can perform the agency's statutory obligations with less than the amount appropriated, the budget director shall, with the approval of the governor, and after notice to the state agency or agencies*



1 *concerned, reduce the amount or amounts allotted or to be allotted.*
 2 *The budget agency shall maintain a list of each appropriation from*
 3 *which the amount or amounts allotted or to be allotted are reduced*
 4 *and publish the list on the budget agency's website.*

5 SECTION 11. IC 4-13.1-2-9, AS AMENDED BY P.L.186-2025,
 6 SECTION 283, IS AMENDED TO READ AS FOLLOWS
 7 [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) This section does not apply
 8 to an entity subject to IC 13-18-16.5.

9 (b) A state agency (as defined in IC 4-1-10-2) other than a state
 10 educational institution, and a political subdivision (as defined in
 11 IC 36-1-2-13), other than a ~~political subdivision~~ **department of public**
 12 **utilities** established under IC 8-1-11.1, shall:

13 (1) report any cybersecurity incident using their best professional
 14 judgment to the office without unreasonable delay and not later
 15 than two (2) business days after discovery of the cybersecurity
 16 incident in a format prescribed by the chief information officer;
 17 and

18 (2) provide the office with the name and contact information of
 19 any individual who will act as the primary reporter of a
 20 cybersecurity incident described in subdivision (1) before
 21 September 1, 2021, and before September 1 of every year
 22 thereafter.

23 Nothing in this section shall be construed to require reporting that
 24 conflicts with federal privacy laws or is prohibited due to an ongoing
 25 law enforcement investigation.

26 SECTION 12. IC 4-13.1-4-2, AS AMENDED BY P.L.142-2025,
 27 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 28 JULY 1, 2026]: Sec. 2. (a) Except as provided in subsection (b), as
 29 used in this chapter, "public entity" means a:

- 30 (1) political subdivision;
- 31 (2) state agency;
- 32 (3) school corporation; or
- 33 (4) state educational institution.

34 (b) The term does not include an acute care hospital licensed under
 35 IC 16-21 that is established and operated under IC 16-22-2, IC 16-22-8,
 36 or IC 16-23, or a ~~political subdivision~~ **department of public utilities**
 37 established under IC 8-1-11.1.

38 SECTION 13. IC 4-13.6-2-12, AS AMENDED BY P.L.15-2020,
 39 SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 40 JULY 1, 2026]: Sec. 12. The department shall offer instruction at least
 41 annually to:

- 42 (1) small businesses (as defined in IC 5-22-14-1);



1 (2) minority business enterprises (as defined in IC 4-13-16.5-1);
 2 (3) women's business enterprises (as defined in IC 4-13-16.5-1);
 3 and
 4 ~~(4) veteran owned small businesses (as defined in~~
 5 ~~IC 4-13-16.5-1);~~
 6 **(4) veteran owned small businesses (as defined in**
 7 **IC 4-13-16.5-1);**

8 with regard to bonding requirements and working with the surety
 9 industry to secure bonding for public works projects.

10 SECTION 14. IC 4-13.6-5-2, AS AMENDED BY P.L.172-2011,
 11 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 12 JULY 1, 2026]: Sec. 2. (a) Except as provided by this chapter and
 13 IC 16-33-4-10, if the estimated cost of a public works project is at least
 14 one hundred fifty thousand dollars (\$150,000), the division shall award
 15 a contract for the project based on competitive bids.

16 (b) If the estimated cost of a public works project is at least one
 17 hundred fifty thousand dollars (\$150,000), the division shall develop
 18 contract documents for a public works contract and keep the contract
 19 documents on file in its offices so that they may be inspected by
 20 contractors and members of the public.

21 (c) The division shall advertise for bids under section 8 of this
 22 chapter. The director shall award a contract under IC 4-13.6-6.

23 (d) A contractor shall submit under oath a financial statement as a
 24 part of the bid. The director may waive filing of the financial statement.

25 (e) After bids are opened but before a contract is awarded, the
 26 director may require a contractor to submit a statement of the
 27 contractor's experience, a proposed plan of performing the work, and
 28 a listing of the equipment that is available to the contractor for
 29 performance of the work.

30 (f) The statements required by this section shall be submitted on
 31 forms approved by the state board of accounts. The forms shall be
 32 based, so far as applicable, on standard questionnaires and financial
 33 statements for contractors used in investigating the qualifications of
 34 contractors on public construction work.

35 (g) The division shall reject the bid of a contractor if:

36 (1) the estimated cost of the public works project is one hundred
 37 fifty thousand dollars (\$150,000) or more and the contractor is not
 38 qualified under ~~chapter 4 of this article;~~ **IC 4-13.6-4;**

39 (2) the estimated cost of the public works project is less than one
 40 hundred fifty thousand dollars (\$150,000) and the director makes
 41 a written determination, based upon information provided under
 42 subsections (d) and (e), that the contractor is not qualified to



perform the public works contract;

(3) the contractor has failed to perform a previous contract with the state satisfactorily and has submitted the bid during a period of suspension imposed by the director (the failure of the contractor to perform a contract satisfactorily must be based upon a written determination by the director);

(4) the contractor has not complied with a rule adopted under this article and the rule specifies that failure to comply with it is a ground for rejection of a bid; or

(5) the contractor has not complied with any requirement under section 2.5 of this chapter.

(h) The division shall keep a record of all bids. The state board of accounts shall approve the form of this record, and the record must include at least the following information:

(1) The name of each contractor.

(2) The amount bid by each contractor.

(3) The name of the contractor making the lowest bid.

(4) The name of the contractor to whom the contract was awarded.

(5) The reason the contract was awarded to a contractor other than the lowest bidder, if applicable.

(6) Purchase order numbers.

SECTION 15. IC 4-20.5-21-3, AS ADDED BY P.L.4-2021, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. Before January 1, 2024, the department shall install on the grounds of the state house a monument commissioned by the Indiana women's suffrage centennial commission under IC 4-23-25.1-7 **(before its expiration)**.

SECTION 16. IC 4-21.5-3.5-6 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) If a proceeding is conducted by mediation, the administrative law judge assigned to the proceeding shall within fifteen (15) days after the date of the order for mediation make available to the parties, at no cost, a mediator who is qualified under section 8 of this chapter, or the parties may elect to use, at their own cost, an outside mediator who is:

(1) qualified under section 8 of this chapter; and

(2) approved by the administrative law judge assigned to the proceeding.

(b) If a mediator is not selected by agreement or choice under subsection (a), the administrative law judge assigned to the proceeding shall designate three (3) mediators from the approved list of mediators described in ~~subsection~~ **section 7(d) of this chapter** and allow fifteen



(15) days for alternate striking by each side. The party initiating the proceeding shall strike first. The mediator remaining after the striking process is the mediator.

SECTION 17. IC 4-23-34-9, AS AMENDED BY P.L.213-2025, SECTION 58, AND AS AMENDED BY P.L.238-2025, SECTION 5, IS CORRECTED AND AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. The *Indiana department of department of* natural resources shall furnish the necessary staff support for the commission.

SECTION 18. IC 4-30-2-4.3, AS ADDED BY P.L.152-2025, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.3. "Lottery courier service" means a **for-profit** service operated for the purpose of purchasing or facilitating the purchase of lottery tickets on behalf of persons and delivering or transmitting the tickets, or electronic images of the tickets, to the person in exchange for monetary compensation.

SECTION 19. IC 4-31-5-9, AS AMENDED BY P.L.152-2025, SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) The commission shall determine the dates and (if the commission adopts a rule under subsection (c)) the number of racing days authorized under each recognized meeting permit. Except for racing at winterized tracks, a recognized meeting may not be conducted after December 10 of a calendar year.

(b) Except as provided in subsection (c), the commission shall require at least two hundred eighty (280) but not more than three hundred thirty (330) total live racing days each calendar year combined at both racetracks, as follows:

(1) At least one hundred sixty (160) but not more than one hundred eighty (180) live racing days must be for standardbreds to race at a licensed ~~parimutuel~~ **pari-mutuel** horse racing track located in Madison County.

(2) At least one hundred twenty (120) but not more than one hundred fifty (150) live racing days must be for horses that are:

(A) mounted by jockeys; and

(B) run on a course without jumps or obstacles;

to race at a licensed ~~parimutuel~~ **pari-mutuel** horse racing track located in Shelby County.

The requirements of this subsection are a continuing condition for maintaining the permit holder's permit. However, the requirements do not apply if the commission determines that the permit holder is prevented from conducting live horse racing as a result of a natural disaster or another event over which the permit holder has no control.



(c) The commission may by rule adjust any of the following:

(1) The total required number of live racing days under subsection

(b).

(2) The number of live racing days required under subsection

(b)(1).

(3) The number of live racing days required under subsection

(b)(2).

(d) A permit holder may not conduct more than fourteen (14) races on a particular racing day, unless authorized by the commission to conduct additional races.

SECTION 20. IC 4-33-12-0.7, AS ADDED BY P.L.293-2019, SECTION 23, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 0.7. (a) This section applies only to a licensed owner described in IC 4-33-6-1(a)(1).

(b) Adjusted gross receipts received by two (2) riverboats operated by the licensed owner in accordance with IC 4-33-6-1(d) must be taxed separately under this chapter regardless of the fact that the riverboats are operated under a single license.

(c) This subsection applies to a state fiscal year ending before July 1, 2025. Beginning on the day that the licensed owner begins gaming operations at a new riverboat sited at a location approved under IC 4-33-6-4.5, the adjusted gross receipts received by the riverboat must be taxed under this chapter as if the adjusted gross receipts were received from two (2) riverboats. The licensed owner shall allocate the adjusted gross receipts received by the riverboat into two (2) separate tax bases proportionally to the amount of adjusted gross receipts that each riverboat operating from a dock in Gary received in the state fiscal year ending June 30, 2018. The licensed owner's tax liability under this chapter is determined by applying:

(1) the tax rate determined under section 1.5(b) **of this chapter** for the docked riverboat that had the greater amount of adjusted gross receipts in the state fiscal year ending June 30, 2018, to the larger of the two (2) tax base allocations; and

(2) the tax rate determined under section 1.5(b) **of this chapter** for the docked riverboat that had the lesser amount of adjusted gross receipts in the state fiscal year ending June 30, 2018, to the smaller of the two (2) tax base allocations.

(d) For state fiscal years beginning after June 30, 2025, adjusted gross receipts received by a riverboat sited at a location approved under IC 4-33-6-4.5 are subject to taxation under this chapter as adjusted gross receipts received from a single riverboat.

SECTION 21. IC 4-33-22-8.5, AS ADDED BY P.L.115-2025,



SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8.5. As used in ~~the~~ **this** chapter, "unified rules" means the most recent version of any of the unified rules adopted by the Association of Boxing Commissions and Combative Sports.

SECTION 22. IC 5-1-14-17, AS ADDED BY P.L.68-2025, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 17. (a) This section applies to a qualified political subdivision.

(b) As used this section, "general obligation bond" means a bond issued for a short term period of not more than five (5) years and payable from property taxes for a purpose or project that is not a controlled project (as defined in IC 6-1.1-20-1.1) for which the bond is not required to be issued using the procedures in IC 6-1.1-20.

(c) As used in this section, "qualified political subdivision" means a county, city, town, township, or school corporation.

(d) Notwithstanding any other law, and except as provided in subsection (e), if a qualified political subdivision issues new general obligation bonds, or has issued general obligation bonds before May 1, 2025, for a period of two (2) years ~~of or~~ less, then at the expiration of those general obligation bonds, the qualified political subdivision must wait one (1) year from that date before the qualified political subdivision may issue general obligation bonds.

(e) Subsection (d) shall not apply to a qualified political subdivision in the case of a natural disaster, an accident, or another unanticipated emergency as determined by the department of local government finance.

SECTION 23. IC 5-2-1.6-9, AS ADDED BY P.L.20-2025, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. An employment contract or agreement may not require an individual to reimburse the public employer for more than the maximum reimbursement amount, which shall be calculated as follows:

(1) If an individual is hired by a nonpublic employer not more than one (1) year after the individual's certification date, the contract may require the individual to reimburse the public employer not more than one hundred percent (100%) of the costs, expressed as a dollar amount.

(2) If an individual is hired by a nonpublic employer:

(A) more than one (1) year; and

(B) less than two (2) years;

after the individual's certification date, the contract may require the individual to reimburse the public employer not more than



sixty-six percent (66%) of costs, expressed as a dollar amount.

(3) If an individual is hired by a nonpublic employer:

(A) at least two (2) years; and

(B) less than three (3) years;

after the individual's certification date, the contract may require the individual to reimburse the public employer not more than thirty-three percent (33%) of costs, expressed as a dollar amount.

(4) If an individual is hired by a nonpublic employer more than three (3) years after the individual's certification date, the contract may not require ~~the~~ individual to reimburse the public employer for any costs.

SECTION 24. IC 5-2-22-4, AS AMENDED BY P.L.161-2018, SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) The office shall publish the registry on the office's ~~Internet web site~~: **website**. The registry must be searchable and available to the public.

(b) The office shall ensure that the registry is updated at least one (1) time every thirty (30) days.

(c) The office shall ensure that the registry displays the following or similar words:

"Based on information submitted to law enforcement, a person whose name appears in this registry has been convicted of a crime of child abuse. However, information on the registry may not be complete."

SECTION 25. IC 5-10.2-2-0.1, AS ADDED BY P.L.220-2011, SECTION 71, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 0.1. The addition of section 18 of this chapter **(expired July 1, 2013)** by P.L.224-2003 applies only to investments made after June 30, 2003.

SECTION 26. IC 5-15-1-2, AS ADDED BY P.L.246-2023, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) For purposes of this section, "administration" refers to the Indiana archives and records administration created by IC 5-15-5.1.

(b) The administration shall do the following:

(1) Establish procedures to retain an original record, document, plat, paper, or instrument-in-writing described in section 1 of this chapter in an electronic format.

(2) After the administration has established a procedure described in subdivision (1), establish a period of time after which an original record, document, plat, paper, or instrument-in-writing may be destroyed.



(3) Not later than November 1, 2023, prepare and submit a report to the general assembly in an electronic format under IC 5-14-6 regarding the:

(A) procedure established under subdivision (1); and

(B) period of time established under subdivision (2):

This subdivision expires July 1, 2024.

SECTION 27. IC 6-1.1-3-7, AS AMENDED BY P.L.230-2025, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) Except as provided in subsections (b), (c), and (f), a taxpayer shall, on or before the filing date of each year, file a personal property return **with:**

(1) the assessor of each township in which the taxpayer's personal property is subject to assessment;

(2) the county assessor if there is no township assessor for a township in which the taxpayer's personal property is subject to assessment; or

(3) after 2020 and before 2026, the personal property online submission portal developed and maintained by the department under section 26 of this chapter (before its repeal).

(b) The township assessor or county assessor may grant a taxpayer an extension of not more than thirty (30) days to file the taxpayer's return if:

(1) the taxpayer submits a written or an electronic application for an extension prior to the filing date; and

(2) the taxpayer is prevented from filing a timely return because of sickness, absence from the county, or any other good and sufficient reason.

(c) If a taxpayer:

(1) has personal property subject to assessment in more than one

(1) township in a county; or

(2) has personal property that is subject to assessment and that is located in two (2) or more taxing districts within the same township;

the taxpayer shall file a single return with the county assessor and attach a schedule listing, by township, all the taxpayer's personal property and the property's assessed value. The taxpayer shall provide the county assessor with the information necessary for the county assessor to allocate the assessed value of the taxpayer's personal property among the townships listed on the return and among taxing districts, including the street address, the township, and the location of the property. The taxpayer may, in the alternative, submit the taxpayer's personal property information and the property's assessed value



1 through the personal property online submission portal developed
2 under section 26 of this chapter (before its repeal).

3 (d) The county assessor shall provide to each affected township
4 assessor (if any) in the county all information filed by a taxpayer under
5 subsection (c) that affects the township.

6 (e) The county assessor may refuse to accept a personal property tax
7 return that does not comply with subsection (c). For purposes of
8 IC 6-1.1-37-7, a return to which subsection (c) applies is filed on the
9 date it is filed with the county assessor with the schedule required by
10 subsection (c) attached.

11 (f) This subsection applies to a church or religious society that:

12 (1) has filed a personal property tax return under this section for
13 each of the five (5) years preceding a year; and

14 (2) on each of the returns described in subdivision (1) has not
15 owed any tax liability due to exemptions under ~~IC 6-1.1-13~~ **this**
16 **article** for which the church or religious society has been deemed
17 eligible.

18 Notwithstanding any other law, a church or religious society is not
19 required to file a personal property tax return for a year after the five
20 (5) year period described in subdivision (1) unless there is a change in
21 ownership of any personal property included on a return described in
22 subdivision (1), or any other change that results in the personal
23 property no longer being eligible for an exemption under ~~IC 6-1.1-13~~ **this**
24 **article**, or the church or religious society would otherwise be liable for
25 property tax imposed on personal property owned by the church or
26 religious society.

27 SECTION 28. IC 6-1.1-4-13, AS AMENDED BY P.L.180-2016,
28 SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
29 JULY 1, 2026]: Sec. 13. (a) In assessing or reassessing land, the land
30 shall be assessed as agricultural land only when it is devoted to
31 agricultural use.

32 (b) For purposes of this section, and in addition to any other land
33 considered devoted to agricultural use, any:

34 (1) land enrolled in:

35 (A) a land conservation or reserve program administered by
36 the United States Department of Agriculture;

37 (B) a land conservation program administered by the United
38 States Department of Agriculture's Farm Service Agency; or

39 (C) a conservation reserve program or agricultural easement
40 program administered by the United States Department of
41 Agriculture's ~~National~~ **Natural** Resources Conservation
42 Service;



(2) land enrolled in the department of natural resources' classified forest and wildlands program (or any similar or successor program);

(3) land classified in the category of other agriculture use, as provided in the department of local government finance's real property assessment guidelines; or

(4) land devoted to the harvesting of hardwood timber;

is considered to be devoted to agricultural use. Agricultural use for purposes of this section includes but is not limited to the uses included in the definition of "agricultural use" in IC 36-7-4-616(b), such as the production of livestock or livestock products, commercial aquaculture, equine or equine products, land designated as a conservation reserve plan, pastureland, poultry or poultry products, horticultural or nursery stock, fruit, vegetables, forage, grains, timber, trees, bees and apiary products, tobacco, other agricultural crops, general farming operation purposes, native timber lands, or land that lays fallow. Agricultural use may not be determined by the size of a parcel or size of a part of the parcel. This subsection does not affect the assessment of any real property assessed under IC 6-1.1-6 (assessment of certain forest lands), IC 6-1.1-6.2 (assessment of certain windbreaks), or IC 6-1.1-6.7 (assessment of filter strips).

(c) The department of local government finance shall give written notice to each county assessor of:

(1) the availability of the United States Department of Agriculture's soil survey data; and

(2) the appropriate soil productivity factor for each type or classification of soil shown on the United States Department of Agriculture's soil survey map.

All assessing officials and the property tax assessment board of appeals shall use the data in determining the true tax value of agricultural land. However, notwithstanding the availability of new soil productivity factors and the department of local government finance's notice of the appropriate soil productivity factor for each type or classification of soil shown on the United States Department of Agriculture's soil survey map for the March 1, 2012, assessment date, the soil productivity factors used for the March 1, 2011, assessment date shall be used for the January 1, 2016, assessment date and each assessment date thereafter.

(d) The department of local government finance shall by rule provide for the method for determining the true tax value of each parcel of agricultural land.

(e) This section does not apply to land purchased for industrial or



1 commercial uses.

2 SECTION 29. IC 6-1.1-10-54, AS AMENDED BY P.L.213-2025,
3 SECTION 70, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
4 JULY 1, 2026]: Sec. 54. (a) As used in this section, "designating body"
5 means the fiscal body of:

- 6 (1) a county that does not contain a consolidated city; or
- 7 (2) a municipality.

8 (b) As used in this section, "eligible business" means an entity that
9 meets the following requirements:

- 10 (1) The entity is engaged in a business that:
 - 11 (A) operates; or
 - 12 (B) leases qualified property for use in;
 - 13 one (1) or more facilities.
- 14 (2) The entity's qualified property is located at a facility in
15 Indiana.
- 16 (3) The entity, the lessor of qualified property (if the entity is a
17 lessee), and all lessees of qualified property invest in the
18 aggregate at least one hundred million dollars (\$100,000,000) in
19 real and personal property at one (1) or more facilities in Indiana
20 after January 1, 2026.
- 21 (4) The average wage of employees who are located in the county
22 or municipality and engaged in the operation of the facility is at
23 least one hundred twenty-five percent (125%) of the county
24 average wage for the county in which the facility operates.

25 (c) As used in this section, "facility" has the meaning set forth in
26 IC 6-2.5-15-5.

27 (d) As used in this section, "fiscal body" has the meaning set forth
28 in IC 36-1-2-6.

29 (e) As used in this section, "municipality" has the meaning set forth
30 in IC 36-1-2-11.

31 (f) As used in this section, "qualified property" means quantum safe
32 fiber network equipment purchased after January 1, 2026, and any
33 additions to or replacements ~~to~~ of such property.

34 (g) As used in this section, "quantum safe fiber network equipment"
35 has the meaning set forth in IC 6-2.5-15-13.3.

36 (h) A designating body may enter into an agreement with an eligible
37 business to grant the eligible business a property tax exemption. In the
38 case of a county, the exemption applies only to qualified property that
39 is located in unincorporated territory of the county. In the case of a
40 municipality, the exemption applies only to qualified property that is
41 located in the municipality. The property tax exemption applies to the
42 qualified property only if the designating body and the eligible business



1 enter into an agreement concerning the property tax exemption. The
 2 agreement must specify the duration of the property tax exemption. The
 3 agreement may specify that if the ownership of qualified property is
 4 transferred by an eligible business, the transferee is entitled to the
 5 property tax exemption on the same terms as the transferor. If a
 6 designating body enters into an agreement with an eligible business,
 7 the qualified property owned by the eligible business is exempt from
 8 property taxation as provided in the resolution and the agreement.

9 (i) If a designating body enters into an agreement under subsection
 10 (h) to provide a property tax exemption, the property tax exemption
 11 continues for the period specified in the agreement.

12 SECTION 30. IC 6-1.1-12-17.8, AS AMENDED BY P.L.230-2025,
 13 SECTION 35, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 14 JULY 1, 2026]: Sec. 17.8. (a) An individual who receives a deduction
 15 provided under section 9 (before its expiration), 11 (before its
 16 expiration), 13, 14, 16 (before its expiration), 17.4 (before its
 17 expiration), or 37 of this chapter in a particular year and who remains
 18 eligible for the deduction in the following year is not required to file a
 19 statement to apply for the deduction in the following year. However, for
 20 purposes of a deduction under section 37 of this chapter, the county
 21 auditor may, in the county auditor's discretion, terminate the deduction
 22 for assessment dates after January 15, 2012, if the individual does not
 23 comply with the requirement in IC 6-1.1-22-8.1(b)(9) (expired January
 24 1, 2015), as determined by the county auditor, before January 1, 2013.
 25 Before the county auditor terminates the deduction because the
 26 taxpayer claiming the deduction did not comply with the requirement
 27 in IC 6-1.1-22-8.1(b)(9) (expired January 1, 2015) before January 1,
 28 2013, the county auditor shall mail notice of the proposed termination
 29 of the deduction to:

30 (1) the last known address of each person liable for any property
 31 taxes or special assessment, as shown on the tax duplicate or
 32 special assessment records; or

33 (2) the last known address of the most recent owner shown in the
 34 transfer book.

35 (b) An individual who receives a deduction provided under section
 36 9 (before its expiration), 11 (before its expiration), 13, 14, 16 (before
 37 its expiration), or 17.4 (before its expiration) of this chapter in a
 38 particular year and who becomes ineligible for the deduction in the
 39 following year shall notify the auditor of the county in which the real
 40 property, mobile home, or manufactured home for which the individual
 41 claims the deduction is located of the individual's ineligibility in the
 42 year in which the individual becomes ineligible. An individual who



1 becomes ineligible for a deduction under section 37 of this chapter
 2 shall notify the county auditor of the county in which the property is
 3 located in conformity with section 37 of this chapter.

4 (c) The auditor of each county shall, in a particular year, apply a
 5 deduction provided under section 9 (before its expiration), 11 (before
 6 its expiration), 13, 14, 16 (before its expiration), 17.4 (before its
 7 expiration), or 37 of this chapter to each individual who received the
 8 deduction in the preceding year unless the auditor determines that the
 9 individual is no longer eligible for the deduction.

10 (d) An individual who receives a deduction provided under section
 11 9 (before its expiration), 11 (before its expiration), 13, 14, 16 (before
 12 its expiration), 17.4 (before its expiration), or 37 of this chapter for
 13 property that is jointly held with another owner in a particular year and
 14 remains eligible for the deduction in the following year is not required
 15 to file a statement to reapply for the deduction following the removal
 16 of the joint owner if:

17 (1) the individual is the sole owner of the property following the
 18 death of the individual's spouse; or

19 (2) the individual is the sole owner of the property following the
 20 death of a joint owner who was not the individual's spouse.

21 If a county auditor terminates a deduction under section 9 of this
 22 chapter (before its expiration), a deduction under section 37 of this
 23 chapter, or a credit under IC 6-1.1-20.6-8.5 after June 30, 2017, and
 24 before May 1, 2019, because the taxpayer claiming the deduction or
 25 credit did not comply with a requirement added to this subsection by
 26 P.L.255-2017 to reapply for the deduction or credit, the county auditor
 27 shall reinstate the deduction or credit if the taxpayer provides proof that
 28 the taxpayer is eligible for the deduction or credit and is not claiming
 29 the deduction or credit for any other property.

30 (e) A trust entitled to a deduction under section 9 (before its
 31 expiration), 11 (before its expiration), 13, 14, 16 (before its expiration),
 32 17.4 (before its expiration), or 37 of this chapter for real property
 33 owned by the trust and occupied by an individual in accordance with
 34 section 17.9 of this chapter ~~(before its expiration)~~ is not required to file
 35 a statement to apply for the deduction, if:

36 (1) the individual who occupies the real property receives a
 37 deduction provided under section 9 (before its expiration), 11
 38 (before its expiration), 13, 14, 16 (before its expiration), 17.4
 39 (before its expiration), or 37 of this chapter in a particular year;
 40 and

41 (2) the trust remains eligible for the deduction in the following
 42 year.



1 However, for purposes of a deduction under section 37 of this chapter,
 2 the individuals that qualify the trust for a deduction must comply with
 3 the requirement in IC 6-1.1-22-8.1(b)(9) (expired January 1, 2015)
 4 before January 1, 2013.

5 (f) A cooperative housing corporation (as defined in 26 U.S.C. 216)
 6 that is entitled to a deduction under section 37 of this chapter in the
 7 immediately preceding calendar year for a homestead (as defined in
 8 section 37 of this chapter) is not required to file a statement to apply for
 9 the deduction for the current calendar year if the cooperative housing
 10 corporation remains eligible for the deduction for the current calendar
 11 year. However, the county auditor may, in the county auditor's
 12 discretion, terminate the deduction for assessment dates after January
 13 15, 2012, if the individual does not comply with the requirement in
 14 IC 6-1.1-22-8.1(b)(9) (expired January 1, 2015), as determined by the
 15 county auditor, before January 1, 2013. Before the county auditor
 16 terminates a deduction because the taxpayer claiming the deduction did
 17 not comply with the requirement in IC 6-1.1-22-8.1(b)(9) (expired
 18 January 1, 2015) before January 1, 2013, the county auditor shall mail
 19 notice of the proposed termination of the deduction to:

20 (1) the last known address of each person liable for any property
 21 taxes or special assessment, as shown on the tax duplicate or
 22 special assessment records; or

23 (2) the last known address of the most recent owner shown in the
 24 transfer book.

25 (g) An individual who:

26 (1) was eligible for a homestead credit under IC 6-1.1-20.9
 27 (repealed) for property taxes imposed for the March 1, 2007, or
 28 January 15, 2008, assessment date; or

29 (2) would have been eligible for a homestead credit under
 30 IC 6-1.1-20.9 (repealed) for property taxes imposed for the March
 31 1, 2008, or January 15, 2009, assessment date if IC 6-1.1-20.9 had
 32 not been repealed;

33 is not required to file a statement to apply for a deduction under section
 34 37 of this chapter if the individual remains eligible for the deduction in
 35 the current year. An individual who filed for a homestead credit under
 36 IC 6-1.1-20.9 (repealed) for an assessment date after March 1, 2007 (if
 37 the property is real property), or after January 1, 2008 (if the property
 38 is personal property), shall be treated as an individual who has filed for
 39 a deduction under section 37 of this chapter. However, the county
 40 auditor may, in the county auditor's discretion, terminate the deduction
 41 for assessment dates after January 15, 2012, if the individual does not
 42 comply with the requirement in IC 6-1.1-22-8.1(b)(9) (expired January



1, 2015), as determined by the county auditor, before January 1, 2013. Before the county auditor terminates the deduction because the taxpayer claiming the deduction did not comply with the requirement in IC 6-1.1-22-8.1(b)(9) (expired January 1, 2015) before January 1, 2013, the county auditor shall mail notice of the proposed termination of the deduction to the last known address of each person liable for any property taxes or special assessment, as shown on the tax duplicate or special assessment records, or to the last known address of the most recent owner shown in the transfer book.

(h) If a county auditor terminates a deduction because the taxpayer claiming the deduction did not comply with the requirement in IC 6-1.1-22-8.1(b)(9) (expired January 1, 2015) before January 1, 2013, the county auditor shall reinstate the deduction if the taxpayer provides proof that the taxpayer is eligible for the deduction and is not claiming the deduction for any other property.

(i) A taxpayer described in section 37(r) of this chapter is not required to file a statement to apply for the deduction provided by section 37 of this chapter if the property owned by the taxpayer remains eligible for the deduction for that calendar year.

SECTION 31. IC 6-1.1-12-37, AS AMENDED BY P.L.68-2025, SECTION 44, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 37. (a) The following definitions apply throughout this section:

(1) "Dwelling" means any of the following:

(A) Residential real property improvements that an individual uses as the individual's residence, limited to a single house and a single garage, regardless of whether the single garage is attached to the single house or detached from the single house.

(B) A mobile home that is not assessed as real property that an individual uses as the individual's residence.

(C) A manufactured home that is not assessed as real property that an individual uses as the individual's residence.

(2) "Homestead" means an individual's principal place of residence:

(A) that is located in Indiana;

(B) that:

(i) the individual owns;

(ii) the individual is buying under a contract recorded in the county recorder's office, or evidenced by a memorandum of contract recorded in the county recorder's office under IC 36-2-11-20, that provides that the individual is to pay the property taxes on the residence, and that obligates the owner



to convey title to the individual upon completion of all of the individual's contract obligations;

(iii) the individual is entitled to occupy as a tenant-stockholder (as defined in 26 U.S.C. 216) of a cooperative housing corporation (as defined in 26 U.S.C. 216); or

(iv) is a residence described in section 17.9 of this chapter ~~(before its expiration)~~ that is owned by a trust if the individual is an individual described in section 17.9 of this chapter; ~~(before its expiration)~~; and

(C) that consists of a dwelling and includes up to one (1) acre of land immediately surrounding that dwelling, and any of the following improvements:

(i) Any number of decks, patios, gazebos, or pools.

(ii) One (1) additional building that is not part of the dwelling if the building is predominantly used for a residential purpose and is not used as an investment property or as a rental property.

(iii) One (1) additional residential yard structure other than a deck, patio, gazebo, or pool.

Except as provided in subsection (r), the term does not include property owned by a corporation, partnership, limited liability company, or other entity not described in this subdivision.

(b) Each year a homestead is eligible for a standard deduction from the assessed value of the homestead for an assessment date. Except as provided in subsection (n), the deduction provided by this section applies to property taxes first due and payable for an assessment date only if an individual has an interest in the homestead described in subsection (a)(2)(B) on:

(1) the assessment date; or

(2) any date in the same year after an assessment date that a statement is filed under subsection (e) or section 44 of this chapter, if the property consists of real property.

If more than one (1) individual or entity qualifies property as a homestead under subsection (a)(2)(B) for an assessment date, only one (1) standard deduction from the assessed value of the homestead may be applied for the assessment date. Subject to subsection (c), the auditor of the county shall record and make the deduction for the individual or entity qualifying for the deduction.

(c) Except as provided in section 40.5 of this chapter, the total amount of the deduction that a person may receive under this section for a particular year is:



- (1) for assessment dates before January 1, 2025, the lesser of:
 - (A) sixty percent (60%) of the assessed value of the real property, mobile home not assessed as real property, or manufactured home not assessed as real property; or
 - (B) forty-eight thousand dollars (\$48,000); or
- (2) for assessment dates after December 31, 2024:
 - (A) in 2025, forty-eight thousand dollars (\$48,000);
 - (B) in 2026, forty thousand dollars (\$40,000);
 - (C) in 2027, thirty thousand dollars (\$30,000);
 - (D) in 2028, twenty thousand dollars (\$20,000); and
 - (E) in 2029, ten thousand dollars (\$10,000).

Beginning with the 2030 assessment date, and each assessment date thereafter, the deduction amount under this section is zero (0). Application of the phase down under this section for assessment dates after December 31, 2024, with regard to mobile homes that are not assessed as real property and manufactured homes not assessed as real property shall be construed and applied in the same manner in terms of timing and consistent with its application for real property.

(d) A person who has sold real property, a mobile home not assessed as real property, or a manufactured home not assessed as real property to another person under a contract that provides that the contract buyer is to pay the property taxes on the real property, mobile home, or manufactured home may not claim the deduction provided under this section with respect to that real property, mobile home, or manufactured home.

(e) Except as provided in sections 17.8 and 44 of this chapter and subject to section 45 of this chapter, an individual who desires to claim the deduction provided by this section must file a certified statement on forms prescribed by the department of local government finance with the auditor of the county in which the homestead is located. The statement must include:

- (1) the parcel number or key number of the property and the name of the city, town, or township in which the property is located;
- (2) the name of any other location in which the applicant or the applicant's spouse owns, is buying, or has a beneficial interest in residential real property;
- (3) the names of:
 - (A) the applicant and the applicant's spouse (if any):
 - (i) as the names appear in the records of the United States Social Security Administration for the purposes of the issuance of a Social Security card and Social Security number; or



- 1 (ii) that they use as their legal names when they sign their
- 2 names on legal documents;
- 3 if the applicant is an individual; or
- 4 (B) each individual who qualifies property as a homestead
- 5 under subsection (a)(2)(B) and the individual's spouse (if any):
- 6 (i) as the names appear in the records of the United States
- 7 Social Security Administration for the purposes of the
- 8 issuance of a Social Security card and Social Security
- 9 number; or
- 10 (ii) that they use as their legal names when they sign their
- 11 names on legal documents;
- 12 if the applicant is not an individual; and
- 13 (4) either:
- 14 (A) the last five (5) digits of the applicant's Social Security
- 15 number and the last five (5) digits of the Social Security
- 16 number of the applicant's spouse (if any); or
- 17 (B) if the applicant or the applicant's spouse (if any) does not
- 18 have a Social Security number, any of the following for that
- 19 individual:
- 20 (i) The last five (5) digits of the individual's driver's license
- 21 number.
- 22 (ii) The last five (5) digits of the individual's state
- 23 identification card number.
- 24 (iii) The last five (5) digits of a preparer tax identification
- 25 number that is obtained by the individual through the
- 26 Internal Revenue Service of the United States.
- 27 (iv) If the individual does not have a driver's license, a state
- 28 identification card, or an Internal Revenue Service preparer
- 29 tax identification number, the last five (5) digits of a control
- 30 number that is on a document issued to the individual by the
- 31 United States government.
- 32 If a form or statement provided to the county auditor under this section,
- 33 IC 6-1.1-22-8.1, or IC 6-1.1-22.5-12 includes the telephone number or
- 34 part or all of the Social Security number of a party or other number
- 35 described in subdivision (4)(B) of a party, the telephone number and
- 36 the Social Security number or other number described in subdivision
- 37 (4)(B) included are confidential. The statement may be filed in person
- 38 or by mail. If the statement is mailed, the mailing must be postmarked
- 39 on or before the last day for filing. The statement applies for that first
- 40 year and any succeeding year for which the deduction is allowed.
- 41 (f) To obtain the deduction for a desired calendar year under this
- 42 section in which property taxes are first due and payable, the individual



desiring to claim the deduction must do the following as applicable:

(1) Complete, date, and file the certified statement described in subsection (e) on or before January 15 of the calendar year in which the property taxes are first due and payable.

(2) Satisfy any recording requirements on or before January 15 of the calendar year in which the property taxes are first due and payable for a homestead described in subsection (a)(2).

(g) Except as provided in subsection (l), if a person who is receiving, or seeks to receive, the deduction provided by this section in the person's name:

(1) changes the use of the individual's property so that part or all of the property no longer qualifies for the deduction under this section; or

(2) is not eligible for a deduction under this section because the person is already receiving:

(A) a deduction under this section in the person's name as an individual or a spouse; or

(B) a deduction under the law of another state that is equivalent to the deduction provided by this section;

the person must file a certified statement with the auditor of the county, notifying the auditor of the person's ineligibility, not more than sixty (60) days after the date of the change in eligibility. A person who fails to file the statement required by this subsection may, under IC 6-1.1-36-17, be liable for any additional taxes that would have been due on the property if the person had filed the statement as required by this subsection plus a civil penalty equal to ten percent (10%) of the additional taxes due. The civil penalty imposed under this subsection is in addition to any interest and penalties for a delinquent payment that might otherwise be due. One percent (1%) of the total civil penalty collected under this subsection shall be transferred by the county to the department of local government finance for use by the department in establishing and maintaining the homestead property data base under subsection (j) and, to the extent there is money remaining, for any other purposes of the department. This amount becomes part of the property tax liability for purposes of this article.

(h) The department of local government finance may adopt rules or guidelines concerning the application for a deduction under this section.

(i) This subsection does not apply to property in the first year for which a deduction is claimed under this section if the sole reason that a deduction is claimed on other property is that the individual or married couple maintained a principal residence at the other property



on the assessment date in the same year in which an application for a deduction is filed under this section or, if the application is for a homestead that is assessed as personal property, on the assessment date in the immediately preceding year and the individual or married couple is moving the individual's or married couple's principal residence to the property that is the subject of the application. Except as provided in subsection (l), the county auditor may not grant an individual or a married couple a deduction under this section if:

- (1) the individual or married couple, for the same year, claims the deduction on two (2) or more different applications for the deduction; and
- (2) the applications claim the deduction for different property.

(j) The department of local government finance shall provide secure access to county auditors to a homestead property data base that includes access to the homestead owner's name and the numbers required from the homestead owner under subsection (e)(4) for the sole purpose of verifying whether an owner is wrongly claiming a deduction under this chapter or a credit under IC 6-1.1-20.4, IC 6-1.1-20.6, or IC 6-3.6-5 (before its expiration). Each county auditor shall submit data on deductions applicable to the current tax year on or before March 15 of each year in a manner prescribed by the department of local government finance.

(k) A county auditor may require an individual to provide evidence proving that the individual's residence is the individual's principal place of residence as claimed in the certified statement filed under subsection (e). The county auditor may limit the evidence that an individual is required to submit to a state income tax return, a valid driver's license, or a valid voter registration card showing that the residence for which the deduction is claimed is the individual's principal place of residence. The county auditor may not deny an application filed under section 44 of this chapter because the applicant does not have a valid driver's license or state identification card with the address of the homestead property. The department of local government finance shall work with county auditors to develop procedures to determine whether a property owner that is claiming a standard deduction or homestead credit is not eligible for the standard deduction or homestead credit because the property owner's principal place of residence is outside Indiana.

(l) A county auditor shall grant an individual a deduction under this section regardless of whether the individual and the individual's spouse claim a deduction on two (2) different applications and each application claims a deduction for different property if the property owned by the individual's spouse is located outside Indiana and the



individual files an affidavit with the county auditor containing the following information:

(1) The names of the county and state in which the individual's spouse claims a deduction substantially similar to the deduction allowed by this section.

(2) A statement made under penalty of perjury that the following are true:

(A) That the individual and the individual's spouse maintain separate principal places of residence.

(B) That neither the individual nor the individual's spouse has an ownership interest in the other's principal place of residence.

(C) That neither the individual nor the individual's spouse has, for that same year, claimed a standard or substantially similar deduction for any property other than the property maintained as a principal place of residence by the respective individuals.

A county auditor may require an individual or an individual's spouse to provide evidence of the accuracy of the information contained in an affidavit submitted under this subsection. The evidence required of the individual or the individual's spouse may include state income tax returns, excise tax payment information, property tax payment information, driver's license information, and voter registration information.

(m) If:

(1) a property owner files a statement under subsection (e) to claim the deduction provided by this section for a particular property; and

(2) the county auditor receiving the filed statement determines that the property owner's property is not eligible for the deduction; the county auditor shall inform the property owner of the county auditor's determination in writing. If a property owner's property is not eligible for the deduction because the county auditor has determined that the property is not the property owner's principal place of residence, the property owner may appeal the county auditor's determination as provided in IC 6-1.1-15. The county auditor shall inform the property owner of the owner's right to appeal when the county auditor informs the property owner of the county auditor's determination under this subsection.

(n) An individual is entitled to the deduction under this section for a homestead for a particular assessment date if:

(1) either:

(A) the individual's interest in the homestead as described in



- 1 subsection (a)(2)(B) is conveyed to the individual after the
- 2 assessment date, but within the calendar year in which the
- 3 assessment date occurs; or
- 4 (B) the individual contracts to purchase the homestead after
- 5 the assessment date, but within the calendar year in which the
- 6 assessment date occurs;
- 7 (2) on the assessment date:
- 8 (A) the property on which the homestead is currently located
- 9 was vacant land; or
- 10 (B) the construction of the dwelling that constitutes the
- 11 homestead was not completed; and
- 12 (3) either:
- 13 (A) the individual files the certified statement required by
- 14 subsection (e); or
- 15 (B) a sales disclosure form that meets the requirements of
- 16 section 44 of this chapter is submitted to the county assessor
- 17 on or before December 31 of the calendar year for the
- 18 individual's purchase of the homestead.
- 19 An individual who satisfies the requirements of subdivisions (1)
- 20 through (3) is entitled to the deduction under this section for the
- 21 homestead for the assessment date, even if on the assessment date the
- 22 property on which the homestead is currently located was vacant land
- 23 or the construction of the dwelling that constitutes the homestead was
- 24 not completed. The county auditor shall apply the deduction for the
- 25 assessment date and for the assessment date in any later year in which
- 26 the homestead remains eligible for the deduction. A homestead that
- 27 qualifies for the deduction under this section as provided in this
- 28 subsection is considered a homestead for purposes of section 37.5 of
- 29 this chapter and IC 6-1.1-20.6.
- 30 (o) This subsection applies to an application for the deduction
- 31 provided by this section that is filed for an assessment date occurring
- 32 after December 31, 2013. Notwithstanding any other provision of this
- 33 section, an individual buying a mobile home that is not assessed as real
- 34 property or a manufactured home that is not assessed as real property
- 35 under a contract providing that the individual is to pay the property
- 36 taxes on the mobile home or manufactured home is not entitled to the
- 37 deduction provided by this section unless the parties to the contract
- 38 comply with IC 9-17-6-17.
- 39 (p) This subsection:
- 40 (1) applies to an application for the deduction provided by this
- 41 section that is filed for an assessment date occurring after
- 42 December 31, 2013; and



(2) does not apply to an individual described in subsection (o).
 The owner of a mobile home that is not assessed as real property or a
 manufactured home that is not assessed as real property must attach a
 copy of the owner's title to the mobile home or manufactured home to
 the application for the deduction provided by this section.

(q) For assessment dates after 2013, the term "homestead" includes
 property that is owned by an individual who:

(1) is serving on active duty in any branch of the armed forces of
 the United States;

(2) was ordered to transfer to a location outside Indiana; and

(3) was otherwise eligible, without regard to this subsection, for
 the deduction under this section for the property for the
 assessment date immediately preceding the transfer date specified
 in the order described in subdivision (2).

For property to qualify under this subsection for the deduction provided
 by this section, the individual described in subdivisions (1) through (3)
 must submit to the county auditor a copy of the individual's transfer
 orders or other information sufficient to show that the individual was
 ordered to transfer to a location outside Indiana. The property continues
 to qualify for the deduction provided by this section until the individual
 ceases to be on active duty, the property is sold, or the individual's
 ownership interest is otherwise terminated, whichever occurs first.
 Notwithstanding subsection (a)(2), the property remains a homestead
 regardless of whether the property continues to be the individual's
 principal place of residence after the individual transfers to a location
 outside Indiana. The property continues to qualify as a homestead
 under this subsection if the property is leased while the individual is
 away from Indiana and is serving on active duty, if the individual has
 lived at the property at any time during the past ten (10) years.
 Otherwise, the property ceases to qualify as a homestead under this
 subsection if the property is leased while the individual is away from
 Indiana. Property that qualifies as a homestead under this subsection
 shall also be construed as a homestead for purposes of section 37.5 of
 this chapter.

(r) As used in this section, "homestead" includes property that
 satisfies each of the following requirements:

(1) The property is located in Indiana and consists of a dwelling
 and includes up to one (1) acre of land immediately surrounding
 that dwelling, and any of the following improvements:

(A) Any number of decks, patios, gazebos, or pools.

(B) One (1) additional building that is not part of the dwelling
 if the building is predominately used for a residential purpose



- 1 and is not used as an investment property or as a rental
 2 property.
 3 (C) One (1) additional residential yard structure other than a
 4 deck, patio, gazebo, or pool.
 5 (2) The property is the principal place of residence of an
 6 individual.
 7 (3) The property is owned by an entity that is not described in
 8 subsection (a)(2)(B).
 9 (4) The individual residing on the property is a shareholder,
 10 partner, or member of the entity that owns the property.
 11 (5) The property was eligible for the standard deduction under
 12 this section on March 1, 2009.

13 SECTION 32. IC 6-1.1-12-43, AS AMENDED BY P.L.230-2025,
 14 SECTION 37, AND AS AMENDED BY P.L.186-2025, SECTION
 15 292, IS CORRECTED AND AMENDED TO READ AS FOLLOWS
 16 [EFFECTIVE JULY 1, 2026]: Sec. 43. (a) For purposes of this section:

- 17 (1) "benefit" refers to a deduction under section 9 (before its
 18 expiration), 11 (before its expiration), 13, ~~(before its expiration)~~,
 19 14, ~~(before its expiration)~~, 16 (before its expiration), 17.4 (before
 20 its expiration), 26 (before its expiration), 29 (before its
 21 expiration), 33 (before its expiration), 34 (before its expiration),
 22 37, or 37.5 of this chapter;
 23 (2) "closing agent" means a person that closes a transaction;
 24 (3) "customer" means an individual who obtains a loan in a
 25 transaction; and
 26 (4) "transaction" means a single family residential:
 27 (A) first lien purchase money mortgage transaction; or
 28 (B) refinancing transaction.
 29 (b) Before closing a transaction after December 31, 2004, a closing
 30 agent must provide to the customer the form referred to in subsection
 31 (c).
 32 (c) ~~Before June 1, 2004,~~ The department of local government
 33 finance shall prescribe the form to be provided by closing agents to
 34 customers under subsection (b). The department shall make the form
 35 available to closing agents, county assessors, county auditors, and
 36 county treasurers in hard copy and electronic form. County assessors,
 37 county auditors, and county treasurers shall make the form available to
 38 the general public. The form must:
 39 (1) on one (1) side:
 40 (A) list each benefit; and
 41 (B) list the eligibility criteria for each benefit;
 42 (2) on the other side indicate:



- 1 (A) each action by and each type of documentation from the
- 2 customer required to file for each benefit; and
- 3 (B) sufficient instructions and information to permit a party to
- 4 terminate a standard deduction under section 37 of this chapter
- 5 on any property on which the party or the spouse of the party
- 6 will no longer be eligible for the standard deduction under
- 7 section 37 of this chapter after the party or the party's spouse
- 8 begins to reside at the property that is the subject of the
- 9 closing, including an explanation of the tax consequences and
- 10 applicable penalties, if a party unlawfully claims a standard
- 11 deduction under section 37 of this chapter; and
- 12 (3) be printed in one (1) of two (2) or more colors prescribed by
- 13 the department of local government finance that distinguish the
- 14 form from other documents typically used in a closing referred to
- 15 in subsection (b).
- 16 (d) A closing agent:
- 17 (1) may reproduce the form referred to in subsection (c);
- 18 (2) in reproducing the form, must use a print color prescribed by
- 19 the department of local government finance; and
- 20 (3) is not responsible for the content of the form referred to in
- 21 subsection (c) and shall be held harmless by the department of
- 22 local government finance from any liability for the content of the
- 23 form.
- 24 *(e) This subsection applies to a transaction that is closed after*
- 25 *December 31, 2009. In addition to providing the customer the form*
- 26 *described in subsection (c) before closing the transaction, a closing*
- 27 *agent shall do the following as soon as possible after the closing, and*
- 28 *within the time prescribed by the department of insurance under*
- 29 *IC 27-7-3-15.5:*
- 30 *(1) To the extent determinable, input the information described in*
- 31 *IC 27-7-3-15.5(c)(2) into the system maintained by the*
- 32 *department of insurance under IC 27-7-3-15.5.*
- 33 *(2) Submit the form described in IC 27-7-3-15.5(c) to the data*
- 34 *base described in IC 27-7-3-15.5(c)(2)(D).*
- 35 *(f) A closing agent to which this section applies shall document the*
- 36 *closing agent's compliance with this section with respect to each*
- 37 *transaction in the form of verification of compliance signed by the*
- 38 *customer.*
- 39 *(g) Subject to IC 27-7-3-15.5(d), a closing agent is subject to a civil*
- 40 *penalty of twenty-five dollars (\$25) for each instance in which the*
- 41 *closing agent fails to comply with this section with respect to a*
- 42 *customer. The penalty:*



(1) may be enforced by the state agency that has administrative jurisdiction over the closing agent in the same manner that the agency enforces the payment of fees or other penalties payable to the agency; and

(2) shall be paid into:

(A) the state general fund; if the closing agent fails to comply with subsection (b); or

(B) the home ownership education account established by IC 5-20-1-27, if the closing agent fails to comply with subsection (e) in a transaction that is closed after December 31, 2009.

(h) A closing agent is not liable for any other damages claimed by a customer because of:

(1) the closing agent's mere failure to provide the appropriate document to the customer under subsection (b); or

(2) with respect to a transaction that is closed after December 31, 2009, the closing agent's failure to input the information or submit the form described in subsection (e).

(i) The state agency that has administrative jurisdiction over a closing agent shall:

(1) examine the closing agent to determine compliance with this section; and

(2) impose and collect penalties under subsection (g).

SECTION 33. IC 6-1.1-24-6.1, AS AMENDED BY P.L.66-2021, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6.1. (a) The county executive may do the following:

(1) By resolution, identify properties concerning which the county executive desires to offer to the public the certificates of sale acquired by the county executive under section 6 of this chapter.

(2) Except as otherwise provided in subsection (c), in conformity with IC 5-3-1-4, publish:

(A) notice of the date, time, and place for a public sale; and

(B) a listing of parcels on which certificates will be offered by parcel number and minimum bid amount;

once each week for three (3) consecutive weeks, with the final advertisement being not less than thirty (30) days before the sale date. The expenses of the publication shall be paid out of the county general fund.

(3) Sell each certificate of sale covered by the resolution for a price that:

(A) is less than the minimum sale price prescribed by section



- 1 5 of this chapter; and
- 2 (B) includes any costs to the county directly attributable to the
- 3 sale of the certificate of sale.
- 4 (b) Except as otherwise provided in subsection (c), notice of the list
- 5 of properties prepared under subsection (a) and the date, time, and
- 6 place for the public sale of the certificates of sale shall be published in
- 7 accordance with IC 5-3-1. The notice must:
- 8 (1) include a description of the property by parcel number and
- 9 common address;
- 10 (2) specify that the county executive will accept bids for the
- 11 certificates of sale for the price referred to in subsection (a)(3);
- 12 (3) specify the minimum bid for each parcel;
- 13 (4) include a statement that a person redeeming each tract or item
- 14 of real property after the sale of the certificate must pay:
- 15 (A) the amount of the minimum bid under section 5 of this
- 16 chapter for which the tract or item of real property was last
- 17 offered for sale;
- 18 (B) ten percent (10%) of the amount for which the certificate
- 19 is sold;
- 20 (C) the attorney's fees and costs of giving notice under
- 21 IC 6-1.1-25-4.5;
- 22 (D) the costs of a title search or of examining and updating the
- 23 abstract of title for the tract or item of real property;
- 24 (E) all taxes and special assessments on the tract or item of
- 25 real property paid by the purchaser after the sale of the
- 26 certificate plus interest at the rate of ten percent (10%) per
- 27 annum on the amount of taxes and special assessments paid by
- 28 the purchaser on the redeemed property;
- 29 (F) all costs of sale, advertising costs, and other expenses of
- 30 the county directly attributable to the sale of certificates of
- 31 sale; and
- 32 (G) all taxes or special assessments, or both, paid by the
- 33 county treasurer under section 7(b) of this chapter; and
- 34 (5) include a statement that, if the certificate is sold for an amount
- 35 more than the minimum bid under section 5 of this chapter for
- 36 which the tract or item of real property was last offered for sale
- 37 and the property is not redeemed, the owner of record of the tract
- 38 or item of real property who is divested of ownership at the time
- 39 the tax deed is issued may have a right to the tax sale surplus.
- 40 (c) For properties identified under subsection (a) for which the
- 41 certificates of sale are not sold when initially offered for sale under this
- 42 section, the county executive may omit from the notice the descriptions



of the tracts or items of real property under subsection (b)(1) and the associated minimum bids under subsection (b)(3) if:

(1) the county executive includes in the notice a statement that descriptions of those tracts or items of real property are available on the ~~Internet web site~~ **website** of the county government or the county government's contractor and the information may be obtained in an alternative form from the county executive upon request; and

(2) the descriptions of those tracts or items of real property for which a certificate of sale is eligible for sale under this section are made available on the ~~Internet web site~~ **website** of the county government or the county government's contractor and may be obtained from the county executive in an alternative form upon request in accordance with section 3.4 of this chapter.

SECTION 34. IC 6-2.5-5-8.5, AS AMENDED BY P.L.194-2023, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8.5. Transactions are exempt from the state gross retail tax when:

(1) a power subsidiary or person provides, installs, constructs, services, or removes tangible personal property which is used in connection with the furnishing of the services or commodities listed in IC 6-2.5-4-5;

(2) a power subsidiary or person sells the services or commodities listed in IC 6-2.5-4-5 to another public utility or power subsidiary or a person described in IC 6-2.5-4-6; or

(3) a power subsidiary or person sells the services or commodities listed in IC 6-2.5-4-5 and all of the following conditions are satisfied:

(A) The services or commodities are sold to a business that:

(i) relocates all or part of its operations to a facility; or

(ii) expands all or part of its operations in a facility;

located in a military base (as defined in IC 36-7-30-1(c)), a military base reuse area established under IC 36-7-14.5-12.5 that is or formerly was a military base (as defined in IC 36-7-30-1(c)), or a qualified military base enhancement area established under IC 36-7-34.

(B) The business uses the services or commodities in the facility described in clause (A) not later than five (5) years after the operations that relocated to the facility, or expanded in the facility, commence.

(C) The sales of the services or commodities are separately metered for use by the relocated or expanded operations.



(D) In the case of a business that uses the services or commodities in a qualified military base enhancement area established under IC 36-7-34-4(1), the business must satisfy at least one (1) of the following criteria:

(i) The business is a participant in the technology transfer program conducted by the qualified military base (as defined in IC 36-7-34-3).

(ii) The business is a United States Department of Defense contractor.

(iii) The business and the qualified military base have a mutually beneficial relationship evidenced by a memorandum of understanding between the business and the United States Department of Defense.

(E) In the case of a business that uses the services and commodities in a qualified military base enhancement area established under IC 36-7-34-4(2), the business must satisfy at least one (1) of the following criteria:

(i) The business is a participant in the technology transfer program conducted by the qualified military base (as defined in IC 36-7-34-3).

(ii) The business and the qualified ~~military~~ **military** base have a mutually beneficial relationship evidenced by a memorandum of understanding between the business and the qualified military base (as defined in IC 36-7-34-3).

However, this subdivision does not apply to a business that substantially reduces or ceases its operations at another location in Indiana in order to relocate its operations in an area described in this subdivision, unless the department determines that the business had existing operations in the area described in this subdivision and that the operations relocated to the area are an expansion of the business's operations in the area.

SECTION 35. IC 6-2.5-15-6.5, AS ADDED BY P.L.178-2025, SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6.5. **(a)** As used in this chapter, "interest in a quantum computing research, advanced computing, and defense infrastructure network" means an entity that is the owner of, the operator of, or a qualified colocation tenant in, any element of a quantum safe fiber network or a quantum computing, advanced computing, and defense infrastructure network.

(b) The term includes an interest in a portion of a quantum computing research, advanced computing, and defense infrastructure network.



SECTION 36. IC 6-2.5-15-13.2, AS ADDED BY P.L.178-2025, SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13.2. As used in this chapter, "quantum safe fiber network" means a fiber network that includes each of the following attributes:

- (1) A deployed fiber infrastructure comprised of:
 - (A) standard single mode optical fibers (G.652.D) that are compliant with the federal Trade Agreements Act of 1979 (Public Law 96-39, 93 Stat. 144, as amended);
 - (B) flexgrid reconfigurable photonic layer; and
 - (C) only coherent optical transponders with FIPS 140-3 certified L1 encryption (OTNsec) with support for external key from quantum key distribution servers that are compliant with the federal Trade Agreements Act of 1979 (Public Law 96-39, 93 Stat. 144, as amended);
 on electronics and glass.
- (2) A fiber infrastructure that is connected to:
 - (A) a military installation of the United States of America;
 - (B) the Indiana National Guard;
 - (C) another military outlet or I-Light; or
 - (D) an institution of higher learning conducting quantum computing research or advanced computing research.
- (3) A network engineered with physical intermediate access points (nodes) not more than sixty (60) miles apart.
- (4) A network with physical intermediate access points (nodes) equipped with physical access control and remote monitoring.
- (5) A network with quantum key distribution (QKD) servers deployed on every fiber span.
- (6) A network that is not used for residential broadband and limited in use to less **than** fifteen percent (15%) for commercial broadband (ISP) applications.
- (7) A network that complies with the federal Trade Agreements Act of 1979 (Public Law 96-39, 93 Stat. 144) as amended.

SECTION 37. IC 6-3-2.1-6, AS AMENDED BY P.L.213-2025, SECTION 72, AND AS AMENDED BY P.L.205-2025, SECTION 7, IS CORRECTED AND AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) Except as otherwise provided in this section, an electing entity shall be subject to the obligation to make estimated tax payments under this article for the tax imposed under section 4 of this chapter in the same manner as applicable to corporations under ~~IC 6-3-4-4.1(c)~~. IC 6-3-4-4.2(b).

(b) For taxable years ending on or before June 30, 2023, an electing



entity is not required to make estimated tax payments.

(c) For taxable years ending after June 30, 2023, and on or before December 31, 2024, an electing entity shall make an estimated tax payment for the taxable years on or before the end of the taxable year. There shall be no penalty for underpayment of estimated tax, except to the extent the underpayment fails to equal or exceed fifty percent (50%) of the tax imposed by section 4 of this chapter for the taxable year.

(d) For taxable years ending after December 31, 2024, there shall be no penalty for underpayment of estimated tax, except to the extent ~~the one (1) or more payments required~~ during the taxable year fail to equal or exceed the lesser of ~~eighty percent (80%)~~ twenty percent (20%) of the tax imposed under this chapter for the taxable year or ~~one hundred percent (100%)~~ twenty-five percent (25%) of the tax imposed under this chapter for the preceding taxable year.

(e) In the event of an underpayment under subsection (c) or (d), the electing entity shall be subject to a penalty ~~in the amount at the rate~~ prescribed under IC 6-8.1-10-2.1(b) on the amount of the underpayment.

SECTION 38. IC 6-3-4.5-9, AS AMENDED BY P.L.80-2025, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) Partnerships and partners shall report final federal adjustments arising from a partnership level audit or an administrative adjustment request and make payments as required under this section.

(b) Final federal adjustments subject to the requirements of this section, except those subject to a properly made election under subsection (c), shall be reported as follows:

(1) Not later than the applicable deadline, the partnership shall:

(A) file an amended partnership return for the review year and any other taxable year affected by the final federal adjustments with the department as provided in section 8 of this chapter and provide any other information required by the department;

(B) notify each of its direct partners of their distributive share of the final federal adjustments as provided in section 8 of this chapter for all affected taxable years for which the partnership filed an amended partnership return by an amended statement or a report in the form and manner prescribed by the department;

(C) file an amended composite return for direct partners and an amended withholding return for direct partners for the review year and any affected taxable years as otherwise



- 1 required by IC 6-3-4-12 or IC 6-5.5-2-8 and pay any tax due
 2 for the taxable years; and
 3 (D) if the partnership is an electing entity, file an amended
 4 return under IC 6-3-2.1 for the review year and any affected
 5 taxable year and pay any tax due for the taxable year.
- 6 (2) Each direct partner that is subject to tax under ~~IC 6-3~~; **this**
 7 **article**, IC 6-3.6, or IC 6-5.5 shall, on or before the applicable
 8 deadline:
- 9 (A) file an amended return as provided in section 8 of this
 10 chapter reporting their distributive share of the adjustments
 11 reported to them under subdivision (1)(B) for the taxable year
 12 in which affected taxable year attributes would be reported by
 13 the direct partner as provided in section 8 of this chapter; and
 14 (B) pay any additional amount of tax due as if final federal
 15 partnership adjustments had been properly reported, less any
 16 credit for related amounts paid or withheld and remitted on
 17 behalf of the direct partner.
- 18 (3) Each tiered partner shall treat any final federal partnership
 19 adjustments under this section in a manner consistent with the
 20 treatment of tiered partners under section 8 of this chapter.
- 21 (c) Except as provided in subsection (d), an audited partnership
 22 making an election under this subsection shall:
- 23 (1) not later than the applicable deadline, file an amended
 24 partnership return for the review year and for any other affected
 25 taxable year elected by the audited partnership, including
 26 information as required by the department, and notify the
 27 department that it is making the election under this subsection;
 28 and
- 29 (2) not later than ninety (90) days after the applicable deadline,
 30 pay an amount, determined as follows, in lieu of taxes owed by its
 31 direct or indirect partners:
- 32 (A) Exclude from final federal adjustments the distributive
 33 share of these adjustments reported to a direct exempt partner
 34 that is not unrelated business income.
- 35 (B) For the total distributive shares of the remaining final
 36 federal adjustments reported to direct corporate partners and
 37 to direct exempt partners, apportion and allocate such
 38 adjustments as provided under IC 6-3-2-2 or IC 6-3-2-2.2 (in
 39 the case of the adjusted gross income tax) or IC 6-5.5-4 (in the
 40 case of the financial institutions tax), and multiply the
 41 resulting amount by the tax rate for the taxable year under
 42 IC 6-3-2-1(c), IC 6-3-2-1.5 **(before its expiration)**, or



1 IC 6-5.5-2-1, as applicable.

2 (C) For the total distributive shares of the remaining final
3 federal adjustments reported to nonresident direct partners
4 other than tiered partners or corporate partners, determine the
5 amount of such adjustments which is Indiana source income
6 under IC 6-3-2-2 or IC 6-3-2-2.2, and multiply the resulting
7 amount by the tax rate under IC 6-3-2-1(b), and if applicable
8 IC 6-3.6. If a partnership is unable to determine whether a
9 nonresident is subject to tax under IC 6-3.6, or to determine in
10 what county the nonresident is subject to tax under IC 6-3.6,
11 tax shall also be imposed at the highest rate for which a county
12 imposes a tax under IC 6-3.6 for the taxable year.

13 (D) For the total distributive shares of the remaining final
14 federal adjustments reported to tiered partners:

15 (i) determine the amount of any adjustment that is of a type
16 that it would be subject to sourcing in Indiana under
17 IC 6-3-2-2, IC 6-3-2-2.2, or IC 6-5.5-4, as applicable, and
18 determine the portion of this amount that would be sourced
19 to Indiana;

20 (ii) determine the amount of any adjustment that is of a type
21 that it would not be subject to sourcing to Indiana by a
22 nonresident partner under IC 6-3-2-2, IC 6-3-2-2.2, or
23 IC 6-5.5-4, as applicable;

24 (iii) determine the portion of the amount determined under
25 item (ii) that can be established, as prescribed by the
26 department by rule under IC 4-22-2, to be properly allocable
27 to nonresident indirect partners or other partners not subject
28 to tax on the adjustments; and

29 (iv) multiply the sum of the amounts determined in items (i)
30 and (ii) reduced by the amount determined in item (iii) by
31 the highest combined rate for the taxable year under
32 IC 6-3-2-1(b) and IC 6-3.6 for any county, the rate under
33 IC 6-3-2-1(c), or the rate under 6-5.5-2-1 for the taxable
34 year, whichever is highest.

35 (E) For the total distributive shares of the remaining final
36 federal adjustments reported to resident individual, estate, or
37 trust direct partners, multiply that amount by the tax rate under
38 IC 6-3-2-1(b) and IC 6-3.6. If a partnership does not
39 reasonably ascertain the county of residence for an individual
40 direct partner, the rate under IC 6-3.6 for that partner shall be
41 treated as the highest rate imposed in any county under
42 IC 6-3.6 for the taxable year.



(F) Add an amount equal to any credit reduction under IC 6-3-3, IC 6-3.1, and IC 6-5.5 attributable as a result of final federal adjustments.

(G) Add the amounts determined in clauses (B), (C), (D)(iv), (E), and (F). For purposes of determining interest and penalties, the due date of payment shall be the due date of the partnership's return under IC 6-3-4-10 for the taxable year, determined without regard to any extensions.

(d) Final federal adjustments subject to an election under subsection (c) shall not include:

(1) the distributive share of final federal adjustments that would constitute income derived from a partnership to any direct or indirect partner that is a corporation taxable under IC 6-3-2-1(c), IC 6-3-2-1.5 **(before its expiration)**, or IC 6-5.5-2-1 and is considered unitary to the partnership; or

(2) any other circumstances that the department determines would result in avoidance or evasion of any tax otherwise due from one (1) or more partners under ~~IC 6-3~~ **this article** or IC 6-5.5.

(e) No election under subsection (c) may be made for federal audit adjustments received by the department after April 30, 2023.

(f) Notwithstanding IC 6-3-4-11, an audited partnership not otherwise subject to any reporting or payment obligations to Indiana that makes an election under subsection (c) consents to be subject to Indiana law related to reporting, assessment, payment, and collection of Indiana tax calculated under the election.

SECTION 39. IC 6-3.6-3-5, AS AMENDED BY P.L.223-2025, SECTION 5, AND AS AMENDED BY P.L.68-2025, SECTION 106, IS CORRECTED AND AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2027]: Sec. 5. ~~(a)~~ The auditor of a county *(or the fiscal officer of a municipality in the case of a local income tax imposed under IC 6-3.6-6-22)* shall record all votes taken on ordinances presented for a vote under this article and not more than ten (10) days after the vote, send a certified copy of the results to:

(1) the commissioner of the department of state revenue; and
(2) the commissioner of the department of local government finance;

in an electronic format approved by the commissioner of the department of local government finance.

(b) Except as provided in subsection (c), this subsection applies only to a county that has a local income tax council. The county auditor may cease sending certified copies after the county auditor sends a certified copy of results showing that members of the local



1 *income tax council have cast a majority of the votes on the local*
 2 *income tax council for or against the proposed ordinance.*

3 *(c) This subsection applies only to a county with a single voting*
 4 *bloc that proposes to increase (but not decrease) a tax rate in the*
 5 *county. The county auditor may cease sending certified copies of the*
 6 *votes on the local income tax council voting as a whole under section*
 7 *9.5 of this chapter after the county auditor sends a certified copy of*
 8 *results showing that the individuals who sit on the fiscal bodies of the*
 9 *county, cities, and towns that are members of the local income tax*
 10 *council have cast a majority of the votes on the local income tax*
 11 *council voting as a whole under section 9.5 of this chapter for or*
 12 *against the proposed ordinance. This subsection expires May 31, 2027.*

13 SECTION 40. IC 6-3.6-6-4.5, AS ADDED BY P.L.68-2025,
 14 SECTION 128, IS AMENDED TO READ AS FOLLOWS
 15 [EFFECTIVE JULY 1, 2027]: Sec. 4.5. (a) Revenue raised from a tax
 16 rate for nonmunicipal civil taxing units under section 2(b)(3) of this
 17 chapter may be distributed by the county to nonmunicipal civil taxing
 18 units subject to the provisions of this section.

19 (b) Subject to the maximum aggregate tax rate of not more than
 20 two-tenths of one percent (0.2%) under section 2(b)(3) of this chapter,
 21 the adopting body may adopt a tax rate for each type of nonmunicipal
 22 civil taxing unit, which may not exceed more than five-hundredths of
 23 one percent (0.05%) for any given unit type. The revenue raised from
 24 a tax rate for a specific type of nonmunicipal civil taxing unit shall be
 25 allocated to all nonmunicipal civil taxing units of that same type
 26 located within the county on a pro rata per capita basis, subject to
 27 subsection (e).

28 (c) A county solid waste management district (as defined in
 29 IC 13-11-2-47) or a joint solid waste management district (as defined
 30 in IC 13-11-2-113) is not an eligible nonmunicipal civil taxing unit for
 31 the purpose of receiving an allocation of general purpose revenue under
 32 this chapter unless a majority of the members of each of the county
 33 fiscal bodies of the counties within the district passes a resolution
 34 approving the distribution.

35 (d) A resolution passed by a county fiscal body under subsection (c)
 36 may:

- 37 (1) expire on a date specified in the resolution; or
- 38 (2) remain in effect until the county fiscal body revokes or
- 39 rescinds the resolution.

40 (e) A nonmunicipal civil taxing unit wishing to receive a share of
 41 revenue under this section in a year must adopt a resolution requesting
 42 the distribution from the county and must provide a certified copy of



the resolution to the adopting body not later than July 1 of the year immediately preceding the distribution year. Not later than August 1 of the year immediately preceding the distribution year, the adopting body shall hold a public hearing on the resolution requesting the distribution and provide the public with notice of the time and place where the public hearing will be held. The notice must be given in accordance with IC 5-3-1 and include a description of the resolution requesting the distribution from the county.

(f) If a nonmunicipal civil taxing unit adopts a resolution under ~~this subsection~~ **subsection (e)** and provides the resolution to the adopting body as set forth in ~~this that~~ **that** subsection, the county shall distribute to the nonmunicipal civil taxing unit an amount of revenue raised from the tax rate under section 2(b)(3) of this chapter for the distribution year as set forth in subsection ~~(f): (g)~~.

(g) If one (1) or more, but not all, nonmunicipal civil taxing units adopt a resolution under subsection (e) requesting a distribution in a given year, the county may either distribute the total amount of revenue raised from the tax rate under section 2(b)(3) of this chapter to only those nonmunicipal civil taxing units that have provided a resolution request, or the county may distribute the total amount of revenue raised from a tax rate under section 2(b)(3) of this chapter to all nonmunicipal civil taxing units as set forth in this section. If no nonmunicipal civil taxing units adopt a resolution to request a distribution in a given year, the county may retain the revenue raised from a tax rate for nonmunicipal civil taxing units for that year and use the revenue as general purpose revenue for the county under section 4 of this chapter.

SECTION 41. IC 6-3.6-6-6.1, AS ADDED BY P.L.68-2025, SECTION 129, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2027]: Sec. 6.1. (a) Revenue raised from a tax rate for certain cities and towns under section 2(b)(4) of this chapter may be distributed by the county to those cities and towns subject to the provisions of this section.

(b) Subject to subsection (g), the revenue raised from a tax rate under section 2(b)(4) of this chapter shall be allocated to the cities and towns based on the population of the city or the population of the town, whichever is applicable, compared to the population of all the cities or the population of all the towns, whichever is applicable, that are eligible for a distribution, subject to subsection (d). For purposes of this determination, if the boundaries of a city or town are located in more than one (1) county, only the portion of the population of the city or town that is located within the county imposing the tax rate under section 2(b)(4) of this chapter shall be considered.



(c) The money may be used by the city or town fiscal body for any of the purposes of the city or town, including public safety (as defined in IC 6-3.6-2-14) and economic development purposes described in IC 6-3.6-10. The city or town fiscal body may pledge its general purpose revenue to the payment of bonds or to lease payments as set forth in this chapter.

(d) An eligible city or town wishing to receive a share of revenue under this section in a year must adopt a resolution requesting the distribution from the county and must provide a certified copy of the resolution to the adopting body not later than July 1 of the year immediately preceding the distribution year. Not later than August 1 of the year immediately preceding the distribution year, the adopting body shall hold a public hearing on the resolution requesting the distribution and provide the public with notice of the time and place where the public hearing will be held. The notice must be given in accordance with IC 5-3-1 and include a description of the resolution requesting the distribution from the county.

(e) Subject to subsection (g), if an eligible city or town adopts a resolution under ~~this subsection~~ **subsection (d)** and provides the resolution to the adopting body as set forth in ~~this that~~ subsection, the county shall distribute to the eligible city or town unit an amount of revenue raised from the tax rate under section 2(b)(4) of this chapter for the distribution year as set forth in subsection (f).

(f) Subject to subsection (g), if one (1) or more, but not all, eligible cities or towns adopt a resolution under subsection (d) requesting a distribution in a given year, the county may either distribute the total amount of revenue raised from the tax rate under section 2(b)(4) of this chapter to only those eligible cities or towns that have provided a resolution request, or the county may distribute the total amount of revenue raised from a tax rate under section 2(b)(4) of this chapter to all eligible cities or towns as set forth in this section. If no eligible city or town adopts a resolution to request a distribution in a given year, the county may retain the revenue raised from a tax rate for the eligible city or town for that year and use the revenue as general purpose revenue for the county under section 4 of this chapter.

(g) Notwithstanding any provision to the contrary in this section, if an adopting body that imposes a tax rate of one and two-tenths percent (1.2%) under section 2(b)(1) of this chapter subsequently adopts an ordinance to concurrently impose a tax rate under section 2(b)(4) of this chapter:

(1) seventy-five percent (75%) of the revenue received from the tax rate imposed under section 2(b)(4) of this chapter shall be



retained by the county and may be used for the purposes described in section 4 of this chapter; and

(2) twenty-five percent (25%) of the revenue received from the tax rate imposed under section 2(b)(4) of this chapter shall be distributed among the eligible cities and towns as set forth in this section and may be used for the purposes set forth in this section.

However, the adopting body may, by ordinance, determine to allocate any percentage of the revenue that would otherwise be retained by the county under subdivision (1) to instead be allocated among the eligible cities and towns under subdivision (2).

SECTION 42. IC 6-7-2-7, AS AMENDED BY P.L.205-2025, SECTION 15, AND AS AMENDED BY P.L.213-2025, SECTION 87, IS CORRECTED AND AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) A tax is imposed on the distribution of tobacco products in Indiana at the following rates:

(1) ~~Twenty-four percent (24%)~~ *Thirty percent (30%)* of the wholesale price of tobacco products other than moist snuff.

(2) For moist snuff, ~~forty cents (\$0.40)~~ *fifty cents (\$0.50)* per ounce, and a proportionate tax at the same rate on all fractional parts of an ounce. If the tax calculated for a fractional part of an ounce carried to the third decimal place results in the numeral in the third decimal place being greater than four (4), the amount of the tax shall be rounded to the next additional cent.

(3) For cigars, ~~twenty-four percent (24%)~~ *thirty percent (30%)* of the wholesale price of a cigar. However the tax imposed per cigar shall not exceed ~~one dollar (\$1)~~ *three dollars (\$3)*.

(b) A tax is imposed on the distribution of alternative nicotine products in Indiana at a rate of ~~forty cents (\$0.40)~~ *fifty cents (\$0.50)* per ounce, and a proportionate tax at the same rate on all fractional parts of an ounce, calculated based upon the product weight as listed by the manufacturer. If the tax calculated for a fractional part of an ounce carried to the third decimal place being greater than four (4), the amount of the tax shall be rounded to the next additional cent.

(c) The distributor of the tobacco products or alternative nicotine products is liable for the tax imposed under ~~subsections~~ **subsection** (a) or (b). The tax is imposed at the time the distributor:

(1) brings or causes tobacco products or alternative nicotine products to be brought into Indiana for distribution;

(2) manufactures tobacco products or alternative nicotine products in Indiana for distribution;

(3) transports tobacco products or alternative nicotine products to retail dealers in Indiana for resale by those retail dealers; or



(4) first receives the tobacco products or alternative nicotine products in Indiana in the case of ~~a~~ distributor ~~or~~ to distributor transactions.

(d) The Indiana general assembly finds that the tax rate on smokeless tobacco should reflect the relative risk between such products and cigarettes.

(e) A consumer who purchases untaxed tobacco products or alternative nicotine products from a distributor or retailer is liable for the tax imposed under ~~subsections~~ **subsection** (a) or (b).

SECTION 43. IC 6-7-2-7.5, AS AMENDED BY P.L.205-2025, SECTION 16, AND AS AMENDED BY P.L.213-2025, SECTION 88, IS CORRECTED AND AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7.5. (a) A tax is imposed on the distribution of closed system cartridges in Indiana at the rate of ~~fifteen percent (15%)~~ *thirty percent (30%)* of the wholesale price of the closed system cartridge. If a closed system cartridge is sold in the same package as a vapor product device, the tax imposed under this subsection shall only apply to the wholesale price of the closed system cartridge if the wholesale cost of the closed system cartridge can be isolated from the vapor product device on the invoice.

(b) The distributor of closed system cartridges, including a person that sells closed system cartridges through a website, is liable for the tax imposed under subsection (a). The tax is imposed at the time the distributor:

- (1) brings or causes closed system cartridges to be brought into Indiana for distribution;
- (2) manufactures closed system cartridges in Indiana for distribution; ~~or~~
- (3) transports closed system cartridges to retail dealers in Indiana for resale by those retail dealers; *or*
- (4) *first receives the closed system cartridges in Indiana in the case of distributor to distributor transactions.*

(c) A consumer who purchases untaxed closed system cartridges from a distributor or retailer is liable for the tax imposed under subsection (a).

SECTION 44. IC 6-9-18-3, AS AMENDED BY P.L.230-2025, SECTION 98, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) The fiscal body of a county may levy a tax on every person engaged in the business of renting or furnishing, for periods of less than thirty (30) days, any room or rooms, lodgings, or accommodations in any:

- (1) hotel;



- 1 (2) motel;
- 2 (3) boat motel;
- 3 (4) inn;
- 4 (5) college or university memorial union;
- 5 (6) college or university residence hall or dormitory; or
- 6 (7) tourist cabin;
- 7 located in the county.
- 8 (b) The tax does not apply to gross income received in a transaction
- 9 in which:
 - 10 (1) a student rents lodgings in a college or university residence
 - 11 hall while that student participates in a course of study for which
 - 12 the student receives college credit from a college or university
 - 13 located in the county; or
 - 14 (2) a person rents a room, lodging, or accommodations for a
 - 15 period of thirty (30) days or more.
 - 16 (c) The tax may not exceed:
 - 17 (1) the rate of five percent (5%) in a county other than a county
 - 18 subject to subdivision (2) ~~or~~ (3); ~~or~~ (4);
 - 19 (2) after June 30, 2019, and except as provided in section 6.7 of
 - 20 this chapter, the rate of eight percent (8%) in Howard County; or
 - 21 (3) after June 30, 2021, the rate of nine percent (9%) in Daviess
 - 22 County.
 - 23 The tax is imposed on the gross retail income derived from lodging
 - 24 income only and is in addition to the state gross retail tax imposed
 - 25 under IC 6-2.5.
 - 26 (d) The county fiscal body may adopt an ordinance to require that
 - 27 the tax shall be paid monthly to the county treasurer. If such an
 - 28 ordinance is adopted, the tax shall be paid to the county treasurer not
 - 29 more than twenty (20) days after the end of the month the tax is
 - 30 collected. If such an ordinance is not adopted, the tax shall be imposed,
 - 31 paid, and collected in exactly the same manner as the state gross retail
 - 32 tax is imposed, paid, and collected under IC 6-2.5.
 - 33 (e) All of the provisions of IC 6-2.5 relating to rights, duties,
 - 34 liabilities, procedures, penalties, definitions, exemptions, and
 - 35 administration are applicable to the imposition and administration of
 - 36 the tax imposed under this section except to the extent those provisions
 - 37 are in conflict or inconsistent with the specific provisions of this
 - 38 chapter or the requirements of the county treasurer. If the tax is paid to
 - 39 the department of state revenue, the return to be filed for the payment
 - 40 of the tax under this section may be either a separate return or may be
 - 41 combined with the return filed for the payment of the state gross retail
 - 42 tax as the department of state revenue may, by rule, determine.



(f) If the tax is paid to the department of state revenue, the amounts received from the tax imposed under this section shall be paid monthly by the treasurer of state to the county treasurer upon warrants issued by the state comptroller.

SECTION 45. IC 7.1-2-3-4, AS AMENDED BY P.L.285-2019, SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. The commission shall have the power to:

- (1) hold hearings before the commission or its representative;
- (2) take testimony and receive evidence;
- (3) conduct inquiries with or without hearings;
- (4) receive reports of investigators or other governmental officers and employees;
- (5) administer oaths;
- (6) subpoena witnesses and to compel them to appear and testify;
- (7) issue and enforce subpoenas duces tecum;
- (8) take or institute proceedings to enforce subpoenas, the rules and regulations, orders, or requirements of the commission or its representative;
- (9) fix the compensation paid to witnesses appearing before the commission;
- (10) establish and use a seal of the commission;
- (11) certify copies of records of the commission or any other document or record on file with the commission;
- (12) fix the form, mode, manner, time, and number of times for the posting or publication of any required notices if not otherwise provided in this title;
- (13) issue letters of extension as authorized by IC 7.1-3-1-3.1; and
- (14) hold permits on deposit as authorized by ~~IC 7.1-3-1-3.5~~ and IC 7.1-3-1.1.

SECTION 46. IC 7.1-3-6.2-6, AS AMENDED BY P.L.163-2025, SECTION 23, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) An individual:

- (1) must be physically present; or
- (2) if an auction is conducted online, **must** participate electronically;

in order to bid on and purchase an alcoholic beverage at auction. The successful bidder, including a successful bidder at an online auction, must be given the alcoholic beverage in person by an individual designated by the qualified organization.

(b) The individual designated by the qualified organization to give away an alcoholic beverage purchased at the auction must be at least twenty-one (21) years of age. The individual may not be required to



1 obtain an employee's permit under IC 7.1-3-18-9 or a temporary
 2 bartender's permit under IC 7.1-3-18-11 to give away an alcoholic
 3 beverage purchased at the auction.

4 (c) When giving away an alcoholic beverage purchased at the
 5 auction, the individual designated by the qualified organization shall
 6 comply with IC 7.1-5-10-15, IC 7.1-5-10-23, and any other provision
 7 of this title that applies to the furnishing of alcoholic beverages for
 8 consumption off the premises.

9 SECTION 47. IC 7.1-3-10-13, AS AMENDED BY P.L.164-2025,
 10 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 11 JULY 1, 2026]: Sec. 13. (a) A liquor dealer permittee who is a
 12 proprietor of a package liquor store may allow customers to sample the
 13 following:

14 (1) Beer.

15 (2) Wines.

16 (3) Liquors.

17 (4) Liqueurs and cordials (as defined in 27 CFR 5.22(h)).

18 (5) Flavored malt beverages.

19 (6) Hard cider.

20 (7) Mixed ~~beverage~~ **beverages**.

21 (b) Sampling is permitted:

22 (1) only on the package liquor store permit premises; and

23 (2) only during the store's regular business hours.

24 (c) No charge may be made for the samples provided to the
 25 customers.

26 (d) Sample size of wines may not exceed one (1) ounce.

27 (e) In addition to the other provisions of this section, a proprietor
 28 who allows customers to sample liquors, liqueurs, or cordials shall
 29 comply with all of the following:

30 (1) A proprietor may allow a customer to sample not more than a
 31 combined total of two (2) liquor, liqueur, or cordial samples per
 32 day.

33 (2) Sample size of liqueurs or cordials may not exceed one-half
 34 (1/2) ounce.

35 (3) Sample size of liquors may not exceed four-tenths (0.4) ounce.

36 (f) A sample size of beer, flavored malt beverage, mixed beverage,
 37 or hard cider may not exceed six (6) ounces.

38 SECTION 48. IC 7.1-3-20-16, AS AMENDED BY P.L.73-2024,
 39 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 40 JULY 1, 2026]: Sec. 16. (a) A permit that is authorized by this section
 41 may be issued without regard to the quota provisions of IC 7.1-3-22.

42 (b) The commission may issue a three-way permit to sell alcoholic



1 beverages for on-premises consumption only to an applicant who is the
 2 proprietor, as owner or lessee, or both, of a restaurant facility in the
 3 passenger terminal complex of a publicly owned airport. A permit
 4 issued under this subsection shall not be transferred to a location off
 5 the airport premises.

6 (c) Except as provided in sections 16.3 and 16.4 of this chapter, the
 7 commission may issue a three-way, two-way, or one-way permit to sell
 8 alcoholic beverages for on-premises consumption only to an applicant
 9 who is the proprietor, as owner or lessee, or both, of a restaurant within
 10 a redevelopment project consisting of a building or group of buildings
 11 that:

- 12 (1) was formerly used as part of a union railway station;
- 13 (2) has been listed in or is within a district that has been listed in
 14 the federal National Register of Historic Places maintained
 15 pursuant to the National Historic Preservation Act of 1966, as
 16 amended; and
- 17 (3) has been redeveloped or renovated, with the redevelopment or
 18 renovation being funded in part with grants from the federal,
 19 state, or local government.

20 A permit issued under this subsection shall not be transferred to a
 21 location outside of the redevelopment project.

22 (d) Subject to section 16.1 of this chapter and except as provided in
 23 section 16.3 of this chapter, the commission may issue a three-way,
 24 two-way, or one-way permit to sell alcoholic beverages for on-premises
 25 consumption only to an applicant who is the proprietor, as owner or
 26 lessee, or both, of a restaurant:

- 27 (1) on land; or
- 28 (2) in a historic river vessel;

29 within a municipal riverfront development project established by a city
 30 or town and funded in part with state and municipal funds. The
 31 ownership of a permit issued under this subsection and the location for
 32 which the permit was issued may not be transferred. The legislative
 33 body of the city or town in which the municipal riverfront development
 34 project is located shall recommend to the commission sites that are
 35 eligible to be permit premises. The commission shall consider, but is
 36 not required to follow, the municipal legislative body's
 37 recommendation in issuing a permit under this subsection. A permit
 38 holder and any lessee or proprietor of the permit premises are subject
 39 to the formal written commitment required under IC 7.1-3-19-17.
 40 Notwithstanding ~~IC 7.1-3-1-3.5~~ and IC 7.1-3-1.1, if business operations
 41 cease at the permit premises for more than six (6) months, the permit
 42 shall revert to the commission. The permit holder is not entitled to any



1 refund or other compensation.

2 (e) Except as provided in sections 16.3 and 16.4 of this chapter, the
3 commission may issue a three-way, two-way, or one-way permit to sell
4 alcoholic beverages for on-premises consumption only to an applicant
5 who is the proprietor, as owner or lessee, or both, of a restaurant within
6 a renovation project consisting of:

7 (1) a building that:

8 (A) was formerly used as part of a passenger and freight
9 railway station; and

10 (B) was built before 1900; or

11 (2) a complex of buildings that:

12 (A) is part of an economic development area established under
13 IC 36-7-14; and

14 (B) includes, as part of the renovation project, the use and
15 repurposing of two (2) or more buildings and structures that
16 are:

17 (i) at least seventy-five (75) years old; and

18 (ii) located at a site at which manufacturing previously
19 occurred over a period of at least seventy-five (75) years.

20 The permit authorized by this subsection may be issued without regard
21 to the proximity provisions of IC 7.1-3-21-11.

22 (f) Except as provided in section 16.3 of this chapter, the
23 commission may issue a three-way permit for the sale of alcoholic
24 beverages for on-premises consumption at a cultural center for the
25 visual and performing arts to the following:

26 (1) A town having a population of more than twenty-three
27 thousand (23,000) and less than twenty-three thousand nine
28 hundred (23,900) located in a county having a population of more
29 than four hundred thousand (400,000) and less than seven
30 hundred thousand (700,000).

31 (2) A city that has an indoor theater as described in section 26 of
32 this chapter.

33 (g) Except as provided in section 16.3 of this chapter, the
34 commission may issue not more than fifteen (15) new three-way,
35 two-way, or one-way permits to sell alcoholic beverages for
36 on-premises consumption to applicants, each of whom must be the
37 proprietor, as owner or lessee, or both, of a restaurant located within a
38 district, or not more than one thousand five hundred (1,500) feet from
39 a district, that meets the following requirements:

40 (1) The district has been listed in the National Register of Historic
41 Places maintained under the National Historic Preservation Act
42 of 1966, as amended.



(2) A county courthouse is located within the district.

(3) A historic opera house listed on the National Register of Historic Places is located within the district.

(4) A historic jail and sheriff's house listed on the National Register of Historic Places is located within the district.

The legislative body of the municipality in which the district is located shall recommend to the commission sites that are eligible to be permit premises. The commission shall consider, but is not required to follow, the municipal legislative body's recommendation in issuing a permit under this subsection. An applicant is not eligible for a permit if, less than two (2) years before the date of the application, the applicant sold a retailer's permit that was subject to IC 7.1-3-22 and that was for premises located within the district described in this section or within one thousand five hundred (1,500) feet of the district. The ownership of a permit issued under this subsection and the location for which the permit was issued shall not be transferred. A permit holder and any lessee or proprietor of the permit premises is subject to the formal written commitment required under IC 7.1-3-19-17. Notwithstanding ~~IC 7.1-3-1-3.5~~ and IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission. The permit holder is not entitled to any refund or other compensation. The total number of active permits issued under this subsection may not exceed fifteen (15) at any time. The cost of an initial permit issued under this subsection is twenty-five thousand dollars (\$25,000).

(h) Except as provided in section 16.3 of this chapter, the commission may issue a three-way permit for the sale of alcoholic beverages for on-premises consumption to an applicant who will locate as the proprietor, as owner or lessee, or both, of a restaurant within an economic development area under IC 36-7-14 in:

(1) a town having a population of more than twenty thousand (20,000); or

(2) a city having a population of more than forty-nine thousand four hundred (49,400) and less than fifty thousand (50,000);

located in a county having a population of more than one hundred twenty thousand (120,000) and less than one hundred thirty thousand (130,000). The commission may issue not more than five (5) licenses under this section to premises within a municipality described in subdivision (1) and not more than five (5) licenses to premises within a municipality described in subdivision (2). The commission shall conduct an auction of the permits under IC 7.1-3-22-9, except that the auction may be conducted at any time as determined by the



commission. Notwithstanding any other law, the minimum bid for an initial license under this subsection is thirty-five thousand dollars (\$35,000), and the renewal fee for a license under this subsection is one thousand three hundred fifty dollars (\$1,350). Before the district expires, a permit issued under this subsection may not be transferred. After the district expires, a permit issued under this subsection may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(i) After June 30, 2006, and except as provided in section 16.3 of this chapter, the commission may issue not more than five (5) new three-way, two-way, or one-way permits to sell alcoholic beverages for on-premises consumption to applicants, each of whom must be the proprietor, as owner or lessee, or both, of a restaurant located within a district, or not more than five hundred (500) feet from a district, that meets all of the following requirements:

(1) The district is within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14.

(2) A unit of the National Park Service is partially located within the district.

(3) An international deep water seaport is located within the district.

An applicant is not eligible for a permit under this subsection if, less than two (2) years before the date of the application, the applicant sold a retailers' permit that was subject to IC 7.1-3-22 and that was for premises located within the district described in this subsection or within five hundred (500) feet of the district. A permit issued under this subsection may not be transferred. If the commission issues five (5) new permits under this subsection, and a permit issued under this subsection is later revoked or is not renewed, the commission may issue another new permit, as long as the total number of active permits issued under this subsection does not exceed five (5) at any time. The commission shall conduct an auction of the permits under IC 7.1-3-22-9, except that the auction may be conducted at any time as determined by the commission.

(j) Subject to section 16.2 of this chapter and except as provided in section 16.3 of this chapter, the commission may issue not more than six (6) new three-way, two-way, or one-way permits to sell alcoholic beverages for on-premises consumption only to an applicant who is the proprietor, as owner or lessee, or both, of a restaurant on land within a municipal lakefront development project. A permit issued under this subsection may not be transferred. If the commission issues six (6) new



permits under this subsection, and a permit issued under this subsection is later revoked or is not renewed, the commission may issue another new permit, as long as the total number of active permits issued under this subsection does not exceed six (6) at any time. The commission shall conduct an auction of the permits under IC 7.1-3-22-9, except that the auction may be conducted at any time as determined by the commission. Notwithstanding any other law, the minimum bid for an initial permit under this subsection is ten thousand dollars (\$10,000).

(k) Except as provided in section 16.3 of this chapter, the commission may issue not more than nine (9) new three-way permits to sell alcoholic beverages for on-premises consumption to applicants, each of whom must be a proprietor, as owner or lessee, or both, of a restaurant located:

- (1) within a motorsports investment district (as defined in IC 5-1-17.5-11); or
- (2) not more than one thousand five hundred (1,500) feet from a motorsports investment district.

The ownership of a permit issued under this subsection and the location for which the permit was issued shall not be transferred. If the commission issues nine (9) new permits under this subsection, and a permit issued under this subsection is later revoked or is not renewed, the commission may issue another new permit, as long as the total number of active permits issued under this subsection does not exceed nine (9) at any time. A permit holder and any lessee or proprietor of the permit premises are subject to the formal written commitment required under IC 7.1-3-19-17. Notwithstanding ~~IC 7.1-3-1-3.5 and~~ IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission. The permit holder is not entitled to any refund or other compensation.

(l) Except as provided in section 16.3 of this chapter, the commission may issue not more than two (2) new three-way permits to sell alcoholic beverages for on-premises consumption for premises located within a qualified motorsports facility (as defined in IC 5-1-17.5-14). The ownership of a permit issued under this subsection and the location for which the permit was issued shall not be transferred. If the commission issues two (2) new permits under this subsection, and a permit issued under this subsection is later revoked or is not renewed, the commission may issue another new permit, as long as the total number of active permits issued under this subsection does not exceed two (2) at any time. A permit holder and any lessee or proprietor of the permit premises are subject to the formal written commitment required under IC 7.1-3-19-17. Notwithstanding



1 ~~IC 7.1-3-1-3.5~~ and IC 7.1-3-1.1, if business operations cease at the
 2 permit premises for more than six (6) months, the permit shall revert
 3 to the commission. The permit holder is not entitled to any refund or
 4 other compensation.

5 (m) Except as provided in section 16.3 of this chapter, the
 6 commission may issue not more than three (3) new three-way permits
 7 to sell alcoholic beverages for on-premises consumption in the city of
 8 Auburn. The ownership of a permit issued under this subsection and
 9 the location for which the permit was issued shall not be transferred. If
 10 the commission issues three (3) new permits under this subsection, and
 11 a permit issued under this subsection is later revoked or is not renewed,
 12 the commission may issue another new permit, as long as the total
 13 number of active permits issued under this subsection does not exceed
 14 three (3) at any time. A permit holder and any lessee or proprietor of
 15 the permit premises are subject to the formal written commitment
 16 required under IC 7.1-3-19-17. Notwithstanding IC 7.1-3-1.1, if
 17 business operations cease at the permit premises for more than six (6)
 18 months, the permit shall revert to the commission. The permit holder
 19 is not entitled to any refund or other compensation.

20 (n) Except as provided in section 16.3 of this chapter, the
 21 commission may issue not more than three (3) new three-way permits
 22 to sell alcoholic beverages for on-premises consumption in the city of
 23 Kendallville. The ownership of a permit issued under this subsection
 24 and the location for which the permit was issued shall not be
 25 transferred. If the commission issues three (3) new permits under this
 26 subsection, and a permit issued under this subsection is later revoked
 27 or is not renewed, the commission may issue another new permit, as
 28 long as the total number of active permits issued under this subsection
 29 does not exceed three (3) at any time. A permit holder and any lessee
 30 or proprietor of the permit premises are subject to the formal written
 31 commitment required under IC 7.1-3-19-17. Notwithstanding
 32 IC 7.1-3-1.1, if business operations cease at the permit premises for
 33 more than six (6) months, the permit shall revert to the commission.
 34 The permit holder is not entitled to any refund or other compensation.

35 (o) Except as provided in section 16.3 of this chapter, the
 36 commission may issue not more than two (2) new three-way permits to
 37 sell alcoholic beverages for on-premises consumption in the city of
 38 Warsaw. The ownership of a permit issued under this subsection and
 39 the location for which the permit was issued shall not be transferred. If
 40 the commission issues two (2) new permits under this subsection, and
 41 a permit issued under this subsection is later revoked or is not renewed,
 42 the commission may issue another new permit, as long as the total



number of active permits issued under this subsection does not exceed two (2) at any time. A permit holder and any lessee or proprietor of the permit premises are subject to the formal written commitment required under IC 7.1-3-19-17. Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission. The permit holder is not entitled to any refund or other compensation.

(p) Except as provided in section 16.3 of this chapter, the commission may issue not more than one (1) new three-way permit to sell alcoholic beverages for on-premises consumption in the town of Winona Lake. The ownership of a permit issued under this subsection and the location for which the permit was issued shall not be transferred. If the commission issues one (1) new permit under this subsection, and a permit issued under this subsection is later revoked or is not renewed, the commission may issue another new permit, as long as the total number of active permits issued under this subsection does not exceed one (1) at any time. A permit holder and any lessee or proprietor of the permit premises are subject to the formal written commitment required under IC 7.1-3-19-17. Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission. The permit holder is not entitled to any refund or other compensation.

(q) Except as provided in section 16.3 of this chapter, the commission may issue not more than one (1) new three-way permit to sell alcoholic beverages for on-premises consumption in the town of Syracuse. The ownership of a permit issued under this subsection and the location for which the permit was issued shall not be transferred. If the commission issues one (1) new permit under this subsection, and a permit issued under this subsection is later revoked or is not renewed, the commission may issue another new permit, as long as the total number of active permits issued under this subsection does not exceed one (1) at any time. A permit holder and any lessee or proprietor of the permit premises are subject to the formal written commitment required under IC 7.1-3-19-17. Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission. The permit holder is not entitled to any refund or other compensation.

SECTION 49. IC 7.1-3-20-16.8, AS AMENDED BY P.L.152-2025, SECTION 20, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 16.8. (a) A permit that is authorized by this section may be issued without regard to the quota provisions of IC 7.1-3-22.



(b) Except as provided in section 16.3 of this chapter, the commission may issue not more than four (4) new three-way permits to sell alcoholic beverages for on-premises consumption to applicants in each of the following municipalities:

- (1) Whitestown.
- (2) Lebanon.
- (3) Zionsville.
- (4) Westfield.
- (5) Carmel.
- (6) Fishers.
- (7) Noblesville.

(c) The following apply to permits issued under subsection (b):

(1) An applicant for a permit under subsection (b) must be a proprietor, as owner or lessee, or both, of a restaurant located within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14 in a municipality's:

- (A) downtown redevelopment district; or
- (B) downtown economic revitalization area.

(2) The cost of an initial permit is forty thousand dollars (\$40,000).

(3) The total number of active permits issued under subsection (b) may not exceed twenty-four (24) permits at any time. If any of the permits issued under subsection (b) are revoked or not renewed, the commission may issue only enough new permits to bring the total number of permits to twenty-four (24) active permits, with not more than four (4) in each municipality listed in subsection (b)(1) through (b)(6).

(4) The municipality may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding ~~IC 7.1-3-1-3.5~~ and IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.

(6) Except as provided in subdivision (8), the ownership of a permit may not be transferred.

(7) A permit may not be transferred from the premises for which the permit was issued.



(8) If the area in which the permit premises is located is no longer designated an economic development area, an area needing redevelopment, or a redevelopment district, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(d) Except as provided in section 16.3 of this chapter, in addition to the permits issued to the town of Whitestown under subsection (c), the commission may issue to the town of Whitestown not more than:

(1) three (3) new three-way permits; and

(2) three (3) new two-way permits;

under this subsection.

(e) The following apply to permits issued under subsection (d):

(1) An applicant for a permit under subsection (d)(1) or (d)(2) must be a proprietor, an owner or lessee, or both, of a restaurant located within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14 in a municipality's:

(A) downtown redevelopment district; or

(B) downtown economic revitalization area.

(2) The cost of an initial permit is forty thousand dollars (\$40,000).

(3) The total number of active permits issued under subsection (d) may not exceed the six (6) permits allocated by permit type, as set forth in that subsection.

(4) The municipality may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.

(6) Except as provided in subdivision (8), the ownership of a permit may not be transferred.

(7) A permit may not be transferred from the premises for which the permit was issued.

(8) If the area in which the permit issued to a premises under subsection (d)(1) or (d)(2) is located is no longer designated an economic development area, an area needing redevelopment, or



a redevelopment district, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(f) Except as provided in section 16.3 of this chapter, in addition to the permits issued to the city of Noblesville under subsection (c), the commission may issue to the city of Noblesville not more than ten (10) new three-way permits under this subsection. The new three-way permits may be issued as follows:

- (1) Three (3) new three-way permits in 2024.
- (2) Three (3) new three-way permits in 2025.
- (3) Four (4) new three-way permits in 2026.

If the commission does not issue the amount of three-way permits allowed in subdivisions (1) through (3) in that year, any unissued permits will roll over and may be issued in a subsequent year.

(g) The following apply to permits issued under subsection (f):

(1) An applicant for a permit under subsection (f) must be a proprietor, an owner or lessee, or both, of a restaurant located within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14 in a municipality's:

- (A) downtown redevelopment district; or
- (B) downtown economic revitalization area.

(2) The cost of an initial permit is forty thousand dollars (\$40,000).

(3) The total number of active permits issued under subsection (f) may not exceed the ten (10) new three-way permits, as set forth in that subsection.

(4) The municipality may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.

(6) Except as provided in subdivision (8), the ownership of a permit may not be transferred.

(7) A permit may not be transferred from the premises for which the permit was issued.

(8) If the area in which the permit issued to a premises under



subsection (f) is located is no longer designated an economic development area, an area needing redevelopment, or a redevelopment district, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(h) Except as provided in section 16.3 of this chapter, the commission may issue to the city of Delphi not more than two (2) new three-way permits under this subsection.

(i) The following apply to permits issued under subsection (h):

(1) An applicant for a permit under subsection (h) must be a proprietor, an owner or lessee, or both, of a restaurant located within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14 in a municipality's:

(A) downtown redevelopment district; or

(B) downtown economic revitalization area.

(2) The cost of an initial permit is forty thousand dollars (\$40,000).

(3) The total number of active permits issued under subsection (h) may not exceed the two (2) new three-way permits, as set forth in that subsection.

(4) The municipality may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.

(6) Except as provided in subdivision (8), the ownership of a permit may not be transferred.

(7) A permit may not be transferred from the premises for which the permit was issued.

(8) If the area in which the permit issued to a premises under subsection (h) is located is no longer designated an economic development area, an area needing redevelopment, or a redevelopment district, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(j) Except as provided in section 16.3 of this chapter, the



commission may issue to the city of Warsaw not more than three (3) new three-way permits under this subsection.

(k) The following apply to permits issued under subsection (j):

(1) An applicant for a permit under subsection (j) must be a proprietor, an owner or lessee, or both, of a restaurant located within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14 in a municipality's:

(A) downtown redevelopment district; or

(B) downtown economic revitalization area.

(2) The cost of an initial permit is forty thousand dollars (\$40,000).

(3) The total number of active permits issued under subsection (j) may not exceed the three (3) new three-way permits, as set forth in that subsection.

(4) The municipality may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.

(6) Except as provided in subdivision (8), the ownership of a permit may not be transferred.

(7) A permit may not be transferred from the premises for which the permit was issued.

(8) If the area in which the permit issued to a premises under subsection (j) is located is no longer designated an economic development area, an area needing redevelopment, or a redevelopment district, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(l) Except as provided in section 16.3 of this chapter, the commission may issue to the town of Syracuse not more than one (1) new three-way permit under this subsection.

(m) The following apply to a permit issued under subsection (l):

(1) An applicant for a permit under subsection (l) must be a proprietor, an owner or lessee, or both, of a restaurant located within an economic development area, an area needing



1 redevelopment, or a redevelopment district as established under
2 IC 36-7-14 in a municipality's:

3 (A) downtown redevelopment district; or

4 (B) downtown economic revitalization area.

5 (2) The cost of an initial permit is forty thousand dollars
6 (\$40,000).

7 (3) The total number of active permits issued under subsection (1)
8 may not exceed the one (1) new three-way permit, as set forth in
9 that subsection.

10 (4) The municipality may adopt an ordinance under
11 IC 7.1-3-19-17 requiring a permit holder to enter into a formal
12 written commitment as a condition of eligibility for a permit. As
13 set forth in IC 7.1-3-19-17(b), a formal written commitment is
14 binding on the permit holder and on any lessee or proprietor of
15 the permit premises.

16 (5) Notwithstanding IC 7.1-3-1.1, if business operations cease at
17 the permit premises for more than six (6) months, the permit shall
18 revert to the commission and the permit holder is not entitled to
19 any refund or other compensation.

20 (6) Except as provided in subdivision (8), the ownership of a
21 permit may not be transferred.

22 (7) A permit may not be transferred from the premises for which
23 the permit was issued.

24 (8) If the area in which the permit issued to a premises under
25 subsection (1) is located is no longer designated an economic
26 development area, an area needing redevelopment, or a
27 redevelopment district, a permit issued under this section may be
28 renewed, and the ownership of the permit may be transferred, but
29 the permit may not be transferred from the permit premises.

30 SECTION 50. IC 7.1-3-20-29, AS AMENDED BY P.L.164-2025,
31 SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
32 JULY 1, 2026]: Sec. 29. (a) As used in this section, "food hall" means:

33 (1) for a food hall described in subsection (c) or (d), the premises:

34 (A) located within a retail shopping and food service district;
35 and

36 (B) to which a master permit is issued under this section; or

37 (2) for a food hall described in subsection (e), the premises to
38 which a master permit is issued under this section.

39 (b) As used in this section, "master permit" means a food hall master
40 permit issued under this section.

41 (c) Except as provided in subsection (d), the commission may issue
42 a master permit, which is a three-way retailer's permit for ~~on~~ premises



1 **on-premises** consumption, to a food hall located in a retail shopping
2 and food service district that meets the following requirements:

3 (1) The district consists of an area that:

4 (A) has been redeveloped, renovated, or environmentally
5 remediated in part with grants from the federal, state, or local
6 government under IC 36-7-11; and

7 (B) is entirely located within an incorporated city or town.

8 (2) The district consists of land and a building or group of
9 buildings that are part of a common development.

10 (3) The district is located within a locally designated historic
11 district under IC 36-7-11 established by a city or town ordinance.

12 (4) The district contains at least one (1) building that:

13 (A) is on the list of the National Register ~~for~~ of Historic Places
14 or qualifies as a historic building worthy of preservation under
15 IC 36-7-11; and

16 (B) has been approved for present commercial use by the local
17 historic preservation commission of the city or town.

18 (d) Subsection (c)(3) and (c)(4) does not apply to a food hall that
19 meets one (1) of the following descriptions:

20 (1) The food hall:

21 (A) is located within a certified technology park established
22 under IC 36-7-32; and

23 (B) operates within a previously vacant building that was, or
24 within a complex of buildings that were:

25 (i) placed in service at least twenty-five (25) years prior to
26 the redevelopment of the building or buildings; and

27 (ii) owned by a unit of local government or a public
28 charitable trust prior to redevelopment.

29 (2) The food hall:

30 (A) contains not less than ten (10) distinct nonaffiliated food
31 and beverage vendors; and

32 (B) is located within a mixed use development or
33 redevelopment project with a total investment of at least one
34 hundred million dollars (\$100,000,000).

35 (e) The commission may issue a master permit, which is a three-way
36 retailer's permit for ~~on premises~~ **on-premises** consumption, to a food
37 hall that:

38 (1) is located within a consolidated city;

39 (2) is located within five hundred (500) feet of a building that:

40 (A) is on the list of the National Register ~~for~~ of Historic
41 Places; or

42 (B) qualifies as a historic building worthy of preservation



1 under IC 36-7-11.1; and
 2 (3) contains not less than five (5) distinct nonaffiliated food and
 3 beverage vendors.

4 (f) The commission may issue a master permit to the owner or
 5 developer of a food hall. The food hall constitutes a single permit
 6 premises that:

7 (1) contains not less than:
 8 (A) seven (7), distinct, nonaffiliated retail food and beverage
 9 vendors, if the food hall is described in subsection (c) or (d);
 10 or

11 (B) five (5), distinct, nonaffiliated retail food and beverage
 12 vendors, if the food hall is described in subsection (e);
 13 each of which may apply for a food hall vendor permit under
 14 section 30 of this chapter; and

15 (2) has a seating capacity of the type traditionally designed for
 16 food and drink for at least one hundred (100) people.

17 (g) An applicant for a master permit shall post notice and appear in
 18 front of the local board in which the permit premises is situated. The
 19 local board shall determine the eligibility of the applicant under this
 20 section and hear evidence in support of or against the master permit
 21 location. A master permit may not be transferred to a location outside
 22 the food hall permit premises. A permit that is inactive for more than
 23 six (6) months shall revert back to the commission or may be deposited
 24 with the commission under IC 7.1-3-1.1 with the commission's
 25 permission.

26 (h) A master permit authorized by this section may be issued
 27 without regard to the proximity provisions of IC 7.1-3-21-11 or the
 28 quota provisions of IC 7.1-3-22.

29 (i) The commission may not require physical separation between a
 30 bar area and a dining area in a food hall.

31 SECTION 51. IC 7.1-6-2-2, AS AMENDED BY P.L.49-2020,
 32 SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 33 JULY 1, 2026]: Sec. 2. The division of mental health and addiction
 34 established under IC 12-21 shall coordinate the conduct of random
 35 unannounced inspections at locations where tobacco products,
 36 e-liquids, or electronic cigarettes are sold or distributed to ensure
 37 compliance with this article. Only the commission, an Indiana law
 38 enforcement agency, the office of the sheriff of a county, or an
 39 organized police department of a municipal corporation may conduct
 40 the random unannounced inspections. These entities may use retired or
 41 ~~off-duty~~ **off duty** law enforcement officers to conduct inspections
 42 under this section.



1 SECTION 52. IC 8-1-44-11, AS ADDED BY P.L.137-2025,
 2 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 3 JULY 1, 2026]: Sec. 11. As used in this chapter, "small modular
 4 nuclear reactor", or "SMR", has the meaning set forth in
 5 ~~IC 8-1-8.5-12.1(a)~~ **IC 8-1-8.5-12.1(b)**.

6 SECTION 53. IC 8-1-44-14, AS ADDED BY P.L.137-2025,
 7 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 8 JULY 1, 2026]: Sec. 14. (a) An eligible utility may:

9 (1) simultaneously with filing a petition under section 13 of this
 10 chapter for approval to participate in the program; or

11 (2) at any time after filing a petition under section 13 of this
 12 chapter for approval to participate in the program;

13 file with the commission a petition for approval to incur, before
 14 obtaining a CPCN for the project to be developed under the program,
 15 eligible project development costs. The eligible utility must file with
 16 the petition the eligible utility's case in chief, which must contain the
 17 information and supporting documentation regarding the factors the
 18 commission must consider under subsection (b).

19 (b) In reviewing a petition and the supporting case in chief under
 20 this section, the commission shall consider the following:

21 (1) The timeline set forth by the eligible utility under section
 22 13(a)(7) of this chapter in the eligible utility's petition for
 23 approval to participate in the program.

24 (2) The amount of eligible project development costs the eligible
 25 utility anticipates incurring.

26 (c) The commission shall review a petition filed under this section
 27 and issue a final order approving or denying the petition not later than
 28 one hundred eighty (180) days after receiving the petition and complete
 29 case in chief. However, if the commission makes a docket entry
 30 extending the procedural schedule and the eligible utility does not
 31 object to the entered extension, the commission may extend the one
 32 hundred eighty (180) day time frame for issuing a final order under this
 33 subsection for the amount of time set forth in the docket entry. In an
 34 order approving a petition under this section, the commission must
 35 make a finding as to the best estimate and reasonableness of eligible
 36 project development costs based on the evidence of record. If the
 37 commission denies the eligible utility's petition under section 13 of this
 38 chapter for approval to participate in the program, and the eligible
 39 utility seeks to pursue the development of an SMR outside the program,
 40 the eligible utility may:

41 (1) proceed to develop an SMR under the procedures set forth in
 42 IC 8-1-8.5-12.1; and



(2) request that the eligible utility's petition to incur eligible project development costs under this section be considered a petition to incur project development costs under IC 8-1-8.5-12.1, subject to the eligible utility's right to supplement or revise the petition submitted under this section as necessary.

However, an eligible utility or any other public utility (as defined in IC 8-1-8.5-1) that seeks to incur project development costs under IC 8-1-8.5-12.1 may recover under IC 8-1-8.5-12.1 only those project development costs that have not been and will not be recovered by the eligible utility or the public utility through contributions of any money, services, or property that have been or will be provided at no cost to the eligible utility or the public utility by any third party.

(d) If an eligible utility has received approval from the commission under subsection (c) to incur eligible project development costs, the eligible utility may, at any time before or during the development and execution of the project approved under the program, petition the commission for the approval of a rate schedule that periodically adjusts the eligible utility's rates and charges to provide for the timely recovery of eligible project development costs.

(e) If, after reviewing an eligible utility's proposed rate schedule in a petition filed under subsection (d), the commission determines that the eligible utility has incurred or will incur eligible project development costs that are:

- (1) reasonable in amount;
- (2) necessary to support the development of a project under the program; and
- (3) consistent with the commission's finding as to the best estimate of eligible project development costs in the commission's order of approval under subsection (c);

the commission shall approve the recovery of the eligible project development costs, subject to subsections (f) and (g). However, an eligible utility may not file adjustments to a rate schedule to adjust for cost recovery approved under this subsection more than one (1) time every twelve (12) months.

(f) An eligible utility that recovers eligible project development costs under subsection (e) shall recover eighty percent (80%) of the approved eligible project development costs under the rate schedule approved under subsection (e) and shall defer the remaining twenty percent (20%) of approved eligible project development costs, including, to the extent applicable, depreciation, allowance for funds used during construction, and post in service carrying costs, based on the overall cost of capital most recently approved by the commission,



1 and shall recover those eligible project development costs as part of the
 2 next general rate case that the eligible utility files with the commission.

3 (g) The recovery of an eligible utility's eligible project development
 4 costs through a periodic rate adjustment mechanism approved by the
 5 commission under subsection (e) must occur over a period that is equal
 6 to:

- 7 (1) the period over which the approved eligible project
 8 development costs are incurred; or
- 9 (2) three (3) years;

10 whichever is less.

11 (h) Eligible project development costs that are found by the
 12 commission to be reasonable, necessary, and consistent with the best
 13 estimate of eligible project development costs in the commission's
 14 order of approval under subsection (c) shall be recovered by an eligible
 15 utility by inclusion in the eligible utility's rates and charges. Eligible
 16 project development costs that are incurred by an eligible utility and
 17 that exceed the best estimate of eligible project development costs
 18 under ~~subsection (b)~~ **subsection (c)** may not be included in the eligible
 19 utility's rates and charges unless found by the commission to be
 20 reasonable, necessary, and prudent in supporting the development of
 21 the project for which they were incurred. Eligible project development
 22 costs that are incurred by an eligible utility for a project that is canceled
 23 or not completed may be recovered by the eligible utility if found by
 24 the commission to be reasonable, necessary, and prudently incurred,
 25 but such costs shall be recovered without a return unless the
 26 commission also finds that:

- 27 (1) the decision to cancel or not complete the project was
 28 prudently made for good cause;
- 29 (2) the eligible project development costs incurred will be offset,
 30 as applicable, by:
 - 31 (A) funding opportunities from the United States Department
 32 of Energy that are pursued in good faith by the eligible utility;
 - 33 (B) a recoupment of revenues received by the eligible utility
 34 from one (1) or more third parties for the transfer of assets
 35 created through the costs incurred; or
 - 36 (C) a reimbursement of costs by a single customer or
 37 prospective customer at whose request the project was
 38 pursued; and
- 39 (3) a return on the eligible project development costs incurred is
 40 appropriate under the circumstances to avoid harm to the eligible
 41 utility and its customers.
- 42 (i) An eligible utility may elect not to seek approval of, or cost



1 recovery for, eligible project development costs under this section and
 2 instead seek approval from the commission to defer and amortize
 3 eligible project development costs in accordance with the procedures
 4 set forth in IC 8-1-8.5-6.5 with respect to construction costs.

5 SECTION 54. IC 8-1-45-2, AS ADDED BY P.L.49-2025,
 6 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 7 JULY 1, 2026]: Sec. 2. (a) As used in this chapter, "company" means
 8 any of the following:

- 9 (1) A sole proprietorship.
- 10 (2) An organization.
- 11 (3) An association.
- 12 (4) A corporation.
- 13 (5) A partnership.
- 14 (6) A joint venture.
- 15 (7) A limited partnership.
- 16 (8) A limited liability partnership.
- 17 (9) A limited liability company.
- 18 (10) A business association.

19 (b) The term includes:

- 20 (1) a wholly owned subsidiary;
- 21 (2) a majority owned subsidiary;
- 22 (3) a parent company; or
- 23 (4) an affiliate;

24 of an individual, entity, or association described in subsection (a)(1)
 25 through (a)(10).

26 SECTION 55. IC 8-2.1-22-27.5, AS ADDED BY P.L.205-2025,
 27 SECTION 41, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 28 JULY 1, 2026]: Sec. 27.5. (a) A person may not engage in any of the
 29 following activities unless the person has obtained a brokerage license
 30 from the department:

- 31 (1) Sell or offer for sale transportation subject to this chapter for
 32 compensation.
- 33 (2) Make any contract, agreement, or arrangement to provide,
 34 procure, furnish, or arrange for the transportation of passengers.
- 35 or
- 36 (3) Profess by advertisement, solicitation, or otherwise as one who
 37 sells, provides, procures, contracts, or arranges for the
 38 transportation of passengers.

39 In the execution of any contract, agreement, or arrangement to sell,
 40 provide, procure, furnish, or arrange for the transportation of
 41 passengers, a person may not employ any common or contract carrier
 42 who is not the lawful holder of an effective certificate issued as



provided in this chapter.

(b) A person is not required to obtain a brokerage license from the department if the person holds a certificate under this chapter, or if the person is an employee or agent of the motor carrier, when that person furnishes transportation wholly by the carrier or jointly with other motor carriers holding like certificates.

(c) To apply for a brokerage license, a person must submit the following to the department:

(1) A completed application form prescribed by the department.

(2) A certificate of existence from the secretary of state. ~~and~~

(3) A surety bond.

(d) In determining whether a brokerage license shall be issued, the department may, among other things, consider the following:

(1) Whether the person has any tax liabilities and has filed all appropriate tax returns with the department.

(2) Whether the person is up to date on all unified carrier registration payments.

(3) Whether the person is properly insured.

(e) The department and its special agents and examiners have the same authority as to accounts, reports, and records, including inspection and preservation of the accounts, reports, and records of any person holding a brokerage license issued under this section, that the department and the department's special agents and examiners have under this chapter with respect to motor carriers subject to this chapter.

(f) The department shall charge an application fee under section 40 of this chapter.

(g) A person who violates this section commits a Class C infraction.

(h) A person that has been issued a brokerage license must renew the license with the department on ~~a~~ **an** annual basis. The department shall charge an annual renewal fee.

SECTION 56. IC 8-15.5-7-9, AS ADDED BY P.L.227-2025, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. An operator must invoice a user for a user fee not later than one (1) year after the date the ~~operator~~ **user** incurs the toll.

SECTION 57. IC 8-23-1-28 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 28. "Limited access facility" means a highway or street designed for through traffic, over, from, or to which owners or occupiers of abutting land or other persons have either no right or easement or a limited right or easement of direct access, light, air, or view because their property abuts upon the limited access facility or for any other reason. The highways or streets may be



1 parkways from which trucks, ~~busses~~, **buses**, and other commercial
 2 vehicles are excluded or freeways open to use by all customary forms
 3 of highway and street traffic.

4 SECTION 58. IC 8-23-25-4 IS AMENDED TO READ AS
 5 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. Money from the high
 6 speed rail development fund may be disbursed to the Interstate Rail
 7 Passenger Advisory Council under IC 8-3-19-2 (**expired**).

8 SECTION 59. IC 9-22-1-8, AS AMENDED BY P.L.227-2025,
 9 SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 10 JULY 1, 2026]: Sec. 8. (a) If the properly identified person who owns
 11 or holds a lien on a vehicle appears at the site of storage before disposal
 12 of the vehicle or parts and pays all costs relating to a tow, the storage
 13 of the vehicle, and all allowable fees, as applicable, the vehicle or parts
 14 shall be released.

15 (b) A towing service or storage yard may not charge an inspection
 16 fee to an owner, a lienholder, or an insurance company representative
 17 to inspect a vehicle or retrieve items from the vehicle.

18 (c) A towing service or storage yard must accept payment made by
 19 any of the following means from a person seeking to release a vehicle
 20 under this section:

- 21 (1) Cash.
- 22 (2) Certified check.
- 23 (3) Insurance check.
- 24 (4) Money order.

25 A towing service or storage ~~facility~~ **yard** may elect to accept payment
 26 by means of a credit card or debit card.

27 (d) Upon receiving payment of all costs relating to a tow, the storage
 28 of a vehicle, and all allowable fees, as applicable, a towing service or
 29 storage yard shall provide to the person making payment an itemized
 30 receipt that includes the information set forth in IC 24-14-5, to the
 31 extent the information is known or available.

32 (e) A towing service or storage yard must be open for business and
 33 accessible by telephone during regular office hours. A towing service
 34 or storage yard must provide a telephone number that is available on a
 35 twenty-four (24) hour basis to receive calls and messages from callers,
 36 including calls made outside of regular office hours. All calls made to
 37 a towing service or storage yard must be returned within twenty-four
 38 (24) hours from the time received. However, if adverse weather, an act
 39 of God, or an emergency situation over which the towing service or
 40 storage yard has no control prevents the towing service or storage yard
 41 from returning calls within twenty-four (24) hours, the towing service
 42 or storage yard shall return all calls received as quickly as possible.



1 (f) A towing service or storage yard shall, if required, notify the
 2 appropriate public agency of all releases under this section. The
 3 notification must include:

4 (1) the name and address of:

5 (A) the person that owns or holds a lien on the vehicle; and

6 (B) the insurance company that insures the vehicle, if the
 7 vehicle was released to a representative of the insurance
 8 company;

9 (2) the signature of the individual to whom the vehicle was
 10 released;

11 (3) a description of the vehicle or parts;

12 (4) costs paid; and

13 (5) the date of release.

14 (g) A towing service or storage yard shall release property to a
 15 properly identified person who owns or holds a lien on the vehicle not
 16 later than twenty-four (24) hours after the towing service's or storage
 17 yard's receipt of:

18 (1) payment of seventy-five percent (75%) of the amount of the
 19 invoice;

20 (2) proof of a bond obtained by the owner for the remaining
 21 twenty-five percent (25%) of the amount of the invoice, payable
 22 in the event the owner does not comply with a court order under
 23 subsection (j); and

24 (3) a copy of a complaint filed with the attorney general alleging
 25 a violation of IC 24-14 under IC 24-14-10-1.

26 (h) The owner shall file a civil complaint in the appropriate
 27 jurisdiction not later than thirty (30) days after providing the items
 28 required to release the vehicle under subsection (g) if the disputed
 29 invoice amount has not been resolved. A towing service or storage yard
 30 may bring a civil complaint in an appropriate jurisdiction at any time
 31 within the same thirty (30) day period asking the court to resolve the
 32 disputed invoice amount.

33 (i) A civil complaint filed under subsection (h) must include the
 34 amounts in the invoice that are disputed and the reasons those amounts
 35 are disputed. A copy of the invoice and any evidence of reasonableness
 36 or unreasonableness must be filed with the complaint.

37 (j) After a civil complaint is filed under subsection (h), the court
 38 shall make a determination as to whether the amount charged by the
 39 towing service or storage yard is reasonable. If the court determines
 40 that the amount is reasonable, the court shall order the owner to pay the
 41 amount of the invoice, minus the amount paid under subsection (g)(1).
 42 If the court determines that the amount charged was unreasonable, the



1 court shall determine a reasonable amount and order the owner to pay
 2 that amount minus the amount paid under subsection (g)(1). If the
 3 reasonable amount determined by the court is less than the amount paid
 4 under subsection (g)(1), the court shall order the towing service or
 5 storage yard to pay the owner the difference in those amounts. The
 6 court may also require either party to pay or refund any additional
 7 amount and may impose any monetary penalties that the court
 8 determines to be appropriate.

9 (k) Nothing in this section creates, implies, or otherwise grants
 10 insurance coverage for the amount billed by a towing service or storage
 11 ~~facility~~ yard that is not within the owner's automobile insurance policy
 12 or other policy of insurance.

13 SECTION 60. IC 10-11-2-26, AS AMENDED BY P.L.88-2022,
 14 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 15 JULY 1, 2026]: Sec. 26. (a) The superintendent may assign qualified
 16 persons who are not state police officers to supervise or operate
 17 permanent or portable weigh stations. A person assigned under this
 18 section may stop, inspect, and issue citations to operators of trucks and
 19 trailers having a declared gross weight of at least ten thousand one
 20 (10,001) pounds and buses at a permanent or portable weigh station or
 21 while operating a clearly marked Indiana state police vehicle for
 22 violations of the following:

- 23 (1) IC 6-1.1-7-10.
- 24 (2) IC 6-6-1.1-1202.
- 25 (3) IC 6-6-2.5.
- 26 (4) IC 6-6-4.1-12.
- 27 (5) IC 8-2.1.
- 28 (6) IC 9-18 (before its expiration) or IC 9-18.1.
- 29 (7) IC 9-19.
- 30 (8) IC 9-20.
- 31 (9) IC 9-21-7-2 through IC 9-21-7-11.
- 32 (10) IC 9-21-8-41 pertaining to the duty to obey an official traffic
- 33 control device for a weigh station.
- 34 (11) IC 9-21-8-45 through IC 9-21-8-48.
- 35 (12) IC 9-21-8-59.
- 36 (13) IC 9-21-9.
- 37 (14) IC 9-21-15.
- 38 (15) IC 9-24-1-1.
- 39 (16) IC 9-24-1-7.
- 40 (17) IC 9-24-3-4.5.
- 41 (18) IC 9-24-4 (**before its expiration**).
- 42 (19) IC 9-24-5 (before its expiration).



- 1 (20) Except as provided in subsection (c), IC 9-24-6.1.
- 2 (21) IC 9-24-8.5.
- 3 (22) IC 9-24-11-4.
- 4 (23) IC 9-24-11-7.
- 5 (24) IC 9-24-11-8(a).
- 6 (25) IC 9-24-11-8(b).
- 7 (26) IC 9-24-13-3.
- 8 (27) IC 9-24-18-1.
- 9 (28) IC 9-24-19-1.
- 10 (29) IC 9-25-4-3.
- 11 (30) IC 9-28-4.
- 12 (31) IC 9-28-5.
- 13 (32) IC 10-14-8.
- 14 (33) IC 13-17-5-1, IC 13-17-5-3, or IC 13-17-5-4.
- 15 (34) IC 13-30-2-1.
- 16 (b) For the purpose of enforcing this section, a person assigned
- 17 under this section may detain a person in the same manner as a law
- 18 enforcement officer under IC 34-28-5-3.
- 19 (c) A person assigned under this section may not enforce
- 20 IC 9-24-6.1-7 and IC 9-24-6.1-8.
- 21 SECTION 61. IC 10-11-2-35.4, AS ADDED BY P.L.227-2025,
- 22 SECTION 39, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 23 JULY 1, 2026]: Sec. 35.4. The state police department shall review its
- 24 rate sheet for towing ~~service~~ **services** not less than one (1) time per
- 25 calendar year.
- 26 SECTION 62. IC 10-16-10-1 IS AMENDED TO READ AS
- 27 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) The officer in
- 28 permanent or temporary command of a station is responsible for the
- 29 security of all public property of the command, whether in use or in
- 30 store. Although for purposes of periodical accountability to proper
- 31 authorities, the public property has been officially accepted and
- 32 receipted for by any subordinate officers, the commanding officer is
- 33 responsible and pecuniarily liable for the strict observance of the
- 34 regulations in regard to its preservation, use, and issue. The officer
- 35 shall take care that:
- 36 (1) all storehouses are properly guarded;
- 37 (2) only reliable agents are employed; and
- 38 (3) only trustworthy enlisted persons are detailed for duty in
- 39 storehouses or in connection with the property.
- 40 (b) If an officer, a soldier, or an airman responsible for state and
- 41 federal property:
- 42 (1) resigns;



- (2) is promoted;
- (3) is dismissed; or
- (4) is discharged;

the officer, soldier, or airman shall deliver all arms, ~~accoutrements~~, **accouterments**, or stores only to the officer appointed to receive the arms, ~~accoutrements~~, **accouterments**, or stores and take duplicate receipts for the arms, ~~accoutrements~~, **accouterments**, or stores and file a duplicate receipt with the adjutant general. In case of the death of an officer, a soldier, or an airman responsible for state and federal property, the next in command shall immediately take charge of the arms, ~~accoutrements~~, **accouterments**, or stores and deliver them to the person appointed to receive the arms, ~~accoutrements~~, **accouterments**, or stores. However, if the officer, soldier, or airman is commissioned in place of the deceased, the officer, soldier, or airman shall execute and file duplicate receipts for the arms, ~~accoutrements~~, **accouterments**, and stores with the adjutant general.

(c) An officer responsible for state and federal property shall be charged for any damage to or loss or destruction of the property unless the officer shows to the satisfaction of the adjutant general, by proper evidence, that the damage, loss, or destruction was caused by unavoidable causes and without fault or neglect on the officer's part.

(d) If an article of state or federal property is lost or damaged by the neglect or fault of an officer, a soldier, or an airman, the officer, soldier, or airman shall pay for the value of the property or the cost of repairs, in a sum to be determined by the proper authority, upon the demand of the adjutant general.

(e) The amount charged against an enlisted soldier or airman on the muster and payrolls for loss of or damage or repairs to military property may not exceed the value of the article or cost of repairs. The charge may only be made:

- (1) on conclusive proof; and
- (2) with an inquiry if the soldier or airman demands it.

(f) The adjutant general may pay from the funds appropriated to the military department for operating expenses the expenses necessary for the apprehension and prosecution of any person absconding with property belonging to the state or United States if the person is not in Indiana.

SECTION 63. IC 10-16-12-1, AS AMENDED BY P.L.155-2025, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. The following awards and decorations are established to be bestowed upon the officers and enlisted persons of the armed forces of Indiana under the conditions and in the manner



- 1 provided in this article:
- 2 (1) An Indiana Distinguished Service Cross shall be awarded to
- 3 any officer or enlisted person of the militia, who:
- 4 (A) performs, at great personal danger and risk of life or limb
- 5 in peace or war, any act of heroism designed to protect life or
- 6 property;
- 7 (B) in the face of a military or armed enemy of the United
- 8 States government or of the state of Indiana, performs an act
- 9 over and beyond the call of duty, which act, danger, or risk the
- 10 officer or enlisted person could have failed to perform or incur
- 11 without being subject to censure for neglect of duty; or
- 12 (C) through an act of courage contributes directly to saving ~~the~~
- 13 **a life or the** lives of others.
- 14 (2) An Indiana Distinguished Service Medal shall be awarded to
- 15 a commissioned officer or an enlisted person of the militia and
- 16 other officers, enlisted persons, and civilians, who perform
- 17 unusually distinguished or meritorious service, that:
- 18 (A) to a marked degree is reflected in the increased efficiency
- 19 of the militia; or
- 20 (B) brings exceptional and great honor or credit to the Indiana
- 21 armed forces and commands the attention and respect of the
- 22 citizens of Indiana and of the military establishment
- 23 throughout the United States.
- 24 (3) Long Service Medals shall be awarded to officers and enlisted
- 25 persons for honest and faithful service in the federally recognized
- 26 Indiana National Guard for: ~~periods of~~:
- 27 (A) **periods of** ten (10) years;
- 28 (B) **periods of** fifteen (15) years;
- 29 (C) **periods of** twenty (20) years;
- 30 (D) **periods of** twenty-five (25) years; and
- 31 (E) ~~for~~ longer periods.
- 32 A symbol shall be worn on the ribbon of each medal, one (1) for
- 33 each year in addition to the period for which the medal was
- 34 issued, until the officer or enlisted person is entitled to a medal
- 35 for the next period for which a different long service medal is
- 36 issued.
- 37 (4) An Indiana National Guard commendation medal shall be
- 38 awarded to any commissioned officer or enlisted person of the
- 39 militia and other officers, enlisted persons, and civilians, who
- 40 have distinguished themselves by meritorious achievement or
- 41 meritorious service. The required meritorious achievement or
- 42 meritorious service while of lesser degree than that required for



the award of the Indiana distinguished service medal must have been accomplished with distinction. The award may be made for acts of outstanding courage that do not meet the requirements for award of the Indiana distinguished service medal. It is particularly desirable that emphasis be placed on the award of this decoration to outstanding company grade officers, warrant officers, and enlisted personnel whose achievements and service meet the prescribed standards.

(5) An Indiana achievement medal shall be awarded to any officer or enlisted person of the militia and other officers, enlisted persons, or civilians, who have distinguished themselves by outstanding achievement or service. The required achievement or service, while of lesser degree than that required for the award of the Indiana National Guard commendation medal, must have been accomplished with distinction.

(6) An Indiana Emergency Service Ribbon shall be awarded to all currently assigned officers, warrant officers, and enlisted members of the Indiana National Guard who have served on state active duty during a state emergency. For purposes of this subdivision, "state emergency" means any emergency for any period declared by the governor or the adjutant general. The Indiana emergency service ribbon shall be awarded to denote honorable state active military duty by members of the Indiana Army and Air National Guard during state emergencies.

(7) Other medals for any war or campaign or mobilization for which a medal has not been awarded by the federal government may be:

(A) established by executive order of the governor; and

(B) awarded to members of any federally recognized military force of the state who participated in the military force.

(8) An Air National Guard First Sergeant Ribbon is authorized for a currently assigned member who serves or has previously served as a first sergeant in the Indiana Air National Guard, if the member meets the criteria set forth in clause (A). A request for an award, including a retroactive award, must be submitted in the manner set forth in clause (B), and meet any other criteria established by the adjutant general. The ribbon shall consist of a plain blue field with a silver diamond device in the center, and no medal shall accompany the award of the ribbon. The ribbon shall be awarded as follows:

(A) In recognition of meritorious service by a member of the Indiana Air National Guard who has served in the first



1 sergeant career field, Special Duty Identifier 8F000, and who
2 meets the following criteria:

3 (i) Has been assigned to a valid first sergeant position for at
4 least three (3) years.

5 (ii) Graduated from either the United States Air Force
6 Academy or the Army National Guard First Sergeant
7 Academy.

8 (B) The individual unit commander of a member of the
9 Indiana Air National Guard who meets the criteria set forth in
10 clause (A) shall submit a letter to the wing commander,
11 recommending the member for the award based upon the
12 member's contributions, conduct, and demonstrated leadership
13 as a first sergeant. If the wing commander approves, the wing
14 commander shall forward the letter of recommendation to the
15 military personnel flight commanding officer for action. If the
16 wing commander disapproves, the wing commander shall
17 return the letter of recommendation to the unit commander.

18 (C) The adjutant general shall establish procedures for the
19 award presentation ceremony following accepted practice and
20 military tradition.

21 (9) An Indiana Funeral Honors Ribbon shall be awarded to all
22 members of the Indiana Air National Guard, the Indiana Army
23 National Guard, retired members of the Indiana Air National
24 Guard and Indiana Army National Guard, and members of
25 veterans' organizations who have been trained and certified by the
26 United States Department of Defense as Department of Defense
27 Funeral Honors participants. The Indiana Funeral Honors Ribbon
28 shall be awarded to denote honorable and distinguished service in
29 the performance of military funerals and similar activities within
30 Indiana.

31 (10) An Indiana Outstanding Airman or Soldier of the Year
32 Medal shall be awarded to the finest members of the Indiana
33 National Guard on an annual basis. This medal is authorized in
34 the quantities and qualifications set forth by the adjutant general,
35 who shall establish and publish procedures for award
36 presentation.

37 (11) An Indiana Exemplary Fitness Medal shall be awarded to
38 members and employees of the Indiana National Guard who
39 distinguish themselves for outstanding physical fitness. This
40 medal is authorized in the quantities and qualifications set forth
41 by the adjutant general, who shall establish and publish
42 procedures for award presentation.



For the purposes of this article, officers and enlisted persons of the regular army assigned to the armed forces of Indiana as instructors and assistant instructors shall be considered as officers and enlisted persons of the Indiana armed forces.

SECTION 64. IC 10-17-12-12, AS ADDED BY P.L.58-2006, SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. The director shall establish the capability to receive donations to the fund from the public on the department's ~~Internet site.~~ **website.**

SECTION 65. IC 10-17-13.5-4, AS AMENDED BY P.L.238-2025, SECTION 37, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) The department may make grants to qualified entities to be used for the purpose of providing services to veterans or an eligible person, including the following:

(1) Programs focused on eliminating homelessness, preventing near term homelessness, and providing safe and secure living conditions.

(2) Assisting veterans or an eligible person in moving from public housing assistance programs to:

(A) home ownership; or

(B) stable, long term rental status.

A grant under this chapter for the purpose specified in clause (B) may include up to nine (9) months of rental assistance.

(3) Assisting veterans or an eligible person in finding and using available federal and state resources.

(4) Providing therapeutic services.

(5) Providing job training and job search assistance.

(6) Preventing veteran suicide or suicide of an eligible person.

(b) The department may make grants to the provider chosen by the Indiana department of health under section 6 of this chapter **(before its expiration)** to be used for the purpose of providing assistance to the provider to provide diagnostic testing and hyperbaric oxygen treatment to veterans receiving treatment under the pilot program established under section 6 of this chapter **(before its expiration)**. However, a grant under this chapter may not be awarded for the purposes specified in this subsection unless the Indiana department of health has adopted the rules required by section 6(g) of this chapter **(before its expiration)**. In addition, a grant may not be awarded for the purposes specified in this subsection after the expiration of the pilot program established under section 6 of this chapter **(expired June 30, 2025)**.

SECTION 66. IC 10-17-13.5-7, AS ADDED BY P.L.155-2018, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]: Sec. 7. A provider under section 6 of this chapter (expired June 30, 2025), including a physician who supervises treatment, is immune from civil and criminal liability for an act or omission relating to the use of hyperbaric oxygen treatment to treat a veteran under the pilot program, unless the act or omission constitutes gross negligence or willful or wanton misconduct.

SECTION 67. IC 10-21-1-2, AS AMENDED BY P.L.213-2025, SECTION 108, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) The Indiana secured school fund is established to provide:

(1) matching grants to school corporations, charter schools, and accredited nonpublic schools, where the matching grants may be used to:

(A) employ a school resource officer, employ a law enforcement officer, or enter into a contract or a memorandum of understanding with a:

- (i) local law enforcement agency;
- (ii) private entity; or
- (iii) nonprofit corporation;

to employ a school resource officer or a law enforcement officer;

(B) conduct:

- (i) a site vulnerability assessment of the buildings within a school corporation or the buildings that are operated by a charter school or accredited nonpublic school; or
- (ii) critical incident digital mapping of the buildings within a school corporation or the buildings that are operated by a charter school or accredited nonpublic school;

(C) purchase equipment, hardware, materials, and technology to:

- (i) restrict access to school property and classrooms;
- (ii) assist with visitor management on school property;
- (iii) expedite notification of first responders;
- (iv) expedite access to school property for first responders;
- (v) provide school staff with information about the open or closed status of interior and exterior doors;
- (vi) detect fire, chemical, visual, or audible threats;
- (vii) enhance emergency communications inside the building; or
- (viii) assist with emergency medical response on school property;

(D) implement a student and parent support services plan as



described in IC 20-34-9;

(E) purchase or provide training for a canine trained to detect drugs and illegal substances, explosives, or firearms, or to otherwise provide protection for students and school employees and the canine shall:

(i) be primarily assigned to a school corporation, charter school, or accredited nonpublic school;

(ii) be primarily assigned to a school resource officer or law enforcement officer described in clause (A) who has received appropriate training for handling a canine trained to detect drugs and illegal substances, explosives, or firearms, or to otherwise provide protection for students and school employees, including training regarding handling a canine in a school setting; and

(iii) receive continuous training as appropriate;

(F) provide funding for school employees to receive training, including expenses for per diem, travel, and lodging, related to:

(i) site vulnerability assessments;

(ii) mental health or behavioral health threat assessments;

(iii) multi-disciplinary threat assessment teams; or

(iv) emergency preparedness or response activities;

(G) provide funding for school resource officers or law enforcement officers described in clause (A) to receive training, including expenses for per diem, travel, and lodging, related to handling a canine trained to detect drugs and illegal substances, explosives, or firearms, or to otherwise provide protection for students and school employees;

(H) purchase student safety management technology;

(I) design and construct additions or renovations on school property if the primary purpose of the construction project is to enhance the physical security of the school building; **or**

(J) implement a bullying prevention program; **or and**

~~(K) develop, implement, and carry out a Stop the Bleed program required by IC 20-34-3-24, including for the purchase of bleeding control kits; and~~

(2) one (1) time grants to enable school corporations, charter schools, and accredited nonpublic schools with the sheriff for the county in which the school corporation, charter school, or accredited nonpublic school is located, to provide the initial set up costs for an active event warning system.

(b) A school corporation or charter school may use money received



1 under a matching grant for a purpose listed in subsection (a) to provide
 2 a response to a threat in a manner that the school corporation or charter
 3 school sees fit, including firearms training or other self-defense
 4 training.

5 (c) The fund shall be administered by the department of homeland
 6 security.

7 (d) The fund consists of:

8 (1) appropriations from the general assembly;

9 (2) federal grants;

10 (3) amounts deposited from any other public or private source;

11 and

12 (4) amounts deposited under IC 33-37-9-4.

13 (e) The expenses of administering the fund shall be paid from
 14 money in the fund.

15 (f) The treasurer of state shall invest the money in the fund not
 16 currently needed to meet the obligations of the fund in the same
 17 manner as other public money may be invested. Interest that accrues
 18 from these investments shall be deposited in the fund.

19 (g) Money in the fund at the end of a state fiscal year does not revert
 20 to the state general fund.

21 SECTION 68. IC 10-21-1-14, AS AMENDED BY P.L.214-2025,
 22 SECTION 6, AND AS AMENDED BY P.L.238-2025, SECTION 44,
 23 IS CORRECTED AND AMENDED TO READ AS FOLLOWS
 24 [EFFECTIVE JULY 1, 2026]: Sec. 14. (a) Each school operated by a
 25 school corporation shall establish a safe school committee. *The*
 26 *committee may be a subcommittee of the committee that develops the*
 27 *strategic and continuous school improvement and achievement plan*
 28 *under IC 20-31-5.* Each committee may include at least one (1)
 29 member who is a member of the support staff of the school or school
 30 corporation career and technical education school.

31 (b) Each school operated by a charter school shall establish a safe
 32 school committee. A charter school in operation on July 1, 2023, shall
 33 comply with this subsection not later than July 1, 2024.

34 (c) The safe school committee shall actively participate in and assist
 35 with the development of the school safety plan.

36 (d) The ~~department of education~~, *office of school safety (as*
 37 *established by IC 10-19-3.5-4)*, the school corporation's or charter
 38 school's school safety specialist or specialists, and a school resource
 39 officer, if one (1) is employed by the school corporation or charter
 40 school, shall provide materials and guidelines to assist a safe school
 41 committee in developing a policy for a particular school that addresses
 42 the following issues:



(1) Implementation of the school safety plan.

(2) Addressing outside and internal threats to the physical safety of students, faculty, staff, and the public, including unsafe conditions, crime prevention, school violence, bullying and cyberbullying, criminal organization activity, child abuse and child sexual abuse, mental health and behavioral health, suicide awareness and prevention, violence prevention and training, situational awareness, and other issues that prevent the maintenance of a safe school.

(3) Addressing the professional development needs for faculty and staff to implement methods that decrease problems identified under subdivision (2).

(4) Identifying and implementing methods to encourage:

(A) involvement by the community, families, and students;

(B) development of relationships between students and school faculty and staff; and

(C) use of problem solving teams.

(5) Consideration of the effect of armed intruder drills on the safety and mental health of students, faculty, and staff.

(e) The guidelines developed under subsection (d) must include age appropriate, trauma informed, evidence based information (as defined in 34 U.S.C. 10554(4)) that assists school corporations or charter schools and safe school committees in:

(1) developing and implementing bullying and cyberbullying prevention programs;

(2) establishing investigation and reporting procedures related to bullying and cyberbullying; and

(3) adopting discipline rules that comply with IC 20-33-8-13.5.

(f) In addition to developing guidelines under subsection (d), the *office of school safety, in consultation with the* department of education, shall establish categories of types of bullying incidents to allow school corporations to use the categories in making reports under ~~IC 20-20-8-8 and~~ IC 20-34-6-1.

(g) The materials and guidelines provided under subsection (d) must include the model educational materials and model response policies and reporting procedures on child abuse and child sexual abuse developed or identified under IC 20-19-3-11.

SECTION 69. IC 11-8-8-7, AS AMENDED BY P.L.1-2025, SECTION 155, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) Subject to section 19 of this chapter, the following persons must register under this chapter:

(1) A sex or violent offender who resides in Indiana. A sex or



1 violent offender resides in Indiana if either of the following
 2 applies:

3 (A) The sex or violent offender spends or intends to spend at
 4 least seven (7) days (including part of a day) in Indiana during
 5 a one hundred eighty (180) day period.

6 (B) The sex or violent offender owns real property in Indiana
 7 and returns to Indiana at any time.

8 (2) A sex or violent offender who works or carries on a vocation
 9 or intends to work or carry on a vocation full time or part time: ~~for~~
 10 ~~a period:~~

11 (A) **for a period** exceeding seven (7) consecutive days; or

12 (B) for a total period exceeding fourteen (14) days;

13 during any calendar year in Indiana regardless of whether the sex
 14 or violent offender is financially compensated, volunteered, or is
 15 acting for the purpose of government or educational benefit.

16 (3) A sex or violent offender who is enrolled or intends to be
 17 enrolled on a full-time or part-time basis in any public or private
 18 educational institution, including any secondary school, trade, or
 19 professional institution, or postsecondary educational institution.

20 (b) Except as provided in subsection (e), a sex or violent offender
 21 who resides in Indiana shall register with the local law enforcement
 22 authority in the county where the sex or violent offender resides. If a
 23 sex or violent offender resides in more than one (1) county, the sex or
 24 violent offender shall register with the local law enforcement authority
 25 in each county in which the sex or violent offender resides. If the sex
 26 or violent offender is also required to register under subsection (a)(2)
 27 or (a)(3), the sex or violent offender shall also register with the local
 28 law enforcement authority in the county in which the offender is
 29 required to register under subsection (c) or (d).

30 (c) A sex or violent offender described in subsection (a)(2) shall
 31 register with the local law enforcement authority in the county where
 32 the sex or violent offender is or intends to be employed or carry on a
 33 vocation. If a sex or violent offender is or intends to be employed or
 34 carry on a vocation in more than one (1) county, the sex or violent
 35 offender shall register with the local law enforcement authority in each
 36 county. If the sex or violent offender is also required to register under
 37 subsection (a)(1) or (a)(3), the sex or violent offender shall also register
 38 with the local law enforcement authority in the county in which the
 39 offender is required to register under subsection (b) or (d).

40 (d) A sex or violent offender described in subsection (a)(3) shall
 41 register with the local law enforcement authority in the county where
 42 the sex or violent offender is enrolled or intends to be enrolled as a



1 student. If the sex or violent offender is also required to register under
 2 subsection (a)(1) or (a)(2), the sex or violent offender shall also register
 3 with the local law enforcement authority in the county in which the
 4 offender is required to register under subsection (b) or (c).

5 (e) A sex or violent offender described in subsection (a)(1)(B) shall
 6 register with the local law enforcement authority in the county in which
 7 the real property is located. If the sex or violent offender is also
 8 required to register under subsection (a)(1)(A), (a)(2), or (a)(3), the sex
 9 or violent offender shall also register with the local law enforcement
 10 authority in the county in which the offender is required to register
 11 under subsection (b), (c), or (d).

12 (f) A sex or violent offender committed to the department shall
 13 register with the department before the sex or violent offender is placed
 14 in a community transition program, placed in a work release program,
 15 or released from incarceration, whichever occurs first. The department
 16 shall forward the sex or violent offender's registration information to
 17 the local law enforcement authority of every county in which the sex or
 18 violent offender is required to register. If a sex or violent offender
 19 released from the department under this subsection:

20 (1) informs the department of the offender's intended location of
 21 residence upon release; and

22 (2) does not move to this location upon release;

23 the offender shall, not later than seventy-two (72) hours after the date
 24 on which the offender is released, report in person to the local law
 25 enforcement authority having jurisdiction over the offender's current
 26 address or location.

27 (g) This subsection does not apply to a sex or violent offender who
 28 is a sexually violent predator. A sex or violent offender not committed
 29 to the department shall register not more than seven (7) days after the
 30 sex or violent offender:

31 (1) is released from a penal facility (as defined in
 32 IC 35-31.5-2-232);

33 (2) is released from a secure private facility (as defined in
 34 IC 31-9-2-115);

35 (3) is released from a juvenile detention facility;

36 (4) is transferred to a community transition program;

37 (5) is placed on parole;

38 (6) is placed on probation;

39 (7) is placed on home detention; or

40 (8) arrives at the place where the sex or violent offender is
 41 required to register under subsection (b), (c), or (d);

42 whichever occurs first. A sex or violent offender required to register in



more than one (1) county under subsection (b), (c), (d), or (e) shall register in each appropriate county not more than seventy-two (72) hours after the sex or violent offender's arrival in that county or acquisition of real estate in that county.

(h) This subsection applies to a sex or violent offender who is a sexually violent predator. A sex or violent offender who is a sexually violent predator shall register not more than seventy-two (72) hours after the sex or violent offender:

- (1) is released from a penal facility (as defined in IC 35-31.5-2-232);
- (2) is released from a secure private facility (as defined in IC 31-9-2-115);
- (3) is released from a juvenile detention facility;
- (4) is transferred to a community transition program;
- (5) is placed on parole;
- (6) is placed on probation;
- (7) is placed on home detention; or
- (8) arrives at the place where the sexually violent predator is required to register under subsection (b), (c), or (d);

whichever occurs first. A sex or violent offender who is a sexually violent predator required to register in more than one (1) county under subsection (b), (c), (d), or (e) shall register in each appropriate county not more than seventy-two (72) hours after the offender's arrival in that county or acquisition of real estate in that county.

(i) The local law enforcement authority with whom a sex or violent offender registers under this section shall make and publish a photograph of the sex or violent offender on the Indiana sex and violent offender registry website established under IC 36-2-13-5.5. The local law enforcement authority shall make a photograph of the sex or violent offender that complies with the requirements of IC 36-2-13-5.5 at least once per year. The sheriff of a county containing a consolidated city shall provide the police chief of the consolidated city with all photographic and computer equipment necessary to enable the police chief of the consolidated city to transmit sex or violent offender photographs (and other identifying information required by IC 36-2-13-5.5) to the Indiana sex and violent offender registry website established under IC 36-2-13-5.5. In addition, the sheriff of a county containing a consolidated city shall provide all funding for the county's financial obligation for the establishment and maintenance of the Indiana sex and violent offender registry website established under IC 36-2-13-5.5.

(j) When a sex or violent offender registers, the local law



1 enforcement authority shall:

- 2 (1) immediately update the Indiana sex and violent offender
- 3 registry website established under IC 36-2-13-5.5;
- 4 (2) notify every law enforcement agency having jurisdiction in the
- 5 county where the sex or violent offender resides; and
- 6 (3) update the National Crime Information Center National Sex
- 7 Offender Registry data base via the Indiana data and
- 8 communications system (IDACS).

9 When a sex or violent offender from a jurisdiction outside Indiana
10 registers a change of address, electronic mail address, instant
11 messaging username, electronic chat room username, social networking
12 website username, employment, vocation, or enrollment in Indiana, the
13 local law enforcement authority shall provide the department with the
14 information provided by the sex or violent offender during registration.

15 SECTION 70. IC 11-12-9-1 IS AMENDED TO READ AS
16 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. If supervision of a
17 person placed in a community corrections program is being
18 administered under IC 11-12-8 (**expired July 1, 2025**), the appropriate
19 judicial or administrative authorities in Indiana shall notify the compact
20 administrator of the sending state if consideration should be given to
21 retaking or reincarcerating the person because of a violation of a term
22 of the person's community corrections sentence.

23 SECTION 71. IC 11-12-9-8 IS AMENDED TO READ AS
24 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. (a) If a person being
25 supervised in another state under the interstate compact set forth in
26 IC 11-12-8 (**expired July 1, 2025**) is alleged to have violated a term of
27 the person's community corrections sentence, any appropriate judicial
28 or administrative officer or agency in the other state may conduct a
29 hearing concerning the alleged violation.

30 (b) Upon receipt of the record of a hearing held in another state
31 under a statute substantially similar to IC 11-12-8 (**expired July 1,**
32 **2025**) and this chapter, the record has the same standing and effect as
33 though the proceeding of which it is a record had been conducted
34 before the appropriate officer in Indiana. The recommendations
35 contained in or accompanying the record shall be fully considered by
36 the appropriate officer in making a decision concerning the alleged
37 violation.

38 SECTION 72. IC 12-7-2-69, AS AMENDED BY P.L.11-2023,
39 SECTION 40, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
40 JULY 1, 2026]: Sec. 69. (a) "Division", except as provided in
41 subsections (b), (c), and (d), refers to any of the following:

- 42 (1) The division of disability and rehabilitative services



- 1 established by IC 12-9-1-1.
- 2 (2) The division of aging established by IC 12-9.1-1-1.
- 3 (3) The division of family resources established by IC 12-13-1-1.
- 4 (4) The division of mental health and addiction established by
- 5 IC 12-21-1-1.
- 6 (b) The term refers to the following:
- 7 (1) For purposes of the following statutes, the division of
- 8 disability and rehabilitative services established by IC 12-9-1-1:
- 9 (A) IC 12-9.
- 10 (B) IC 12-11.
- 11 (C) IC 12-12.
- 12 (D) IC 12-12.7.
- 13 (E) IC 12-28-5.
- 14 (2) For purposes of the following statutes, the division of aging
- 15 established by IC 12-9.1-1-1:
- 16 (A) IC 12-9.1.
- 17 (B) IC 12-10.
- 18 (C) IC 12-10.5.
- 19 (3) For purposes of the following statutes, the division of family
- 20 resources established by IC 12-13-1-1:
- 21 (A) IC 12-8-12.
- 22 (B) IC 12-13.
- 23 (C) IC 12-14.
- 24 (D) IC 12-15.
- 25 (E) IC 12-16.
- 26 **(F) IC 12-17.**
- 27 ~~(F)~~ **(G)** IC 12-17.2.
- 28 ~~(G)~~ **(H)** IC 12-18.
- 29 ~~(H)~~ **(I)** IC 12-19.
- 30 ~~(I)~~ **(J)** IC 12-20.
- 31 (4) For purposes of the following statutes, the division of mental
- 32 health and addiction established by IC 12-21-1-1:
- 33 (A) IC 12-21.
- 34 (B) IC 12-22.
- 35 (C) IC 12-23.
- 36 (D) IC 12-25.
- 37 (c) With respect to a particular state institution, the term refers to
- 38 the division whose director has administrative control of and
- 39 responsibility for the state institution.
- 40 (d) For purposes of IC 12-24, IC 12-26, and IC 12-27, the term
- 41 refers to the division whose director has administrative control of and
- 42 responsibility for the appropriate state institution.



SECTION 73. IC 12-8-1.6-10, AS ADDED BY P.L.174-2025, SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) This section applies to a home and community based services waiver that included assisted living services as an available service before July 1, 2025.

(b) As used in this section, "office" includes the following:

(1) The office of the secretary of family and social services.

(2) A managed care organization that has contracted with the office of Medicaid policy and planning under IC 12-15.

(3) A person that has contracted with a managed care organization described in subdivision (2).

(c) Under a home and community based services waiver that provides services to an individual who is aged or disabled, the office shall reimburse for the following services provided to the individual by a provider of assisted living services, if included in the individual's home and community based ~~service~~ **services** plan:

(1) Assisted living services.

(2) Integrated health care coordination.

(3) Transportation.

(d) If the office approves an increase in the level of services for a recipient of assisted living services, the office shall reimburse the provider of assisted living services for the level of services for the increase as of the date that the provider has documentation of providing the increase in the level of services.

(e) The office may reimburse for any home and community based services provided to a Medicaid recipient beginning on the date of the individual's Medicaid application.

(f) The office may not do any of the following concerning assisted living services provided in a home and community based services program:

(1) Require the installation of a sink in the kitchenette within any living unit of an entity that participated in the Medicaid home and community based services program before July 1, 2018.

(2) Require all living units within a setting that provides assisted living services to comply with physical plant requirements that are applicable to individual units occupied by a Medicaid recipient.

(3) Require a provider to offer only private rooms.

(4) Require a housing with services establishment provider to provide housing when:

(A) the provider is unable to meet the health needs of a resident without:



- 1 (i) undue financial or administrative burden; or
- 2 (ii) fundamentally altering the nature of the provider's
- 3 operations; and
- 4 (B) the resident is unable to arrange for services to meet the
- 5 resident's health needs.
- 6 (5) Require a housing with services establishment provider to
- 7 separate an agreement for housing from an agreement for
- 8 services.
- 9 (6) Prohibit a housing with services establishment provider from
- 10 offering studio apartments with only a single sink in the unit.
- 11 (7) Preclude the use of a shared bathroom between adjoining or
- 12 shared units if the participants consent to the use of a shared
- 13 bathroom.
- 14 (8) Reduce the scope of services that may be provided by a
- 15 provider of assisted living services under the aged and disabled
- 16 Medicaid waiver in effect on July 1, 2021.
- 17 (g) The office of the secretary may adopt rules under IC 4-22-2 that
- 18 establish the right, and an appeals process, for a resident to appeal a
- 19 provider's determination that the provider is unable to meet the health
- 20 needs of the resident as described in subsection (f)(4). The process:
- 21 (1) must require an objective third party to review the provider's
- 22 determination in a timely manner; and
- 23 (2) may not be required if the provider is licensed by the Indiana
- 24 department of health and the licensure requirements include an
- 25 appellate procedure for such a determination.
- 26 SECTION 74. IC 12-10-3-13, AS AMENDED BY P.L.47-2025,
- 27 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 28 JULY 1, 2026]: Sec. 13. (a) The division shall maintain the following:
- 29 (1) Records on individuals that the division and adult protective
- 30 services units have determined to be endangered adults and the
- 31 protective services needed.
- 32 (2) Records of agencies, persons, or institutions who are
- 33 determined to have permitted neglect, battery, or exploitation of
- 34 endangered adults.
- 35 (3) Records of intake reports and cases received, for at least five
- 36 (5) years.
- 37 The information maintained under this section must be available to law
- 38 enforcement officials, state licensing agencies, and other officials and
- 39 employees of municipal, county, and state government having a
- 40 legitimate interest in the welfare of individuals who may be endangered
- 41 adults or who have a legitimate interest in the operation of agencies or
- 42 institutions providing care to individuals served under this chapter.



1 SECTION 75. IC 12-11-6-1, AS AMENDED BY P.L.262-2019,
 2 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 3 JULY 1, 2026]: Sec. 1. The division is responsible for the following:

4 (1) Planning, research, and the development of developmental
 5 services directed toward the prevention and alleviation of
 6 developmental disabilities or toward the social, personal,
 7 physical, or economic habilitation or rehabilitation of an
 8 individual with such a disability.

9 (2) The coordination of the various governmental services,
 10 activities, and programs in Indiana relating to individuals with a
 11 developmental disability.

12 (3) Administering the state aided services for individuals with a
 13 developmental disability.

14 (4) Before July 1, 2020, in coordination with the task force
 15 established by IC 12-11-15.5-2 (**before its expiration**),
 16 developing a plan to establish a statewide crisis assistance
 17 program not later than July 1, 2021, for individuals with
 18 developmental disabilities.

19 SECTION 76. IC 12-11-16-7, AS ADDED BY P.L.174-2025,
 20 SECTION 38, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 21 JULY 1, 2026]: Sec. 7. (a) Subject to subsections (b) and (c), the
 22 division may charge each authorized service provider that employs a
 23 direct ~~service~~ **support** professional an annual fee.

24 (b) The division shall do the following:

25 (1) Develop a fee structure that accounts for variances in an
 26 authorized service provider's direct support professional
 27 workforce.

28 (2) Determine the amount of a fee described in subsection (a)
 29 using the fee structure developed by the division under
 30 subdivision (1).

31 (c) The division may not charge an authorized service provider
 32 described in subsection (a) a total amount for annual fees that exceeds
 33 two thousand dollars (\$2,000).

34 (d) Fees collected under this section shall be deposited in the direct
 35 support professional training program fund established by section 8 of
 36 this chapter.

37 (e) The division may adopt rules under IC 4-22-2 necessary to
 38 implement this section.

39 SECTION 77. IC 12-12-1-5, AS AMENDED BY P.L.262-2019,
 40 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 41 JULY 1, 2026]: Sec. 5. (a) The bureau shall provide job placement
 42 services, including supported employment (as defined in 34 CFR



1 363.6), on a consistent statewide basis for qualified blind, visually
 2 impaired, and other persons with disabilities.

3 (b) The bureau shall increase employment opportunities for persons
 4 with disabilities by encouraging and authorizing direct job placements
 5 into any job that is chosen by the vocational rehabilitation client,
 6 including a job provided by any organization that has a contract with
 7 the bureau to provide vocational rehabilitation services.

8 (c) Before December 31, 2019, the division shall determine the
 9 following concerning the division's program that provides vocational
 10 rehabilitation services to eligible individuals:

11 (1) The cost of vocational rehabilitation services provided in state
 12 fiscal year 2018 and state fiscal year 2019.

13 (2) An estimate of the number of eligible individuals for
 14 rehabilitation services for whom the division can provide the
 15 services and the number of eligible individuals to be deferred
 16 between state fiscal year 2020 and state fiscal year 2025.

17 (3) The projected staffing and fiscal resources needed to provide
 18 services to eligible individuals.

19 (4) The current service provider capacity.

20 (5) The projected service provider capacity needed to serve
 21 additional priority categories of individuals.

22 (6) The adequacy of current reimbursement rates.

23 (d) Before July 31 of each year, the division shall assess the
 24 following concerning the vocational rehabilitation services program:

25 (1) Available staffing and fiscal resources.

26 (2) The achievement of benchmarks in a plan to provide the full
 27 range of needed services to all eligible individuals.

28 (3) Meeting the requirements set forth in 34 CFR 361.36 to
 29 provide services to all eligible individuals.

30 (e) The division shall report to the commission on rehabilitation
 31 services under IC 12-12-2 ~~and the task force established under~~
 32 ~~IC 12-11-15.5~~ concerning the division's assessment under subsection

33 (d).

34 (f) The division shall, upon determining that the staffing and
 35 financial resources determined under this section are in place, do the
 36 following:

37 (1) Begin to serve deferred individuals in the first closed priority
 38 category not later than January 1, 2020.

39 (2) Begin to serve deferred individuals in the final closed priority
 40 category not later than June 30, 2022.

41 (3) Begin to serve all service priority categories not later than
 42 June 30, 2024.



SECTION 78. IC 12-14-7-2, AS AMENDED BY P.L.80-2010,
SECTION 18, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
JULY 1, 2026]: Sec. 2. (a) If:

(1) the parents of a dependent child are ~~(+)~~ separated or divorced;
and

(2) there is no court order for the support of the child;
the other parent shall cooperate, within federal regulations, with the
state agency responsible for administering Title IV-D of the federal
Social Security Act in obtaining a support order.

(b) If a child is residing with a nonparent guardian or custodian, the
nonparent guardian or custodian shall make a good faith effort to
cooperate with the division and any agency responsible for
administering Title IV-D of the federal Social Security Act in obtaining
and enforcing a child support order.

(c) The nonparent custodian or guardian is presumed to make a
good faith effort under subsection (b) if the nonparent custodian or
guardian does one (1) or more of the following:

(1) Responds to telephone calls from a prosecuting attorney or
correspondence from a prosecuting attorney.

(2) Appears for an appointment, in person or by telephone, with
a prosecuting attorney.

(3) Appears at a court hearing when requested by a prosecuting
attorney.

(4) Does one (1) or more of the following:

(A) Provides information described in IC 12-7-2-43.5(b), to
the extent the information is known.

(B) Affirms that the information described in
IC 12-7-2-43.5(b) is not known.

(d) Before making a determination that the nonparent custodian or
guardian is not making a good faith effort to cooperate, the prosecuting
attorney shall consider one (1) or more of the following:

(1) Whether the nonparent custodian or guardian could
reasonably be expected to provide the information.

(2) The age of the child for whom child support is being sought.

(3) The circumstances surrounding the conception of the child.

(4) The age and mental capacity of the nonparent custodian or
guardian.

(5) The time that has expired since the nonparent custodian or
guardian has last had contact with:

(A) the alleged father of the child;

(B) a parent of the child; or

(C) a relative of the persons listed in clause (A) or (B).



(6) Any credible information that demonstrates an inability to provide correct information about an alleged father or a parent of the child because of deception by the alleged father or parent.

(7) Any other credible information obtained by the prosecutor that demonstrates the nonparent custodian or guardian has knowledge of the information sought by the prosecuting attorney.

SECTION 79. IC 12-14-31-5, AS ADDED BY P.L.57-2025, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. The office of the secretary shall allocate two hundred (200) CCDF **program** vouchers to be used for a child placed with a licensed foster parent. However, if any ~~child care~~ **CCDF program** vouchers remain unused after a period of ninety (90) days, the office of the secretary may allocate those ~~child care~~ vouchers to other applicants.

SECTION 80. IC 12-15-1-14.5, AS ADDED BY P.L.243-2025, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14.5. (a) The office of the secretary shall prepare a report on the provision of Medicaid services, including Medicaid home and community based waiver services, to recipients who have medically complex conditions. The report must include the following, categorized by whether the recipient was less than, or at least, eighteen (18) years of age:

(1) The number of recipients, by county, who received Medicaid services through:

(A) the state plan;

(B) a Medicaid waiver; or

(C) services under both ~~clause~~ **clauses** (A) and (B).

(2) A list of the specific services provided to the recipients, by county, and the number of recipients who received each service.

(3) The median length of time recipients have received Medicaid, by county, through the following:

(A) The state plan.

(B) A Medicaid waiver.

(C) Services under both ~~clause~~ **clauses** (A) and (B).

(b) Not later than September 1, 2025, and each September 1 thereafter, the office of the secretary shall submit the report described in subsection (a) to the following:

(1) The Medicaid advisory commission, established by IC 12-15-33-2.

(2) The Medicaid oversight committee, in an electronic format under IC 5-14-6.

(3) The budget committee.



(4) The legislative council, in an electronic format under IC 5-14-6.

(5) The division of disability and rehabilitative services advisory council established under IC 12-9-4.

(c) The division of disability and rehabilitative services advisory council established under IC 12-9-4 shall provide the following recommendations to the division of disability and rehabilitative services to ensure the delivery of appropriate high quality services to recipients, including an evaluation of models of care for complex care assistants used in other states:

(1) The potential benefits and risks to recipients and family caregivers.

(2) Training and certification requirements.

(3) Implementation challenges and strategies to address the challenges.

(4) Any potential fiscal impact of implementing a complex care assistant program in Indiana.

SECTION 81. IC 12-15-1-18.5, AS AMENDED BY P.L.216-2025, SECTION 2, AND AS AMENDED BY P.L.239-2025, SECTION 1, IS CORRECTED AND AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 18.5. (a) The payer affordability penalty fund is established for the purpose of receiving fines collected under IC 16-21-6-3, IC 27-1-4.5-7, ~~and~~ IC 16-21-6-13, IC 16-21-19, IC 27-1-46.5, and IC 27-2-25.5 to be used for:

(1) the state's share of the Medicaid program; and

(2) a study of hospitals that are impacted by changes made in the disproportionate share hospital methodology payments set forth in Section 203 of the federal Consolidated Appropriations Act of 2021.

The office of the secretary shall perform the study and provide the results of the study described in subdivision (2) to the budget committee.

(b) The fund shall be administered by the office of the secretary.

(c) The expenses of administering the fund shall be paid from money in the fund.

(d) The treasurer of state shall invest the money in the fund not currently needed to meet the obligations of the fund in the same manner as other public money may be invested. Interest that accrues from these investments shall be deposited in the fund.

(e) Money in the fund at the end of a state fiscal year does not revert to the state general fund.

(f) Money in the fund is continually appropriated.



SECTION 82. IC 12-15-1-20.4, AS AMENDED BY P.L.26-2025,
SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
JULY 1, 2026]: Sec. 20.4. (a) If a Medicaid recipient is:

- (1) adjudicated to be a delinquent child and placed in:
 - (A) a community based correctional facility for children;
 - (B) a juvenile detention facility; or
 - (C) a secure facility, not including a facility licensed as a child caring institution under IC 31-27; or
- (2) incarcerated in a prison or jail; ~~and~~

and ineligible to participate in the Medicaid program during the placement described in subdivision (1) or (2) because of federal Medicaid law, the division of family resources, upon notice that a child has been adjudicated to be a delinquent child and placed in a facility described in subdivision (1) or upon notice that a person is incarcerated in a prison or jail and placed in a facility described in subdivision (2), shall suspend the person's participation in the Medicaid program.

(b) If the division of family resources receives:

- (1) a dispositional decree under IC 31-37-19-28; or
- (2) a modified disposition order under IC 31-37-22-9;

regarding a person described in subsection (a)(2) and the department of correction gives the division of family resources at least forty (40) days notice that the person will be released from a facility described in subsection (a)(2), the division of family resources shall take action necessary to ensure that the person is eligible to participate in the Medicaid program upon the person's release, if the person is eligible to participate.

(c) A facility described in subsection (a)(1) shall, not less than forty-five (45) days before the release date of a person placed in the facility as described in subsection (a)(1), provide notice of the person's release date to the division of family resources. The division of family resources shall take action necessary to ensure that the person is eligible to:

- (1) participate in the Medicaid program upon the person's release, if the person is eligible to participate; and
- (2) receive services mandated under 42 U.S.C. 1396a for thirty (30) days before the person's release date and for thirty (30) days after the person's release date.

SECTION 83. IC 12-15-1-24, AS ADDED BY P.L.126-2025,
SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
JULY 1, 2026]: Sec. 24. (a) Except as required under federal law, the office of the secretary may not accept self-attestation of any of the following in the administration of the Medicaid program without



1 verification before enrollment:

- 2 (1) Income.
- 3 (2) Residency.
- 4 (3) Age.
- 5 (4) Household composition.
- 6 (5) Caretaker or relative status.
- 7 (6) Receipt of other coverage.

8 (b) The office of the secretary shall enter into a data matching
9 agreement with:

- 10 (1) the state lottery commission; and
- 11 (2) the Indiana gaming commission;

12 to, on at least a monthly basis, identify individuals receiving Medicaid
13 assistance with lottery and gambling winnings of at least three
14 thousand dollars (\$3,000). Upon verification of any winnings resulting
15 in the individual no longer being eligible for Medicaid, the office of the
16 secretary shall terminate the individual's enrollment.

17 (c) On at least a monthly basis, the office of the secretary shall
18 review vital statistics information provided by the Indiana department
19 of health under IC 16-19-3-19 to determine removal of deceased
20 individuals from Medicaid enrollment.

21 (d) On at least a quarterly basis, the office of the secretary shall
22 receive and review information from the department of state revenue
23 and the department of workforce development concerning Medicaid
24 recipients that indicates a change in circumstances that may affect
25 eligibility, including changes to employment or wages.

26 (e) On at least an annual basis, the office of the secretary shall
27 receive and review information from the department of state revenue
28 concerning Medicaid recipients, including:

- 29 (1) adjusted gross income; and
- 30 (2) family composition;

31 that indicates a change in circumstances that may affect Medicaid
32 eligibility.

33 (f) On at least a monthly basis, the office of the secretary shall
34 review information concerning Medicaid recipients who also receive
35 SNAP **benefits** to determine whether there has been any change in
36 circumstances that may affect Medicaid eligibility, including a change
37 in residency as may be identified through electronic benefit transfer
38 program transactions.

39 (g) On at least a monthly basis, the office of the secretary shall
40 receive and review information from the department of correction
41 concerning Medicaid recipients that may indicate a change in
42 circumstances that may affect Medicaid eligibility.



(h) Upon receiving information concerning a Medicaid recipient that indicates a change in circumstances that may affect Medicaid eligibility, the office of the secretary shall promptly conduct an eligibility redetermination for the recipient.

SECTION 84. IC 12-15-1.3-15, AS AMENDED BY P.L.131-2024, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 15. (a) As used in this section, "division" refers to the division of disability and rehabilitative services established by IC 12-9-1-1.

(b) As used in this section, "waiver" refers to any waiver administered by the office and the division under section 1915(c) of the federal Social Security Act.

(c) The office shall apply to the United States Department of Health and Human Services for approval to amend a waiver to set an emergency placement priority for individuals in the following situations:

- (1) Death of a primary caregiver.
- (2) The primary caregiver is at least eighty (80) years of age.
- (3) There is evidence of abuse or neglect in the current institutional or home placement.
- (4) There is evidence of other health and safety risks, as determined by the division director, where other available services through:
 - (A) the Medicaid program and other federal, state, and local public programs; and
 - (B) supports that families and communities provide;
 are insufficient to address the other health and safety risks, as determined by the division director.

(d) The division shall report on a quarterly basis the following information to the division of disability and rehabilitative services advisory council established by IC 12-9-4-2 concerning each Medicaid waiver for which the office has been approved under this section to administer an emergency placement priority for individuals described in this section:

- (1) The number of applications for emergency placement priority waivers.
- (2) The number of individuals served on the waiver.
- (3) The number of individuals on a wait list for the waiver.

(e) Before July 1, 2021, the division, in coordination with the task force established by IC 12-11-15.5-2 (**before its expiration**), shall establish new priority categories for individuals served by a waiver.

(f) The office may adopt rules under IC 4-22-2 necessary to



1 implement this section.

2 SECTION 85. IC 12-15-30.5-7, AS ADDED BY P.L.116-2019,
3 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
4 JULY 1, 2026]: Sec. 7. (a) The nonemergency medical transportation
5 commission is established for the purpose of overseeing the provision
6 of nonemergency medical transportation services to ensure that
7 Medicaid fee-for-service recipients are receiving satisfactory service
8 and to ensure that brokers pay the claims of transportation providers in
9 a timely manner.

10 (b) The commission consists of the following members:

- 11 (1) Two (2) members of the senate, who may not be members of
- 12 the same political party, appointed by the president pro tempore
- 13 of the senate with the advice of the minority leader of the senate.
- 14 (2) Two (2) members of the house of representatives, who may
- 15 not be members of the same political party, appointed by the
- 16 speaker of the house of representatives with the advice of the
- 17 minority leader of the house of representatives.
- 18 (3) One (1) representative of the office of the secretary.
- 19 (4) One (1) individual representing a broker.
- 20 (5) One (1) individual representing a transportation provider that
- 21 has contracted with a broker.
- 22 (6) One (1) individual representing the Indiana Hospital
- 23 Association.
- 24 (7) One (1) individual representing the Indiana Health Care
- 25 Association.
- 26 (8) One (1) individual representing the Indiana Association of
- 27 Rehabilitation Facilities.
- 28 (9) One (1) individual representing the Arc of Indiana.
- 29 (10) One (1) physician licensed under IC 25-22.5.
- 30 (11) One (1) individual representing dialysis providers.
- 31 (12) One (1) Medicaid fee-for-service recipient.
- 32 (13) One (1) individual representing the Indiana Association of
- 33 Area Agencies on Aging.
- 34 (14) One (1) individual representing the Indiana Emergency
- 35 Medical Services Association.

36 (c) The members of the commission described in subsection (b)(1)
37 and (b)(2) shall serve:

- 38 (1) as nonvoting advisory members; and
- 39 (2) for a four (4) year term.

40 (d) The members of the commission described in subsection (b)(3)
41 through (b)(14) shall be appointed by the governor for terms of four (4)
42 years. The term of a member of the commission expires July 1.



1 However, a member may continue to serve until a successor is
 2 appointed. In case of a vacancy, the governor shall appoint an
 3 individual to serve for the remainder of the unexpired term. The
 4 governor shall designate one (1) member described in this subsection
 5 as chairperson of the commission.

6 ~~(e) The initial appointments beginning July 1, 2019, must be:~~

7 ~~(1) made by the governor not later than October 1, 2019; and~~

8 ~~(2) notwithstanding subsection (d), staggered as follows:~~

9 ~~(A) Two (2) years for the members appointed under subsection~~

10 ~~(b)(4), (b)(6), (b)(8), (b)(10), (b)(12), and (b)(14);~~

11 ~~(B) Three (3) years for the members appointed under~~
 12 ~~subsection (b)(5), (b)(7), (b)(9), (b)(11), and (b)(13);~~

13 ~~This subsection expires July 1, 2024.~~

14 ~~(f)~~ (e) The office shall provide staff support and technical assistance
 15 to the commission, including the collection of and dissemination of
 16 data and reports required by this chapter, in order for the commission
 17 to carry out its duties under this chapter.

18 SECTION 86. IC 12-15-33.3-3, AS ADDED BY P.L.26-2025,
 19 SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 20 JULY 1, 2026]: Sec. 3. (a) The commission is composed of individuals
 21 who:

22 (1) are:

23 (A) current and former Medicaid beneficiaries; and

24 (B) family members and caregivers of current and former
 25 Medicaid beneficiaries; and

26 (2) are appointed as follows:

27 (A) Four (4) members appointed by the administrator of the
 28 office.

29 (B) One (1) member who is not a member of the general
 30 assembly, appointed by the president pro tempore of the
 31 senate.

32 (C) One (1) member who is not a member of the general
 33 assembly, appointed by the minority leader of the senate.

34 (D) One (1) member who is not a member of the general
 35 assembly, appointed by the speaker of the house.

36 (E) One (1) member who is not a member of the general
 37 assembly, appointed by the minority leader of the house.

38 (b) The administrator of the office shall appoint the chair of the
 39 commission from among the members of the commission. **and The**
 40 **chair** serves at the pleasure of the administrator.

41 SECTION 87. IC 12-15-35-28.7 IS AMENDED TO READ AS
 42 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 28.7. (a) The board



1 shall submit the initial approved preferred drug list to the office not
2 later than August 1, 2002.

3 (b) Except as permitted under subsection (g), the office may not
4 further restrict the status of a drug in the Medicaid program or the
5 children's health insurance program until the board reviews a
6 therapeutic classification and the office implements the therapeutic
7 classification on the preferred drug list.

8 (c) The office shall provide advance notice to providers of the
9 contents of the preferred drug list submitted by the board under
10 subsection (a).

11 (d) Notwithstanding IC 12-15-13-6, the office shall implement any
12 change in the preferred drug list not later than thirty (30) days after the
13 date the board submits the amended list to the office.

14 (e) Except as provided by ~~section 28(g)(3)~~ **section 28(g)(2)** of this
15 chapter, the office may not implement a preferred drug list or an
16 amendment to the preferred drug list that has not been approved by the
17 board.

18 (f) The office may not require prior authorization for a drug that is
19 excluded from the preferred drug list unless the board has made the
20 determinations required under section 35 of this chapter.

21 (g) The office may adopt rules under IC 4-22-2 necessary to carry
22 out this chapter.

23 SECTION 88. IC 12-17.2-4-12, AS AMENDED BY P.L.134-2024,
24 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
25 JULY 1, 2026]: Sec. 12. (a) A license for a child care center expires
26 three (3) years after the date of issuance, unless revoked, modified to
27 a probationary or suspended status, or voluntarily returned.

28 (b) A license issued under this chapter:

29 (1) is not transferable;

30 (2) applies only to the licensee and the location stated in the
31 application; and

32 (3) remains the property of the division.

33 (c) A current license shall be publicly displayed.

34 (d) When a licensee submits a timely application for renewal, the
35 current license shall remain in effect until the division issues a license
36 or denies the application.

37 (e) A licensee shall publicly display and make available, as a
38 handout, written documentation of:

39 (1) any changes in the status of the licensee's license;

40 (2) a telephone number and ~~an Internet site~~ **a website** where
41 information may be obtained from the division concerning:

42 (A) the current status of the licensee's license;



- 1 (B) any complaints filed with the division concerning the
- 2 licensee; and
- 3 (C) violations of this article by the licensee; and
- 4 (3) a telephone number of the office of the Indiana child care
- 5 resource and referral program of the county in which the child
- 6 care center is located.

7 SECTION 89. IC 12-17.2-5-12 IS AMENDED TO READ AS
 8 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) A license for a
 9 child care home expires two (2) years after the date of issuance, unless
 10 revoked, modified to a probationary or suspended status, or voluntarily
 11 returned.

- 12 (b) A license issued under this chapter:
- 13 (1) is not transferable;
- 14 (2) applies only to the licensee and the location stated in the
- 15 application; and
- 16 (3) remains the property of the division.
- 17 (c) A current license shall be publicly displayed.
- 18 (d) When a licensee submits a timely application for renewal, the
- 19 current license shall remain in effect until the division issues a license
- 20 or denies the application.

21 (e) A licensee shall publicly display and make available, as a
 22 handout, written documentation of:

- 23 (1) any changes in the status of the licensee's license; and
- 24 (2) a telephone number and ~~an Internet site~~ **a website** where
- 25 information may be obtained from the division regarding:
 - 26 (A) the current status of the licensee's license;
 - 27 (B) any complaints filed with the division concerning the
 - 28 licensee; and
 - 29 (C) violations of this article by the licensee; and
- 30 (3) a telephone number of the office of the Indiana child care
- 31 resource and referral program of the county in which the child
- 32 care home is located.

33 SECTION 90. IC 12-17.2-7.2-7.2, AS AMENDED BY
 34 P.L.213-2025, SECTION 122, IS AMENDED TO READ AS
 35 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7.2. (a) For an eligible
 36 child to qualify for a prekindergarten voucher under this chapter, the
 37 eligible child must reside with a parent or guardian who is working or
 38 attending a job training or an educational program.

39 (b) For a limited eligibility child to qualify for a prekindergarten
 40 voucher under this chapter, the limited eligibility child must reside with
 41 a parent or guardian who:

- 42 (1) is working or attending a job training or an educational



1 program; or

2 ~~or~~

3 (2) receives Social Security Disability Insurance, Supplemental
4 Security Income benefits, or disability benefits from the United
5 States Department of Veterans Affairs.

6 (c) Before the office may provide a prekindergarten voucher to an
7 eligible child, a limited eligibility child, or a child of a child care
8 employee under this chapter, the office shall require that a parent or
9 guardian of the child agree to the following:

10 (1) The child will attend the prekindergarten program of an
11 eligible provider selected by the parent or guardian for the full
12 duration of the prekindergarten program year.

13 (2) The parent or guardian will not transfer to another
14 prekindergarten program during the prekindergarten program
15 year.

16 (3) The child will attend the prekindergarten program at least
17 eighty-five percent (85%) of the days that the prekindergarten
18 program is provided.

19 (4) The parent or guardian will allow the child to participate in an
20 external evaluation conducted by researchers, including the
21 kindergarten readiness assessment and measuring of
22 developmental and academic progress.

23 (5) The parent or guardian will participate in family engagement
24 and involvement activities offered by the selected prekindergarten
25 program, including meetings with the child's teacher to discuss
26 the child's progress or any other conference concerning the child
27 that is requested by the eligible provider.

28 (6) The parent or guardian will complete the necessary forms for
29 the child to receive a student test number from the department of
30 education.

31 (7) The parent or guardian will send the child to kindergarten.

32 (8) The parent or guardian will read to the child each week.

33 (9) Any other condition the office determines is appropriate.

34 (d) Priority shall be given to a child of a child care employee under
35 this section.

36 (e) Priority may be given to an eligible or limited eligibility child
37 under this section if a parent or guardian of the eligible or limited
38 eligibility child is:

39 (1) involved in activities that improve the parent's or guardian's
40 education; or

41 (2) involved in job training.

42 SECTION 91. IC 13-14-1-11.5 IS AMENDED TO READ AS



1 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11.5. (a) If the
2 department proposes to utilize a policy or statement that:

- 3 (1) interprets, supplements, or implements a statute or rule;
4 (2) has not been adopted in compliance with IC 4-22-2;
5 (3) is not intended by the department to have the effect of law;
6 and
7 (4) is not related solely to internal department organization;

8 the proposed policy or statement may not be put into effect until the
9 requirements of subsection (b) have been met.

10 (b) The department shall present the proposed policy or statement
11 under subsection (a) to the appropriate board. At least forty-five (45)
12 days before the presentation, the department shall make available to the
13 public, including posting on the department's ~~web site~~ **website**:

- 14 (1) the proposed policy or statement;
15 (2) information on the availability for public inspection of all
16 materials relied upon by the department in the development of the
17 proposed policy or statement, including, if applicable:
18 (A) health criteria;
19 (B) analytical methods;
20 (C) treatment technology;
21 (D) economic impact data;
22 (E) environmental assessment data; and
23 (F) other background data;
24 (3) the date, time, and location of the presentation under this
25 subsection to the appropriate board; and
26 (4) information regarding the opportunity for a person to comment
27 to the department and the appropriate board on the proposed
28 policy or statement before or at the time of the presentation under
29 this subsection.

30 The department shall provide to the appropriate board at the time of the
31 presentation under this subsection a copy of all comments made by a
32 person under subdivision (4). The proposed policy or statement may
33 not be put into effect until thirty (30) days after the policy or statement
34 is presented to the appropriate board.

35 (c) If the department utilizes a policy or statement described in
36 subsection (a), the department shall distribute:

- 37 (1) two (2) copies of the policy or statement to the publisher of
38 the Indiana Register for publication in the Indiana Register; and
39 (2) the copies required under IC 4-23-7.1-26 to the Indiana library
40 and historical department.

41 (d) The department shall:

- 42 (1) maintain a current list of all department policies and



statements described in subsection (a) that the department may use in the department's external affairs; and

(2) update the list at least one (1) time each month.

(e) The department shall include the following information on the list described in subsection (d) for each policy or statement:

(1) The title of the policy or statement.

(2) The identification number of the policy or statement.

(3) The date the policy or statement was originally adopted.

(4) The date the policy or statement was last revised.

(5) A reference to all other policies or statements described in subsection (a) that are repealed or amended by the policy or statement.

(6) A brief description of the subject matter of the policy or statement.

(f) At least one (1) time every three (3) months, the department shall distribute two (2) copies of the list maintained and updated under subsection (d) to the following:

(1) The publisher of the Indiana Register.

(2) The Indiana library and historical department.

SECTION 92. IC 13-15-11-6, AS AMENDED BY P.L.130-2018, SECTION 61, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. Before September 1 of each even-numbered year, the department shall publish on the department's ~~Internet web site~~: **website**:

(1) the department's proposed distribution of funds among the programs referred to in section 1 of this chapter for the current state fiscal year;

(2) the department's rationale for the proposed distribution;

(3) any difference between:

(A) the proposed distribution; and

(B) the distribution made by the department in the immediately preceding state fiscal year; and

(4) the results of an independent audit of the correlation between:

(A) the distribution made by the department with respect to; and

(B) the department's actual expenses related to;

each program referred to in section 1 of this chapter in the immediately preceding state fiscal year.

SECTION 93. IC 13-18-2-3, AS AMENDED BY P.L.100-2021, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) The department shall prepare a list of impaired waters for the purpose of complying with federal regulations



1 implementing Section 303(d) of the federal Clean Water Act (33
 2 U.S.C. 1313(d)). In determining whether a water body is impaired, the
 3 department shall consider all existing and readily available water
 4 quality data and related information. The department, before submitting
 5 the list to the United States Environmental Protection Agency, shall:

- 6 (1) post the list to the department's ~~Internet web site;~~ **website;**
- 7 (2) publish in the Indiana Register a link to the list posted to the
- 8 department's ~~Internet web site;~~ **website;**
- 9 (3) make the list available for public comment for at least
- 10 forty-five (45) days; and
- 11 (4) provide information about the list to the board.

12 (b) The board shall adopt a rule that:

- 13 (1) establishes the methodology to be used in identifying waters
- 14 as impaired; and
- 15 (2) specifies the methodology and criteria for including and
- 16 removing waters from the list of impaired waters.

17 (c) In the establishment of the total maximum daily load for a
 18 surface water under Section 303(d)(1)(C) of the federal Clean Water
 19 Act (33 U.S.C. 1313(d)(1)(C)), the department shall, in identifying the
 20 surface water under Section 303(d)(1)(A) of the federal Clean Water
 21 Act (33 U.S.C. 1313(d)(1)(A)), make every reasonable effort to identify
 22 the pollutant or pollutants under consideration for the establishment of
 23 the total maximum daily load.

24 (d) The department shall comply with subsection (c) if either of the
 25 following applies:

26 (1) The department:

27 (A) is unable, in identifying the surface water as described in
 28 subsection (c), to identify the pollutant or pollutants under
 29 consideration for the establishment of the total maximum daily
 30 load; and

31 (B) determines, after identifying the surface water as described
 32 in subsection (c), that one (1) or more pollutants should be
 33 under consideration for establishment of the total maximum
 34 daily load.

35 (2) The department:

36 (A) in identifying the surface water as described in subsection
 37 (c), identifies the pollutant or pollutants under consideration
 38 for the establishment of the total maximum daily load; and

39 (B) determines, after identifying the pollutant or pollutants as
 40 described in clause (A), that one (1) or more other pollutants
 41 should be under consideration for establishment of the total
 42 maximum daily load.



(e) The department complies with subsection (d) if the department does the following before making a pollutant or pollutants the subject of consideration for the establishment of the total maximum daily load:

(1) Determines and demonstrates that either or both of the following apply:

(A) The surface water does not attain water quality standards (as established in 327 IAC 2-1 and 327 IAC 2-1.5) due to an individual pollutant, multiple pollutants, pollution, or an unknown cause of impairment.

(B) The surface water:

(i) receives a thermal discharge from one (1) or more point sources; and

(ii) does not have or maintain a balanced indigenous population of shellfish, fish, and wildlife.

(2) Posts on the department's ~~Internet web site~~ **website** the determination referred to in subdivision (1).

(3) Makes the determination referred to in subdivision (1) available for public comment for at least forty-five (45) days.

(4) Presents the determination referred to in subdivision (1) to the commissioner for final approval after the comment period under subdivision (3).

SECTION 94. IC 13-20-25-11, AS AMENDED BY P.L.147-2015, SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. (a) Except as provided in subsection (b), a recycling activity report submitted to the commissioner under this chapter must be submitted on the uniform recycling activity report form posted by the commissioner on the department's ~~Internet web site~~ **website** under section 12 of this chapter.

(b) If a uniform recycling activity report form is not posted on the department's ~~Internet web site~~ **website** by July 1 in a calendar year in which a recycler is required to submit a completed recycling activity report under section 9(a) of this chapter, the recycler may satisfy the recycler's duties under this chapter by submitting to the commissioner, by a letter postmarked before August 1 of the calendar year, the types of information about the recycler's recycling activities during the calendar year that are set forth in section 12 of this chapter.

SECTION 95. IC 13-20-25-12, AS AMENDED BY P.L.147-2015, SECTION 18, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) Not later than July 1, 2015, the commissioner shall post on the department's ~~Internet web site~~ **website** a uniform recycling activity report form. The form must do the following:



(1) Provide for reporting of the:

(A) name and location of; and

(B) principal business activities conducted at;
the recycler's establishment.

(2) Include:

(A) an appropriate space for; and

(B) instructions requiring the completion of;

an appropriate certification, by signature of the recycler (if the recycler is an individual) or a senior official with management responsibility for the recycler (if the recycler is not an individual), of the accuracy and completeness of the recycling activity report.

(3) Provide for reporting of the quantity, in tons, of each type of recyclable material listed in subsection (b) that was in storage at the reporting recycler's establishment:

(A) at the start of the calendar year; and

(B) at the close of the calendar year.

(4) Provide for reporting of the quantity, in tons, of each type of recyclable material listed in subsection (b) that was transported from the reporting recycler's establishment, or (in the case of a recycler that is a recyclable materials broker) that was transported or delivered by arrangement of the recycler, to any of the following:

(A) Other recyclers located in Indiana.

(B) Persons that are located in Indiana but are not recyclers, including persons who may employ the recyclable material as a raw material or a new product without further recycling.

(C) Persons located outside Indiana.

(b) The uniform recycling activity report form posted on the department's ~~Internet web site~~ **website** under subsection (a) must specify that the information to be reported by a recycler under subsection (a)(3) and (a)(4) must be reported separately for each of the following types of recyclable materials:

(1) Glass.

(2) Metal, including white goods (ferrous).

(3) Metal (nonferrous).

(4) Paper and paper products (all grades).

(5) Plastic and plastic products.

(6) Single stream recyclable materials.

(7) Any other distinct type of recyclable material not specified in subdivisions (1) through (6).

SECTION 96. IC 13-20.5-1-1, AS AMENDED BY P.L.200-2017,
SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]: Sec. 1. (a) A manufacturer of video display devices that are sold or offered for sale to households as of January 1 of a program year shall submit a registration to the department not later than March 1 of that program year.

(b) A manufacturer of video display devices that begin to be sold or offered for sale to households after January 1 of a program year shall submit a registration to the department not later than:

(1) twenty (20) days after the date on which the manufacturer's video display devices begin to be sold or offered for sale, for the program year in which the manufacturer's video display devices begin to be sold or offered for sale to households; and

(2) for succeeding program years in which the manufacturer continues as a manufacturer of video display devices that are sold or offered for sale to households, on the date specified in subsection (a).

(c) A registration submitted under this section must include the following:

(1) A list of the brands of video display devices of the manufacturer that are offered for sale in Indiana, regardless of whether the manufacturer owns or licenses the brand.

(2) The name, address, and contact information of a person responsible for ensuring compliance with this article. The department shall post the contact information provided by each manufacturer under this subdivision on ~~an Internet web site~~: **a website.**

(3) A certification that the manufacturer or the manufacturer's agent has complied and will continue to comply with the requirements of this article.

(4) An estimate, based on national sales data, of the total weight in pounds of the manufacturer's video display devices that have been sold to households during the most recent twelve (12) months:

(A) that precede the date of registration; and

(B) for which that data is available.

(5) A demonstration of how the manufacturer plans, in the program year for which the registration is submitted, to meet the recycling goal stated in IC 13-20.5-4-1.

(6) A statement that discloses whether:

(A) any video display devices of the manufacturer that have been sold to households exceed the maximum concentration values established:

(i) for lead, mercury, cadmium, hexavalent chromium,



polybrominated biphenyls (pbbs), and polybrominated diphenyl ethers (pbdes); and

(ii) under the directive restricting the use of certain hazardous substances in electrical and electronic equipment (RoHS Directive) 2002/95/EC of the European Parliament and Council, as amended; or

(B) the manufacturer has received an exemption from any of the maximum concentration values under the RoHS Directive that has been approved and published by the European Commission.

(d) A manufacturer shall update the manufacturer's registration under this section not more than ten (10) days after the date on which the manufacturer changes the brand or brands of video display devices of the manufacturer that are sold or offered for sale to households.

SECTION 97. IC 13-20.5-1-3, AS ADDED BY P.L.178-2009, SECTION 27, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) A registration received from a manufacturer by the department under this chapter is, except as provided in subsection (b), effective for the program year for which the registration is submitted under section 1 of this chapter.

(b) The department shall review each registration and notify a manufacturer of any information required by this chapter that is omitted from the manufacturer's registration. Not more than thirty (30) days after the date a manufacturer receives notification from the department concerning incomplete information in the manufacturer's registration, the manufacturer shall submit a revised registration that includes the information required by the department. A registration received from a manufacturer by the department under this subsection is, unless the manufacturer receives a second or subsequent notification from the department concerning incomplete information, effective for the program year for which the registration is submitted under section 1 of this chapter.

(c) The department shall maintain on ~~an Internet web site~~ **a website** the names of manufacturers and the manufacturers' brands listed in registrations submitted to the department. The department shall update the ~~Internet web site~~ **website** information promptly upon receipt of a new or updated registration. The ~~Internet web site~~ **website** must contain prominent language stating that:

(1) this article is directed at video display devices used by households; and

(2) the manufacturers' brands list is not a list of manufacturers qualified to sell to industrial, commercial, or other markets



identified as exempt from the requirements of this article.

SECTION 98. IC 13-20.5-6-2, AS ADDED BY P.L.178-2009, SECTION 27, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The requirement in section 1 of this chapter may be met by retailers:

(1) by providing to households the department's contact information or ~~Internet web site~~ **website** address; and

(2) if the retailer sells through catalogs or the Internet, by including the information in a prominent location in the retailer's catalog or on the retailer's ~~Internet web site~~ **website**.

SECTION 99. IC 13-21-3-13.5, AS AMENDED BY P.L.257-2013, SECTION 35, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13.5. (a) At the end of each year the district shall prepare, on a form designed by the department of local government finance, a report that is accessible through the computer gateway administered by the office of technology established by IC 4-13.1-2-1 and that provides the following information:

(1) For each fund that contains district money:

(A) the cash balance at the end of the year;

(B) a list of all encumbrances on the fund that the district is legally obligated to pay;

(C) a copy of documentation that supports each encumbrance listed in clause (B);

(D) the fund balance obtained by subtracting the amount under clause (B) from the amount under clause (A);

(E) the total expenditures from the fund for the year; and

(F) any other financial information required by the department.

(2) The total of all fund balances calculated under subdivision (1)(D).

(3) The total of all fund expenditures reported under subdivision (1)(E).

(4) Any programmatic information required by the department.

(5) The total amount of expenditures by the district for the year.

(6) The per capita expenditures by the district for the year.

(7) The amount of expenditures by the district for the year for personnel costs.

(8) The amount of expenditures by the district for the year for program costs (excluding personnel costs).

(9) The total amount of solid waste (in tons) disposed of in the district for the year for which the district is directly responsible.

(10) The total amount of recycling (in tons) carried out in the district in the year for which the district is directly responsible.



(b) The district shall provide the report prepared under subsection

(a):

(1) to the department and to the department of local government finance in a format prescribed by the department; and

(2) to the legislative council in an electronic format under IC 5-14-6;

by March 1 of the year following the year for which the report is made.

(c) The district shall publish the annual report prepared under subsection (a) on ~~an Internet web site~~ **a website** maintained by the district or on the ~~Internet web sites~~ **websites** maintained by the counties that are members of the district.

SECTION 100. IC 13-23-1-3, AS ADDED BY P.L.105-2011, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) The department shall establish a training program:

(1) on ~~an Internet web site~~; **a website**; and

(2) that complies with the requirements of the federal Energy Policy Act of 2005 (P.L.109-58).

(b) The department may use the excess liability trust fund to pay expenses related to the training program established under subsection

(a).

SECTION 101. IC 13-26-2-2.5, AS AMENDED BY P.L.152-2021, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2.5. (a) Before a representative may file a petition to establish a district, the representative must provide notice to all owners of property to be served by the proposed district that is the subject of the petition.

(b) Notice under subsection (a) must be provided as follows:

(1) Beginning at least thirty (30) days before the date on which a public meeting under subsection (c) is scheduled, by publication of notice for three (3) consecutive weeks:

(A) with each publication of notice:

(i) in at least two (2) newspapers of general circulation in each of the counties, in whole or in part, in the proposed district; or

(ii) if there is only one (1) newspaper of general circulation in a county, a single publication in one (1) newspaper satisfies the requirement of this subdivision; or

(B) with the first publication of notice made in a newspaper or newspapers described in clause (A) and the two (2) subsequent publications of notice:

(i) in accordance with IC 5-3-5; and



- 1 (ii) on the official ~~web site~~ **website** of each county in the
- 2 proposed district.
- 3 (2) Beginning at least fourteen (14) days before the date on which
- 4 a public meeting under subsection (c) is scheduled, by:
- 5 (A) first class United States mail, postage prepaid, mailed to
- 6 each freeholder within the proposed district; and
- 7 (B) broadcasting at least three (3) public service
- 8 announcements each day for fourteen (14) days on at least two
- 9 (2) radio stations operating in each of the counties, in whole or
- 10 in part, in the proposed district.
- 11 (c) After providing notice under subsection (b), a representative that
- 12 seeks to file a petition to establish a district must conduct a public
- 13 meeting to discuss and receive comments on the proposed district.
- 14 (d) A representative may not file a petition to establish a district:
- 15 (1) more than one hundred eighty (180) or less than sixty (60)
- 16 days after providing notice under subsection (b); or
- 17 (2) less than thirty (30) days after a meeting held under subsection
- 18 (c).
- 19 SECTION 102. IC 13-30-9-7 IS AMENDED TO READ AS
- 20 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. Notwithstanding any
- 21 provision of this chapter, a person that receives a covenant not **to** sue
- 22 under IC 13-25-5-18 is exempt from suit as provided in IC 13-25-5-18.
- 23 SECTION 103. IC 14-26-8-7, AS AMENDED BY P.L.152-2021,
- 24 SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 25 JULY 1, 2026]: Sec. 7. (a) Within ten (10) days after the filing of a
- 26 petition, the clerk shall docket the petition as a cause of action pending
- 27 in the circuit or superior court. The clerk shall cause notice to be given
- 28 at least thirty (30) days before the date set for the hearing as follows:
- 29 (1) By publication one (1) time each week for two (2) consecutive
- 30 weeks:
- 31 (A) with each publication:
- 32 (i) in not less than two (2) newspapers of general circulation
- 33 published in each county in which the lake is located; or
- 34 (ii) if there are not two (2) newspapers of general circulation
- 35 published in a county, in one (1) newspaper of general
- 36 circulation published in the county; or
- 37 (B) with the first publication of notice in a newspaper or
- 38 newspapers described in clause (A) and the second publication
- 39 of notice:
- 40 (i) in accordance with IC 5-3-5; and
- 41 (ii) on the official ~~web site~~ **website** of each county in which
- 42 the lake is located.



(2) By posting a written or printed notice at the door of the courthouse in each county in which the lake lies.

(3) By sending written notice to the following:

(A) The county surveyor and county commissioners of each county affected.

(B) The department.

(b) The notice must do the following:

(1) Briefly describe the location and nature of the proposed work contained in the petition.

(2) Fix a day for the hearing on the petition.

SECTION 104. IC 14-27-7.3-1, AS AMENDED BY P.L.14-2025, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) This chapter does not apply to a dam that is regulated by the Federal Energy Regulatory Commission or owned by the Army Corps of Engineers.

(b) For purposes of this chapter, the state does not assume ownership of or responsibility for a low head dam that is not listed on the roster under section 4 **of this chapter** as owned by the state.

SECTION 105. IC 14-27-7.3-13.1, AS ADDED BY P.L.14-2025, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13.1. A permit issued by the director after January 1, 2021, for the removal of a low head dam does not expire until two (2) years after any:

(1) local, state, or federal administrative or judicial appeals of that permit; or

(2) other local, state, or federal ~~permit~~ **permits** required to implement that permit;

have been finally adjudicated.

SECTION 106. IC 14-28-4-21, AS AMENDED BY P.L.152-2021, SECTION 18, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 21. (a) After the commission submits the final report, the legislative body of the county or municipality shall give all interested persons an opportunity to be heard with reference to the final report at a public hearing convenient for all persons affected. The legislative body shall publish notice of the hearing in a daily newspaper of general circulation in the county or municipality.

(b) The notice must state the following:

(1) The time and place of the hearing.

(2) That the report contains a flood plain zoning ordinance for the county or municipality.

(3) That written objections to the proposed zoning ordinance filed with the clerk of the legislative body at or before the hearings will



1 be heard.

2 (4) That the hearing will be continued as is necessary.

3 (c) The notice shall be published at least two (2) times within the
4 ten (10) days before the time set for the hearing:

5 (1) with each publication in a daily newspaper of general
6 circulation in the county or municipality; or

7 (2) with the first publication of notice in a newspaper described
8 in subdivision (1) and the second publication of notice:

9 (A) in accordance with IC 5-3-5; and

10 (B) on the official ~~web site~~ **website** of the county or
11 municipality.

12 During the ten (10) day period, the proposed zoning ordinance shall be
13 kept on file in the office of the commission or other designated place
14 for public examination.

15 (d) Upon completion of the public hearing, the legislative body shall
16 proceed to consider the ordinance.

17 SECTION 107. IC 14-30-3-28, AS ADDED BY P.L.138-2018,
18 SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
19 JULY 1, 2026]: Sec. 28. (a) The commission shall schedule a public
20 meeting in accordance with IC 5-14-1.5 in each participating county
21 containing a political subdivision that has entered into a cooperative
22 agreement under section 26(1) of this chapter authorizing the
23 commission to develop a plan. The purpose of the public meeting shall
24 be to gain input regarding the development of the plan before the plan
25 is implemented in accordance with this chapter.

26 (b) The commission shall do the following:

27 (1) At least ten (10) days before the public meeting in each
28 participating county described in subsection (a), post a copy of the
29 proposed plan on the commission's ~~Internet web site~~ **website** or
30 the ~~Internet web site~~ **website** of the participating county (if the
31 county maintains ~~an Internet web site~~ **a website**).

32 (2) Publish notice of each public meeting in a participating county
33 described in subsection (a) in accordance with IC 5-3-1 at least
34 ten (10) days before the public meeting.

35 (3) Include the following information in the notice described in
36 subdivision (2):

37 (A) The date, time, and place of the meeting in each
38 participating county described in subsection (a).

39 (B) A synopsis of the subject matter of the meeting.

40 (C) How an individual may obtain a copy of the proposed plan
41 from the commission.

42 (D) That the public is encouraged to make comments at the



1 meeting.

2 (c) At the meeting, the commission shall allow the public to be
3 heard on the proposed plan.

4 SECTION 108. IC 14-33-2-12, AS AMENDED BY P.L.152-2021,
5 SECTION 19, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
6 JULY 1, 2026]: Sec. 12. (a) This subsection applies only to a petition
7 by freeholders. The petitioners shall give notice of hearing on the
8 petition as follows:

9 (1) By publication in two (2) newspapers of general circulation in
10 each county having land in the proposed district, three (3) times
11 at successive weekly intervals. The first publication must be at
12 least thirty (30) days before the date of the hearing. If there is only
13 one (1) newspaper of general circulation in a county, three (3)
14 publications in that newspaper are sufficient.

15 (2) By mailing a copy of the notice at least twenty (20) days
16 before the date of the hearing, first class postage prepaid, to each
17 freeholder who has not signed the petition and who owns land in
18 the proposed district, according to the records of the county
19 auditor. The person having the notice mailed shall file an affidavit
20 with the court showing the following:

21 (A) The names of the persons to whom notice was sent.

22 (B) The address to which the notice was sent.

23 (C) The date on which the notice was mailed.

24 (b) This subsection applies only to a petition by a municipality
25 under section 7 of this chapter. The municipality shall give notice of
26 hearing as follows:

27 (1) By publication for three (3) consecutive weeks:

28 (A) with each publication of notice in two (2) newspapers of
29 general circulation in each county having land in the proposed
30 district or if there is only one (1) newspaper, publication in
31 that newspaper is sufficient; or

32 (B) with the first publication of notice made in a newspaper or
33 newspapers described in clause (A) and the two (2) subsequent
34 publications of notice:

35 (i) in accordance with IC 5-3-5; and

36 (ii) on the official ~~web site~~ **website** of the municipality.

37 The first publication of notice must be at least thirty (30) days
38 before the date of the hearing.

39 (2) By mailing a copy of the notice at least twenty (20) days
40 before the date of the hearing, first class postage prepaid, to each
41 freeholder who has not signed the petition and who owns land in
42 the proposed district, according to the records of the county



auditor. The person having the notice mailed shall file an affidavit with the court showing the following:

- (A) The names of the persons to whom notice was sent.
- (B) The address to which the notice was sent.
- (C) The date on which the notice was mailed.

SECTION 109. IC 14-33-10-2, AS AMENDED BY P.L.152-2021, SECTION 20, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) The board shall give notice by publication once a week for two (2) successive weeks:

(1) with each publication of notice:

- (A) in two (2) newspapers of general circulation in each county having land in the district; or
- (B) in one (1) newspaper in the county if there is only one (1) newspaper of general circulation; or

(2) with the first publication of notice in the newspaper or newspapers as provided in subdivision (1), and the second publication of notice:

- (A) in accordance with IC 5-3-5; and
- (B) on the official ~~web site~~ **website** of the district.

The notice shall state the date that assessments are due and payable not later than sixty (60) days after the date of the last publication.

(b) Payment of assessments shall be made at:

- (1) the office of the board; or
- (2) if the court orders, the offices of the treasurers of the counties.

(c) The owners of real property assessed for exceptional benefits are entitled to make payment in full unless exceptional benefits are assessed annually and paid with special benefits taxes to the county treasurer. If payment is made in full, the board shall do the following:

- (1) Note the payment in the assessment roll in the board's office.
- (2) Give a receipt to the landowner paying the assessment.
- (3) Enter satisfaction of the lien of the assessment in the appropriate record in the office of the recorder where the assessment is recorded.

(d) The payment of the assessment does not relieve the real property from being subject to the following:

- (1) A special benefits tax.
- (2) An annual assessment for maintenance and operation based upon the original exceptional benefit assessment.

SECTION 110. IC 14-33-16-5, AS AMENDED BY P.L.152-2021, SECTION 21, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) Within ten (10) days after the board certifies to the court, the board shall fix the following:



(1) A convenient and suitable place for the election.

(2) The date for the election not less than fifteen (15) and not more than thirty (30) days after the last publication of notice.

(b) The voting place must open at 9 a.m. local time and remain open for balloting continuously until 9 p.m. local time. However, if the district contains freeholds too numerous for freeholder balloting at a single voting place while allowing each freeholder a reasonable time but not exceeding two (2) minutes to cast a ballot, the board shall fix and arrange for multiple voting places as appears necessary to accommodate the freeholders eligible to vote.

(c) Notice of the time, place, and purpose for the election must be given on the same day of each week for two (2) consecutive weeks:

(1) with each publication of notice in an English language newspaper of general circulation published in each county having land in the district; or

(2) with the first publication of notice made in the newspaper or newspapers described in subdivision (1), and the second publication of notice:

(A) in accordance with IC 5-3-5; and

(B) on the official ~~web site~~ **website** of the district.

SECTION 111. IC 14-33-16.5-6, AS AMENDED BY P.L. 152-2021, SECTION 22, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) Not later than ten (10) days after receipt of a notice under section 5 of this chapter, the board of directors of the smaller district shall fix the following:

(1) A convenient and suitable place for the smaller district's election.

(2) The date for the election that is at least sixty (60) days after the date on which the county auditor notifies the smaller district's board under section 5 of this chapter.

(b) The voting place must open at 9 a.m. local time and remain open for balloting continuously until 9 p.m. local time. If the number of freeholders in the smaller district is too great for balloting at a single voting place while allowing each freeholder a reasonable time to cast a ballot, the board shall arrange for the number of voting places necessary to accommodate the freeholders eligible to vote.

(c) Notice of the date, time, place, and purpose of the election must be given for two (2) consecutive weeks:

(1) with each publication of notice in an English language newspaper of general circulation published in each county having land in the smaller district; or

(2) with the first publication of notice in the newspaper or



1 newspapers described in subdivision (1), and the second
2 publication of notice:

3 (A) in accordance with IC 5-3-5; and

4 (B) on the official ~~web site~~ **website** of the smaller district.

5 The last publication may not be less than fifteen (15) days and not more
6 than thirty (30) days before the date of the election.

7 (d) The board of directors of the smaller district shall also cause
8 individual notice of the election to be given to all the smaller district's
9 freeholders by first class mail.

10 (e) The notice published under subsection (c) and the individual
11 freeholder notice mailed under subsection (d) must be in the following
12 form:

13 Notice of a Dissolution and Assumption Election

14 to the Freeholders of the _____

15 (insert smaller district) Conservancy District

16 1. You are a freeholder (i.e. a real property owner) of the
17 _____ (insert smaller district) Conservancy District. As a
18 freeholder, you are one of the owners of the _____ (insert
19 smaller district) Conservancy District.

20 2. A legally required number of the freeholders of the
21 _____ (insert smaller district) Conservancy District has
22 filed a petition with the _____ (insert county name)
23 County Auditor requesting that the _____ (insert smaller
24 district) Conservancy District be dissolved, and that the operation,
25 obligations, and assets of the _____ (insert smaller district)
26 Conservancy District be assumed by the _____ (insert larger
27 district) Conservancy District.

28 3. The _____ (insert larger district) Conservancy District
29 is contiguous to, has the same purpose as, and has a greater number of
30 freeholders than the _____ (insert smaller district)
31 Conservancy District.

32 4. The Board of Directors of the _____ (insert larger
33 district) Conservancy District has passed a resolution stating:

34 A. That the _____ (insert larger district) Conservancy
35 District is willing to assume the operation, obligations, and assets
36 of the _____ (insert smaller district) Conservancy
37 District; and

38 B. That upon becoming part of the _____ (insert
39 larger district) Conservancy District, the freeholders of the
40 _____ (insert smaller district) Conservancy District
41 will become full and equal freeholders of the _____
42 (insert larger district) Conservancy District and be subject to and



pay the same special benefits taxes and user charges generally charged by the (insert larger district) Conservancy District.

5. An election of the freeholders of the _____ (insert smaller district) Conservancy District is set for the day of _____, _____, from 9:00 a.m. to 9:00 p.m., at the following location(s): _____.

6. The question presented for the election is whether the _____ (insert smaller district) Conservancy District should be dissolved, and whether the _____ (insert larger district) Conservancy District should assume the operations, obligations, and assets of the _____ (insert smaller district) Conservancy District.

7. A majority of the votes cast at the election will determine the question of whether the _____ (insert smaller district) Conservancy District should be dissolved, and whether the _____ (insert larger district) Conservancy District should assume the operations, obligations, and assets of the _____ (insert smaller district) Conservancy District.

8. As a freeholder of the _____ (insert smaller district) Conservancy District, you are entitled to and encouraged to vote at the election.

/ss/ Board of Directors, _____
(insert smaller district) Conservancy District

(f) If the board of directors of the smaller district fails to hold the election as required by this chapter, the county auditor of the county in which the smaller district's petition was filed shall:

- (1) conduct the election as required by this chapter; and
- (2) bill the board of directors of the smaller district for the county auditor's costs incurred for the election.

(g) The board of directors of the smaller district shall promptly pay a bill submitted to the smaller district under subsection (f).

SECTION 112. IC 14-33-17-7, AS AMENDED BY P.L.152-2021, SECTION 23, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. The petitioners shall give notice of the time, place, and purpose for the election:

- (1) by publication for two (2) consecutive weeks:
 - (A) with each publication of notice on the same day of each week in an English language newspaper of general circulation published in the county; or
 - (B) with the first publication of notice made in the newspaper described in clause (A), and the second publication of notice:
 - (i) in accordance with IC 5-3-5; and



(ii) on the official ~~web site~~ **website** of the county; and
 (2) by mail at least twenty (20) days before the date of the election, first class postage prepaid, to each freeholder who has not signed the petition and who owns land in the proposed district according to the records of the county auditor.

SECTION 113. IC 14-34-6-7, AS AMENDED BY P.L.152-2021, SECTION 24, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) After a permit is issued, the permittee may apply to the director for the release of all or part of the bond or deposit. As part of the bond release application, the permittee must do the following:

(1) Submit copies of letters that the permittee has sent by certified mail to:

- (A) adjoining property owners;
- (B) local government bodies;
- (C) planning agencies;
- (D) sewage and water treatment authorities; or
- (E) water companies;

in the county in which the surface coal mining and reclamation operation is located notifying the entities of the bond release application.

(2) Within thirty (30) days after filing the bond release application, submit a copy of an advertisement placed at least one (1) time a week for four (4) successive weeks in a newspaper of general circulation in the county in which the surface coal mining and reclamation operation is located. The advertisement must contain the following:

- (A) A notification of the precise location of the land affected.
- (B) The number of acres.
- (C) The permit and the date of approval.
- (D) The amount of the bond filed and the part sought to be released.
- (E) The type and appropriate dates of reclamation work performed.
- (F) A description of the results achieved relating to the operator's approved reclamation plan.

(b) The director may initiate an application for the release of a bond. If a bond release application is initiated by the director, the department shall perform the notification and certification requirements otherwise imposed on the permittee under this section and section 8 of this chapter. However, the department may provide notice by publication under subsection (a)(2):



(1) with each publication of notice in the newspaper described in subsection (a)(2); or

(2) with the first publication of notice in the newspaper described in subsection (a)(2) and the three (3) subsequent publications of notice:

(A) in accordance with IC 5-3-5; and

(B) on the official ~~web site~~ **website** of the county in which the surface coal mining and reclamation operation is located.

SECTION 114. IC 15-13-5-10, AS AMENDED BY P.L.92-2019, SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) Subject to sections 11 through 13 of this chapter, the director of the Indiana state department of agriculture shall certify an organization that applies under section 9 of this chapter as eligible to vote in a district election under this chapter only if the organization:

(1) is an agricultural interest, including an agricultural youth or agricultural educational interest that is regularly organized in the state and that represents, supports, or promotes the career, educational, and leadership development of Indiana youth;

(2) is regularly organized within the state;

(3) has at least ten (10) active members;

(4) has elected officers;

(5) has been in existence for at least one (1) year before the application for certification is filed with the director of the Indiana state department of agriculture; and

(6) before July 1 of the year of the election in which the organization wants to participate, files with the director of the Indiana state department of agriculture:

(A) the name of the organization;

(B) the names and addresses of the organization's officers;

(C) the name, address, and title of the individual who is authorized by the organization to vote for the organization in an election under this chapter;

(D) the number of the organization's active members;

(E) a certification that the organization is eligible to be certified under this chapter; and

(F) other information required by the director of the Indiana state department of agriculture.

(b) A certification under subsection (a) expires July 1 of the fourth year after the certification is issued by the director of the Indiana state department of agriculture.

(c) Any organization organized on a statewide basis may cast a vote



1 in any district election, unless the statewide organization certifies at
 2 least one (1) affiliated district or county organization for the same
 3 election.

4 (d) The Indiana state department of agriculture shall maintain on the
 5 department's ~~Internet web site~~ **website** a list of organizations,
 6 coordinated by district, that are certified to vote in the previous and
 7 next district election.

8 SECTION 115. IC 15-15-12-23, AS AMENDED BY P.L.98-2012,
 9 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 10 JULY 1, 2026]: Sec. 23. (a) The ballot for the election of a district
 11 council member must include the name of each producer who:

12 (1) meets the qualifications set forth in section 17(b) of this
 13 chapter; and

14 (2) files with the council, not later than June 30 of the year of the
 15 election, a petition in support of candidacy signed by ten (10)
 16 other producers who reside in the district.

17 (b) The council shall provide petition forms upon request and shall
 18 make forms available:

19 (1) at cooperative extension service offices located in the district;
 20 and

21 (2) via the council's ~~Internet web site~~: **website**.

22 (c) The council shall allow a producer to request a ballot through the
 23 council's ~~Internet web site~~: **website**.

24 (d) A name other than the names of the producers who have
 25 qualified under this section may not be printed on the ballot by the
 26 council. All names on the ballot must be listed in alphabetical order
 27 based on the producer's surname.

28 (e) The council shall require each producer who submits a ballot to
 29 provide a separate attestation that the person is an eligible producer.

30 SECTION 116. IC 15-15-12-27, AS ADDED BY P.L.2-2008,
 31 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 32 JULY 1, 2026]: Sec. 27. (a) The council shall do the following:

33 (1) Elect a president, vice president, secretary, treasurer, and other
 34 officers the council considers necessary.

35 (2) Employ personnel and contract for services that are necessary
 36 for the proper implementation of this chapter.

37 (3) Bond the treasurer and such other persons as necessary to
 38 ensure adequate protection of funds received and administered by
 39 the council.

40 (4) Authorize the expenditure of funds and the contracting of
 41 expenditures to conduct proper activities under this chapter.

42 (5) Annually establish priorities and prepare and approve a budget



consistent with the estimated resources of the council and the scope of this chapter.

(6) Annually publish an activities report and audit and present the report and audit to the director, the dean of agriculture, and the legislative council. The report and audit must be:

(A) sent to the legislative council in an electronic format under IC 5-14-6; and

(B) available on the council's ~~Internet web site~~; **website**.

(7) Procure and evaluate data and information necessary for the proper implementation of this chapter.

(8) Formulate and execute assessment procedures and methods of collection.

(9) Receive and investigate, or cause to be investigated, complaints and violations of this chapter and take necessary action within the council's authority.

(10) Adopt bylaws and operating procedures governing operations of the council.

(11) Keep accurate accounts of all receipts and disbursements of funds handled by the council and have the receipts and disbursements audited annually by a certified public accountant.

(12) Establish and maintain ~~an Internet web site~~; **a website**.

(13) Take any other action necessary for the proper implementation of this chapter.

(b) A majority of the voting members of the council constitutes a quorum. The affirmative votes of at least a majority of the quorum, and at least nine (9) affirmative votes, are required for the council to take action.

SECTION 117. IC 15-15-12-33, AS AMENDED BY P.L.98-2012, SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 33. (a) If a producer has sold corn and the state assessment was deducted from the sale price of the corn, the producer may secure a refund equal to the amount deducted upon filing a written application.

(b) A producer's application for a refund under this section must be made to the council not more than one hundred eighty (180) days after the state assessment is deducted from the sale price of the producer's corn.

(c) The council shall provide application forms to a first purchaser for purposes of this section upon request and make application forms available on the council's ~~Internet web site~~; **website**. A first purchaser shall make application forms available in plain view at the first purchaser's place of business.



(d) Proof that an assessment has been deducted from the sale price of a producer's corn must be attached to each application for a refund submitted under this section by a producer. The proof that an assessment was deducted may be in the form of a duplicate or an original copy of the purchase invoice or settlement sheet from the first purchaser. The refund form and proof of assessment may be mailed or faxed to the council. The refund form must clearly state how to request a refund, the address where the form may be mailed, and the fax number where the form may be faxed.

(e) If a refund is due under this section, the council shall remit the refund to the producer as follows:

(1) For:

(A) refunds of more than twenty-five dollars (\$25); or

(B) multiple refunds that total more than twenty-five dollars (\$25);

not later than thirty (30) days after the date the producer's completed application and proof of assessment are received.

(2) For refunds of twenty-five dollars (\$25) or less:

(A) on March 31 if the producer's completed application and proof of assessment are received before March 1; or

(B) on September 30 if the producer's completed application and proof of assessment are received on or after March 1 and before September 1.

SECTION 118. IC 16-18-2-45.1, AS ADDED BY P.L.29-2025, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 45.1. "Cancer clinical trial", for purposes of ~~IC 16-48-18~~, **IC 16-46-18**, has the meaning set forth in IC 16-46-18-1.

SECTION 119. IC 16-18-2-268.1, AS ADDED BY P.L.29-2025, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 268.1. "Participant", for purposes of ~~IC 16-48-18~~, **IC 16-46-18**, has the meaning set forth in IC 16-46-18-2.

SECTION 120. IC 16-21-10-10, AS AMENDED BY P.L.213-2025, SECTION 152, AND AS AMENDED BY P.L.216-2025, SECTION 28, IS CORRECTED AND AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. This section:

(1) is effective upon implementation of the fee; and

(2) does not apply to funds under IC 12-16-17 (*before its repeal*).

Notwithstanding any other law, the part of the amounts appropriated for or transferred to the hospital care for the indigent program for the state fiscal year beginning July 1, 2013, and each state fiscal year thereafter that are not required to be paid to the office by law shall be used exclusively as state share dollars for the payments described in



sections 8(a) and 11 of this chapter. Any hospital care for the indigent funds that are not required for the payments described in sections 8(a) and 11 of this chapter after the cessation of the collection of the fee under section ~~6(b)~~ 6(d) of this chapter shall be used for the state share dollars of the payments in IC 12-15-20-2(8)(G)(ii) through IC 12-15-20-2(8)(G)(x).

SECTION 121. IC 16-21-17-2, AS AMENDED BY P.L.151-2021, SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) The information displayed on the ~~Internet~~ **web site website** must be in an easy to read, understandable format, and include the standard charges as described in section 1 of this chapter for each service.

(b) An ambulatory outpatient surgical center shall update the information on the ~~Internet web site website~~ on an annual basis.

SECTION 122. IC 16-21-19-4, AS ADDED BY P.L.216-2025, SECTION 36, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. If a nonprofit hospital fails to submit the forms required under section 2 of this chapter before October 1 of any year, the state department shall fine the nonprofit hospital system ten thousand dollars (\$10,000) per day for which the forms are past due. A fine under this section shall be deposited into the payer affordability penalty fund established by ~~IC 12-15-18.5~~. **IC 12-15-1-18.5.**

SECTION 123. IC 16-24.5-1-2, AS AMENDED BY P.L.151-2021, SECTION 13 AND P.L.198-2021, SECTION 15, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) Not later than March 31, 2021, an urgent care facility shall post on the ~~Internet web site website~~ of the urgent care facility pricing and other information specified in this chapter for the fifteen (15) most common services that are provided by the urgent care facility.

(b) The following information, to the extent applicable, must be included on the ~~Internet web site website~~ by an urgent care facility for the fifteen (15) most common services described in subsection (a):

(1) The number of times each service is provided by the urgent care facility.

(2) A description of the service.

(3) The standard charge per item or service for each of the following categories:

(A) Any nongovernment sponsored health benefit plan or insurance provided by a health carrier in which the provider is in the network.

(B) Medicare, including fee for service and Medicare Advantage.



1 (C) Self-pay without charitable assistance from the urgent care
2 facility.

3 (D) Self-pay with charitable assistance from the urgent care
4 facility.

5 (E) Medicaid, including fee for service and risk based
6 managed care.

7 SECTION 124. IC 16-24.5-1-3, AS AMENDED BY P.L.151-2021,
8 SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
9 JULY 1, 2026]: Sec. 3. (a) The information displayed on the ~~Internet~~
10 ~~web site~~ **website** must be in an easy to read, understandable format,
11 and include the standard charges as described in section 2 of this
12 chapter for each service.

13 (b) An urgent care facility shall update the information on the
14 ~~Internet web site~~ **website** on an annual basis.

15 SECTION 125. IC 16-25-4.5-4, AS AMENDED BY P.L.73-2020,
16 SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
17 JULY 1, 2026]: Sec. 4. (a) The state department shall develop a
18 perinatal hospice brochure and post the perinatal hospice brochure on
19 the state department's ~~Internet web site~~: **website**.

20 (b) The perinatal brochure developed under this section must
21 include the following:

22 (1) A description of the health care and other services available
23 from perinatal hospice.

24 (2) Information that medical assistance benefits may be available
25 for prenatal care, childbirth, and perinatal hospice.

26 (3) Information regarding telephone 211 dialing code services for
27 accessing grief counseling and other human services as described
28 in IC 12-13-16, and the types of services that are available
29 through this service.

30 SECTION 126. IC 16-25-4.5-5, AS ADDED BY P.L.213-2016,
31 SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
32 JULY 1, 2026]: Sec. 5. The state department shall develop and
33 regularly update a list of all perinatal hospice providers and programs
34 in Indiana. The state department may include on the list perinatal
35 hospice providers and programs in other states that provide care to
36 Indiana residents. The state department shall post the list of perinatal
37 hospice providers and programs on the state department's ~~Internet web~~
38 ~~site~~: **website**.

39 SECTION 127. IC 16-27.5-1-4, AS ADDED BY P.L.143-2025,
40 SECTION 24, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
41 JULY 1, 2026]: Sec. 4. (a) The state department may delay renewing
42 an individual's certification or registration under this article for not



1 more than one hundred twenty (120) days after the expiration of the
 2 certification or registration to allow the state department to investigate
 3 a complaint concerning an allegation described in section 2 of this
 4 chapter against the individual.

5 (b) If the state department delays renewing an individual's
 6 certification or registration as described in subsection (a), the following
 7 must occur:

8 (1) The state department shall notify the individual of the
 9 complaint and begin an investigation.

10 (2) Before the delay period described in subsection (a) ends, the
 11 commission shall review evidence provided by the state
 12 department and hold a hearing to make a determination
 13 concerning the allegation, the individual's application for renewal,
 14 and, if appropriate, disciplinary action.

15 (c) An individual's certification or registration remains valid under
 16 this section until the earlier of:

17 (1) ~~the~~ commission's determination under ~~subsection (a);~~
 18 **subsection (b);** or

19 (2) the individual's application for renewal is denied.

20 (d) If the commission fails to make a determination required under
 21 subsection (b), the state department shall renew the individual's
 22 certification or registration.

23 SECTION 128. IC 16-27.5-5-10, AS ADDED BY P.L.143-2025,
 24 SECTION 24, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 25 JULY 1, 2026]: Sec. 10. (a) This section applies to a registered home
 26 health aide who:

27 (1) is employed as a home health aide; and

28 (2) provides care to an individual who has been diagnosed with or
 29 experiences symptoms of Alzheimer's disease, dementia, or a
 30 related cognitive disorder.

31 (b) As used in this section, "approved dementia training" refers to
 32 a dementia training program:

33 (1) for use in training home health aides in the care of individuals
 34 described in subsection (a)(2); and

35 (2) that has been approved by the ~~state department~~ **commission**
 36 under subsection (f).

37 (c) Not later than sixty (60) days after the date on which a home
 38 health aide is initially hired to care for an individual with Alzheimer's
 39 disease, dementia, or a related cognitive disorder, the home health aide
 40 shall complete at least six (6) hours of approved dementia training.

41 (d) Before December 31 of each year, a home health aide who has
 42 been employed as a home health aide for at least one (1) year shall



complete at least three (3) hours of approved dementia training.

(e) A home health aide who:

- (1) has received the training required by subsections (c) and (d);
- (2) has been employed as a home health aide for at least twenty-four (24) consecutive months; and
- (3) is hired by a home health agency;

is not required to repeat the training required by this section.

(f) The commission shall do the following:

(1) Approve each dementia training program that meets the following requirements:

(A) The dementia training program includes education concerning the following:

- (i) The nature of Alzheimer's disease, dementia, and other related cognitive disorders.
- (ii) Current best practices for caring for and treating individuals with dementia.
- (iii) Guidelines for the assessment and care of an individual with dementia.
- (iv) Procedures for providing patient centered quality care.
- (v) The daily activities of individuals with dementia.
- (vi) Dementia related behaviors, communication, and positive intervention.
- (vii) The role of an individual's family in caring for an individual with dementia.

(B) The dementia training program:

- (i) must be culturally competent; and
- (ii) may be provided online.

(2) Direct the state department to establish and implement a process for approval of a dementia training program.

(g) To the extent allowed by 42 CFR 484.80, the number of hours of approved dementia training completed under this section satisfies an equivalent number of hours of the home health aide training required by 42 CFR 484.80.

(h) An entity that provides approved dementia training shall provide to each home health aide who successfully completes the training a certificate of completion.

(i) A home health aide:

- (1) is responsible for maintaining the home health aide's certificate of completion; and
- (2) may use the certificate of completion as proof of compliance with this section.

SECTION 129. IC 16-28-2-11.3, AS ADDED BY P.L.149-2023,



1 SECTION 15, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
2 JULY 1, 2026]: Sec. 11.3. (a) A residential care administrator must
3 meet the requirements set forth in IC 25-19-1-2.5.

4 (b) A residential care facility shall notify, not later than three (3)
5 working days, the state department of a vacancy in the residential care
6 administrator position and the name of the replacement administrator.

7 (c) When a new residential care administrator begins employment
8 with the residential care facility, the residential care facility shall
9 provide the state department on a form prescribed by the state
10 department with the following information concerning the residential
11 care administrator:

- 12 (1) The full name of the administrator.
- 13 (2) The name, facility number, and address of the residential care
14 facility for which the administrator is employed.
- 15 (3) The license number of the administrator.
- 16 (4) The ~~email~~ **electronic mail** address of the administrator.
- 17 (5) The name of the previous administrator.
- 18 (6) The previous administrator's last date of employment.
- 19 (7) The license number of the previous administrator.

20 SECTION 130. IC 16-28-13-3, AS AMENDED BY P.L.186-2025,
21 SECTION 279, IS AMENDED TO READ AS FOLLOWS
22 [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) A health care facility or an
23 entity in the business of contracting to provide nurse aides or other
24 unlicensed employees for a health care facility may not knowingly
25 employ a person as a nurse aide or other unlicensed employee if one (1)
26 or more of the following conditions exist:

- 27 (1) The person has been convicted of any of the following:
 - 28 (A) A sex crime (IC 35-42-4).
 - 29 (B) Exploitation of an endangered adult (IC 35-46-1-12).
 - 30 (C) Failure to report battery, neglect, or exploitation of an
31 endangered adult (IC 35-46-1-13).
 - 32 (D) A felony offense relating to theft, conversion, or receiving
33 stolen property (IC 35-43-4), if the person's conviction for
34 theft, conversion, or receiving stolen property occurred less
35 than five (5) years before the individual's employment
36 application date.
 - 37 (E) Identity deception (IC 35-43-5-3.5), if the conviction is a
38 felony conviction that occurred less than five (5) years before
39 the person's employment application date.
 - 40 (F) Fraud (IC 35-43-5-4), if the conviction is a felony
41 conviction that occurred less than five (5) years before the
42 person's employment application date.



- 1 (G) Murder (IC 35-42-1-1).
 2 (H) Voluntary manslaughter (IC 35-42-1-3).
 3 (I) Except as otherwise specified in this section, a crime of
 4 violence (as defined in IC 35-50-1-2), if the person's
 5 conviction occurred less than ten (10) years before the person's
 6 employment application date.
 7 (J) Felony battery within the previous five (5) years.
 8 (K) A felony offense relating to controlled substances within
 9 the previous five (5) years, unless:
 10 (i) the person is certified as a peer recovery coach through
 11 a credential recognized by the division of mental health and
 12 addiction;
 13 (ii) the person has not been convicted of a felony offense
 14 relating to controlled substances after the issuance of a peer
 15 recovery coach credential; and
 16 (iii) there are no felony charges relating to controlled
 17 substances pending against the person.
 18 (2) The person:
 19 (A) has abused, neglected, or mistreated a patient or
 20 misappropriated a patient's property; and
 21 (B) had a finding entered into the state nurse aide registry.
 22 ~~under IC 25-23-2.~~
 23 (b) A person who knowingly or intentionally applies for a job as a
 24 nurse aide or other unlicensed employee at:
 25 (1) a health care facility; or
 26 (2) an entity in the business of contracting to provide nurse aides
 27 or other unlicensed employees for a health care facility;
 28 after a conviction of one (1) or more of the offenses listed in subsection
 29 (a)(1) commits a Class A infraction.
 30 SECTION 131. IC 16-29-7-7, AS ADDED BY P.L.202-2018,
 31 SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 32 JULY 1, 2026]: Sec. 7. (a) The commissioner or the commissioner's
 33 designee shall calculate the total statewide comprehensive care bed
 34 supply rate and the total county comprehensive care bed supply by
 35 determining the number of licensed comprehensive care beds
 36 aggregated statewide by county.
 37 (b) The commissioner or the commissioner's designee shall
 38 determine the projected statewide population and the projected county
 39 population that are at least sixty-five (65) years of age by using census
 40 bureau data or a similar data source for the year that is at least two (2)
 41 years after the year in which a county comprehensive care bed need is
 42 published for a review period.



1 (c) The state department shall publish the projections determined
2 under this section on the state department's ~~web site~~ **website**.

3 SECTION 132. IC 16-29-7-12, AS ADDED BY P.L.202-2018,
4 SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
5 JULY 1, 2026]: Sec. 12. (a) Before July 1, 2019, and before July 1 of
6 each year thereafter, the commissioner or the commissioner's designee
7 shall complete the following:

8 (1) Determine the state comprehensive care bed need rate as set
9 forth in section 8 of this chapter.

10 (2) For each county, determine the county's comprehensive care
11 bed need as set forth in section 9 of this chapter.

12 (b) The state department shall publish each county's comprehensive
13 care bed need determined under subsection (a)(2) on the state
14 department's ~~Internet web site~~ **website** not later than one (1) month
15 after the determination is made under subsection (a).

16 (c) In considering whether to approve a certificate of need
17 application under this chapter, the commissioner or the commissioner's
18 designee shall ensure that an application is in accordance with all of the
19 following:

20 (1) The number of comprehensive care beds approved for a
21 county must include only comprehensive care beds available for
22 relocation from counties with an excess comprehensive care bed
23 supply.

24 (2) The number of comprehensive care beds approved for a
25 county shall not exceed the receiving county's comprehensive care
26 bed need as determined under subsection (a)(2).

27 (3) A certificate of need may not be granted if in the receiving
28 county:

29 (A) the existing occupancy rate for all comprehensive care
30 beds is less than eighty-five percent (85%); or

31 (B) the addition of a proposed comprehensive care bed would
32 reduce the existing occupancy rate for all comprehensive care
33 beds below eighty-five percent (85%).

34 (4) The relocation of a comprehensive care bed to a different
35 county may occur only if, after the relocation, the number of
36 comprehensive care beds in the county from which the
37 comprehensive care bed is relocated will still exceed the county's
38 comprehensive care bed need determined under subsection (a)(2)
39 by at least fifty (50) comprehensive care beds.

40 (d) In determining need, the commissioner or the commissioner's
41 designee shall consider the following criteria when reviewing a
42 certificate of need application:



(1) The need that the population served or proposed to be served has for the services to be provided upon implementation of a project detailed in the certificate of need application.

(2) The quality of care provided in previous or existing comprehensive care health facilities owned or operated by the applicant, including responses to resident and family satisfaction surveys.

(3) The applicant's plan to meet staffing requirements for the project as required by 410 IAC 16.2-3.1-2(c)(6).

(4) The short term and long term financial feasibility, the cost effectiveness of the project, and the financial impact upon the applicant, other providers, health care consumers, and the state's Medicaid program. The applicant shall include the following with the certificate of need application:

(A) The availability and proof of financing for the project.

(B) The operating costs specific to the project and the effect of the costs on the operating budget of the facility based on review of available balance sheets, cash flow statements, and audited financial statements.

(C) The anticipated costs for the project that would be filed in Medicaid cost reports compared to the median Medicaid costs associated with other comprehensive care health facilities in the county.

(D) The applicant's historical ability to meet the working capital requirement under 410 IAC 16.2-3.1-2(c)(11).

(5) The historical, current, and projected use of the facility if the application is for a project that involves an existing comprehensive care health facility.

(6) The relationship of the project to the applicant's long range plan and the planning process employed.

(7) The effectiveness of the project in meeting the health care needs of medically underserved groups, including:

(A) low income individuals;

(B) individuals with disabilities; and

(C) minorities;

and, if applicable, the applicant's historical experience in meeting the needs of underserved groups.

(8) The availability of and impact on ancillary and support services that relate to the project, including the following services:

(A) Dental care.

(B) Diagnostics.



- 1 (C) Laboratory.
- 2 (D) Pharmaceutical.
- 3 (E) Therapy.
- 4 (F) Transportation.
- 5 (G) Vision.
- 6 (H) X-ray.
- 7 (9) The extent to which the project, the facility, and the applicant
- 8 comply with applicable standards for licensure, certification, and
- 9 other approvals.
- 10 (10) The historical performance of the applicant and affiliated
- 11 parties in complying with previously granted certificate of need
- 12 applications.
- 13 (11) The public comments submitted to the state department
- 14 under section 13 of this chapter.
- 15 (12) The applicant's legal right or demonstration of a future legal
- 16 right to the beds proposed to be transferred under the application.
- 17 (13) Any other information concerning the need for the
- 18 comprehensive care beds or the comprehensive care health
- 19 facility requested on the application.
- 20 Except for public comments under subdivision (11), the applicant has
- 21 the burden of including with the application sufficient information for
- 22 each of the criteria for the commissioner or the commissioner's
- 23 designee to review.
- 24 (e) The certificate of need applicant has the burden of providing
- 25 sufficient information under this section to enable the commissioner or
- 26 the commissioner's designee to review the application under this
- 27 section.
- 28 (f) The commissioner or the commissioner's designee shall approve
- 29 a certificate of need application for:
- 30 (1) the transfer of comprehensive care beds; or
- 31 (2) the construction of a comprehensive care health facility
- 32 consisting of transferred beds;
- 33 only after finding the transfer or construction is necessary as provided
- 34 in this section.
- 35 SECTION 133. IC 16-30-3-2, AS ADDED BY P.L.110-2021,
- 36 SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 37 JULY 1, 2026]: Sec. 2. (a) The state department, in consultation with
- 38 the office of the secretary of family and social services, shall study and
- 39 prepare a plan to prevent or reduce the prevalence of health issues, or
- 40 improve the health and behavioral health of Indiana residents based on
- 41 metrics for measuring, and goals to improve, the following:
- 42 (1) Training concerning mental health.



(2) Tobacco or nicotine use and the pulmonary and cardiac effects from the use.

(3) Food insecurities.

(4) Adverse behavioral and mental health outcomes.

(5) Lead exposure.

(6) Obesity.

(7) Diabetes.

(8) Cardiovascular diseases, including hypertension and hyperlipidemia.

(9) Hepatitis C.

(10) The frequency of cancer screening.

(11) Other critical health issues for a specific:

(A) region;

(B) county;

(C) sex; or

(D) ethnicity;

that ranks in the bottom quintile for that specific health issue metric.

(b) Before July 1, 2022, the state department shall submit and present the written plan prepared under this section to the interim study committee on public health, behavioral health, and human services established by IC 2-5-1.3-4.

(c) Before July 1, 2022, the state department shall establish and maintain on the department's ~~Internet web site~~ **website** a web page that indicates the performance and progress of the metrics and goals identified in the plan prepared under subsection (a).

(d) Before July 1, 2023, and before July 1 of each year thereafter, the state department shall prepare, submit, and present to the interim study committee on public health, behavioral health, and human services established by IC 2-5-1.3-4 a report on the grants awarded under IC 16-46-16.5-6 and the progress made in meeting the metrics and goals identified in the plan submitted under this section.

SECTION 134. IC 16-31-4.5-2, AS ADDED BY P.L.210-2025, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) As used in this section, "employing entity" means an entity that employs:

(1) an emergency medical responder;

(2) an emergency medical technician;

(3) an advanced emergency medical technician; or

(4) a paramedic.

(b) An employing entity or an individual described in subsection (a)(1) through (a)(4) shall enter into a written agreement with a facility



described in section 1 of this chapter detailing procedures for the transport of individuals to the facility, including the following information:

- (1) The facility's operating hours.
- (2) Criteria for determining whether the facility is an appropriate facility to transport the individual.
- (3) Procedures for:
 - (A) directing the transport of an individual to another facility; and
 - (B) individuals who decline care or transport to a facility.

SECTION 135. IC 16-31-11.5-2, AS ADDED BY P.L.69-2022, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The commission shall post the following on the department of homeland security's ~~Internet web site~~ **website**:

- (1) The application for a temporary license or certification described in section 1 of this chapter.
- (2) A list of the names of individuals who have been granted a temporary license or certification by the commission under this chapter.

SECTION 136. IC 16-31.5-12-4, AS ADDED BY P.L.3-2020, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) Prior to promulgation and adoption of a final rule by the commission, and at least sixty (60) days in advance of the meeting at which the rule will be considered and voted upon, the commission shall file a notice of proposed rulemaking:

- (1) on the ~~Internet web site~~ **website** of the commission; and
 - (2) on the ~~Internet web site~~ **website** of each member state EMS authority or the publication in which each state would otherwise publish proposed rules.
- (b) The notice of proposed rulemaking shall include:
- (1) the proposed time, date, and location of the meeting in which the rule will be considered and voted upon;
 - (2) the text of the proposed rule or amendment and the reason for the proposed rule;
 - (3) a request for comments on the proposed rule from any interested person; and
 - (4) the manner in which interested persons may submit notice to the commission of their intention to attend the public hearing and any written comments.

SECTION 137. IC 16-31.5-12-12, AS ADDED BY P.L.3-2020, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) The commission or an authorized



1 committee of the commission may direct revisions to a previously
 2 adopted rule or amendment for purposes of correcting typographical
 3 errors, errors in format, errors in consistency, or grammatical errors.
 4 Public notice of any revisions shall be posted on the ~~Internet web site~~
 5 **website** of the commission.

6 (b) The revisions shall be subject to challenge by any person for a
 7 period of thirty (30) days after posting. The revision may be challenged
 8 only on grounds that the revision results in a material change to a rule.

9 (c) A challenge shall be made in writing, and delivered to the chair
 10 of the commission prior to the end of the notice period. If no challenge
 11 is made, the revision will take effect without further action. If the
 12 revision is challenged, the revision may not take effect without the
 13 approval of the commission.

14 SECTION 138. IC 16-32-2-9, AS ADDED BY P.L.166-2022,
 15 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 16 JULY 1, 2026]: Sec. 9. (a) The Indiana department of administration
 17 shall, in consultation with the committee, adopt rules under IC 4-22-2
 18 to do the following:

19 (1) Increase contracting opportunities for qualified nonprofit
 20 agencies with a goal to procure in each state fiscal year at least
 21 one and one-half percent (1.5%) of state contracts with qualified
 22 nonprofit agencies.

23 (2) Develop procurement policies and procedures to accomplish
 24 the goal described in subdivision (1), including guidelines to be
 25 followed by the Indiana department of administration in
 26 conducting the Indiana department of administration's
 27 procurement efforts.

28 (b) The procurement policies developed under subsection (a)(2) do
 29 not apply to a procurement of supplies and services to address
 30 immediate and serious government needs at a time of emergency,
 31 including a threat to the public health, welfare, or safety that may arise
 32 by reason of floods, epidemics, riots, acts of terrorism, major power
 33 failures, a threat proclaimed by the President of the United States or the
 34 governor, or a threat declared by the commissioner.

35 (c) The goal set under subsection (a) must be administered so as not
 36 to diminish any of the goals adopted under IC 4-13-16.5.

37 (d) The Indiana department of administration shall annually
 38 evaluate its progress in meeting the goal described in this section for
 39 the previous state fiscal year. After June 30 and before November 1 of
 40 each year, the Indiana department of administration shall submit a
 41 report to the governor, the committee, and the legislative council in an
 42 electronic format under IC 5-14-6. The report must include the



1 following information:

2 (1) The percentage goal obtained by the Indiana department of
3 administration during the previous state fiscal year.

4 (2) A summary of why the Indiana department of administration
5 failed to meet the goal and what actions are being taken by the
6 Indiana department of administration to meet the goal in the
7 current state fiscal year.

8 (e) The Indiana department of administration shall post the report
9 described in subsection (d) on the Indiana department of
10 administration's ~~Internet web site~~ **website** not later than thirty (30) days
11 after the report is submitted.

12 SECTION 139. IC 16-34-2-1, AS AMENDED BY
13 P.L.179-2022(ss), SECTION 21, IS AMENDED TO READ AS
14 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) Abortion shall in
15 all instances be a criminal act, except when performed under the
16 following circumstances:

17 (1) Except as prohibited in IC 16-34-4, before the earlier of
18 viability of the fetus or twenty (20) weeks of postfertilization age
19 of the fetus, if:

20 (A) for reasons based upon the professional, medical judgment
21 of the pregnant woman's physician, if either:

22 (i) the abortion is necessary when reasonable medical
23 judgment dictates that performing the abortion is necessary
24 to prevent any serious health risk to the pregnant woman or
25 to save the pregnant woman's life; or

26 (ii) the fetus is diagnosed with a lethal fetal anomaly;

27 (B) the abortion is performed by the physician in a hospital
28 licensed under IC 16-21 or an ambulatory outpatient surgical
29 center (as defined in IC 16-18-2-14) that has a majority
30 ownership by a hospital licensed under IC 16-21;

31 (C) the woman submitting to the abortion has filed her consent
32 with her physician. However, if in the judgment of the
33 physician the abortion is necessary to preserve the life of the
34 woman, her consent is not required;

35 (D) the woman submitting to the abortion has filed with her
36 physician the written consent of her parent or legal guardian
37 if required under section 4 of this chapter; and

38 (E) before the abortion, the attending physician shall certify in
39 writing to the hospital or ambulatory outpatient surgical center
40 in which the abortion is to be performed, that:

41 (i) in the attending physician's reasonable medical judgment,
42 performing the abortion is necessary to prevent any serious



1 health risk to the pregnant woman or to save the pregnant
2 woman's life; or

3 (ii) the fetus has been diagnosed with a lethal fetal anomaly.

4 All facts and reasons supporting the certification shall be set
5 forth by the physician in writing and attached to the certificate.

6 However, under this article, an abortion inducing drug may not be
7 dispensed, prescribed, administered, or otherwise given to a
8 pregnant woman after eight (8) weeks of postfertilization age. A
9 physician must dispense the abortion inducing drug in person and
10 have the pregnant woman consume the drug in the presence of the
11 physician. A physician shall examine a pregnant woman in person
12 before prescribing or dispensing an abortion inducing drug. The
13 physician shall provide the pregnant woman with a copy of the
14 manufacturer's instruction sheets and require that the pregnant
15 woman sign the manufacturer's patient agreement form. A
16 physician shall also provide, orally and in writing, along with
17 other discharge information, the following statement: "Some
18 evidence suggests that the effects of Mifepristone may be
19 avoided, ceased, or reversed if the second pill, Misoprostol, has
20 not been taken. Immediately contact the following for more
21 information at (insert applicable abortion inducing drug reversal
22 ~~Internet web site~~ **website** and corresponding hotline number)".
23 The physician shall retain a copy of the signed patient agreement
24 form, and the signed physician's agreement form required by the
25 manufacturer, in the patient's file. As used in this subdivision, "in
26 person" does not include the use of telehealth or telemedicine
27 services.

28 (2) Except as prohibited by IC 16-34-4, during the first ten (10)
29 weeks of postfertilization age of the fetus, if:

30 (A) the pregnancy is a result of rape or incest;

31 (B) all the circumstances and provisions required for legal
32 abortion set forth in subdivision (1)(C) through (1)(D) are
33 present and adhered to;

34 (C) the abortion is performed in a hospital licensed under
35 IC 16-21 or ambulatory outpatient surgical center (as defined
36 in IC 16-18-2-14) that has a majority ownership by a hospital
37 licensed under IC 16-21; and

38 (D) before the abortion, the attending physician shall certify in
39 writing to the ambulatory outpatient surgical center or hospital
40 in which the abortion is to be performed, after proper
41 examination, the abortion is being performed at the woman's
42 request because the pregnancy is the result of rape or incest.



1 All facts and reasons supporting the certification shall be set
 2 forth by the physician in writing and attached to the certificate.

3 (3) Except as provided in subsection (b) or as prohibited by
 4 IC 16-34-4, at the earlier of viability of the fetus or twenty (20)
 5 weeks of postfertilization age and any time after, for reasons
 6 based upon the professional, medical judgment of the pregnant
 7 woman's physician if:

8 (A) based on reasonable medical judgment, performing the
 9 abortion is necessary to prevent any serious health risk to the
 10 pregnant woman or to save the pregnant woman's life;

11 (B) all the circumstances and provisions required for legal
 12 abortion set forth in subdivision (1)(C) through (1)(D) are
 13 present and adhered to;

14 (C) the abortion is performed in a hospital licensed under
 15 IC 16-21;

16 (D) the abortion is performed in compliance with section 3 of
 17 this chapter; and

18 (E) before the abortion, the attending physician shall certify in
 19 writing to the hospital in which the abortion is to be
 20 performed, that in the attending physician's reasonable medical
 21 judgment, performing the abortion is necessary to prevent any
 22 serious health risk to the pregnant woman or to save the
 23 pregnant woman's life. All facts and reasons supporting the
 24 certification shall be set forth by the physician in writing and
 25 attached to the certificate.

26 (b) A person may not knowingly or intentionally perform a partial
 27 birth abortion unless a physician reasonably believes that:

28 (1) performing the partial birth abortion is necessary to save the
 29 mother's life; and

30 (2) no other medical procedure is sufficient to save the mother's
 31 life.

32 (c) A person may not knowingly or intentionally perform a
 33 dismemberment abortion unless reasonable medical judgment dictates
 34 that performing the dismemberment abortion is necessary:

35 (1) to prevent any serious health risk to the mother; or

36 (2) to save the mother's life.

37 (d) Telehealth and telemedicine may not be used to provide any
 38 abortion, including the writing or filling of a prescription for any
 39 purpose that is intended to result in an abortion.

40 SECTION 140. IC 16-34-2-1.5, AS AMENDED BY P.L.170-2021,
 41 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 42 JULY 1, 2026]: Sec. 1.5. (a) The state department shall develop an



1 informed consent brochure and post the informed consent brochure on
 2 the state department's ~~Internet web site:~~ **website.**

3 (b) The state department shall develop an informed consent
 4 brochure that includes the following:

5 (1) Objective scientific information concerning the probable
 6 anatomical and physiological characteristics of a fetus every two

7 (2) weeks of gestational age, including the following:

8 (A) Realistic pictures in color for each age of the fetus,
 9 including the dimensions of the fetus.

10 (B) Whether there is any possibility of the fetus surviving
 11 outside the womb.

12 (2) Objective scientific information concerning the medical risks
 13 associated with each abortion procedure or the use of an abortion
 14 inducing drug, including the following:

15 (A) The risks of infection and hemorrhaging.

16 (B) The potential danger:

17 (i) to a subsequent pregnancy; or

18 (ii) of infertility.

19 (3) Information concerning the medical risks associated with
 20 carrying the child to term.

21 (4) Information that medical assistance benefits may be available
 22 for prenatal care, childbirth, and neonatal care.

23 (5) Information that the biological father is liable for assistance in
 24 support of the child, regardless of whether the biological father
 25 has offered to pay for an abortion.

26 (6) Information regarding telephone 211 dialing code services for
 27 accessing human services as described in IC 12-13-16, and the
 28 types of services that are available through this service.

29 (7) Information concerning Indiana's safe haven law under
 30 IC 31-34-2.5-1.

31 (8) Information that, under certain conditions, a pregnant woman
 32 may relinquish a child who is, or who appears to be, not more
 33 than thirty (30) days of age:

34 (A) to an emergency medical services provider (as defined in
 35 IC 16-41-10-1); or

36 (B) in a newborn safety device described in IC 31-34-2.5-1.

37 (c) In the development of the informed consent brochure described
 38 in this section, the state department shall use information and pictures
 39 that are available at no cost or nominal cost to the state department.

40 (d) The informed consent brochure must include the requirements
 41 specified in this chapter.

42 SECTION 141. IC 16-34-2-4.7, AS AMENDED BY



P.L.179-2022(ss), SECTION 26, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.7. (a) As used in this section, "abortion complication" means only the following physical or psychological conditions arising from the induction or performance of an abortion:

- (1) Uterine perforation.
 - (2) Cervical laceration.
 - (3) Infection.
 - (4) Vaginal bleeding that qualifies as a Grade 2 or higher adverse event according to the Common Terminology Criteria for Adverse Events (CTCAE).
 - (5) Pulmonary embolism.
 - (6) Deep vein thrombosis.
 - (7) Failure to terminate the pregnancy.
 - (8) Incomplete abortion (retained tissue).
 - (9) Pelvic inflammatory disease.
 - (10) Missed ectopic pregnancy.
 - (11) Cardiac arrest.
 - (12) Respiratory arrest.
 - (13) Renal failure.
 - (14) Shock.
 - (15) Amniotic fluid embolism.
 - (16) Coma.
 - (17) Placenta previa in subsequent pregnancies.
 - (18) Pre-term delivery in subsequent pregnancies.
 - (19) Free fluid in the abdomen.
 - (20) Hemolytic reaction due to the administration of ABO-incompatible blood or blood products.
 - (21) Hypoglycemia occurring while the patient is being treated at the hospital or ambulatory outpatient surgical center.
 - (22) Allergic reaction to anesthesia or abortion inducing drugs.
 - (23) Psychological complications, including depression, suicidal ideation, anxiety, and sleeping disorders.
 - (24) Death.
 - (25) Any other adverse event as defined by criteria provided in the Food and Drug Administration Safety Information and Adverse Event Reporting Program.
- (b) The following persons shall report to the state department each case in which the person treated a patient suffering from an abortion complication:
- (1) A physician licensed under IC 25-22.5.
 - (2) A hospital licensed under IC 16-21.



- 1 (3) Beginning September 1, 2022, an ambulatory outpatient
- 2 surgical center licensed under IC 16-21-2.
- 3 (c) The state department shall develop a process for the submission
- 4 of a report under this section.
- 5 (d) A report under this section shall be submitted to the state
- 6 department in the manner prescribed by the state department.
- 7 (e) The report under this section must include the following
- 8 information concerning the abortion complication:
- 9 (1) The date the patient presented for treatment for the abortion
- 10 complication.
- 11 (2) The age of the patient.
- 12 (3) The race of the patient.
- 13 (4) The county and state of the patient's residence.
- 14 (5) The type of abortion obtained by the patient.
- 15 (6) The date of abortion obtained by the patient.
- 16 (7) The name of the:
- 17 (A) hospital; or
- 18 (B) ambulatory outpatient surgical center;
- 19 where the patient obtained the abortion.
- 20 (8) Whether the patient obtained abortion medication via mail
- 21 order or ~~Internet web site~~, **website**, and if so, information
- 22 identifying the source of the medication.
- 23 (9) Whether the complication was previously managed by the
- 24 abortion provider or the abortion provider's required back-up
- 25 physician.
- 26 (10) The name of the medications taken by the patient as part of
- 27 the pharmaceutical abortion regimen, if any.
- 28 (11) A list of each diagnosed complication.
- 29 (12) A list of each treated complication, with a description of the
- 30 treatment provided.
- 31 (13) Whether the patient's visit to treat the complications was the
- 32 original visit or a follow-up visit.
- 33 (14) The date of each follow-up visit, if any.
- 34 (15) A list of each complication diagnosed at a follow-up visit, if
- 35 any.
- 36 (16) A list of each complication treated at a follow-up visit, if any.
- 37 (f) On a quarterly basis, the state department shall compile a public
- 38 report summarizing the information collected under this section. The
- 39 report must include statistics for the previous calendar quarter, with
- 40 updated information for the most recent calendar quarter.
- 41 (g) The state department shall summarize the aggregate data from
- 42 the data submitted under this section and submit the data, on or before



June 30 of each year, to the United States Centers for Disease Control and Prevention for its inclusion in the annual Vital Statistics Report.

(h) The state department shall ensure that no identifying information of a pregnant woman is included in the report described in subsection (f).

(i) This subsection applies after August 31, 2020. Each failure to report an abortion complication as required under this section is a Class B misdemeanor.

(j) The state department shall adopt rules under IC 4-22-2 to implement this section.

SECTION 142. IC 16-35-8-10, AS AMENDED BY P.L.108-2019, SECTION 205, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) The parent or guardian of a child may at any time apply to the state department for funding through the hearing aid assistance program.

(b) Upon receipt of an application made under subsection (a), if the state department determines that the child is eligible under section 9(b) of this chapter, the state department may, subject to subsection (c), pay from the fund an amount per hearing aid not to exceed a maximum amount per hearing aid determined by the state department.

(c) The state department shall issue guidelines establishing a cost participation standard for the amount of a parent's or guardian's expected contribution toward the purchase of a hearing aid for which assistance is granted under this chapter. The state department shall post the guidelines on the state department's ~~Internet web site~~: **website**.

SECTION 143. IC 16-35-8-12, AS AMENDED BY P.L.108-2019, SECTION 206, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) The state department shall give funding priority to applications under this chapter for eligible children who are less than fourteen (14) years of age.

(b) The funding priority described in subsection (a) has the highest priority. However, the state department may issue guidelines establishing additional funding priorities to give to applications that are submitted under this chapter. If the state department issues guidelines under this subsection, the state department shall post the guidelines on the state department's ~~Internet web site~~: **website**.

SECTION 144. IC 16-35-9.2-2, AS ADDED BY P.L.63-2015, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The state department shall do the following:

(1) Approve the information identified under section 1 of this chapter for use by:

(A) health care facilities and health care providers that furnish



1 prenatal care or genetic counseling to expectant parents who
 2 receive a prenatal test result for Down syndrome or any other
 3 condition diagnosed prenatally; and

4 (B) parents of a child diagnosed with Down syndrome or any
 5 other condition diagnosed prenatally.

6 (2) Make available the information identified under section 1 of
 7 this chapter on the state department's ~~Internet web site~~; **website**.

8 SECTION 145. IC 16-35-11-4, AS ADDED BY P.L.292-2019,
 9 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 10 JULY 1, 2026]: Sec. 4. (a) The state department shall establish
 11 guidelines for health care providers treating substance use disorder in
 12 pregnancy. When developing the guidelines, the state department shall
 13 consult with the Indiana perinatal quality improvement collaborative.

14 (b) The state department shall make the guidelines established
 15 under subsection (a) available on the state department's ~~Internet web~~
 16 ~~site~~; **website**.

17 SECTION 146. IC 16-36-6-21, AS AMENDED BY P.L.10-2019,
 18 SECTION 79, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 19 JULY 1, 2026]: Sec. 21. (a) A physician order for scope of treatment
 20 document that was executed by a qualified person in another state may
 21 be honored if the following conditions are met:

22 (1) The physician order for scope of treatment document is on a
 23 form prepared by a state agency and was executed according to
 24 the laws and rules of that state.

25 (2) A:

26 (A) licensed physician, advanced practice registered nurse, or
 27 physician assistant; and

28 (B) qualified person or representative;

29 have signed and dated the physician order for scope of treatment
 30 document.

31 (3) The physician order for scope of treatment document is in
 32 English.

33 (b) The state department shall maintain on the state department's
 34 ~~Internet web site~~ **website** a list of, or a ~~web site~~ **website** link to, each
 35 state that may honor a POST form.

36 SECTION 147. IC 16-36-7-30, AS ADDED BY P.L.50-2021,
 37 SECTION 63, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 38 JULY 1, 2026]: Sec. 30. (a) The state department shall maintain a list
 39 of resources on its ~~Internet web site~~; **website**, including sample
 40 advance directive forms that are consistent with this chapter.

41 (b) A declarant is not required to use any official or unofficial form
 42 to prepare and sign a valid advance directive.



SECTION 148. IC 16-41-17-2, AS AMENDED BY P.L.77-2022, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) Subject to subsection (d), every infant shall be given examinations at the earliest feasible time for the detection of the following disorders:

- (1) Phenylketonuria.
- (2) Hypothyroidism.
- (3) Hemoglobinopathies, including sickle cell anemia.
- (4) Galactosemia.
- (5) Maple Syrup urine disease.
- (6) Homocystinuria.
- (7) Inborn errors of metabolism that result in an intellectual disability and that are designated by the state department.
- (8) Congenital adrenal hyperplasia.
- (9) Biotinidase deficiency.
- (10) Disorders detected by tandem mass spectrometry or other technologies with the same or greater detection capabilities as tandem mass spectrometry, if the state department determines that the technology is available for use by a designated laboratory under section 7 of this chapter.
- (11) Spinal muscular atrophy.
- (12) Severe combined immunodeficiency.
- (13) Beginning July 1, 2020, Krabbe disease.
- (14) Beginning July 1, 2020, Pompe disease.
- (15) Beginning July 1, 2020, Hurler syndrome (MPS1).
- (16) Adrenoleukodystrophy (ALD).
- (17) Beginning July 1, 2022, and in addition to the disorders listed in subdivisions (1) through (16), only a disorder recommended by a perinatal genetics and genomics advisory committee with expertise in newborn screening and through protocols prescribed by the state department.

Beginning July 1, 2022, a perinatal genetics and genomics advisory committee with expertise in newborn screening, and through protocols established by the state department, may recommend the addition of a disorder to, or deletion of a disorder from, the required examination under this subsection. The state department shall adopt rules under IC 4-22-2 to add disorders to, or delete disorders from, the required examination under this subsection. The state department shall include any disorder added to or deleted from the required examination on a list on the state department's ~~Internet web site~~ **website**. The perinatal genetics and genomics advisory committee shall affirm the addition of, or deletion of, any disorder to the examination requirement on an



1 annual basis.

2 (b) Subject to subsection (d), every infant shall be given a
3 physiologic hearing screening examination at the earliest feasible time
4 for the detection of hearing impairments.

5 (c) Subject to subsection (d), every infant shall be given a pulse
6 oximetry screening examination in accordance with rules adopted by
7 the state department for the detection of low oxygen levels. Section
8 10(a)(2) of this chapter does not apply to this subsection.

9 (d) If a parent of an infant objects in writing, for reasons pertaining
10 to religious beliefs only, the infant is exempt from the examinations
11 required by this chapter.

12 SECTION 149. IC 16-41-18.5-2, AS ADDED BY P.L.108-2011,
13 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
14 JULY 1, 2026]: Sec. 2. (a) The state department may promote a
15 national lupus organization's initiatives to educate and train physicians,
16 other health care providers, and human services providers on the most
17 current and accurate scientific and medical information regarding the
18 following concerning lupus:

- 19 (1) Diagnosis.
- 20 (2) Treatment.
- 21 (3) Risks and benefits of medications.
- 22 (4) Research advances.
- 23 (5) Therapeutic decision making, including medical best practices
24 for diagnosing and treatment.

25 (b) The state department may distribute medically sound health
26 information on the state department's ~~Internet web site~~ **website** for
27 review by the following:

- 28 (1) Local health departments.
- 29 (2) Schools.
- 30 (3) The division of aging.
- 31 (4) Employer wellness programs.
- 32 (5) Physicians and other health care providers.
- 33 (6) Hospitals.

34 SECTION 150. IC 16-41-18.6-2, AS ADDED BY P.L.108-2011,
35 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
36 JULY 1, 2026]: Sec. 2. (a) The state department may promote a
37 national Parkinson's disease organization's initiatives to educate and
38 train physicians, other health care providers, and human services
39 providers on the most current and accurate scientific and medical
40 information regarding the following concerning Parkinson's disease:

- 41 (1) Diagnosis.
- 42 (2) Treatment.



(3) Risks and benefits of medications.

(4) Research advances.

(5) Therapeutic decision making, including medical best practices for diagnosing and treatment.

(b) The state department may distribute medically sound health information on the state department's ~~Internet web site~~ **website** for review by the following:

(1) Local health departments.

(2) Schools.

(3) The division of aging.

(4) Employer wellness programs.

(5) Physicians and other health care providers.

(6) Hospitals.

SECTION 151. IC 16-42-5-32, AS AMENDED BY P.L.91-2021, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 32. (a) As used in this section, "micro market" means an unstaffed, self-checkout retail food establishment that:

(1) consists of one (1) or more micro market displays that do not exceed seventy-five (75) linear feet in total length across the front of all displays in any one (1) location;

(2) contains an automated payment system;

(3) is located indoors and within a business;

(4) is accessible only to an:

(A) owner or employee of the business; or

(B) escorted guest; and

(5) is not accessible to the general public.

(b) As used in this section, "micro market display" means any of the following in which food is displayed:

(1) An open rack.

(2) A refrigerator or a refrigerated cooler.

(3) A freezer.

(4) A vending machine.

(5) A beverage dispenser.

(6) A hot beverage brewer.

(c) As used in this section, "vending machine" means a self-service device that, upon activation, by the use of:

(1) a coin;

(2) paper currency;

(3) a token;

(4) a card;

(5) a key; or

(6) a software application on a smartphone;



1 or by optional manual operation, dispenses unit servings of food in bulk
 2 or in packages without the necessity of replenishing the device between
 3 each vending operation.

4 (d) Notwithstanding any other state law or administrative rule, the
 5 owner or operator of a micro market is not required to have a person in
 6 charge present at the micro market, as otherwise required under 410
 7 IAC 7-24 or under any successor rule adopted by the state department,
 8 if the following requirements are met:

9 (1) The following security measures are used for the micro
 10 market:

11 (A) The micro market location includes video surveillance that
 12 operates on a twenty-four (24) hour per day, seven (7) day per
 13 week basis and:

- 14 (i) records consumers viewing, selecting, handling, and
- 15 purchasing products from the micro market; and
- 16 (ii) provides sufficient resolution to identify consumers
- 17 described in item (i).

18 (B) The video surveillance recordings described in clause (A)
 19 are:

- 20 (i) maintained; and
- 21 (ii) available for inspection upon request by the state
- 22 department or another applicable regulatory agency;
- 23 for fourteen (14) days after the date of the surveillance.

24 (C) A video surveillance recording requested for inspection
 25 under clause (B) is made available to the state department or
 26 other requesting regulatory agency not later than twenty-four
 27 (24) hours after the time the request is received by the owner
 28 or operator of the micro market.

29 (D) The automated self-checkout equipment used in the micro
 30 market has the capability to match a purchase with the
 31 consumer who made the purchase.

32 (2) The only food sold at the micro market is commercially
 33 prepackaged food, ready to eat fruit, and hot beverages. Except
 34 for hot beverages, all food must be sold unheated.

35 (3) Prepackaged food sold at the micro market is contained in
 36 tamper evident packaging.

37 (4) Prepackaged food sold at the micro market contains the
 38 following information on its packaging:

39 (A) Except as exempted under the federal Food, Drug, and
 40 Cosmetic Act (21 U.S.C. 301 et seq.), nutrition labeling for the
 41 food as specified in 21 CFR 101 and 9 CFR 317, Subpart B.

42 (B) A freshness or expiration date.



- 1 (C) The labeling requirements set forth in 410 IAC 7-24-146
 2 or in any successor rule adopted by the state department.
 3 (5) Refrigerated or frozen food sold in the micro market is stored
 4 in a refrigerated cooler or freezer that:
 5 (A) maintains an internal temperature:
 6 (i) of forty-one (41) degrees Fahrenheit or less; or
 7 (ii) as otherwise necessary for food safety, as established by
 8 the state department;
 9 (B) has self-closing doors;
 10 (C) allows the food to be viewed without opening the door to
 11 the refrigerated cooler or freezer; and
 12 (D) has an automatic self-locking feature that prevents a
 13 consumer from accessing the food upon the occurrence of any
 14 condition (including a power failure or mechanical failure)
 15 that results in the failure of the refrigerated cooler or freezer to
 16 maintain the internal temperature set forth in clause (A).
 17 (6) There is a sign that:
 18 (A) is posted at the location of the micro market;
 19 (B) is readily visible from the automated payment system; and
 20 (C) contains the following information that is printed entirely
 21 in English and that may also, at the discretion of the owner or
 22 operator of the micro market, be printed in any other prevalent
 23 language of the customers of the micro market:
 24 (i) The name of the owner or operator of the micro market to
 25 whom complaints and comments concerning the micro
 26 market may be addressed.
 27 (ii) The business address of the owner or operator of the
 28 micro market.
 29 (iii) The telephone number of the owner or operator of the
 30 micro market.
 31 (iv) The electronic mail address and ~~Internet web site~~
 32 **website** information for the owner or operator of the micro
 33 market, as applicable.
 34 (e) Notwithstanding any other law, administrative rule, or local
 35 ordinance, an owner or operator of a micro market shall not be required
 36 to:
 37 (1) submit any documentation; or
 38 (2) be subject to any:
 39 (A) pre-plan review;
 40 (B) inspection process; or
 41 (C) approval process;
 42 by the state department, corporation, or local health department



before the installation of a micro market.

An owner or operator of a micro market must notify the corporation or local health department where the micro market is located not later than ten (10) business days after the installation of the micro market. An owner or operator of a micro market shall not be subject to any fee associated with the notification described in this subsection.

SECTION 152. IC 16-42-25-7, AS ADDED BY P.L.96-2014, SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) The Indiana board of pharmacy shall maintain a link on the board's ~~Internet web site~~ **website** to the current list of all biological products determined by the United States Food and Drug Administration to be interchangeable with a specific reference biological product.

(b) The Indiana board of pharmacy may adopt rules under IC 4-22-2 necessary to implement this chapter.

SECTION 153. IC 16-42-26.5-5, AS ADDED BY P.L.215-2025, SECTION 30, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) Written informed consent as required under section 4(4) of this chapter must include the following:

(1) An explanation of the currently approved products and treatments for the individual's disease or condition.

(2) An attestation by the individual of the individual's **life threatening or severely** debilitating ~~condition~~ **disease** and that the individual concurs with the individual's physician that all currently approved treatments are unlikely to prolong the individual's life or improve the individual's **life threatening or severely** debilitating ~~condition~~ **disease**.

(3) A clear identification of the specific individualized investigational treatment proposed to be used to treat the individual.

(4) A description of the best and worst outcomes, including the most likely outcome, resulting from use of the individualized investigational treatment of the individual's life threatening or severely debilitating ~~illness~~ **disease**.

(5) A statement acknowledging that new, unanticipated, different, or worse symptoms or death may result from the proposed treatment.

(6) A statement that the individual's health insurance may not be obligated to pay for any care or treatment and that the patient may be liable for all expenses of the treatment unless specifically required to do so by contract or law.

(7) A statement that eligibility for hospice care may be withdrawn



1 if the individual begins individualized investigational treatment
2 and does not meet hospice care eligibility requirements.

3 (8) A statement that the individual or the individual's legal
4 guardian consents to the individualized investigational treatment
5 for the life threatening or severely debilitating ~~illness~~ **disease**.

6 (b) The description of outcomes described in subsection (a)(4) must
7 be based on the treating physician's knowledge of both the
8 individualized investigational treatment and the individual's life
9 threatening or severely debilitating disease.

10 SECTION 154. IC 16-42-28-5, AS ADDED BY P.L.235-2025,
11 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
12 JULY 1, 2026]: Sec. 5. (a) In collaboration with the workgroup
13 established under section 10 of this chapter, the state department shall:

14 (1) establish an application for an owner or operator to apply for
15 and receive a **statewide** mobile retail food establishment license;
16 and

17 (2) subject to subsection (b), establish a combined fee for an
18 annual license and an inspection to be paid for:

19 (A) the issuance or renewal of a statewide mobile retail food
20 establishment license; and

21 (B) any inspection of a mobile retail food establishment during
22 the period when the license is in effect.

23 (b) Beginning January 1, 2027, a local health department may
24 charge one (1) combined fee under subsection (a)(2) for an annual
25 license and inspection in an amount equal to four hundred fifty dollars
26 (\$450). Of the combined fee collected by a local health department for
27 each annual license and inspection, the following conditions apply:

28 (1) The local health department shall retain two hundred dollars
29 (\$200) of each combined fee, which must be used for costs
30 incurred in conducting local inspections.

31 (2) The local health department shall distribute the remaining two
32 hundred fifty dollars (\$250) of each combined fee, on a monthly
33 basis, to the state department.

34 SECTION 155. IC 16-46-12-3.5, AS ADDED BY P.L.30-2022,
35 SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
36 JULY 1, 2026]: Sec. 3.5. (a) The state department may establish a bone
37 marrow donor recruitment program to educate Indiana residents about
38 the following:

39 (1) The need for bone marrow donors, including the particular
40 need for donors from minority populations.

41 (2) The requirements for registering as a potential bone marrow
42 donor with the federally authorized bone marrow donor registry



established and maintained under 42 U.S.C. 274k.

(3) The procedures for determining an individual's tissue type.

(4) The medical procedures an individual must undergo to donate bone marrow or other sources of blood stem cells.

(5) The availability of information in health care facilities, blood banks, and the bureau of motor vehicles license branches about bone marrow donation.

(b) The state department, in consultation with:

(1) the federally authorized bone marrow donor registry; and

(2) interested contracted network partners of the registry described in subdivision (1);

shall develop written and electronic informational materials concerning bone marrow donation and the process for registering with the federally authorized bone marrow donor registry. In the alternative, the state department may obtain the required informational materials from an entity described in subdivision (1) or (2). The state department shall provide links to the materials on the state department's ~~Internet web site~~ **website**.

(c) The following may print and disseminate the materials described in subsection (b) to individuals interested in the materials:

(1) Appropriate health care facilities.

(2) Blood banks.

(3) Bureau of motor vehicles license branches.

SECTION 156. IC 16-46-16.5-8, AS ADDED BY P.L.110-2021, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. The management performance hub established by IC 4-3-26-8 shall develop and publish on ~~an Internet web site~~ **a website** a web page that tracks Indiana's metrics on the most significant areas of health and behavioral health impacting Indiana residents, as identified by the state department, and demonstrate any progress made in these metrics. The web page must include specific progress reported by organizations awarded a grant under the grant program.

SECTION 157. IC 16-49-4-11, AS ADDED BY P.L.119-2013, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. (a) The statewide child fatality review committee shall submit to the legislative council, governor, department of child services, state department, and commission on improving the status of children in Indiana on or before December 31 of each year a report that includes the following information:

(1) A summary of the data collected and reviewed by the statewide child fatality review committee in the previous calendar year.



(2) Trends and patterns that have been identified by the statewide child fatality review committee concerning deaths of children in Indiana.

(3) Recommended actions or resources to prevent future child fatalities in Indiana.

A report submitted under this section to the legislative council must be in an electronic format under IC 5-14-6.

(b) The statewide child fatality review committee shall provide a copy of a report submitted under this section to a member of the public upon request.

(c) The state department shall make the report available on the state department's ~~Internet web site:~~ **website.**

SECTION 158. IC 16-50-1-9, AS ADDED BY P.L.48-2018, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) The statewide maternal mortality review committee shall, before July 1 of each year, submit a report to the state department that includes the following information:

(1) A summary of the data collected regarding the reviews conducted by the statewide maternal mortality review committee.

(2) Actions recommended by the statewide maternal mortality review committee to improve systems of care and enhance coordination to reduce maternal morbidity and maternal mortality in Indiana.

(3) Legislative recommendations for consideration by the general assembly.

(b) A report released under this section must not contain identifying information relating to the deaths reviewed by the statewide maternal mortality review committee.

(c) The state department shall make a report prepared under this section available to public inspection and post the report on the state department's ~~Internet web site:~~ **website.**

SECTION 159. IC 16-51-1-1, AS AMENDED BY P.L.216-2025, SECTION 37, AND AS AMENDED BY P.L.213-2025, SECTION 156, IS CORRECTED AND AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) This chapter applies to an Indiana nonprofit hospital system.

(b) This chapter does not apply to the following:

(1) A hospital licensed under IC 16-21-2 that is operated by:

(A) a county;

(B) a city pursuant to IC 16-23; or

(C) the health and hospital corporation established under IC 16-22-8.



- 1 (2) A critical access hospital that meets the criteria under 42 CFR
- 2 485.601 through 42 CFR 485.647.
- 3 (3) A rural health clinic (as defined in 42 U.S.C. 1396d(l)(1)).
- 4 (4) A federally qualified health center (as defined in 42 U.S.C.
- 5 1396d(l)(2)(B)).
- 6 (5) An oncology treatment facility, even if owned or operated by
- 7 a hospital.
- 8 (6) A health facility licensed under IC 16-28.
- 9 (7) A community mental health center certified under
- 10 IC 12-21-2-3(5)(C).
- 11 (8) A private mental health institution licensed under IC 12-25,
- 12 including a service facility location for a private mental health
- 13 institution and reimbursed as a hospital-based outpatient service
- 14 site.
- 15 (9) *A facility that:*
- 16 *(A) has a place of service code 20, as published in the place*
- 17 *of service code set maintained by the federal Centers for*
- 18 *Medicare and Medicaid Services; and*
- 19 *(B) is located in a municipality with a population of less than*
- 20 *twenty thousand (20,000).*
- 21 ~~(9)~~ (10) Services provided for the treatment of individuals with
- 22 psychiatric disorders or chronic addiction disorders in:
- 23 (A) any part of a hospital, whether or not a distinct part; or
- 24 (B) an outpatient off campus site that is within thirty-five (35)
- 25 miles of a hospital.
- 26 ~~(10)~~ (11) Billing under the Medicare program or a Medicare
- 27 advantage plan.
- 28 ~~(12) Billing under the Medicaid program.~~
- 29 SECTION 160. IC 20-19-1-1.1, AS AMENDED BY P.L.214-2025,
- 30 SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 31 JULY 1, 2026]: Sec. 1.1. (a) The governor shall appoint an individual
- 32 to be the secretary of education.
- 33 (b) For purposes of ~~Article 5, Section 10 and~~ Article 8, Section 8 of
- 34 the Constitution of the State of Indiana, the secretary of education is the
- 35 state superintendent of public instruction.
- 36 (c) The individual appointed under this section serves at the
- 37 pleasure of and at a salary determined by the governor.
- 38 (d) The secretary of education is the chief executive officer of the
- 39 department.
- 40 SECTION 161. IC 20-19-3-11, AS AMENDED BY P.L.115-2017,
- 41 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 42 JULY 1, 2026]: Sec. 11. (a) The department, in collaboration with the



department of child services and organizations that have expertise in child abuse, including child sexual abuse, shall identify or develop:

- (1) research and evidence based model educational materials on child abuse and child sexual abuse; and
- (2) a model for child abuse and child sexual abuse response policies and reporting procedures.

The model for child abuse and child sexual abuse response policies and reporting procedures described in subdivision (2) must include information on the duty to report suspected child abuse or neglect under IC 31-33-5. To identify or develop models under this subsection, the department may not hire additional staff members or expend funds not already included in the department's budget.

(b) Not later than July 1, 2018, the department shall make the models developed or identified under this section available to assist schools with the implementation of:

- (1) child abuse and child sexual abuse education programs in kindergarten through grade 12 as provided in IC 20-30-5-5.7; and
- (2) child abuse and child sexual abuse response and reporting policies.

(c) The model educational materials on child abuse and child sexual abuse identified or developed under subsection (a) may include the following topics:

- (1) Warning signs of a child who is being abused or sexually abused.
- (2) The basic principles of child abuse and child sexual abuse prevention.
- (3) Methods of student, teacher, and parental education and outreach.

(d) The model child abuse and child sexual abuse response and reporting policies referred to in subsection (b) may include the following topics:

- (1) Actions that a child who is a victim of abuse or sexual abuse may take to obtain assistance.
- (2) Interventions.
- (3) Counseling options.
- (4) Educational support available for a child who is a victim of abuse or sexual abuse to enable the child to continue to be successful in school.
- (5) Reporting procedures.

(e) A school that chooses to use the model educational materials developed under subsection (a) shall inform the parents of students in the grade levels in which the materials could be used, in writing and by



posting on the school's ~~Internet web site~~, **website**, that a parent may:

- (1) examine and review the model educational materials before the materials are taught; and
- (2) decide if the parent's child will be instructed with the model educational materials.

(f) If a parent decides that the parent's child may be taught using the model educational materials, the parent shall notify the school of the parent's decision in writing or electronically.

SECTION 162. IC 20-19-3-12.2, AS AMENDED BY P.L.208-2025, SECTION 2, AND AS AMENDED BY P.L.214-2025, SECTION 22, IS CORRECTED AND AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12.2. (a) The department shall make reduction of absenteeism in schools a policy priority and provide assistance and guidance to school corporations and schools in:

- (1) identifying contributing factors of absenteeism; and
- (2) developing chronic absence reduction plans. ~~that school corporations may elect to include as a component of the school improvement plans required under IC 20-31-5.~~

(b) The department shall:

- (1) ~~create a list of best practices to;~~ and
- (2) provide resources and guidance to school corporations concerning evidence based practices and effective strategies that; reduce absenteeism in schools. However, ~~subject to section 12.4 of this chapter~~, the department may not mandate a particular policy within a chronic absence reduction plan adopted by a school corporation or school.

SECTION 163. IC 20-19-3-20, AS ADDED BY P.L.155-2020, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 20. The department shall publish the following information on the department's ~~Internet web site~~: **website**:

- (1) The information reported under IC 20-29-3-15(b)(20) in the most recent report prepared under IC 20-29-3-15.
- (2) The number of emergency permits granted by each school corporation, categorized by content area, during the school year or collective bargaining period covered by the most recent report prepared under IC 20-29-3-15.
- (3) The total number of teaching candidates who:
 - (A) are currently enrolled in a teacher preparation program; or
 - (B) have recently completed a teacher preparation program.
- (4) The increase or decrease in kindergarten through grade 12 student enrollments.
- (5) The total number of teachers in Indiana.



(6) The teacher workforce growth.

(7) The administrator workforce growth.

(8) For each school corporation, the number of vacant teaching positions by:

(A) grade;

(B) subject; and

(C) required credential;

with critical shortage areas, as determined by unfilled vacancies, highlighted for each school corporation.

SECTION 164. IC 20-19-3-25, AS ADDED BY P.L.168-2022, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 25. (a) The department shall establish an online adjunct teacher portal on the department's ~~Internet web site~~ **website** or incorporate into the teacher referral system developed under IC 20-20-3 a functionality to allow:

(1) a school corporation to post a vacant adjunct teacher position; and

(2) an individual to:

(A) post a resume;

(B) post any other information requested by the school corporation through the portal or system;

(C) make inquiries to the school corporation through the portal or system; and

(D) view information relating to adjunct teachers employed by a particular school corporation reported to the department in accordance with IC 20-28-5-27(g).

(b) The department shall post the information received under IC 20-28-5-27(g) on the department's portal or teacher referral system described in subsection (a).

SECTION 165. IC 20-19-3-25.5, AS ADDED BY P.L.130-2022, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 25.5. Before July 1, 2022, and before July 1 of each year thereafter, the department shall submit a report to the general assembly in an electronic format under IC 5-14-6 that provides the following information based on the previous five (5) year period:

(1) The graduation waiver rate of each:

(A) secondary school within a school corporation; and

(B) charter high school.

(2) The:

(A) particular graduation pathways that each secondary school within a school corporation and each charter high school use; and



1 (B) percentage of students who graduated with each particular
2 graduation pathway.

3 The department shall also post the report described in this section on
4 the department's ~~Internet web site~~ **website**.

5 SECTION 166. IC 20-20-5.5-3, AS AMENDED BY P.L.43-2021,
6 SECTION 51, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
7 JULY 1, 2026]: Sec. 3. (a) The secretary of education shall notify the
8 governing bodies of each school corporation, charter school, and state
9 accredited nonpublic school immediately of:

10 (1) the initial publication and annual update on the department's
11 ~~Internet web site~~ **website** of the report described in section 2(c)
12 of this chapter, including the ~~Internet web site~~ **website** address
13 where the report is published; and

14 (2) updates of the following types of information in the report
15 described in section 2(c) of this chapter:

16 (A) The addition of materials.

17 (B) The removal of materials.

18 (C) Changes in the per unit price of curricular materials that
19 exceed five percent (5%).

20 (b) A notification under this section must state that:

21 (1) the reviews of curricular materials included in the report
22 described in section 2(c) of this chapter are departmental reviews
23 only; and

24 (2) each governing body has authority to adopt curricular
25 materials for a school corporation.

26 SECTION 167. IC 20-23-6-5, AS AMENDED BY P.L.152-2021,
27 SECTION 28, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
28 JULY 1, 2026]: Sec. 5. (a) If a petition is filed in one (1) or more of the
29 school corporations protesting consolidation as provided in this chapter
30 by the legal voters of any school corporation the governing body of
31 which proposes to consolidate, the governing body in each school
32 corporation in which a protest petition is filed shall certify the public
33 question to each county election board of the county in which the
34 school corporation is located. The county election board shall call an
35 election of the voters of the school corporation to determine if a
36 majority of the legal voters of the corporation is in favor of
37 consolidating the school corporations.

38 (b) If a protest is filed in more than one (1) school corporation, the
39 elections shall be held on the same day. Each county election board
40 shall give notice by publication once each week for two (2) consecutive
41 weeks:

42 (1) with each notice by publication in a newspaper of general



1 circulation in the school corporation, or, if a newspaper is not
2 published in the:

3 (A) township;

4 (B) town; or

5 (C) city;

6 the notice shall be published in the nearest newspaper published
7 in the county or counties; or

8 (2) with the first publication of notice in the newspaper or
9 newspapers as provided in subdivision (1) and the second
10 publication of notice:

11 (A) in accordance with IC 5-3-5; and

12 (B) on the official ~~web site~~ **website** of the school corporation.

13 Each notice shall state that on a day and at an hour to be named in the
14 notice, the polls will be open at the usual voting places in the various
15 precincts in the corporation for taking the vote of the legal voters upon
16 whether the school corporation shall be consolidated with the other
17 school corporations joining in the resolution.

18 (c) The public question shall be placed on the ballot in the form
19 provided by IC 3-10-9-4 and must state: "Shall (insert name of school
20 corporation) be consolidated with (insert names of other school
21 corporations)?".

22 (d) Notice shall be given not later than thirty (30) days after the
23 petition is filed. The election shall be held not less than ten (10) days
24 or more than twenty (20) days after the last publication of the notice.

25 (e) The governing body of each school corporation in which an
26 election is held is bound by the majority vote of those voting. However,
27 if the election falls within a period of not more than six (6) months
28 before a primary or general election, the election shall be held
29 concurrently with the primary or general election if the public question
30 is certified to the county election board not later than the deadline set
31 forth in IC 3-10-9-3.

32 (f) If a majority of those voting in any one (1) school corporation
33 votes against the plan of consolidation, the plan fails. However, the
34 failure does not prevent any or all the school corporations from taking
35 further initial action for the consolidation of school corporations under
36 this chapter.

37 SECTION 168. IC 20-23-7-5, AS ADDED BY P.L.1-2005,
38 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
39 JULY 1, 2026]: Sec. 5. (a) The rights, powers, and duties of the
40 metropolitan school district shall be vested in the governing body that
41 must be composed of:

42 (1) three (3);



1 (2) five (5); or

2 (3) seven (7); ~~members;~~

3 **members** who have resided in the district for at least two (2) years
4 before taking office. The resolution or petition provided by section 2(a)
5 or 2(b) of this chapter may designate the number of members of the
6 governing body. If a designation is not made concerning the number of
7 members of a governing body, the governing body is composed of five
8 (5) members.

9 (b) If section 4(a) of this chapter applies to a metropolitan school
10 district, the following rules apply:

11 (1) If the governing body consists of three (3) members, one (1)
12 member shall reside in each residence district.

13 (2) If the governing body consists of five (5) members, not more
14 than two (2) shall reside in any one (1) residence district.

15 (3) If the governing body consists of seven (7) members, at least
16 two (2) shall reside in any one (1) residence district.

17 (c) If a governing body member moves the member's residence
18 within the metropolitan school district from one (1) governing body
19 member district to another or when governing body member district
20 boundaries are moved so that the member's place of residence changes
21 from one (1) governing body member district to another, the member
22 does not on this account become disqualified as a governing body
23 member but may continue to hold office as a member of the governing
24 body.

25 SECTION 169. IC 20-24-2.2-1, AS AMENDED BY P.L.191-2018,
26 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
27 JULY 1, 2026]: Sec. 1. The department and each authorizer shall
28 establish a charter school page on the department's and the authorizer's
29 ~~Internet web site~~ **website** that includes information on the following:

30 (1) The authorizer's processes for the following:

31 (A) Monitoring approved schools at regular intervals.

32 (B) Establishing minimum standards for renewing a charter or
33 not renewing a charter.

34 (C) Processes and standards for school closure, including the
35 transfer of all student education records (as defined in
36 IC 20-24-9-4.5) as provided in IC 20-24-9, and of academic
37 records to other schools and postsecondary educational
38 institutions.

39 (2) All pending applications for a charter.

40 (3) All approved applications for a charter.

41 (4) All rejected applications for a charter.

42 (5) The authorizer's annual report as required under IC 20-24-9.



1 SECTION 170. IC 20-24-2.2-1.2, AS ADDED BY P.L.221-2015,
 2 SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 3 JULY 1, 2026]: Sec. 1.2. (a) This section applies to an authorizer
 4 described in IC 20-24-1-2.5(1), IC 20-24-1-2.5(2), and
 5 IC 20-24-1-2.5(5) if the authorizer has not previously issued a charter
 6 for any charter school prior to July 1, 2015.

7 (b) A governing body of a school corporation may register with the
 8 state board for charter authority within the attendance area of the
 9 school corporation. The state board shall post on the state board's
 10 ~~Internet web site~~ **website** an application received from an authorizer to
 11 register with the state board under this section within ten (10) days
 12 after receipt of the application. The state board may not charge an
 13 authorizer a fee to register with the state board under this section.

14 (c) A governing board of a nonprofit college or university described
 15 in IC 20-24-1-2.5(5) may apply to the state board for statewide,
 16 regional, or local chartering authority.

17 (d) The state board shall publicize to all governing bodies the
 18 opportunity to register with the state board for chartering authority
 19 within their school corporation. Not later than May 1 of each year, the
 20 state board shall provide information about the opportunity, including
 21 a registration deadline, to all governing bodies. To register as an
 22 authorizer, each interested governing body must submit the following
 23 information in a format prescribed by the state board:

24 (1) A written notification of intent to serve as a charter authorizer
 25 in accordance with this article.

26 (2) An explanation of the governing body's strategic vision for
 27 chartering.

28 (3) An explanation of the governing body's budget and personnel
 29 capacity and commitment to execute the duties of quality charter
 30 authorizing in accordance with this article.

31 (4) An explanation of how the governing body will solicit charter
 32 school applicants in accordance with IC 20-24-3.

33 (5) A description or outline of the performance framework the
 34 governing body will use to guide the establishment of a charter
 35 contract and for the oversight and evaluation of charter schools,
 36 consistent with this article.

37 (6) A draft of the governing body's renewal, revocation, and
 38 nonrenewal processes, consistent with this article.

39 (7) A statement of assurance that the governing body commits to
 40 serving as a charter authorizer in fulfillment of the expectations,
 41 spirit, and intent of this article, and that the governing body will
 42 fully adopt standards of quality charter school authorizing in



1 accordance with section 1.5 of this chapter.

2 (e) Within sixty (60) days of receipt of the information described in
3 subsection (d), the state board shall register the governing body as a
4 charter authorizer within the attendance area of the school corporation
5 and shall provide the governing body a letter confirming the governing
6 body's registration as a charter authorizer. A governing body may not
7 engage in any charter authorizing functions without a current
8 registration as a charter authorizer with the state board.

9 (f) The state board shall establish an annual application and
10 approval process, including cycles and deadlines during the state fiscal
11 year, for registering an entity described in IC 20-24-1-2.5(5) for
12 authorizer authority. Not later than May 1 of each year, the state board
13 shall make available information and guidelines for an applicant
14 described in IC 20-24-1-2.5(5) concerning the opportunity to apply for
15 chartering authority under this article. The application process must
16 require each applicant to submit an application that clearly explains or
17 presents the following elements:

18 (1) A written notification of intent to serve as a charter authorizer
19 in accordance with this article.

20 (2) The applicant's strategic vision for chartering.

21 (3) A plan to support the applicant's strategic vision described in
22 subdivision (2), including an explanation and evidence of the
23 applicant's budget and personnel capacity and commitment to
24 execute the duties of quality charter authorizing in accordance
25 with this article.

26 (4) A draft or preliminary outline of the request for proposals that
27 the applicant would, if approved by the state board under this
28 section, issue to solicit charter school applicants under
29 IC 20-24-3.

30 (5) A draft of the performance framework that the applicant
31 would, if approved by the state board under this section, use to
32 guide the establishment of a charter contract and for ongoing
33 oversight and evaluation of charter schools consistent with this
34 article.

35 (6) A draft of the applicant's renewal, revocation, and nonrenewal
36 processes.

37 (7) A statement of assurance that the applicant commits to serving
38 as a charter authorizer in fulfillment of the expectations, spirit,
39 and intent of this article, and that the applicant will fully adopt
40 standards of quality charter school authorizing in accordance with
41 section 1.5 of this chapter.

42 (g) Not later than July 1 of each year, the state board shall grant or



1 deny chartering authority to an applicant under subsection (f). The state
2 board shall make its decision on the merits of each applicant's proposal
3 and plans submitted under subsection (f).

4 (h) Within thirty (30) days of the state board's decision under
5 subsection (g), the state board shall execute a renewable authorizing
6 contract with an applicant that the state board has approved for
7 chartering authority. The initial term of each authorizing contract is six
8 (6) years. The authorizing contract must specify each approved
9 applicant's agreement to serve as a charter authorizer in accordance
10 with this article and shall specify additional performance terms based
11 on the applicant's proposal and plan for chartering. An approved
12 applicant may not commence charter authorizing without an
13 authorizing contract in effect.

14 (i) The state board shall maintain on the state board's ~~Internet web~~
15 ~~site~~ **website** the names of each authorizer approved by the state board
16 under this section.

17 SECTION 171. IC 20-24-2.2-8, AS ADDED BY P.L.221-2015,
18 SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
19 JULY 1, 2026]: Sec. 8. Beginning in 2016, the state board shall provide
20 a formal evaluation of the overall state of charter school outcomes in
21 Indiana every five (5) years. The evaluation shall be posted on the state
22 board's ~~Internet web site:~~ **website**.

23 SECTION 172. IC 20-24-8-5, AS AMENDED BY P.L.214-2025,
24 SECTION 62, AND AS AMENDED BY P.L.230-2025, SECTION
25 132, IS CORRECTED AND AMENDED TO READ AS FOLLOWS
26 [EFFECTIVE JULY 1, 2026]: Sec. 5. The following statutes and rules
27 and guidelines adopted under the following statutes apply to a charter
28 school:

- 29 (1) IC 5-11-1-9 (required audits by the state board of accounts).
- 30 (2) *IC 5-14-3.7 (access to financial data for local schools).*
- 31 ~~(2)~~ (3) IC 20-39-1-1 (unified accounting system).
- 32 ~~(3)~~ (4) IC 20-35 (special education).
- 33 ~~(4)~~ (5) IC 20-26-5-10 (criminal history).
- 34 ~~(5)~~ (6) IC 20-26-5-6 (subject to laws requiring regulation by state
- 35 agencies).
- 36 ~~(6)~~ (7) IC 20-28-10-12 (nondiscrimination for teacher marital
- 37 status).
- 38 ~~(7)~~ (8) IC 20-28-10-14 (teacher freedom of association).
- 39 ~~(8)~~ (9) IC 20-28-10-17 (school counselor immunity).
- 40 ~~(9)~~ (10) For conversion charter schools only if the conversion
- 41 charter school elects to collectively bargain under
- 42 IC 20-24-6-3(b), IC 20-28-6, IC 20-28-7.5, IC 20-28-8,



1 IC 20-28-9, and IC 20-28-10.
 2 ~~(10)~~ (11) IC 20-33-2 (compulsory school attendance).
 3 ~~(11)~~ (12) IC 20-33-8-19, IC 20-33-8-21, and IC 20-33-8-22
 4 (student due process and judicial review).
 5 ~~(12)~~ (13) IC 20-33-8-16 (firearms and deadly weapons).
 6 ~~(13)~~ (14) IC 20-34-3 (health and safety measures).
 7 ~~(14)~~ (15) IC 20-33-9 (reporting of student violations of law).
 8 ~~(15)~~ (16) IC 20-30-3-2 and IC 20-30-3-4 (patriotic
 9 commemorative observances).
 10 ~~(16)~~ (17) IC 20-31-3, IC 20-32-4, ~~IC 20-32-5~~ *(for a school year*
 11 *ending before July 1, 2018)*, IC 20-32-5.1, ~~(for a school year~~
 12 ~~beginning after June 30, 2018)~~, ~~IC 20-32-8~~, and IC 20-32-8.5, as
 13 provided in IC 20-32-8.5-2 (academic standards, accreditation,
 14 ~~assessment, and remediation~~ and assessment).
 15 ~~(17)~~ (18) IC 20-33-7 (parental access to education records).
 16 ~~(18)~~ (19) IC 20-31 (accountability for school performance and
 17 improvement).
 18 ~~(19)~~ (20) IC 20-30-5-19 (personal financial responsibility
 19 instruction).
 20 ~~(20)~~ (21) IC 20-26-5-37.3, before its expiration (career and
 21 technical education reporting).
 22 ~~(21)~~ (22) IC 20-35.5 (dyslexia screening and intervention).
 23 ~~(22)~~ ~~IC 22-2-18~~, *before its expiration on June 30, 2021*
 24 ~~(limitations on employment of minors)~~.
 25 (23) IC 20-26-12-1 (curricular material purchase and provision;
 26 public school students).
 27 (24) IC 20-26-12-2 (curricular material purchase and rental).

28 SECTION 173. IC 20-24-9-1, AS AMENDED BY P.L.5-2015,
 29 SECTION 45, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 30 JULY 1, 2026]: Sec. 1. (a) An authorizer that has established a charter
 31 school shall submit an annual report to the department and the state
 32 board for informational and research purposes. The authorizer shall
 33 make the annual report available on the authorizer's ~~Internet web site~~.
 34 **website.**

35 (b) The department and state board shall make all annual reports
 36 submitted under subsection (a) available on the department's and state
 37 board's ~~Internet web sites~~. **websites.**

38 SECTION 174. IC 20-24-9-7, AS AMENDED BY P.L.280-2013,
 39 SECTION 52, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 40 JULY 1, 2026]: Sec. 7. If an organizer of a charter school maintains ~~an~~
 41 ~~Internet web site~~ **a website** for a charter school, the organizer of the
 42 charter school shall publish the names of the members of the charter



1 school's governing body on the charter school's ~~Internet web site~~.
 2 **website.**

3 SECTION 175. IC 20-24.2-4-5, AS ADDED BY P.L.201-2013,
 4 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 5 JULY 1, 2026]: Sec. 5. (a) A qualified district may display the words
 6 "Indiana Performance Qualified School District" on the qualified
 7 district's correspondence, ~~Internet web site~~, **website**, and any other
 8 communications representing the qualified district.

9 (b) A qualified high school may display the words "Indiana
 10 Performance Qualified High School" on the high school's
 11 correspondence, ~~Internet web site~~, **website**, and any other
 12 communications representing the high school.

13 SECTION 176. IC 20-26-5-4.3, AS AMENDED BY P.L.115-2024,
 14 SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 15 JULY 1, 2026]: Sec. 4.3. (a) Before a contract for employment is
 16 entered into by a governing body and a school superintendent, the
 17 governing body shall hold a public meeting on the proposed contract
 18 at which public comment is heard. The public meeting may be a regular
 19 or special meeting of the governing body. The governing body is not
 20 required to disclose the identity of the candidate for superintendent at
 21 the public meeting.

22 (b) Notice of the meeting on the proposed contract shall be given in
 23 accordance with IC 5-3-1 and posted on the school corporation's
 24 ~~Internet web site~~. **website.**

25 (c) The notice provided in subsection (b) must:

- 26 (1) state that on a given day, time, and place the governing body
- 27 will meet to discuss and hear objections to and support for the
- 28 proposed contract; and
- 29 (2) set forth the details of the proposed contract, including the
- 30 actual monetary value of the contract, benefits, and any additional
- 31 forms of compensation for each year of the contract.

32 (d) A governing body shall post the provisions of an employment
 33 contract that the governing body enters into with a superintendent of
 34 the school corporation on the school corporation's ~~Internet web site~~.
 35 **website.**

36 SECTION 177. IC 20-26-5-4.7, AS ADDED BY P.L.148-2012,
 37 SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 38 JULY 1, 2026]: Sec. 4.7. (a) This section does not apply to a:

- 39 (1) superintendent of a school corporation; or
- 40 (2) certificated employee (as defined in IC 20-29-2-4) that is
- 41 represented by an exclusive representative (as defined in
- 42 IC 20-29-2-9) under IC 20-29.



(b) The superintendent shall post the provisions of an employment contract that the school corporation enters into with a certificated employee on the school corporation's ~~Internet web site~~: **website**.

SECTION 178. IC 20-26-5-20, AS AMENDED BY P.L.244-2017, SECTION 44, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 20. The governing body of any school corporation may:

(1) permit any of its facilities to be used by any person in situations and at times that do not interfere with use of the facility for school purposes, including:

(A) use of a swimming pool or other athletic facility; or

(B) use of classrooms or other space in a school for purposes of school age ~~childcare~~: **child care**; and

(2) incur any necessary expense in the use or operation of the facility.

The governing body may set up and charge a schedule of fees for admission to or use of any facility outside the school corporation's regular school program. Fees shall be deposited in the operations fund or the extracurricular account of the school corporation.

SECTION 179. IC 20-26-5-40.2, AS ADDED BY P.L.216-2021, SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 40.2. (a) If a governing body passes a resolution to close a high school within the school corporation, the governing body shall develop a plan relating to the preservation or transfer of memorabilia, trophies, or other property that may have historical significance, as determined by the governing body.

(b) The plan described in subsection (a) must be made available for public inspection and posted on the school corporation's ~~Internet web site~~: **website**.

SECTION 180. IC 20-26-5-40.5, AS ADDED BY P.L.164-2021, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 40.5. (a) Not later than January 1, 2022, each school corporation and charter school shall adopt and implement an Internet use policy that:

(1) prohibits the sending, receiving, viewing, or downloading of materials that are harmful to minors (as described in IC 35-49-2-2) on computers and other technology related devices owned by the school corporation or charter school;

(2) provides for the use of hardware or installation of software on computers and other technology related devices described in subdivision (1) to filter or block Internet access to materials that are harmful to minors; and



(3) establishes appropriate disciplinary measures to be taken against persons violating the policy established under this section.

(b) Not later than January 1, 2022, each school corporation and charter school shall use hardware or install software on computers and other technology related devices described in subsection (a)(1) to filter or block Internet access to materials that are harmful to minors.

(c) Each school corporation and charter school shall post on the school corporation's or charter school's ~~Internet web site~~ **website** the Internet use policy established under subsection (a).

SECTION 181. IC 20-26.5-2-1, AS AMENDED BY P.L.92-2020, SECTION 41, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) The state board may approve not more than one (1) coalition of continuous improvement school districts under this chapter to offer flexibility and innovation to schools to improve student outcomes.

(b) To establish a coalition under this chapter, at least four (4), but not more than a total of eight (8), of any of the following must jointly submit a plan to the state board in a manner prescribed by the state board:

(1) A school corporation.

(2) An eligible school (as defined in IC 20-51-1-4.7).

(3) A state accredited nonpublic school.

(c) The plan submitted under subsection (b) must include:

(1) a description of the various educational programs that will be offered by members of the proposed coalition;

(2) a description that identifies potential coalition member partnerships with:

(A) business or industry;

(B) postsecondary educational institutions; or

(C) community partners;

(3) the specific goals and the measurable student outcomes to be obtained by the proposed coalition members; and

(4) an explanation of how student performance in achieving the specific outcomes will be measured, evaluated, and reported.

If a plan submitted to the state board includes a request to suspend all or portions of IC 20-30 for a proposed coalition, the plan must include how the specific goal of the proposed coalition will be achieved by suspending all or portions of IC 20-30. The state board may approve a plan that proposes to suspend all or portions of IC 20-30 only if the suspension is related to a specific goal of the proposed coalition.

(d) The state board may approve a coalition under this chapter if the state board determines that the coalition will:



- (1) improve student performance and outcomes;
- (2) offer coalition members flexibility in the administration of educational programs; and
- (3) promote innovative educational approaches to student learning.

(e) The plan approved by the state board under subsection (d) must apply uniformly for each member of the coalition.

(f) Upon approval of the coalition by the state board under subsection (d), the state board shall post the following on the state board's ~~Internet web site~~ **website**:

- (1) A copy of the plan approved by the state board under subsection (d).
- (2) Information describing how a school corporation, an eligible school (as defined in IC 20-51-1-4.7), or a state accredited nonpublic school may submit an application to become a coalition member to the coalition under section 2(b) of this chapter.

SECTION 182. IC 20-27-7-13, AS AMENDED BY P.L.42-2014, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. If:

- (1) after being repaired under section 11 of this chapter a special purpose bus or school bus does not meet the minimum standards under this chapter; or
- (2) a special purpose bus or school bus does not comply with the safety requirements for school bus construction and equipment established by the rules of the committee and the noncompliance is a serious safety critical violation, as determined by the committee;

the state police department shall issue an out-of-service order and certificate for the special purpose bus or school bus. The driver of the special purpose bus or school bus at the time of the inspection shall be notified of the out-of-service order and a copy shall be made available on the ~~Internet web site~~ **website** of the state police department for the governing body of the school corporation that controls the operation of the special purpose bus or school bus.

SECTION 183. IC 20-27-10-0.5, AS AMENDED BY P.L.92-2020, SECTION 44, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 0.5. (a) On or before September 1, 2019, and each September 1 thereafter, each school corporation, charter school, and state accredited nonpublic school that provides transportation for students must review the school's school bus routes and school bus safety policies to improve the safety of students and adults.

(b) The state school bus committee, in consultation with the



department, shall develop and post on the department's ~~Internet web~~
~~site website~~ school bus safety guidelines or best practices. The
 guidelines or best practices must include procedures to be taken to
 ensure that students do not enter a roadway until approaching traffic
 has come to a complete stop.

(c) In addition to the requirements under subsection (b), the
 department, in consultation with the department of transportation, shall
 include on the department's ~~Internet web~~ ~~site website~~ information on
 how an individual or school may petition to reduce maximum speed
 limits in areas necessary to ensure that students are safely loaded onto
 or unloaded from a school bus.

SECTION 184. IC 20-28-2-11, AS ADDED BY P.L.10-2009,
 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 JULY 1, 2026]: Sec. 11. The department shall collaborate with
 nonprofit entities, the commission for higher education, and state
 educational institutions to develop and implement initiatives focusing
 on the recruitment and retention of qualified educators from
 underrepresented populations. The initiatives should include, but are
 not limited to, the following activities:

- (1) Development of a recruitment plan for underrepresented and
 teacher shortage areas.
- (2) Production of a ~~web site~~ ~~website~~ as a communication tool that
 provides resource information and scholarship opportunities.
- (3) Development of a research agenda and network support
 system at each state educational institution to remove barriers and
 address challenges faced by students of underrepresented
 populations in order to recruit, retain, and graduate these students.

SECTION 185. IC 20-28-5-12.5, AS AMENDED BY P.L.201-2025,
 SECTION 3, AND AS AMENDED BY P.L.214-2025, SECTION 114,
 IS CORRECTED AND AMENDED TO READ AS FOLLOWS
 [EFFECTIVE JULY 1, 2026]: Sec. 12.5. (a) The department shall grant
 an initial practitioner license to an individual who:

- (1) possesses a bachelor's degree from an accredited
 postsecondary four (4) year institution;
- (2) successfully completes an alternative teacher certification
 program that includes:
 - (A) the required content training in the area in which the
 individual seeks to be licensed;
 - (B) pedagogy training and an examination that is in
 substantive alignment with nationally recognized pedagogical
 standards and teaches effective:
 - (i) instructional delivery;



- 1 (ii) classroom management and organization;
- 2 (iii) assessment;
- 3 (iv) instructional design; and
- 4 (v) professional learning and leadership;
- 5 (C) successful demonstration of content area proficiency in an
- 6 examination that includes content area material in substantive
- 7 alignment with nationally recognized content area standards in
- 8 the areas that the individual is required to have a license to
- 9 teach;
- 10 (D) verification from a third party that regularly reviews
- 11 educational and professional examinations that the alternative
- 12 certification examination is equal to or greater in rigor than the
- 13 written examination under section 12 of this chapter; *and*
- 14 ~~(E) content within the curriculum that prepares teacher~~
- 15 ~~candidates to use evidence based trauma informed classroom~~
- 16 ~~instruction; including instruction in evidence based social~~
- 17 ~~emotional learning classroom practices that are conducive to~~
- 18 ~~supporting students who have experienced trauma that may~~
- 19 ~~interfere with a student's academic functioning; and~~
- 20 ~~(F) (E) content within the curriculum that:~~
- 21 (i) beginning July 1, 2024, is aligned to the science of
- 22 reading; and
- 23 (ii) beginning July 1, 2024, prepares teacher candidates or
- 24 program participants who seek to obtain an elementary
- 25 generalist license that is valid for teaching in kindergarten
- 26 through grade 5 or an early childhood license that is valid
- 27 for teaching prekindergarten through grade 3 to obtain the
- 28 literacy endorsement required under section 19.7 of this
- 29 chapter;
- 30 (3) successfully completes an applicable teacher licensing exam
- 31 as approved by the state board;
- 32 (4) holds a valid cardiopulmonary resuscitation certification from
- 33 a provider approved by the department; and
- 34 (5) has attended youth suicide awareness and prevention training.
- 35 (b) The individual must complete a one (1) year practical experience
- 36 program during the individual's first year in the classroom when the
- 37 individual is employed as a full-time teacher. The provider must:
- 38 (1) provide the practical experience program at no cost to the state
- 39 or to the school corporation, charter school, or state accredited
- 40 nonpublic school; and
- 41 (2) as part of the practical instruction program, provide
- 42 instruction in:



- 1 (A) instructional design and planning;
- 2 (B) effective instructional delivery;
- 3 (C) classroom management and organization;
- 4 (D) effective use of assessment data;
- 5 (E) content in federal and Indiana special education laws; and
- 6 (F) required awareness, preparation, and understanding of:
 - 7 (i) individualized education programs;
 - 8 (ii) service plans developed under 511 IAC 7-34;
 - 9 (iii) choice special education plans developed under 511
 - 10 IAC 7-49; and
 - 11 (iv) plans developed under Section 504 of the federal
 - 12 Rehabilitation Act of 1973, 29 U.S.C. 794.
- 13 (c) An in-state alternative teacher certification program under
- 14 subsection (a)(2) must operate in accordance with the procedures and
- 15 program approval standards and requirements set by the department
- 16 and the state board for teacher education programs for the licensure of
- 17 teachers.
- 18 (d) An out-of-state alternative teacher certification program under
- 19 subsection (a)(2) must:
 - 20 (1) currently operate in at least five (5) states; and
 - 21 (2) have operated an alternative teacher certification program for
 - 22 at least ten (10) years.
- 23 (e) An individual who receives an alternative teacher certification
- 24 under subsection (a)(2) is authorized to teach the subject and
- 25 educational level that the individual has successfully completed.
- 26 (f) An individual who receives an initial practitioner license under
- 27 this section shall be treated in the same manner as an individual who
- 28 receives an initial practitioner license after completing a traditional
- 29 teacher preparation program.
- 30 (g) An individual who graduates from an alternative teacher
- 31 certification program must be treated in the same manner as a
- 32 traditional teacher preparation program graduate during the transition
- 33 from an initial practitioner license to a practitioner license.
- 34 (h) An individual who receives an initial practitioner license under
- 35 this section may not teach a special education course for a special
- 36 education student for the period the individual maintains a license
- 37 under this section unless the individual is at least twenty-six (26) years
- 38 of age and employed in a school setting or with another community
- 39 organization, including a for-profit or nonprofit organization, to
- 40 provide care or instruction for a student with a physical, intellectual, or
- 41 developmental disability. However, an individual who receives an
- 42 initial practitioner license under this section may not be a teacher of



1 record for a special education student for the period the individual
2 maintains the initial practitioner license.

3 (i) A school corporation, charter school, or state accredited
4 nonpublic school shall submit a plan to the department if the school
5 corporation, charter school, or state accredited nonpublic school hires
6 one (1) or more individuals who have received an initial practitioner
7 license under this section. The plan must be submitted in a manner
8 prescribed by the department and must include a description of how the
9 school corporation, charter school, or state accredited nonpublic school
10 will, excluding the practical experience program described in
11 subsection (b), provide an individual who receives an initial
12 practitioner license under this section opportunities to obtain exposure
13 to classroom management and instructional techniques, including
14 meaningful exposure to special education. The plan is a public record.

15 (j) Not later than July 1, 2024, the department shall prepare a report
16 that shall be submitted to the general assembly in an electronic format
17 under IC 5-14-6. The report must contain the following information:

18 (1) Data showing how many teachers obtained an initial
19 practitioner license under this section.

20 (2) A description of the number of teachers who received an
21 initial practitioner license under this section who are currently
22 employed as a teacher by each:

23 (A) school corporation;

24 (B) charter school; or

25 (C) state accredited nonpublic school.

26 The description must include a breakdown of the subjects taught
27 by teachers who receive an initial practitioner license under this
28 section.

29 (3) A comparison of the *Praxis Subject Assessment* applicable
30 *teacher licensing exam as approved by the state board* pass rates
31 for individuals who receive an initial practitioner license under
32 this section in comparison with the *Praxis Subject Assessment*
33 *applicable teacher licensing exam as approved by the state board*
34 pass rates for teachers who obtained an initial practitioner license
35 using a different pathway to licensure.

36 (4) A description of how many teachers who received an initial
37 practitioner license under this section are rated as effective or
38 highly effective.

39 SECTION 186. IC 20-28-5-20, AS ADDED BY P.L.170-2018,
40 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
41 JULY 1, 2026]: Sec. 20. The department shall post for each calendar
42 year on the department's ~~Internet web site~~ **website** the pass rate of the



content area examination for each postsecondary educational institution regarding individuals who:

- (1) graduated from the teacher preparation program of the postsecondary educational institution; and
- (2) took the content area examination.

SECTION 187. IC 20-28-5-22.4, AS AMENDED BY P.L.41-2022, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 22.4. (a) The department shall annually prepare a report that includes the following information regarding teachers licensed in Indiana:

- (1) The total number of teachers who hold licenses in one (1) or more content areas.

- (2) The total number of teachers who teach in the content area for which the teacher holds a teaching license.

- (3) The total number of teachers who:

- (A) teach under a license or permit issued by the department;

- (B) completed a teacher preparation program (as defined in IC 20-28-3-1(b)); and

- (C) have not passed the teacher licensing examinations under section 12 of this chapter.

- (4) The percentage of teachers who complete a particular teacher preparation program who are teaching in Indiana:

- (A) five (5) years; and

- (B) ten (10) years;

after completion of the particular teacher preparation program, disaggregated by teacher preparation program.

(b) Not later than October 1 of each year, the department shall submit the report prepared under subsection (a) to the:

- (1) legislative council; and

- (2) interim study committee on education established by IC 2-5-1.3-4;

in an electronic format under IC 5-14-6.

(c) The department shall post the report prepared under subsection (a) on the department's ~~Internet web site~~; **website**.

SECTION 188. IC 20-28-5.5-2, AS ADDED BY P.L.92-2020, SECTION 53, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The department shall:

- (1) publish the requirements established by the state board under this chapter on the department's ~~Internet web site~~; **website**;

- (2) notify teacher preparation programs of training required to be completed as part of the teacher preparation program; and

- (3) notify teachers of training requirements under this chapter that



1 a teacher must complete in order for the teacher to renew the
2 teacher's license under IC 20-28-5.

3 SECTION 189. IC 20-28-9-28, AS AMENDED BY P.L.190-2025,
4 SECTION 5, AND AS AMENDED BY P.L.213-2025, SECTION 172,
5 IS CORRECTED AND AMENDED TO READ AS FOLLOWS
6 [EFFECTIVE JULY 1, 2026]: Sec. 28. (a) ~~Subject to subsection (c),~~
7 For each school year in a state fiscal year beginning after ~~June 30,~~
8 ~~2023, June 30, 2025,~~ a school corporation shall expend an amount for
9 teacher compensation that is not less than an amount equal to ~~sixty-two~~
10 ~~percent (62%)~~ *sixty-five percent (65%)* of the state tuition support,
11 other than the state tuition support described in subsection (b),
12 distributed to the school corporation during the state fiscal year. For
13 purposes of determining whether a school corporation has complied
14 with this requirement, the amount a school corporation expends for
15 teacher compensation shall include the amount the school corporation
16 expends for adjunct teachers, supplemental pay for teachers, stipends,
17 and for participating in a special education cooperative or an interlocal
18 agreement or consortium that is directly attributable to the
19 compensation of teachers employed by the cooperative or interlocal
20 agreement or consortium. The amount a school corporation expends on
21 teacher compensation shall also include the amount the school
22 corporation expends on dropout recovery educational services for an
23 at-risk student enrolled in the school corporation provided by an
24 agreement with an eligible school that is directly attributable to the
25 compensation of teachers employed by the eligible school. Teacher
26 benefits include all benefit categories collected by the department for
27 Form 9 purposes.

28 (b) State tuition support distributed to a school corporation for
29 students enrolled in the school corporation who are receiving one
30 hundred percent (100%) virtual instruction from a teacher employed by
31 a third party provider with whom the school corporation has contracted
32 is not included as state tuition support distributed to the school
33 corporation for purposes of subsection (a).

34 ~~(c) For purposes of determining whether a school corporation has~~
35 ~~complied with the requirement in subsection (a), distributions from the~~
36 ~~curricular materials fund established by IC 20-40-22-5 that are~~
37 ~~deposited in a school corporation's education fund in a state fiscal~~
38 ~~year are not considered to be state tuition support distributed to the~~
39 ~~school corporation during the state fiscal year.~~

40 ~~(d)~~ (c) Before November 1, 2022, and before November 1 of each
41 year thereafter, the department shall submit a report to the legislative
42 council in an electronic format under IC 5-14-6 and the ~~state~~ budget



committee that contains information as to:

- (1) the percent and amount that each school corporation expended and the statewide total expended for teacher compensation;
- (2) the percent and amount that each school corporation expended and statewide total expended for teacher benefits, including health, dental, life insurance, and pension benefits; and
- (3) whether the school corporation met the requirement set forth in subsection (a).

~~(e)~~ (d) The department shall publish the report described in subsection ~~(d)~~ (c) on the department's website.

~~(f)~~ (e) Beginning after June 30, 2024, for each state fiscal year that a school corporation fails to expend the amount for teacher compensation as required under subsection (a), the department shall submit in both a written and an electronic format a notice to the school corporation's:

- (1) superintendent;
- (2) school business officer; and
- (3) governing body;

that the school corporation failed to meet the requirements set forth in subsection (a) for the applicable state fiscal year.

~~(g)~~ (f) If a school corporation's governing body receives a notice from the department under subsection ~~(f)~~ (e), the school corporation shall do the following:

- (1) Publicly acknowledge receipt of the notice from the department at the governing body's next public meeting.
- (2) Enter into the governing body's official minutes for the meeting described in subdivision (1) acknowledgment of the notice.
- (3) Not later than thirty (30) days after the meeting described in subdivision (1), publish on the school corporation's website:
 - (A) the department's notice; and
 - (B) any relevant individual reports prepared by the department.

~~(h)~~ (g) If the department determines a school corporation that received one (1) or more notices from the department under subsection ~~(f)~~ (e) has met the expenditure requirements required under subsection (a) for a subsequent state fiscal year, the school corporation may remove from the school corporation's website any:

- (1) notices the school corporation received under subsection ~~(f)~~ (e); and
- (2) relevant individual reports prepared by the department under subsection ~~(g)~~ (3). (f)(3).



1 SECTION 190. IC 20-29-3-15, AS AMENDED BY P.L.155-2020,
 2 SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 3 JULY 1, 2026]: Sec. 15. (a) The board shall prepare an annual report
 4 covering the previous school year or collective bargaining period that
 5 includes at least the information described in subsection (b). Before
 6 November 15 each year, the board shall:

7 (1) submit the report to the budget committee, department of
 8 education, state board, and legislative council in an electronic
 9 format under IC 5-14-6; and

10 (2) publish the report on the state's interactive and searchable
 11 ~~Internet web site~~ **website** containing local government
 12 information (the Indiana gateway for governmental units).

13 (b) The report must cover at least the following information:

14 (1) The total number of full-time public school teachers and the
 15 number of nonteaching full-time district level administrators.

16 (2) The average tenure of all full-time public school teachers.

17 (3) The number of first-year, full-time teachers hired during the
 18 previous calendar year.

19 (4) The number of full-time teachers who retired during the
 20 interval between the immediately preceding collective bargaining
 21 period and the previous calendar year's collective bargaining
 22 period.

23 (5) The overall average salary of nonteaching full-time district
 24 level administrators.

25 (6) The overall average salary of full-time public school teachers.

26 (7) The statewide average total compensation of full-time public
 27 school teachers, the statewide average daily teacher salary rate,
 28 and the statewide average annual teacher contract days.

29 (8) The statewide average total compensation of full-time public
 30 school administrators, the statewide average daily nonteaching,
 31 full-time, district level administrator salary rate, and the statewide
 32 average annual administrator contract days.

33 (9) The average salary and total compensation of full-time public
 34 school teachers for each school corporation.

35 (10) The average salary and total compensation of nonteaching,
 36 full-time district level administrators, including separately the
 37 superintendent, for each school corporation.

38 (11) The minimum full-time public school teacher salary.

39 (12) The maximum full-time public school teacher salary.

40 (13) The minimum nonteaching full-time district level
 41 administrative salary.

42 (14) The maximum nonteaching full-time district level



- 1 administrative salary.
- 2 (15) The number of full-time public school teachers earning a
- 3 salary under the statewide average.
- 4 (16) The number of full-time public school teachers earning a
- 5 salary in excess of the statewide average.
- 6 (17) For each school corporation, the average salary paid to
- 7 full-time public school teachers in each of the following tenure
- 8 benchmarks:
- 9 (A) First year.
- 10 (B) Fifth year.
- 11 (C) Tenth year.
- 12 (D) Fifteenth year.
- 13 (E) Twentieth year.
- 14 (F) Twenty-fifth year.
- 15 (G) Thirty (30) or more years of service.
- 16 (18) For each school corporation, the nominal dollar figures for
- 17 subdivisions (5), (6), (11), (12), (13), (14), and (17) in nationally
- 18 recognized, open-source, state-specific cost of living
- 19 index-adjusted dollars to compare to the figures described in
- 20 subdivision (19).
- 21 (19) Comparative data on overall full-time public school teacher
- 22 salary averages and by each of the tenure benchmarks listed in
- 23 subdivision (17) in both nominal dollars and nationally
- 24 recognized, open-source, state-specific cost of living
- 25 index-adjusted dollars for each of the following states:
- 26 (A) Illinois.
- 27 (B) Kentucky.
- 28 (C) Michigan.
- 29 (D) Ohio.
- 30 (E) Wisconsin.
- 31 (20) The total number of full-time teachers retained from the
- 32 previous year.
- 33 (21) The total number of newly hired teachers with previous work
- 34 experience in teaching.
- 35 (22) The total number of teaching candidates who:
- 36 (A) are currently enrolled in a teacher preparation program; or
- 37 (B) have recently completed a teacher preparation program.
- 38 (23) The increase or decrease in kindergarten through grade 12
- 39 student enrollments.
- 40 (24) The total number of teachers in Indiana.
- 41 (25) The teacher workforce growth.
- 42 (26) The administrator workforce growth.



(27) For each school corporation, the number of vacant teaching positions by:

- (A) grade;
- (B) subject; and
- (C) required credential;

with critical shortage areas, as determined by unfilled vacancies, highlighted for each school corporation.

As used in this subsection, total compensation includes the monetary value of salary, wages, bonuses, stipends, supplemental payments, commissions, employment benefits, and any other form of remuneration paid for personal services.

(c) The board may require schools to submit any school corporation specific information needed to complete the report. Parties to a collective bargaining agreement shall comply with the board's requests for information necessary to complete the report.

SECTION 191. IC 20-29-5-8, AS ADDED BY P.L.212-2017, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. (a) The board shall develop and maintain training modules, videos, or other instructional material on the board's ~~Internet web site~~ **website** to instruct school employees of their rights under this chapter.

(b) Each school year in which school employee participation in a school employee organization currently serving as the exclusive representative of the bargaining unit does not represent a majority of the school employees within the unit, the board shall notify, in a manner prescribed by the board, the school employees of the bargaining unit of their right to:

- (1) representation under this chapter; and
- (2) the ability to change their exclusive representative under section 3 of this chapter.

SECTION 192. IC 20-29-6-19, AS AMENDED BY P.L.216-2021, SECTION 25, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 19. (a) In addition to holding at least one (1) public hearing with public testimony as described in section 1(b) of this chapter, the school employer must conduct a public meeting to discuss a tentative collective bargaining agreement at least seventy-two (72) hours before it is ratified by the school employer. A school employer may allow governing body members or the public to participate in a public meeting under this section by means of electronic communication.

(b) Notice of the time and the location of the public meeting and a tentative collective bargaining agreement established under this chapter



1 must be posted on the school employer's ~~Internet web site~~ **website** at
 2 least seventy-two (72) hours prior to the public meeting described in
 3 subsection (a).

4 (c) A school employer must allow for public comment at the
 5 meeting at which a tentative collective bargaining agreement is ratified.

6 (d) Not later than fourteen (14) business days after the parties have
 7 reached an agreement under this chapter, the school employer shall
 8 post the contract upon which the parties have agreed on the school
 9 employer's ~~Internet web site~~ **website**.

10 SECTION 193. IC 20-30-16-8, AS ADDED BY P.L.80-2017,
 11 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 12 JULY 1, 2026]: Sec. 8. The department shall:

13 (1) publish the criteria required for approval of a course access
 14 program course; and

15 (2) publish and maintain an updated course access program
 16 catalog including:

17 (A) a list of approved course access program courses provided
 18 by authorized course providers;

19 (B) a description of each approved course access program
 20 course; and

21 (C) in a manner that complies with the privacy provisions of
 22 the federal Family Educational Rights and Privacy Act (20
 23 U.S.C. 1232g), any available completion rate and performance
 24 outcome data;

25 ~~on the department's Internet web site~~.

26 **on the department's website.**

27 SECTION 194. IC 20-30-16-9.5, AS ADDED BY P.L.200-2021,
 28 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 29 JULY 1, 2026]: Sec. 9.5. (a) If a school corporation is an authorized
 30 course provider and offers an approved online course access program
 31 course, the school corporation shall provide to the department and post
 32 on the school corporation's ~~Internet web site~~ **website** the following
 33 information:

34 (1) The name and description of any online course access
 35 program course provided by the school corporation that has open
 36 slots available for student enrollment.

37 (2) The number of open slots in the online course access program
 38 course.

39 (b) The department shall post the information described in
 40 subsection (a) for each school corporation on the department's ~~Internet~~
 41 ~~web site~~ **website**.

42 SECTION 195. IC 20-30-16-12, AS ADDED BY P.L.80-2017,



SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) Beginning November 1, 2019, the department shall submit an annual report by November 1 of each year to the interim study committee on education established by IC 2-5-1.3-4 in an electronic format under IC 5-14-6 and in a manner that protects student privacy. The report must include:

- (1) the number of authorized course providers;
 - (2) the number of approved course access program courses and the number of students enrolled in each course;
 - (3) the number of approved course access program courses available by subject matter;
 - (4) the number of students participating for the first time in approved course access program courses;
 - (5) the number of approved course access program courses each participating student is taking; and
 - (6) student outcome data, including:
 - (A) course access program course completion data;
 - (B) student growth, performance, and growth to proficiency; and
 - (C) student performance on state or nationally accepted assessments;
- by subject area for each course provider.

(b) The department shall publish the report created under subsection (a) on the department's ~~Internet web site~~ **website** in an open format that can be easily searched and downloaded.

(c) By November 1, 2018, the department shall submit a report to the interim study committee on education established by IC 2-5-1.3-4 in an electronic format under IC 5-14-6 and in a manner that protects student privacy. The report must include:

- (1) the number of authorized course providers;
- (2) the number of approved course access program courses and the number of students enrolled in each course; and
- (3) the number of approved course access program courses available by subject matter.

SECTION 196. IC 20-31-8-8, AS ADDED BY P.L.251-2017, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. (a) Before July 1, 2018, the state board shall establish a definition of a high mobility school for schools with a high concentration of mobile students.

(b) For each school year beginning after June 30, 2018, the department shall make a report regarding the performance of high mobility schools. The report shall be posted on the department's



1 ~~Internet web site~~ **website** each year on a date determined by the
2 department.

3 SECTION 197. IC 20-33-12-5, AS ADDED BY P.L.220-2017,
4 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
5 JULY 1, 2026]: Sec. 5. (a) The department, in collaboration with the
6 attorney general's office and organizations with expertise in religious
7 civil liberties, shall establish a model policy addressing the
8 requirements established by this chapter. The model policy shall be
9 made available for school corporations and charter schools to assist a
10 school corporation or charter school in meeting the requirements
11 established by this chapter.

12 (b) The department shall publish the model policy established under
13 subsection (a) on the department's ~~Internet web site:~~ **website.**

14 SECTION 198. IC 20-34-4.5-5, AS ADDED BY P.L.117-2017,
15 SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
16 JULY 1, 2026]: Sec. 5. The department shall:

17 (1) develop guidance materials concerning each emergency
18 medication; and

19 (2) post a copy of the guidance materials on the department's
20 ~~Internet web site:~~ **website.**

21 SECTION 199. IC 20-34-6-1, AS AMENDED BY P.L.83-2018,
22 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
23 JULY 1, 2026]: Sec. 1. (a) By July 1 of each year, each school
24 corporation shall submit a report to the department detailing the
25 following information for the current school year for each school in the
26 school corporation and for the entire school corporation:

27 (1) The number of arrests of students on school corporation
28 property, including arrests made by law enforcement officers,
29 security guards, school safety specialists, and other school
30 corporation employees, and any citizen arrests.

31 (2) The offenses for which students were arrested on school
32 corporation property.

33 (3) The number of contacts with law enforcement personnel from
34 a school corporation employee that have resulted in arrests of
35 students not on school corporation property.

36 (4) Statistics concerning the age, race, and gender of students
37 arrested on school corporation property and categorizing the
38 statistics by offenses.

39 (5) Whether the school corporation has established and employs
40 a school corporation police department under IC 20-26-16, and if
41 so, report:

42 (A) the number of officers in the school corporation police



- 1 department; and
- 2 (B) the training the officers must complete.
- 3 (6) If the school corporation employs private security guards to
- 4 enforce rules or laws on school property, a detailed explanation
- 5 of the use of private security guards by the school corporation.
- 6 (7) If the school corporation has an agreement with a local law
- 7 enforcement agency regarding procedures to arrest students on
- 8 school property, a detailed explanation of the use of the local law
- 9 enforcement agency by the school corporation.
- 10 (8) The number of reported bullying incidents involving a student
- 11 of the school corporation by category. However, nothing in this
- 12 subdivision may be construed to require all bullying incidents to
- 13 be reported to a law enforcement agency.
- 14 (b) By August 1 of each year, the department shall submit a report
- 15 to:
- 16 (1) the legislative council;
- 17 (2) the board for the coordination of programs serving vulnerable
- 18 individuals established by IC 4-23-30.2-8; and
- 19 (3) the criminal justice institute;
- 20 providing a summary of the reports submitted to the department under
- 21 subsection (a). The report to the legislative council must be in an
- 22 electronic format under IC 5-14-6.
- 23 (c) By August 1 of each year, the department must post the reports
- 24 described in subsections (a) and (b) on the department's ~~Internet web~~
- 25 ~~site:~~ **website.**
- 26 (d) Information reported under subsection (a)(8) may not be used in
- 27 the calculation of a school corporation's improvement under
- 28 IC 20-31-8.
- 29 SECTION 200. IC 20-34-8-5, AS AMENDED BY P.L.56-2021,
- 30 SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 31 JULY 1, 2026]: Sec. 5. (a) The department shall disseminate
- 32 guidelines, information sheets, and forms to each state accredited
- 33 nonpublic school, charter school, and each school corporation for
- 34 distribution to schools to inform and educate coaches, marching band
- 35 leaders, applicable students, and parents of applicable students of the
- 36 nature and risk of sudden cardiac arrest to applicable students. The
- 37 guidelines and information sheets must include the following
- 38 information:
- 39 (1) The nature and warning signs of sudden cardiac arrest,
- 40 including the risks associated with continuing to play or practice
- 41 after experiencing one (1) or more symptoms of sudden cardiac
- 42 arrest, including:



- 1 (A) fainting;
- 2 (B) difficulty breathing;
- 3 (C) chest pains;
- 4 (D) dizziness; and
- 5 (E) abnormal racing heart rate.
- 6 (2) Information about electrocardiogram testing, including the
- 7 potential risks, benefits, and evidentiary basis behind
- 8 electrocardiogram testing.
- 9 (b) The department:
- 10 (1) may consult with an association, medical professionals, and
- 11 others with expertise in diagnosing and treating sudden cardiac
- 12 arrest; and
- 13 (2) may request the assistance of an association in disseminating
- 14 the guidelines, information sheets, and forms required under
- 15 subsection (a).
- 16 (c) The department may disseminate the guidelines, information
- 17 sheets, and forms required under this section in an electronic format
- 18 and must be made available on the department's ~~Internet web site.~~
- 19 **website.**
- 20 SECTION 201. IC 20-35-2-1, AS AMENDED BY P.L.201-2025,
- 21 SECTION 5, AND AS AMENDED BY P.L.214-2025, SECTION 188,
- 22 IS CORRECTED AND AMENDED TO READ AS FOLLOWS
- 23 [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) There is established under the
- 24 ~~state board department~~ a division of special education. The division
- 25 shall exercise all the power and duties set out in this chapter,
- 26 IC 20-35-3 through IC 20-35-6, and IC 20-35-8.
- 27 (b) The secretary of education shall appoint a director of special
- 28 education who serves at the pleasure of the secretary of education. ~~The~~
- 29 ~~amount of compensation of the director shall be determined by the~~
- 30 ~~budget agency with the approval of the governor.~~ The director ~~has the~~
- 31 ~~following duties:~~
- 32 ~~(1) To~~ shall do the following:
- 33 ~~(A)~~ (1) Have general supervision of special education programs
- 34 and services, including those conducted by school corporations,
- 35 charter schools, the Indiana School for the Blind and Visually
- 36 Impaired, the Indiana School for the Deaf, the department of
- 37 correction, and the division of mental health and addiction to
- 38 ensure compliance with federal and state special education laws
- 39 and rules.
- 40 ~~(B)~~ (2) Take appropriate action to ensure school corporations,
- 41 charter schools, and the department remain eligible for federal
- 42 special education funds.



~~(C)~~ (3) Oversee the training of hearing officers and establish guidelines as described in IC 20-35-14-5.

~~(2) With the consent of the secretary of education and the budget agency, to appoint and determine salaries for any assistants and other personnel needed to enable the director to accomplish the duties of the director's office.~~

SECTION 202. IC 20-35-12-14, AS AMENDED BY P.L.156-2020, SECTION 81, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. (a) The center shall do the following:

(1) Review the lists provided to the center from the advisory committee under section 13 of this chapter.

(2) Select language developmental milestones to include in the parent resource described in subdivision (5).

(3) Not later than July 1, 2020, inform the advisory committee regarding which language developmental milestones the center selected for the parent resource described in subdivision (5).

(4) Not later than July 1, 2020, approve tools and assessments as provided under this chapter to be used in assessing children who are deaf or hard of hearing.

(5) Prepare a parent resource that:

(A) includes the language developmental milestones described in subdivision (2);

(B) can be used by a parent to monitor and track the expressive and receptive language acquisition and developmental stages toward English literacy of children who are deaf or hard of hearing; and

(C) meets the requirements of subsection (b).

(b) The parent resource prepared by the center under subsection (a)(5) must meet the following requirements:

(1) Be appropriate for use, in both content and administration, with children who:

(A) are less than eleven (11) years of age;

(B) are deaf or hard of hearing; and

(C) use:

(i) ASL;

(ii) English; or

(iii) both ASL and English.

(2) Be written for clarity and ease of use by parents.

(3) Be aligned to the applicable:

(A) state standards for infant, toddler, and preschool assessments;

(B) federal standards for assessing the development of



- 1 children with disabilities; and
- 2 (C) state standards in ASL and English language arts.
- 3 (4) Include information explaining that:
 - 4 (A) the parent resource is not a formal assessment of language
 - 5 and English literacy development; and
 - 6 (B) a parent's observation of the parent's child may differ from
 - 7 formal assessment data presented at a meeting for a child's
 - 8 individualized education program, individualized family
 - 9 service plan, or a plan developed under Section 504 of the
 - 10 federal Rehabilitation Act, 29 U.S.C. 794.
- 11 (5) Contain the language developmental milestones selected by
- 12 the center under this section.
- 13 (6) Present the language developmental milestones in terms of
- 14 development of all children who are less than eleven (11) years of
- 15 age.
- 16 (7) Provide information regarding the general development of
- 17 language, including phonology, semantics, syntax, and
- 18 pragmatics, to a parent whose child uses a language at home that
- 19 is not English or ASL.
- 20 (8) Provide information on additional supports for language
- 21 acquisition, including:
 - 22 (A) amplification device options;
 - 23 (B) ASL services options; and
 - 24 (C) other additional supports determined appropriate by the
 - 25 center.
- 26 (9) Provide information about special education law in Indiana as
- 27 the law applies to children who are deaf or hard of hearing.
- 28 (10) Provide additional information for parents of children who:
 - 29 (A) are deaf or hard of hearing; and
 - 30 (B) have additional disabilities.
- 31 (11) Provide notice that a parent of a child has the right to select
- 32 the language or communication mode for the child's language
- 33 acquisition and developmental milestone tracking.
- 34 (c) The center shall:
 - 35 (1) distribute the parent resource prepared under this section to
 - 36 parents of children who are deaf or hard of hearing; and
 - 37 (2) post the parent resource prepared under this section on the
 - 38 center's ~~Internet web site.~~ **website.**
- 39 SECTION 203. IC 20-35-12-21, AS ADDED BY P.L.260-2019,
- 40 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 41 JULY 1, 2026]: Sec. 21. (a) Before August 1, 2020, and before August
- 42 1 of each year thereafter, the center shall:



(1) prepare a report using data that is submitted under this chapter; and

(2) post the report on the center's ~~Internet web site~~: **website**.

The report may not include any data that identifies an individual child.

(b) The report prepared under subsection (a) must include data that considers the language and English literacy development of children who are:

(1) less than eleven (11) years of age; and

(2) deaf or hard of hearing;

in relation to the children's peers who are not deaf or hard of hearing.

SECTION 204. IC 20-35.5-5-2, AS ADDED BY P.L.95-2018, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. Before July 15, 2019, and before July 15 of each year thereafter, each school corporation and charter school shall report on the school corporation's or charter school's ~~Internet web site~~ **website** the following information:

(1) The dyslexia intervention programs that were used during the previous school year to assist students with dyslexia.

(2) The number of students during the previous school year who received dyslexia intervention under this article.

(3) The total number of students identified with dyslexia during the previous school year.

SECTION 205. IC 20-35.5-7-2, AS ADDED BY P.L.95-2018, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The department shall:

(1) develop and update an Indiana dyslexia resource guide; and

(2) post the guide on the department's ~~Internet web site~~: **website**.

SECTION 206. IC 20-37-2-11, AS AMENDED BY P.L.143-2019, SECTION 27, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. (a) As used in this section, "career and technical education course" means a career and technical education course that is an approved course under the rules of the state board.

(b) Except as provided in subsection (c), a school corporation that has entered into an agreement for a joint program of career and technical education with one (1) or more other school corporations may not add a new career and technical education course to its curriculum unless the course has been approved in the following manner:

(1) In the case of an agreement under IC 20-37-1, the course must be approved by the management board for the joint program.

(2) In the case of an agreement under IC 20-26-10, the course must be approved by the governing body of the school corporation that is designated to administer the joint program under



1 IC 20-26-10-3. However, if that governing body refuses to
 2 approve the course, the course may be approved by a majority of
 3 the governing bodies of the school corporations that are parties to
 4 the agreement.

5 (c) A school that has entered into an agreement for a joint program
 6 of career and technical education may add a new career and technical
 7 education course to its curriculum without being approved under
 8 subsection (b)(1) or (b)(2) if the course is being offered in partnership
 9 with an employer or an employer and either:

10 (1) a postsecondary educational institution; or

11 (2) a third party trainer that is eligible to receive funding under
 12 the federal Workforce Innovation and Opportunity Act (WIOA)
 13 of 2014 under 29 U.S.C. 3101 et seq., including reauthorizations
 14 of WIOA, and is listed on the department of workforce
 15 development's eligible training provider list on the department of
 16 workforce development's ~~Internet web site~~ **website**.

17 (d) A student who is enrolled or was enrolled in a career and
 18 technical education course after June 30, 2018, that:

19 (1) is or was offered by a school corporation; and

20 (2) meets the requirements set forth in subsection (c);

21 shall receive credit for successfully completing the course regardless
 22 of whether the course has been approved under subsection (b)(1) or
 23 (b)(2).

24 (e) Subject to IC 20-43-8-7.5 and any applicable federal law, a
 25 course that meets the requirements set forth in subsection (c) that is
 26 offered by a school corporation after June 30, 2018, is eligible for state
 27 and federal career and technical education funding.

28 SECTION 207. IC 20-40-2-9, AS AMENDED BY P.L.139-2022,
 29 SECTION 20, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 30 JULY 1, 2026]: Sec. 9. (a) For each school corporation included on the
 31 excessive education fund transfer list required under section 6 of this
 32 chapter, the department shall, not later than April 1 of each year,
 33 submit in both a written and an electronic format a notice to the school
 34 corporation's superintendent, school business officer, and governing
 35 body that the school corporation did not meet its education fund
 36 transfer target percentage for the previous calendar year.

37 (b) If a school corporation's governing body receives a notice from
 38 the department under subsection (a), the school corporation shall do all
 39 of the following:

40 (1) Publicly acknowledge receipt of the excessive education fund
 41 transfer list notice from the department at the governing body's
 42 next public meeting.



(2) Enter into the governing body's official minutes for that meeting acknowledgment of the notice.

(3) Publish on the school corporation's ~~Internet web site~~ **website** the department's notice and any relevant individual reports prepared by the department within thirty (30) days after the public meeting.

SECTION 208. IC 20-40-18-6, AS AMENDED BY P.L.238-2019, SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) A school corporation's capital projects expenditure plan or amended plan must limit proposed expenditures to those described in section 7 of this chapter. The plan must include all proposed expenditures that exceed ten thousand dollars (\$10,000) and are for:

(1) capital assets; or

(2) projects that are considered capital in nature under section 7 of this chapter, including technology related projects.

The department of local government finance shall prescribe the information that is required in a plan.

(b) The department of local government finance shall prescribe the format of the plan. A plan must:

(1) apply to at least the three (3) years immediately following the year the plan is adopted; and

(2) estimate for each year to which the plan applies the nature and amount of proposed capital expenditures from the fund.

(c) If a school corporation wants to use money in the operations fund during the year to pay for any items listed in section 7 of this chapter that are considered capital in nature, the governing body must adopt a resolution approving the plan or amended plan. The school corporation shall post the proposed plan or proposed amended plan on the school corporation's ~~Internet web site~~ **website** before the hearing. The governing body must hold a hearing on the adoption of the resolution as follows:

(1) For a school corporation that has not elected to adopt a budget under IC 6-1.1-17-5.6 or for which a resolution adopted under IC 6-1.1-17-5.6(d) is in effect, the school corporation must hold the hearing and adopt the resolution after January 1 and not later than November 1 of the immediately preceding year.

(2) For a school corporation that elects to adopt a budget under IC 6-1.1-17-5.6, the school corporation must hold the hearing and adopt the resolution after January 1 and not later than April 1 of the immediately preceding school fiscal year.

The governing body shall submit the proposed capital projects



1 expenditure plan or amended plan to the department of local
 2 government finance's computer gateway at least ten (10) days before
 3 the hearing on the adoption of the resolution. The department of local
 4 government finance shall make the proposed plan available to
 5 taxpayers, at least ten (10) days before the hearing, through the
 6 department's computer gateway. The department of local government
 7 finance's computer gateway must allow a taxpayer to search for the
 8 proposed plan under this section by the taxpayer's address. If an
 9 amendment to a capital projects expenditure plan is being proposed,
 10 the governing body must declare the nature of and the need for the
 11 amendment in the resolution to adopt the amendment to the plan. The
 12 plan, as proposed to be amended, must comply with the requirements
 13 for a plan under this section.

14 (d) If a governing body adopts the resolution specified in subsection
 15 (c), the school corporation must then submit the resolution to the
 16 department of local government finance in the manner prescribed by
 17 the department. In addition, the governing body shall submit the plan
 18 or amended plan that is approved in the resolution to the department of
 19 local government finance's computer gateway not later than thirty (30)
 20 days after adoption of the resolution. The department of local
 21 government finance shall immediately make the adopted plan available
 22 to taxpayers through the department's computer gateway.

23 (e) This subsection applies to an amendment to a plan that is
 24 required because of an emergency that results in costs that exceed the
 25 amount accumulated in the fund for repair, replacement, or site
 26 acquisition that is necessitated by an emergency. The governing body
 27 is not required to comply with subsection (c) or (d). If the governing
 28 body determines that an emergency exists, the governing body may
 29 adopt a resolution to amend the plan. An amendment to the plan is not
 30 subject to the deadline and the procedures for adoption described in
 31 this section.

32 SECTION 209. IC 20-40-18-9, AS AMENDED BY P.L.238-2019,
 33 SECTION 15, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 34 JULY 1, 2026]: Sec. 9. (a) Before a school corporation may use money
 35 in the operations fund for replacing school buses, a resolution
 36 approving the school bus replacement plan or amended plan must be
 37 submitted to the department of local government finance.

38 (b) The department of local government finance shall prescribe the
 39 format of the plan. A plan must apply to at least the five (5) budget
 40 years immediately following the year the plan is adopted and include
 41 at least the following:

42 (1) An estimate for each year to which it applies of the nature and



amount of proposed expenditures from the fund.

(2) If the school corporation is seeking to:

(A) acquire; or

(B) contract for transportation services that will provide; additional school buses or school buses with a larger seating capacity as compared with the number and type of school buses from the prior school year, evidence of a demand for increased transportation services within the school corporation. Clause (B) does not apply if contracted transportation services are not paid from the fund.

(3) If the school corporation is seeking to require a contractor to replace a school bus, evidence that the need exists for the replacement of the school bus. This subdivision does not apply if contracted transportation services are not paid from the operations fund.

(4) Evidence that the school corporation that seeks to acquire additional school buses under this section is acquiring or contracting for the school buses only for the purposes specified in subdivision (2) or for replacement purposes.

(c) If a school corporation wants to use money in the operations fund during the year to pay for school bus replacement, the governing body must adopt a resolution approving the bus replacement plan or amended plan. The school corporation shall post the proposed plan or proposed amended plan on the school corporation's ~~Internet web site~~ **website** before the hearing. The governing body must hold a hearing on the adoption of the resolution as follows:

(1) For a school corporation that has not elected to adopt a budget under IC 6-1.1-17-5.6 or for which a resolution adopted under IC 6-1.1-17-5.6(d) is in effect, the school corporation must hold the hearing and adopt the resolution after January 1 and not later than November 1 of the immediately preceding year.

(2) For a school corporation that elects to adopt a budget under IC 6-1.1-17-5.6, the school corporation must hold the hearing and adopt the resolution after January 1 and not later than April 1 of the immediately preceding school fiscal year.

The governing body shall submit the proposed school bus replacement plan or amended plan to the department of local government finance's computer gateway at least ten (10) days before the hearing on the adoption of the resolution. The department of local government finance shall make the proposed plan available to taxpayers, at least ten (10) days before the hearing, through the department's computer gateway. The department of local government finance's computer gateway must



1 allow a taxpayer to search for the proposed plan under this section by
 2 the taxpayer's address. If an amendment to a bus replacement plan is
 3 being proposed, the governing body must declare the nature of and the
 4 need for the amendment in the resolution to adopt the amendment to
 5 the plan. The plan, as proposed to be amended, must comply with the
 6 requirements for a plan under this section.

7 (d) If a governing body adopts the resolution specified in subsection
 8 (c), the school corporation must then submit the resolution to the
 9 department of local government finance in the manner prescribed by
 10 the department. In addition, the governing body shall submit the school
 11 bus replacement plan or amended plan that is approved in the
 12 resolution to the department of local government finance's computer
 13 gateway not later than thirty (30) days after adoption of the resolution.
 14 The department of local government finance shall immediately make
 15 the adopted plan available to taxpayers through the department's
 16 computer gateway.

17 (e) The operations fund must be used to pay for the replacement of
 18 school buses, either through a purchase agreement or under a lease
 19 agreement.

20 (f) Before the last Thursday in August in the year preceding the first
 21 school year in which a proposed contract commences, the governing
 22 body of a school corporation may elect to designate a part of a:

- 23 (1) transportation contract (as defined in IC 20-27-2-12);
- 24 (2) fleet contract (as defined in IC 20-27-2-5); or
- 25 (3) common carrier contract (as defined in IC 20-27-2-3);

26 as an expenditure payable from the fund. An election under this
 27 subsection must be included in the resolution approving the school bus
 28 replacement plan or amended plan. The election applies throughout the
 29 term of the contract.

30 (g) The amount that may be paid from the fund under this section in
 31 a school year is equal to the fair market lease value in the school year
 32 of each school bus, school bus chassis, or school bus body used under
 33 the contract, as substantiated by invoices, depreciation schedules, and
 34 other documented information available to the school corporation.

35 (h) The allocation of costs under this section to the fund must
 36 comply with the accounting standards prescribed by the state board of
 37 accounts.

38 SECTION 210. IC 20-43-8-7.5, AS AMENDED BY P.L.108-2019,
 39 SECTION 227, IS AMENDED TO READ AS FOLLOWS
 40 [EFFECTIVE JULY 1, 2026]: Sec. 7.5. (a) The department of
 41 workforce development shall designate each career and technical
 42 education program as:



- (1) an apprenticeship program;
- (2) a cooperative education program;
- (3) a work based learning program;
- (4) a high value program;
- (5) a moderate value program;
- (6) a less than moderate value program;
- (7) an introductory program; or
- (8) a foundational career and technical education course.

The designation of career and technical education programs by the department of workforce development under this section must be reviewed and approved by the state board as provided in this section.

(b) Not later than December 1, 2019, and each December 1 thereafter, the department of workforce development shall designate each career and technical education program as:

- (1) an apprenticeship program;
- (2) a work based learning program;
- (3) a high value level 1 program;
- (4) a high value level 2 program;
- (5) a moderate value level 1 program;
- (6) a moderate value level 2 program;
- (7) a less than moderate value level 1 program;
- (8) a less than moderate value level 2 program;
- (9) a planning for college and career course; or
- (10) an introductory program.

The designation of career and technical education programs by the department of workforce development under this section must be reviewed and approved by the state board as provided in this section.

(c) If a new career and technical education program is created by rule, the department of workforce development shall determine the category in which the program is designated under subsection (a) or (b). A career and technical education program must be approved by the department of workforce development in order for a school corporation to be eligible to receive a grant amount for the career and technical education program under section 15 of this chapter.

(d) Not later than December 1 of each year, the department of workforce development shall provide a report to the state board that includes the following information:

- (1) A list of the career and technical education courses for the next school year that are designated by the department of workforce development under this section.
- (2) The labor market demand used to designate each career and technical education program under this section.



(3) The average wage level used to designate each career and technical education program under this section.

(4) If applicable, the labor market demand and average wage level data for specific regions, counties, and municipalities.

(5) Any other information pertinent to the methodology used by the department of workforce development to designate each career and technical education program under this section.

(e) Not later than January 1 of each year, the state board shall review and approve the report provided by the department of workforce development under subsection (d) at a public meeting to ensure that the list of courses is in compliance with the long range state plan developed under IC 20-20-38-4. Not later than January 1 of each year, the state board shall send its determination to the department of workforce development. Upon receipt of the state board's determination, the department of workforce development shall provide the approved report to the department.

(f) The department of workforce development shall publish the approved report under subsection (e) on the department of workforce development's ~~Internet web site~~, **website**, including the following:

(1) The list of career and technical education programs that are designated by the department of workforce development under this section.

(2) The labor market demand used to designate each career and technical education program under this section.

(3) The average wage level used to designate each career and technical education program under this section.

(4) If applicable, the labor market demand and average wage level data for specific regions, counties, and municipalities.

(5) Any other information pertinent to the methodology used by the department of workforce development to designate each career and technical education program under this section.

In addition, the department shall notify all school corporations of the state board's approval of the report under subsection (e) and provide a link within the notice to the approved report published on the department of workforce development's ~~Internet web site~~ **website** under this subsection.

SECTION 211. IC 20-43-8-13, AS AMENDED BY P.L.108-2019, SECTION 228, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. (a) A school corporation shall count each pupil enrolled in a program designated under section 7.5 of this chapter for the purposes of determining a school corporation's career and technical education enrollment grant under section 15 of this



chapter. Each school corporation shall report its pupil enrollment count under this section to the department.

(b) A pupil may be counted in more than one (1) of the career and technical education programs if the pupil is enrolled in more than one (1) of the career and technical education programs at the time pupil enrollment is determined.

(c) If the department adjusts a count of ADM after a distribution is made under this chapter, the adjusted count retroactively applies to the grant amounts distributed to a school corporation affected by the adjusted count. The department shall settle any overpayment or underpayment of grant amounts resulting from an adjusted count of ADM on a schedule determined by the department and approved by the budget agency.

(d) The distribution of the grant amounts under this chapter shall be made each state fiscal year under a schedule set by the budget agency and approved by the governor.

(e) The department shall report the pupil count for each career and technical education program in which the school corporation includes pupils in the school corporation's enrollment count under subsection (b). The department shall estimate the per pupil cost of each program and report the average per pupil expenditure for each school corporation in the state fiscal year beginning July 1, 2016, and in the state fiscal year beginning July 1, 2017, and the projected statewide average per pupil expenditure for the state fiscal year beginning July 1, 2018. The department shall post the school corporation's pupil count and per pupil costs on the department's ~~Internet web site:~~ **website**.

SECTION 212. IC 20-46-1-22, AS ADDED BY P.L.68-2025, SECTION 222, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 22. (a) This section applies to revenue received from a referendum levy if both of the following apply:

(1) The:

(A) governing body of the school corporation approves the referendum levy in a resolution adopted under section 8 or 8.5 of this chapter; and

(B) resulting referendum levy is imposed for the first time with property taxes first due and payable in a calendar year beginning after December 31, 2027.

(2) The number of students who have legal settlement in the school corporation but attend a charter school, excluding virtual charter schools and adult high schools, and receive not more than fifty percent (50%) virtual instruction is at least the greater of:

(A) one hundred (100) students; or



- 1 (B) two percent (2%) of the school corporation's spring ADM
 2 count, excluding students who receive more than fifty percent
 3 (50%) virtual instruction.
- 4 (b) As used in this section, "eligible charter school" means a charter
 5 school attended by a student who:
 6 (1) has legal settlement in a school corporation that imposes a
 7 referendum levy under this chapter; and
 8 (2) receives not more than fifty percent (50%) virtual instruction.
 9 However, the term does not include a virtual charter school or an adult
 10 high school.
- 11 (c) The following schools are not eligible to receive, and may not be
 12 considered in a calculation made for purposes of, a distribution under
 13 this section:
 14 (1) A virtual charter school.
 15 (2) An adult high school.
- 16 (d) Subject to subsections (j) and (l), the county auditor in the
 17 county in which the school corporation is located shall distribute to
 18 each eligible charter school, in the manner provided under this section,
 19 an amount of revenue received from a tax levy imposed by a school
 20 corporation under this chapter unless the charter school elects to not
 21 participate in the referendum under section 8(h) of this chapter.
- 22 (e) For the purposes of the calculations made in this section, each
 23 eligible charter school that has entered into an agreement with a school
 24 corporation to participate as a participating innovation network charter
 25 school under IC 20-25.7-5 is considered to have an ADM that is
 26 separate from the school corporation.
- 27 (f) Not later than January 1, 2028, and not later than January 1 of
 28 each year thereafter, the department, in consultation with the
 29 department of local government finance, shall determine, for each
 30 school corporation, the corresponding percentages of revenue received
 31 from the tax levy that must be distributed among the school corporation
 32 and each eligible charter school according to the following formula:
 33 STEP ONE: Determine, for each eligible charter school, the
 34 number of students who:
 35 (A) have legal settlement within the school corporation;
 36 (B) are currently included in the fall ADM count for the
 37 charter school; and
 38 (C) receive not more than fifty percent (50%) virtual
 39 instruction.
- 40 STEP TWO: Determine the sum of:
 41 (A) the aggregate of the STEP ONE results for all eligible
 42 charter schools with respect to the school corporation; plus



(B) the fall ADM count for the school corporation for students receiving not more than fifty percent (50%) virtual instruction.

STEP THREE: For each eligible charter school, determine the result of:

(A) the applicable STEP ONE amount; divided by

(B) the STEP TWO amount;

expressed as a percentage.

STEP FOUR: Determine the sum of all the amounts computed under STEP THREE and subtract the result from one hundred percent (100%).

(g) The department shall provide to the county auditor, immediately after calculation under ~~subsection (g)~~: **subsection (f)**:

(1) each eligible charter school and the eligible charter school's corresponding percentage calculated under STEP THREE of subsection (f); and

(2) the percentage calculated under STEP FOUR of subsection (f) for the school corporation.

(h) Subject to subsections (k) and ~~(m)~~, **(l)**, when the county auditor distributes property tax revenue, the county auditor shall distribute to the school corporation and each eligible charter school the amount determined in the last STEP of the following STEPS:

STEP ONE: Determine the amount collected in the most recent installment period by the school corporation from the school corporation's referendum levy imposed under this chapter.

STEP TWO: To determine the distribution for the school corporation and each eligible charter school, determine the result of:

(A) the sum of:

(i) the STEP ONE result; plus

(ii) any amount withheld in the previous year under subsection (k); multiplied by

(B) the following percentage:

(i) In the case of an eligible charter school, the charter school's percentage under STEP THREE of subsection (f).

(ii) In the case of the school corporation, the school corporation's percentage under STEP FOUR of subsection (f).

(i) Not later than August 15, 2027, and not later than August 15 of each calendar year thereafter, the department shall provide to each school corporation and each eligible charter school an estimate of the amount of property tax levy revenue the school corporation and eligible charter school are expected to receive under this section in the



subsequent calendar year based on the most recent fall ADM count.

(j) This subsection applies beginning with distributions of property tax revenue under this section in 2028 and thereafter. In order to receive a distribution under this section, the governing body of an eligible charter school shall, not later than October 15, 2027, and not later than October 15 of each calendar year thereafter, adopt a budget for the current school year. Not later than ten (10) days before its adoption, the budget must be fixed and presented to the charter board in a public meeting in the county in which the eligible charter school is incorporated. Not later than November 1, 2027, and not later than November 1 of each calendar year thereafter, the governing body of the charter school shall submit:

- (1) the budget that is adopted under this subsection;
- (2) the dates on which each requirement under this subsection were met; and
- (3) a statement from the governing body of the charter school attesting that the dates provided in subdivision (2) are true and accurate and that the budget was properly adopted under this subsection;

to the charter authorizer for review and to the department of local government finance to be posted publicly on the computer gateway under IC 6-1.1-17-3.

(k) If an eligible charter school does not satisfy the requirements of subsection (j) to receive distributions under this section during a calendar year, as determined by the department of local government finance, the eligible charter school may not receive a distribution of property tax revenue in that calendar year and the county auditor shall withhold the eligible charter school's distribution amount. The department of local government finance's determination of compliance consists only of a confirmation that the adopted budget and attestation statement are submitted not later than the applicable date under subsection (j). Any distribution amount withheld under this subsection shall be:

- (1) added to the property tax revenue collections as described in STEP TWO of subsection (h); and
- (2) distributed among the school corporation and eligible charter schools according to subsection (h);

in the calendar year that immediately follows the calendar year in which the distribution amount was withheld.

(l) A charter school is not eligible for a distribution under this section from property tax revenue collected from a particular referendum levy if the charter school does not have a certified fall



1 ADM count in the calendar year immediately preceding the calendar
 2 year in which the public question for the referendum appears on the
 3 ballot.

4 SECTION 213. IC 20-50-1-4, AS AMENDED BY P.L.155-2019,
 5 SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 6 JULY 1, 2026]: Sec. 4. Each school corporation shall report to the
 7 department, by August 1 of each year, the name and contact
 8 information of the school corporation's liaison for homeless children.
 9 The department shall post a list of local liaisons on its ~~Internet web site,~~
 10 **website**, updated annually.

11 SECTION 214. IC 20-50-1-5, AS AMENDED BY P.L.155-2019,
 12 SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 13 JULY 1, 2026]: Sec. 5. (a) Each school corporation that has ~~an Internet~~
 14 ~~web site~~ **a website** shall post the contact information of the school
 15 corporation's liaison for homeless children on the school corporation's
 16 ~~Internet web site:~~ **website**.

17 (b) Each local educational agency shall post certain information
 18 concerning the McKinney-Vento Act on its ~~Internet web site,~~ **website**,
 19 which may include the following:

- 20 (1) A list of homeless students rights.
- 21 (2) A resource link to the department's ~~Internet web site:~~ **website**.
- 22 (3) A directory of state and federal resources.
- 23 (4) The contact information for the state coordinator.
- 24 (5) Relevant newsletters and bulletins.

25 (c) Pursuant to the McKinney-Vento Act, the department shall post
 26 the verified and certified number of children and youths identified as
 27 homeless on its ~~Internet web site,~~ **website**, updated annually.

28 SECTION 215. IC 20-51-1-4.7, AS AMENDED BY P.L.199-2025,
 29 SECTION 4, AND AS AMENDED BY P.L.214-2025, SECTION 208,
 30 IS CORRECTED AND AMENDED TO READ AS FOLLOWS
 31 [EFFECTIVE JULY 1, 2026]: Sec. 4.7. "Eligible school" refers to a
 32 public or nonpublic elementary school or high school that:

- 33 (1) is located in Indiana;
- 34 (2) requires an eligible choice scholarship student to pay tuition
 35 ~~or transfer tuition~~ to attend;
- 36 (3) voluntarily agrees to enroll an eligible choice scholarship
 37 student;
- 38 (4) is accredited by ~~either~~ the state board or *is accredited by or*
 39 *obtains provisional accreditation from* a national or regional
 40 accreditation agency that is recognized by the state board;
- 41 (5) administers the statewide assessment program;
- 42 (6) is not a charter school or the school corporation in which an



1 eligible choice scholarship student has legal settlement under
2 IC 20-26-11; and

3 (7) submits to the department only the student performance data
4 required for a category designation under IC 20-31-8-3.

5 SECTION 216. IC 20-51-2-1, AS ADDED BY P.L.182-2009(ss),
6 SECTION 364, IS AMENDED TO READ AS FOLLOWS
7 [EFFECTIVE JULY 1, 2026]: Sec. 1. The department shall maintain
8 a publicly available list of the school scholarship programs certified by
9 the department. The list must contain names, addresses, and any other
10 information that the department determines is necessary for the public
11 to determine which scholarship granting organizations conduct school
12 scholarship programs. A current list must be posted on ~~an Internet web~~
13 **site a website** used by the department to provide information to the
14 public.

15 SECTION 217. IC 20-51-4-12, AS ADDED BY P.L.94-2017,
16 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
17 JULY 1, 2026]: Sec. 12. (a) Subject to subsection (b), the department
18 shall distribute to each school corporation, for each spring semester and
19 each fall semester, the following information:

20 (1) The name of each eligible school in which an eligible choice
21 scholarship student who has legal settlement in the school
22 corporation is enrolled.

23 (2) The number of eligible choice scholarship students described
24 in subdivision (1) who are enrolled in each eligible school for the
25 school year.

26 (3) The total number of students who have legal settlement in the
27 school corporation and attend a:

28 (A) public school maintained by another school corporation in
29 Indiana; or

30 (B) charter school located in Indiana.

31 (4) The name (or description, if the school does not have a name)
32 of the public or charter school to which a student described in
33 subdivision (3) has transferred.

34 (5) The number of students described in subdivision (3) who have
35 transferred to each school described in subdivision (4).

36 (b) The department shall distribute the information described in
37 subsection (a):

38 (1) for each spring semester, not later than December 31 of the
39 following school year; and

40 (2) for each fall semester, not later than May 31 of the same
41 school year.

42 (c) The department shall post the information described in



1 subsection (a) on the department's ~~Internet web site:~~ **website.**

2 (d) Any information distributed or posted under this section may not
3 disclose any personally identifiable information regarding a student.

4 SECTION 218. IC 20-51.4-5-2, AS AMENDED BY P.L.199-2025,
5 SECTION 5, AND AS AMENDED BY P.L.213-2025, SECTION 231,
6 IS CORRECTED AND AMENDED TO READ AS FOLLOWS
7 [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) The following individuals or
8 entities may become an ESA participating entity by submitting an
9 application to the *treasurer of state department* in a manner prescribed
10 by the ~~*treasurer of state:* department:~~

11 (1) A qualified school.

12 (2) An individual who or tutoring agency that provides private
13 tutoring.

14 (3) An individual who or entity that provides services to a student
15 with a disability in accordance with an individualized education
16 program developed under IC 20-35 or a service plan developed
17 under 511 IAC 7-34 or generally accepted standards of care
18 prescribed by the eligible student's treating physician.

19 (4) *Subject to section 7 of this chapter,* an individual who or
20 entity that offers a course or program to an eligible student.

21 (5) A licensed occupational therapist.

22 (6) Entities that provide assessments.

23 (b) The *treasurer of state department* shall approve an application
24 submitted under subsection (a) if the individual or entity meets the
25 criteria to serve as an ESA participating entity.

26 (c) If it is reasonably expected by the *treasurer of state department*
27 that an ESA participating entity will receive, from payments made
28 under the ESA program, more than one hundred thousand dollars
29 (\$100,000) during a particular school year, the ESA participating entity
30 shall, on or before a date prescribed by the *treasurer of state*
31 *department* provide the *treasurer of state department* evidence, in a
32 manner prescribed by the ~~*treasurer of state:* department,~~ indicating that
33 the ESA participating entity has unencumbered assets sufficient to pay
34 the *treasurer of state department* an amount equal to the amount
35 expected to be paid to the ESA participating entity under the ESA
36 program during the particular school year.

37 (d) Each ESA participating entity that accepts payments made from
38 an ESA account under this article shall provide a receipt to the parent
39 of an eligible student or to the emancipated eligible student for each
40 payment made.

41 SECTION 219. IC 20-51.4-5-4, AS AMENDED BY P.L.199-2025,
42 SECTION 6, AND AS AMENDED BY P.L.213-2025, SECTION 232,



1 IS CORRECTED AND AMENDED TO READ AS FOLLOWS
 2 [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) The *treasurer of state*
 3 *department* may refuse to allow an ESA participating entity to continue
 4 participation in the ESA program and revoke the ESA participating
 5 entity's status as an ESA participating entity if the *treasurer of state*
 6 *department* determines that the ESA participating entity accepts
 7 payments made from an ESA account under this article and:

8 (1) has failed to provide any educational service required by state
 9 or federal law to an eligible student receiving instruction from the
 10 ESA participating entity; ~~or~~

11 (2) has routinely failed to meet the requirements of an ESA
 12 participating entity under the ESA program; *or*

13 (3) *violates section 7 of this chapter.*

14 (b) If the *treasurer of state department* revokes an ESA
 15 participating entity's status as an ESA participating entity in the ESA
 16 program, the *treasurer of state department* shall provide notice of the
 17 revocation within thirty (30) days of the revocation to each parent of an
 18 eligible student and to each emancipated eligible student receiving
 19 instruction from the ESA participating entity who has paid the ESA
 20 participating entity from the eligible student's ESA account.

21 (c) The *treasurer of state department* may permit a former ESA
 22 participating entity described in subsection (a) to reapply with the
 23 *treasurer of state department* for authorization to be an ESA
 24 participating entity on a date established by the *treasurer of state*;
 25 *department*, which may not be earlier than one (1) year after the date
 26 on which the former ESA participating entity's status as an ESA
 27 participating entity was revoked under subsection (a). The *treasurer of*
 28 *state department* may establish reasonable criteria or requirements that
 29 the former ESA participating entity must meet before being reapproved
 30 by the *treasurer of state department* as an ESA participating entity.

31 SECTION 220. IC 20-51.4-5-8, AS ADDED BY P.L.199-2025,
 32 SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 33 JULY 1, 2026]: Sec. 8. If the **treasurer of state department** revokes the
 34 ESA participating entity's status under section 4(a) of this chapter, the:

35 (1) **treasurer of state department** may:

36 (A) terminate the ESA participating entity's account; and

37 (B) require the ESA participating entity to repay any
 38 improperly received funds under this article to the ESA
 39 program; and

40 (2) attorney general may petition a court with jurisdiction to
 41 impose a civil penalty against the ESA participating entity in a
 42 amount that does not exceed five thousand dollars (\$5,000).



SECTION 221. IC 21-14-8-1, AS AMENDED BY P.L.125-2013, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) A state educational institution shall waive tuition for a student who is:

- (1) eligible for free or reduced **price** lunch in high school;
- (2) accepted into a postsecondary enrollment opportunity under IC 21-43-4; and
- (3) accepted for admission to the state educational institution.

(b) The high school a student attends shall certify the student's income to a state educational institution to determine the student's eligibility for a tuition and fee waiver under this section.

(c) A high school may certify a student's eligibility for a tuition and fee waiver under this section based upon any of the following types of information:

- (1) A free or reduced **price** lunch application form.
- (2) A state or federal income tax return.
- (3) A certification from the office of the secretary of family and social services.
- (4) Any state agency certification based upon income records.

SECTION 222. IC 21-41-10-10, AS ADDED BY P.L.4-2014, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) Each state educational institution shall designate a program coordinator.

(b) The duties of the coordinator include the following:

- (1) Develop programs to create a positive educational environment for veteran students while the veteran student is enrolled at the state educational institution.
- (2) Develop training programs for the state educational institution's personnel relating to:
 - (A) issues associated with identifying and assisting veteran students with posttraumatic stress disorder;
 - (B) veteran benefits; and
 - (C) any issue that the coordinator determines will educate a state educational institution's faculty or staff of the special needs of veteran students.
- (3) Make recommendations to the commission for higher education established under IC 21-18-2 concerning ways to improve the education of veteran students.
- (4) Coordinate access to stress management, counseling programs, and other resources available to a veteran student at the state educational institution.
- (5) Coordinate with the Indiana department of veterans' affairs



established by IC 10-17-1-2 to educate veteran students about state benefits available to Indiana veterans.

(6) Coordinate with the United States Department of Veterans Affairs to educate veteran students about federal benefits available to veterans.

(7) Coordinate with the adjutant general or the adjutant general's designee to educate veteran students about benefits and programs available to veteran students who served or are currently serving in the national guard.

(8) Coordinate activities, seminars, and programs for veteran students presented by a veterans organization.

(9) Coordinate campus activities and social events designed for veteran students.

(10) Develop programs to assist a veteran student to locate employment.

(11) Develop internship programs designed specifically for veteran students.

(12) Develop ~~an Internet web site~~ **a website** to provide veteran students access to veteran resources.

SECTION 223. IC 21-42-6-6, AS ADDED BY P.L.120-2013, SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. The commission for higher education and each state educational institution shall publicize by all appropriate means, including publication on the ~~Internet web site~~ **website** of the commission for higher education and the ~~Internet web site~~ **website** of each state educational institution, the availability of and requirements for the completion of a degree through a single articulation pathway created under section 4 of this chapter.

SECTION 224. IC 21-42-7-2, AS AMENDED BY P.L.101-2014, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) Each state educational institution shall adopt a policy to award educational credit to an individual who:

(1) is enrolled in a state educational institution; and

(2) successfully:

(A) completes courses that:

(i) are part of the individual's military service;

(ii) meet the standards of the American Council on Education, or the council's successor organization, for awarding academic credit; and

(iii) meet the state educational institution's role, scope, and mission;

(B) completes:



- 1 (i) a College-Level Examination Program (CLEP) exam
- 2 developed by the College Board and receives a score of fifty
- 3 (50) or higher;
- 4 (ii) a United States Department of Defense's Defense
- 5 Activity for Non-Traditional Education Support Program
- 6 examination; or
- 7 (iii) an Excelsior College Examination;
- 8 that meets the state educational institution's role, scope, and
- 9 mission during the individual's military service in an active or
- 10 reserve component of the armed forces of the United States or
- 11 the Indiana National Guard or upon the individual's receiving
- 12 an honorable discharge from the armed forces of the United
- 13 States or the Indiana National Guard; or
- 14 (C) completes courses at a postsecondary educational
- 15 institution accredited by a regional accrediting agency or
- 16 association:
- 17 (i) during the individual's military service in an active or
- 18 reserve component of the armed forces of the United States
- 19 or the Indiana National Guard or upon the individual's
- 20 receiving an honorable discharge from the armed forces of
- 21 the United States or the Indiana National Guard; and
- 22 (ii) that meet the state educational institution's role, scope,
- 23 and mission.
- 24 (b) The state educational institution's policy described in subsection
- 25 (a) must provide that educational credit awarded to an individual under
- 26 this section applies to the individual's undergraduate degree
- 27 requirements if the credit is comparable and applicable, as reasonably
- 28 determined by the state educational institution, to credit offered by the
- 29 state educational institution and is necessary for the individual to meet
- 30 the individual's undergraduate degree requirements at the state
- 31 educational institution.
- 32 (c) Each state educational institution's policy described in
- 33 subsection (a):
- 34 (1) shall be reviewed by the commission for higher education and
- 35 subsequently published on the commission for higher education's
- 36 ~~Internet web site;~~ **website;** and
- 37 (2) shall be published on the state educational institution's
- 38 ~~Internet web site;~~ **website.**
- 39 (d) The amount of educational credits that may be applied to an
- 40 individual's degree requirements under subsection (b) may not exceed:
- 41 (1) seventy-five percent (75%) of an individual's degree
- 42 requirements, as determined by the state educational institution,



1 if the state educational institution in which the individual is
 2 enrolled requires the individual to attend in person any course
 3 during any part of the student's enrollment at the state educational
 4 institution; or

5 (2) seventy percent (70%) of an individual's degree requirements,
 6 as determined by the state educational institution, if one hundred
 7 percent (100%) of the degree requirements for the degree
 8 program is available online by the state educational institution.

9 SECTION 225. IC 21-48-1-1, AS ADDED BY P.L.254-2017,
 10 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 11 JULY 1, 2026]: Sec. 1. (a) Each approved postsecondary educational
 12 institution shall adopt a policy to increase awareness of suicide
 13 prevention resources available to students and staff, including:

- 14 (1) crisis intervention resources, including information for
- 15 national, state, and local suicide prevention hotlines;
- 16 (2) available mental health programs;
- 17 (3) programs or resources offering information on crisis hotlines
- 18 and suicide warning signs;
- 19 (4) educational and outreach activities related to suicide
- 20 prevention;
- 21 (5) postintervention plans, including information on effective
- 22 communication with students, staff, and parents after the loss of
- 23 a student or faculty member due to suicide; and
- 24 (6) mental health services and other support services, including
- 25 student organizations.

26 (b) Links to information and resources identified in a policy
 27 described in subsection (a) shall be posted on the ~~Internet web site~~
 28 **website** of each approved postsecondary educational institution.

29 SECTION 226. IC 22-1-6-2, AS ADDED BY P.L.82-2018,
 30 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 31 JULY 1, 2026]: Sec. 2. The following definitions apply throughout this
 32 chapter:

- 33 (1) "Marketplace contractor" means a person or an organization,
- 34 including an individual, a corporation, a limited liability
- 35 company, a partnership, a sole proprietor, or other entity, that
- 36 enters into an agreement with a marketplace platform to provide
- 37 services to third party individuals or entities seeking those
- 38 services. The term does not include a person or organization when
- 39 the services performed by the person or organization consist of
- 40 transporting freight, sealed and closed envelopes, boxes, parcels,
- 41 or other sealed and closed containers for compensation.
- 42 (2) "Marketplace platform" means an organization, including a



1 corporation, a limited liability company, a partnership, a sole
2 proprietor, or other entity, that:

3 (A) operates ~~an Internet web site~~ **a website** or smartphone
4 application that facilitates the provision of services by
5 marketplace contractors to individuals or entities seeking the
6 services;

7 (B) accepts service requests from the public only through the
8 organization's ~~Internet web site~~ **website** or smartphone
9 application and does not accept service requests by telephone,
10 facsimile, or in person at a retail location; and

11 (C) does not perform services at or from a physical location in
12 Indiana.

13 SECTION 227. IC 22-3-5-2.5, AS AMENDED BY P.L.204-2018,
14 SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
15 JULY 1, 2026]: Sec. 2.5. (a) The worker's compensation board is
16 entitled to request that an employer provide the board with current
17 proof of compliance with section 2 of this chapter.

18 (b) If an employer fails or refuses to provide current proof of
19 compliance by the tenth day after the employer receives the board's
20 request under subsection (a), the board:

21 (1) shall send the employer a written notice that the employer is
22 in violation of section 2 of this chapter; and

23 (2) may assess a civil penalty against the employer of one hundred
24 dollars (\$100) per day beginning on the date of the request under
25 subsection (a) and ending on the date compliance occurs.

26 (c) An employer may challenge the board's assessment of a civil
27 penalty under subsection (b)(2) by requesting a hearing in accordance
28 with procedures established by the board.

29 (d) The board shall waive a civil penalty assessed under subsection
30 (b)(2) if the employer provides the board current proof of compliance
31 by the twentieth day after the date the employer receives the board's
32 notice under subsection (b)(1).

33 (e) If an employer fails or refuses to:

34 (1) provide current proof of compliance by the twentieth day after
35 the date the employer receives the board's notice under subsection
36 (b)(1); or

37 (2) pay a civil penalty assessed under subsection (b)(2);

38 the board may, after notice to the employer and a hearing, order that the
39 noncompliant employer's name be listed on the board's ~~Internet web~~
40 ~~site:~~ **website.**

41 (f) A noncompliant employer's name may be removed from the
42 board's ~~Internet web site~~ **website** only after the employer does the



1 following:

2 (1) Provides current proof of compliance with section 2 of this
3 chapter.

4 (2) Pays all civil penalties assessed under subsection (b)(2).

5 (g) The civil penalties provided for in this section are cumulative.

6 (h) Civil penalties collected under this section shall be deposited in
7 the worker's compensation supplemental administrative fund
8 established by section 6 of this chapter.

9 SECTION 228. IC 22-3-7-34.3, AS AMENDED BY P.L.204-2018,
10 SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
11 JULY 1, 2026]: Sec. 34.3. (a) The worker's compensation board is
12 entitled to request that an employer provide the board with current
13 proof of compliance with section 34 of this chapter.

14 (b) If an employer fails or refuses to provide current proof of
15 compliance by the tenth day after the employer receives the board's
16 request under subsection (a), the board:

17 (1) shall send the employer a written notice that the employer is
18 in violation of section 34 of this chapter; and

19 (2) may assess a civil penalty against the employer of one hundred
20 dollars (\$100) per day beginning on the date of the request under
21 subsection (a) and ending on the date compliance occurs.

22 (c) An employer may challenge the board's assessment of a civil
23 penalty under subsection (b)(2) by requesting a hearing in accordance
24 with procedures established by the board.

25 (d) The board shall waive a civil penalty assessed under subsection
26 (b)(2) if the employer provides the board current proof of compliance
27 by the twentieth day after the date the employer receives the board's
28 notice under subsection (b)(1).

29 (e) If an employer fails or refuses to:

30 (1) provide current proof of compliance by the twentieth day after
31 the date the employer receives the board's notice under subsection
32 (b)(1); or

33 (2) pay a civil penalty assessed under subsection (b)(2);
34 the board may, after notice to the employer and a hearing, order that the
35 noncompliant employer's name be listed on the board's ~~Internet web~~
36 ~~site: website.~~

37 (f) A noncompliant employer's name may be removed from the
38 board's ~~Internet web site website~~ only after the employer does the
39 following:

40 (1) Provides current proof of compliance with section 34 of this
41 chapter.

42 (2) Pays all civil penalties assessed under subsection (b)(2).



(g) The civil penalties provided for in this section are cumulative.

(h) Civil penalties collected under this section shall be deposited in the worker's compensation supplemental administrative fund established by IC 22-3-5-6.

SECTION 229. IC 22-4.1-4-7, AS ADDED BY P.L.146-2014, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. The department shall, in coordination with the secretary of state, use the ~~Internet web site~~ **website** established under IC 4-5-10 to share information with other state agencies and to provide a single point of contact for any person to accomplish the following:

(1) Completing and submitting an application for a license, registration, or permit that is issued by the department and that is required for the applicant to transact business in the state.

(2) Filing with the department documents that are required for the filer to transact business in the state.

(3) Remitting payments for any fee that must be paid to the department for a payer to transact business in the state, including application fees, filing fees, license fees, permit fees, and registration fees.

SECTION 230. IC 22-4.1-18-2, AS AMENDED BY P.L.213-2025, SECTION 277, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The department may grant the following:

(1) An Indiana high school equivalency diploma to an individual who achieves satisfactory high school level scores on the Indiana high school equivalency test or any other properly validated test of comparable difficulty designated **by the** department.

(2) An Indiana competency based high school diploma or equivalency diploma to an individual who:

(A) demonstrates high school level skills through validated competency based assessments designated by the department; and

(B) obtains an industry recognized certificate.

SECTION 231. IC 22-5-4.6-1, AS ADDED BY P.L.1-2022, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. As used in this chapter, "COVID-19" ~~has the meaning set forth in IC 34-30-32-3.~~ **means:**

(1) severe acute respiratory syndrome coronavirus 2 or a mutated form of severe acute respiratory syndrome coronavirus 2; or

(2) the disease caused by severe acute respiratory syndrome coronavirus 2 or a mutated form of severe acute respiratory



syndrome coronavirus 2.

SECTION 232. IC 22-10-3-6, AS AMENDED BY P.L.35-2007, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) The director shall devote the director's attention to the duties of the office during working hours and is subject to call at all times. The director and any mine inspector funded by the general assembly are authorized to enter, examine, and inspect all commercial coal mines and facilities.

(b) The director shall have full direction of the official activities of any mine inspector and shall be responsible therefor.

(c) The director and each mine inspector shall have power, and it is their duty, to stop immediately the operation of any coal mine or part thereof when any dangerous or unlawful condition exists. However, where conditions exist justifying the director or the mine inspector to do so, the director or mine inspector shall grant a reasonable period of time for making necessary repairs. Where a stop in operation is enforced, such director and mine inspector shall be empowered to subsequently allow such mine or part of a mine to be reopened when the dangerous or unlawful conditions have been remedied or removed. If the operator or a workman believes that an inspector has acted illegally in citing violations of mining law, they may appeal to the director for relief from such citation. The director may grant or deny such relief after a hearing, at which all interested parties have been notified of such hearing and given an opportunity to present evidence in support of their contentions.

(d) The director shall keep a properly indexed permanent record of all inspections made by the director and the mine inspector, and copies of all reports relating to coal mines shall be kept on file, and all such records shall be open to inspection by the public, and shall be laid before the governor at any time upon the request of the governor. The director shall cause:

(1) within sixty (60) days of the date of the inspection, inspection reports; and

(2) for two (2) years, all reports relating to coal mines; to be posted on the ~~web site~~ **website** maintained by the bureau of mines and mine safety created under IC 22-1-1-4(1).

(e) The director is empowered to revoke, in writing, any order issued by a mine inspector for the purpose of stopping the operation of a mine or part thereof. However, such revocation of an order shall not be made unless and until the director has made a personal examination of the mine or part thereof affected and determined it to be in a safe condition to operate.



(f) The director or mine inspector shall make a personal inspection of each mine in this state:

- (1) at least once every three (3) months, or more often if practicable, while the mine is in operation;
- (2) whenever any danger to the workmen may exist; or
- (3) whenever called upon to do so by the workmen.

During a regular inspection, the director or inspector shall have the authority to inspect the surface plant; every working place in the mine; all active haulageways, travelways, and airways in their entirety; entrances to abandoned workings; accessible old workings; escapeways and all other places where individuals work or travel; electric equipment and installations; first aid equipment; ventilation facilities; communications installations; roof and rib conditions; and blasting practices, etc. The director or inspector shall have the authority to measure the volume of air at the intake and return of the main ventilating current and of each split, and the amount passing through the last breakthrough in each pair or set of entries, and designate to the mine foreman where the director or inspector shall measure the currents of air as required by the mining laws of this state. In mines operating more than one (1) shift in a twenty-four (24) hour period, the director or inspector shall devote sufficient time to the second and third shift to determine conditions and practices related to the health and safety of the employees. The director or inspector shall make tests for gas and oxygen deficiency in each place that the director or inspector is required to inspect in the mine. Time shall be made available during an inspection for interaction with the employees of the mine by the director or the inspector to ascertain the familiarity of the employees with self-rescuers and accessible escapeways.

(g) The director or mine inspector making an inspection of a mine shall make an accurate report covering such inspection, showing:

- (1) the date of inspection and actual time required to make the inspection;
- (2) the condition in which the mine is found;
- (3) the extent to which the mining laws are violated;
- (4) the progress made in the improvement of the mine, where such progress relates to the health and safety of the employees;
- (5) the number of fatal injuries and the number of nonfatal lost-time injuries resulting from accidents in and around the mine, and their cause; and
- (6) in case any violation of the mining laws is found, the specific section or sections violated, with recommendations for correcting them, and the action taken to eliminate them.



(h) The director or mine inspector making an inspection of a mine shall within three (3) days after the completion of the inspection deliver:

(1) one (1) copy of the inspection report on the mine to the operator, superintendent, or mine foreman of the mine inspected; and

(2) one (1) copy to be posted within the three (3) day limit on a bulletin board at a prominent place on the premises where it can be conveniently read by the employees. If corrective action is implemented, the report shall remain on the bulletin board for thirty (30) days. If corrective action is not implemented, the report shall not be removed from the bulletin board until the report of the succeeding examination is posted.

The director or mine inspector shall keep the mine foreman or superintendent informed as much as is practicable of any violation or other unsafe condition as the regular inspection progresses. In instances where, in the opinion of the mine inspector, an imminent or serious disaster hazard exists, such inspector shall report the same to the director by the quickest available means.

(i) It shall be the duty of the director and mine inspectors to enforce the mining laws of this state and the mine inspectors shall perform such other official duties required by the director as may be necessary to secure full compliance with the mining laws of this state.

SECTION 233. IC 22-10-3-9, AS AMENDED BY P.L.10-2012, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) The director shall keep a record of the board's official actions concerning certificates issued under this chapter and file the record together with questions and answers pertaining to examinations established by the board, including the grade given for the answer to each question. The record shall be open for inspection by interested persons. If applications for certification are received, the board shall meet at least quarterly at such time and place as it shall consider advisable for the purpose of examining applicants for certificates. These quarterly meetings shall be held in January, April, July, and October. The date, time, and place of examination shall be published at all coal mines in this state and posted on the ~~web site~~ **website** maintained by the bureau of mines and mine safety at least thirty (30) days before the examination. By a majority vote, the board shall establish its rules of procedure and provide suitable certificates. The board shall adopt rules establishing standards for the competent practice of mine foreman, belt examiner, mine examiner, shot-firer, mine electrician, and hoisting engineer.



(b) A person desiring certification for mine foreman, belt examiner, mine examiner, shot-firer, mine electrician, or hoisting engineer must make written application to the board on forms supplied by the board not later than ten (10) days prior to the examination date.

SECTION 234. IC 22-13-5-4, AS AMENDED BY P.L.249-2019, SECTION 29, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) A written interpretation of a building law or fire safety law binds all counties and municipalities if the state building commissioner publishes the written interpretation of the building law or fire safety law in the Indiana Register under IC 4-22-7-7(b). For purposes of IC 4-22-7-7, a written interpretation of a building law or fire safety law published by the state building commissioner is considered adopted by an agency.

(b) A written interpretation of a building law or fire safety law published under subsection (a) binds all counties and municipalities until the earlier of the following:

(1) The general assembly enacts a statute that substantively changes the building law or fire safety law interpreted or voids the written interpretation.

(2) The commission adopts a rule under IC 4-22-2 to state a different interpretation of the building law or fire safety law.

(3) The written interpretation is found to be an erroneous interpretation of the building law or fire safety law in a judicial proceeding.

(4) The state building commissioner publishes a different written interpretation of the building law or fire safety law.

(c) The department or the state building commissioner shall create an electronic data base for the purpose of cataloging all available variance rulings by the commission or the department for the purpose of making the information available to the public on the ~~internet web~~ **site website** of the department or the state building commissioner.

SECTION 235. IC 23-0.5-9-55, AS ADDED BY P.L.118-2017, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 55. The secretary of state shall collect the following fees for copying and certifying the copy of any filed record:

(1) One dollar (\$1) per page for copying.

(2) Fifteen dollars (\$15) for certification.

The fees imposed under this section do not apply to any copies or certifications that are processed on the secretary of state's ~~internet web~~ **site: website**.

SECTION 236. IC 23-1-29-5, AS AMENDED BY P.L.119-2015, SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]: Sec. 5. (a) A corporation shall, not less than ten (10) days and not more than sixty (60) days before the date of each annual or special shareholders' meeting, notify shareholders of all the following:

(1) The date, time, and place, if the meeting will be located at a place, of the annual or special shareholders' meeting.

(2) The means of remote communication, if any, by which shareholders may be considered present in person and vote at the meeting.

Unless this article or the articles of incorporation require otherwise, the corporation is required to give notice only to shareholders entitled to vote at the meeting.

(b) Unless this article or the articles of incorporation require otherwise, notice of an annual meeting need not include a description of the purpose or purposes for which the meeting is called.

(c) Notice of a special meeting must include a description of the purpose or purposes for which the meeting is called.

(d) If not otherwise fixed under section 7 of this chapter, the record date for determining shareholders entitled to notice of and to vote at an annual or special shareholders' meeting is the close of business on the day before the first notice is delivered to shareholders.

(e) Unless the bylaws require otherwise, if an annual or special shareholders' meeting is adjourned to a different date, time, or place, notice need not be given of the new date, time, or place, if any, if the:

(1) new date, time, or place; and

(2) means of remote communication, if any, by which shareholders may be considered to be present in person and vote at the adjourned meeting;

are announced at the meeting before adjournment. If a new record date for the adjourned meeting is or must be fixed under section 7 of this chapter, however, notice of the adjourned meeting must be given under this section to persons who are shareholders as of the new record date.

(f) A corporation may give notice of a shareholders' meeting under this section by mailing the notice, postage prepaid, through the United States Postal Service, using any class or form of mail, if:

(1) the shares to which the notice relates are of a class of securities that is registered under the Exchange Act (as defined in IC 23-1-43-9); and

(2) the notice and the related proxy or information statement required under the Exchange Act (as defined in IC 23-1-43-9) are available to the public, without cost or password, through the corporation's Internet web site website not fewer than thirty (30)



days before the shareholders' meeting.

SECTION 237. IC 23-1.3-10-5, AS ADDED BY P.L.93-2015, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. If a benefit corporation has ~~an Internet web site,~~ **a website**, a benefit corporation shall post all of its benefit reports on the public part of its ~~Internet web site.~~ **website**. However, the compensation paid to directors and financial or proprietary information included in the benefit reports may be omitted from the benefit reports posted on the ~~Internet web site.~~ **website**.

SECTION 238. IC 23-19-2-2, AS AMENDED BY P.L.32-2018, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The following transactions are exempt from the requirements of IC 23-19-3-1 through IC 23-19-3-6 and IC 23-19-5-4:

(1) An isolated nonissuer transaction, whether effected by or through a broker-dealer or not.

(2) A nonissuer transaction by or through a broker-dealer registered, or exempt from registration under this article, and a resale transaction by a sponsor of a unit investment trust registered under the Investment Company Act of 1940, in a security of a class that has been outstanding in the hands of the public for at least ninety (90) days, if, at the date of the transaction:

(A) the issuer of the security is engaged in business, the issuer is not in the organizational stage or in bankruptcy or receivership, and the issuer is not a blank check, blind pool, or shell company that has no specific business plan or purpose or has indicated that its primary business plan is to engage in a merger or combination of the business with, or an acquisition of, an unidentified person;

(B) the security is sold at a price reasonably related to its current market price;

(C) the security does not constitute the whole or part of an unsold allotment to, or a subscription or participation by, the broker-dealer as an underwriter of the security or a redistribution;

(D) a nationally recognized securities manual or its electronic equivalent designated by rule adopted or order issued under this article or a record filed with the Securities and Exchange Commission that is publicly available contains:

(i) a description of the business and operations of the issuer;

(ii) the names of the issuer's executive officers and the names of the issuer's directors, if any;



(iii) an audited balance sheet of the issuer as of a date within eighteen (18) months before the date of the transaction or, in the case of a reorganization or merger when the parties to the reorganization or merger each had an audited balance sheet, a pro forma balance sheet for the combined organization; and

(iv) an audited income statement for each of the issuer's two (2) immediately previous fiscal years or for the period of existence of the issuer, whichever is shorter, or, in the case of a reorganization or merger when each party to the reorganization or merger had audited income statements, a pro forma income statement; and

(E) any one (1) of the following requirements is met:

(i) The issuer of the security has a class of equity securities listed on a national securities exchange registered under Section 6 of the Securities Exchange Act of 1934 or designated for trading on the National Association of Securities Dealers Automated Quotation System.

(ii) The issuer of the security is a unit investment trust registered under the Investment Company Act of 1940.

(iii) The issuer of the security, including its predecessors, has been engaged in continuous business for at least three (3) years.

(iv) The issuer of the security has total assets of at least two million dollars (\$2,000,000) based on an audited balance sheet as of a date within eighteen (18) months before the date of the transaction or, in the case of a reorganization or merger when the parties to the reorganization or merger each had such an audited balance sheet, a pro forma balance sheet for the combined organization.

(3) A nonissuer transaction by or through a broker-dealer registered or exempt from registration under this article in a security of a foreign issuer that is a margin security defined in regulations or rules adopted by the Board of Governors of the Federal Reserve System.

(4) A nonissuer transaction by or through a broker-dealer registered or exempt from registration under this article in an outstanding security if the guarantor of the security files reports with the Securities and Exchange Commission under the reporting requirements of Section 13 or 15(d) of the Securities Exchange Act of 1934 (15 U.S.C. 78m or **15 U.S.C. 78o(d)**).

(5) A nonissuer transaction by or through a broker-dealer



1 registered or exempt from registration under this article in a
2 security that:

3 (A) is rated at the time of the transaction by a nationally
4 recognized statistical rating organization in one (1) of its four
5 (4) highest rating categories; or

6 (B) has a fixed maturity or a fixed interest or dividend, if:

7 (i) a default has not occurred during the current fiscal year
8 or within the three (3) previous fiscal years, or during the
9 existence of the issuer and any predecessor if less than three
10 (3) fiscal years, in the payment of principal, interest, or
11 dividends on the security; and

12 (ii) the issuer is engaged in business, is not in the
13 organizational stage or in bankruptcy or receivership, and is
14 not and has not been within the previous twelve (12) months
15 a blank check, blind pool, or shell company that has no
16 specific business plan or purpose or has indicated that its
17 primary business plan is to engage in a merger or
18 combination of the business with, or an acquisition of, an
19 unidentified person.

20 (6) A nonissuer transaction by or through a broker-dealer
21 registered or exempt from registration under this article effecting
22 an unsolicited order or offer to purchase.

23 (7) A nonissuer transaction executed by a bona fide pledgee
24 without the purpose of evading this article.

25 (8) A nonissuer transaction by a federal covered investment
26 adviser with investments under management in excess of one
27 hundred million dollars (\$100,000,000) acting in the exercise of
28 discretionary authority in a signed record for the account of
29 others.

30 (9) A transaction in a security, whether or not the security or
31 transaction is otherwise exempt, in exchange for one (1) or more
32 bona fide outstanding securities, claims, or property interests, or
33 partly in such exchange and partly for cash, if the terms and
34 conditions of the issuance and exchange or the delivery and
35 exchange and the fairness of the terms and conditions have been
36 approved by the commissioner after a hearing.

37 (10) A transaction between the issuer or other person on whose
38 behalf the offering is made and an underwriter, or among
39 underwriters.

40 (11) A transaction in a note, bond, debenture, or other evidence
41 of indebtedness secured by a mortgage or other security
42 agreement if:



- 1 (A) the note, bond, debenture, or other evidence of
- 2 indebtedness is offered and sold with the mortgage or other
- 3 security agreement as a unit;
- 4 (B) a general solicitation or general advertisement of the
- 5 transaction is not made; and
- 6 (C) a commission or other remuneration is not paid or given,
- 7 directly or indirectly, to a person not registered under this
- 8 article as a broker-dealer or as an agent.
- 9 (12) A transaction by an executor, administrator of an estate,
- 10 sheriff, marshal, receiver, trustee in bankruptcy, guardian, or
- 11 conservator.
- 12 (13) A sale or offer to sell to:
- 13 (A) an institutional investor;
- 14 (B) a federal covered investment adviser; or
- 15 (C) any other person exempted by rule adopted or order issued
- 16 under this article.
- 17 (14) A sale or an offer to sell securities of an issuer, if the
- 18 transaction is part of a single issue in which:
- 19 (A) not more than twenty-five (25) purchasers are present in
- 20 this state during any twelve (12) consecutive months, other
- 21 than those designated in subdivision (13);
- 22 (B) a general solicitation or general advertising is not made in
- 23 connection with the offer to sell or sale of the securities;
- 24 (C) a commission or other remuneration is not paid or given,
- 25 directly or indirectly, to a person other than a broker-dealer
- 26 registered under this article or an agent registered under this
- 27 article for soliciting a prospective purchaser in this state; and
- 28 (D) the issuer reasonably believes that all the purchasers in
- 29 this state, other than those designated in subdivision (13), are
- 30 purchasing for investment.
- 31 (15) A transaction under an offer to existing security holders of
- 32 the issuer, including persons that at the date of the transaction are
- 33 holders of convertible securities, options, or warrants, if a
- 34 commission or other remuneration, other than a standby
- 35 commission, is not paid or given, directly or indirectly, for
- 36 soliciting a security holder in this state.
- 37 (16) An offer to sell, but not a sale of, of a security not exempt
- 38 from registration under the Securities Act of 1933 if:
- 39 (A) a registration or offering statement or similar record as
- 40 required under the Securities Act of 1933 has been filed, but
- 41 is not effective, or the offer is made in compliance with Rule
- 42 165 adopted under the Securities Act of 1933 (17 CFR



- 1 230.165); and
- 2 (B) a stop order of which the offeror is aware has not been
- 3 issued against the offeror by the commissioner or the
- 4 Securities and Exchange Commission, and an audit,
- 5 inspection, or proceeding that is public and that may culminate
- 6 in a stop order is not known by the offeror to be pending.
- 7 (17) An offer to sell, but not a sale of, a security exempt from
- 8 registration under the Securities Act of 1933 if:
- 9 (A) a registration statement has been filed under this article,
- 10 but is not effective;
- 11 (B) a solicitation of interest is provided in a record to offerees
- 12 in compliance with a rule adopted by the commissioner under
- 13 this article; and
- 14 (C) a stop order of which the offeror is aware has not been
- 15 issued by the commissioner under this article and an audit,
- 16 inspection, or proceeding that may culminate in a stop order is
- 17 not known by the offeror to be pending.
- 18 (18) A transaction involving the distribution of the securities of
- 19 an issuer to the security holders of another person in connection
- 20 with a merger, consolidation, exchange of securities, sale of
- 21 assets, or other reorganization to which the issuer, or its parent or
- 22 subsidiary and the other person, or its parent or subsidiary, are
- 23 parties.
- 24 (19) A rescission offer, sale, or purchase under IC 23-19-5-10.
- 25 (20) An offer or sale of a security to a person not a resident of this
- 26 state and not present in this state if the offer or sale does not
- 27 constitute a violation of the laws of the state or foreign
- 28 jurisdiction in which the offeree or purchaser is present and is not
- 29 part of an unlawful plan or scheme to evade this article.
- 30 (21) Employees' stock purchase, savings, option, profit-sharing,
- 31 pension, or similar employees' benefit plan, including any
- 32 securities, plan interests, and guarantees issued under a
- 33 compensatory benefit plan or compensation contract, contained
- 34 in a record, established by the issuer, its parents, its
- 35 majority-owned subsidiaries, or the majority-owned subsidiaries
- 36 of the issuer's parent for the participation of their employees
- 37 including offers or sales of such securities to:
- 38 (A) directors; general partners; trustees, if the issuer is a
- 39 business trust; officers; consultants; and advisers;
- 40 (B) family members who acquire such securities from those
- 41 persons through gifts or domestic relations orders;
- 42 (C) former employees, directors, general partners, trustees,



1 officers, consultants, and advisers if those individuals were
 2 employed by or providing services to the issuer when the
 3 securities were offered; and

4 (D) insurance agents who are exclusive insurance agents of the
 5 issuer, or the issuer's subsidiaries or parents, or who derive
 6 more than fifty percent (50%) of their annual income from
 7 those organizations.

8 (22) A transaction involving:

9 (A) a stock dividend or equivalent equity distribution, whether
 10 the corporation or other business organization distributing the
 11 dividend or equivalent equity distribution is the issuer or not,
 12 if nothing of value is given by stockholders or other equity
 13 holders for the dividend or equivalent equity distribution other
 14 than the surrender of a right to a cash or property dividend if
 15 each stockholder or other equity holder may elect to take the
 16 dividend or equivalent equity distribution in cash, property, or
 17 stock;

18 (B) an act incident to a judicially approved reorganization in
 19 which a security is issued in exchange for one (1) or more
 20 outstanding securities, claims, or property interests, or partly
 21 in such exchange and partly for cash; or

22 (C) the solicitation of tenders of securities by an offeror in a
 23 tender offer in compliance with Rule 162 adopted under the
 24 Securities Act of 1933 (17 CFR 230.162).

25 (23) A nonissuer transaction in an outstanding security by or
 26 through a broker-dealer registered or exempt from registration
 27 under this article, if the issuer is a reporting issuer in a foreign
 28 jurisdiction designated by this subdivision or by rule adopted or
 29 order issued under this article; has been subject to continuous
 30 reporting requirements in the foreign jurisdiction for not less than
 31 one hundred eighty (180) days before the transaction; and the
 32 security is listed on the foreign jurisdiction's securities exchange
 33 that has been designated by this subdivision or by rule adopted or
 34 order issued under this article, or is a security of the same issuer
 35 that is of senior or substantially equal rank to the listed security
 36 or is a warrant or right to purchase or subscribe to any of the
 37 foregoing. For purposes of this subdivision, Canada, together with
 38 its provinces and territories, is a designated foreign jurisdiction
 39 and The Toronto Stock Exchange, Inc., is a designated securities
 40 exchange. After an administrative hearing in compliance with this
 41 article, the commissioner, by rule adopted or order issued under
 42 this article, may revoke the designation of a securities exchange



under this subdivision, if the commissioner finds that revocation is necessary or appropriate in the public interest and for the protection of investors.

(24) Subject to the following, an offer or sale of securities by an issuer made after June 30, 2014, only to persons who are or the issuer reasonably believes are accredited investors:

(A) The exemption under this subdivision is not available to an issuer that is in the development stage that either has no specific business plan or purpose or has indicated that its business plan is to engage in a merger or acquisition with:

- (i) an unidentified company or companies; or
- (ii) another entity or person.

(B) The issuer reasonably believes that all purchasers are purchasing for investment and not with the view to or for sale in connection with a distribution of the security. Any resale of a security sold in reliance on the exemption under this subdivision within twelve (12) months after sale is presumed to be with a view to distribution and not for investment, except:

- (i) a resale under a registration statement effective under IC 23-19-3; or
- (ii) a resale to an accredited investor under an exemption available under the Indiana Uniform Securities Act.

(C) Except as provided in clause (D), the exemption under this subdivision is not available to an issuer if the issuer, any of the issuer's predecessors, any affiliated issuer, any of the issuer's directors, officers, general partners, beneficial owners of ten percent (10%) or more of any class of its equity securities, any of the issuer's promoters presently connected with the issuer in any capacity, any underwriter of the securities to be offered, or any partner, director, or officer of the underwriter:

- (i) within the last five (5) years, has filed a registration statement that is the subject of a currently effective registration stop order entered by any state securities administrator or the Securities and Exchange Commission;
- (ii) within the last five (5) years, has been convicted of any criminal offense in connection with the offer, purchase, or sale of any security, or any criminal offense involving fraud or deceit;
- (iii) is currently subject to any state or federal administrative enforcement order or judgment entered within the last five (5) years, finding fraud or deceit in connection with the



purchase or sale of any security; or
 (iv) is currently subject to any order, judgment, or decree of any court with jurisdiction, entered within the last five (5) years, temporarily, preliminarily, or permanently restraining or enjoining the party from engaging in or continuing to engage in any conduct or practice involving fraud or deceit in connection with the purchase or sale of any security.

(D) Clause (C) does not apply if:

- (i) the party subject to the disqualification is licensed or registered to conduct securities related business in the state in which the order, judgment, or decree creating the disqualification was entered against the party;
- (ii) before the first offer under the exemption described in this subdivision, the state securities administrator, or the court or regulatory authority that entered the order, judgment, or decree, waives the disqualification; or
- (iii) the issuer establishes that it did not know and in the exercise of reasonable care, based on a factual inquiry, could not have known that a disqualification existed under this subdivision.

(E) A general announcement of the proposed offering may be made by any means. A general announcement described in this clause must include only the following information, unless additional information is specifically permitted by the commissioner:

- (i) The name, address, and telephone number of the issuer of the securities.
- (ii) The name, a brief description, and price (if known) of any security to be issued.
- (iii) A brief description of the business of the issuer in twenty-five (25) words or less.
- (iv) The type, number, and aggregate amount of securities being offered.
- (v) The name, address, and telephone number of the person to contact for additional information.
- (vi) A statement that indicates that sales will be made only to accredited investors, that no money or other consideration is being solicited or will be accepted by way of the general announcement, that the securities have not been registered with or approved by any state securities agency or the Securities and Exchange Commission, and that the securities are being offered and sold under an exemption from



- 1 registration.
- 2 (F) The issuer, in connection with an offer, may provide
- 3 information in addition to the general announcement under
- 4 clause (E), if the information:
- 5 (i) is delivered through an electronic data base that is
- 6 restricted to persons who have been prequalified as
- 7 accredited investors; or
- 8 (ii) is delivered after the issuer reasonably believes that the
- 9 prospective purchaser is an accredited investor.
- 10 (G) No telephone solicitation is permitted unless before
- 11 placing the call, the issuer reasonably believes that the
- 12 prospective purchaser to be solicited is an accredited investor.
- 13 (H) Dissemination of the general announcement of the
- 14 proposed offering to persons who are not accredited investors
- 15 does not disqualify the issuer from claiming the exemption
- 16 under this subdivision.
- 17 (I) The issuer shall file with the division a notice of
- 18 transaction, a consent to service of process, a copy of the
- 19 general announcement, and a fee established by the
- 20 commissioner within fifteen (15) days after the first sale in
- 21 Indiana.
- 22 (25) An offer to sell or a sale of a security of an issuer made after
- 23 June 30, 2014, if:
- 24 (A) the transaction is part of a single issue in which:
- 25 (i) the offer or sale is made in compliance with 17 CFR
- 26 230.504 and 17 CFR 230.506;
- 27 (ii) the issuer is required to submit a notice filing on a Form
- 28 D (17 CFR 239.500) or a successor form, as promulgated by
- 29 the Securities and Exchange Commission, to the
- 30 commissioner together with a consent to service of process
- 31 complying with IC 23-19-6-11, signed by the issuer, not
- 32 later than fifteen (15) days after the first sale of securities in
- 33 Indiana; and
- 34 (iii) by submitting the notice described in item (ii), the issuer
- 35 agrees, upon written request by the commissioner, to furnish
- 36 to the commissioner any information the issuer furnished to
- 37 offerees;
- 38 (B) for offerings made in compliance with 17 CFR 230.504, no
- 39 commission, fee, or other remuneration is paid or given,
- 40 directly or indirectly, to any broker-dealer for soliciting any
- 41 prospective purchaser in this state unless the broker-dealer is
- 42 appropriately registered under this article. It is a defense to a



violation of this clause if the issuer sustains the burden of proof that the issuer did not know and, in the exercise of reasonable care could not have known, that the person who received the commission, fee, or other remuneration was not properly registered; and

(C) in all sales to purchasers other than those described in subdivision (13) for offerings made in compliance with 17 CFR 230.504, at least one (1) of the following is satisfied:

(i) The investment is suitable for the purchaser upon the basis of facts, if any facts are disclosed by the purchaser, as to the purchaser's other securities holdings, financial situation, and needs. For purposes of this item only, it is presumed that, if the investment does not exceed ten percent (10%) of the investor's net worth, the investment is suitable.

(ii) The purchaser, either alone or with the purchaser's representative or representatives, has the knowledge and experience in financial and business matters that demonstrate that the purchaser is capable of evaluating the merits and risks of the prospective investment.

(26) Any offer or sale of securities after June 30, 2014, by an issuer that meets the requirements of the federal exemption for intrastate offerings in Section 3(a)(11) of the Securities Act of 1933, 15 U.S.C. 77c(a)(11), and Securities and Exchange Commission Rule 147, 17 CFR 230.147. However, all the following apply:

(A) The issuer must make a notice filing with the division on a form prescribed by the commissioner within thirty (30) days after the first sale in Indiana.

(B) Any commission, discount, or other remuneration for sales of securities in Indiana must be paid or given only to dealers or salespersons licensed under this article.

(C) The issuer must pay the fee established by the commissioner. However, no filing fee is required to file amendments to the form described in clause (A).

(D) Within ten (10) days of receiving the form required by this subdivision, the commissioner may require the issuer to furnish any additional information considered necessary by the commissioner to determine the issuer's qualifications.

(27) An offer or sale of a security made after June 30, 2014, by an issuer if the offer or sale is conducted in accordance with all the following requirements:

(A) The issuer of the security is a business entity organized



1 under the laws of Indiana and authorized to do business in
2 Indiana.

3 (B) The transaction meets the requirements of the federal
4 exemption for intrastate offerings in Section 3(a)(11) of the
5 Securities Act of 1933 (15 U.S.C. 77c(a)(11)) and Rule 147
6 adopted under the Securities Act of 1933 (17 CFR 230.147).

7 (C) Except as provided in clause (E), the sum of all cash and
8 other consideration to be received for all sales of the security
9 in reliance on the exemption under this subdivision, excluding
10 sales to any accredited investor or institutional investor, does
11 not exceed the following amount:

12 (i) If the issuer has not undergone and made available to
13 each prospective investor and the commissioner the
14 documentation resulting from a financial audit of its most
15 recently completed fiscal year that complies with generally
16 accepted accounting principles, one million dollars
17 (\$1,000,000), less the aggregate amount received for all
18 sales of securities by the issuer within the twelve (12)
19 months before the first offer or sale made in reliance on the
20 exemption under this subdivision.

21 (ii) If the issuer has undergone and made available to each
22 prospective investor and the commissioner the
23 documentation resulting from a financial audit of its most
24 recently completed fiscal year that complies with generally
25 accepted accounting principles, two million dollars
26 (\$2,000,000), less the aggregate amount received for all
27 sales of securities by the issuer within the twelve (12)
28 months before the first offer or sale made in reliance on the
29 exemption under this subdivision.

30 (D) An offer or sale to an officer, director, partner, trustee, or
31 individual occupying similar status or performing similar
32 functions with respect to the issuer or to a person owning ten
33 percent (10%) or more of the outstanding shares of any class
34 or classes of securities of the issuer does not count toward the
35 monetary limitations in clause (C).

36 (E) The issuer does not accept more than five thousand dollars
37 (\$5,000) from any single purchaser unless the purchaser is an
38 accredited investor.

39 (F) Unless waived by written consent by the commissioner, not
40 less than ten (10) days before the commencement of an
41 offering of securities in reliance on the exemption under this
42 subdivision, the issuer must do all the following:



(i) Make a notice filing with the division on a form prescribed by the commissioner.

(ii) Pay the fee established by the commissioner. However, no filing fee is required to file amendments to the form described in item (i).

(iii) Provide the commissioner a copy of the disclosure document to be provided to prospective investors under clause (L).

(iv) Provide the commissioner a copy of an escrow agreement with a bank, regulated trust company or corporate fiduciary, savings bank, savings and loan association, or credit union authorized to do business in Indiana in which the issuer will deposit the investor funds or cause the investor funds to be deposited. The bank, regulated trust company or corporate fiduciary, savings bank, savings and loan association, or credit union in which the investor funds are deposited is only responsible to act at the direction of the party establishing the escrow agreement and does not have any duty or liability, contractual or otherwise, to any investor or other person.

(v) The issuer shall not access the escrow funds until the aggregate funds raised from all investors equals or exceeds the minimum amount specified in the escrow agreement.

(vi) An investor may cancel the investor's commitment to invest if the target offering amount is not raised before the time stated in the escrow agreement.

(G) The issuer is not, either before or as a result of the offering, an investment company, as defined in Section 3 of the Investment Company Act of 1940 (15 U.S.C. 80a-3), an entity that would be an investment company but for the exclusions provided in Section 3(c) of the Investment Company Act of 1940 (15 U.S.C. 80a-3(c)), or subject to the reporting requirements of Section 13 or 15(d) of the Securities Exchange Act of 1934 (15 U.S.C. 78m or 15 U.S.C. 78o(d)).

(H) The issuer informs all prospective purchasers of securities offered under an exemption under this subdivision that the securities have not been registered under federal or state securities law and that the securities are subject to limitations on resale. The issuer shall display the following legend conspicuously on the cover page of the disclosure document:

"IN MAKING AN INVESTMENT DECISION,
INVESTORS MUST RELY ON THEIR OWN



1 EXAMINATION OF THE ISSUER AND THE TERMS OF
2 THE OFFERING, INCLUDING THE MERITS AND RISKS
3 INVOLVED. THESE SECURITIES HAVE NOT BEEN
4 RECOMMENDED BY ANY FEDERAL OR STATE
5 SECURITIES COMMISSION OR DIVISION OR OTHER
6 REGULATORY AUTHORITY. FURTHERMORE, THE
7 FOREGOING AUTHORITIES HAVE NOT CONFIRMED
8 THE ACCURACY OR DETERMINED THE ADEQUACY
9 OF THIS DOCUMENT. ANY REPRESENTATION TO
10 THE CONTRARY IS A CRIMINAL OFFENSE. THESE
11 SECURITIES ARE SUBJECT TO RESTRICTIONS ON
12 TRANSFERABILITY AND RESALE AND MAY NOT BE
13 TRANSFERRED OR RESOLD EXCEPT AS PERMITTED
14 BY SUBSECTION (e) OF SEC RULE 147 (17 CFR
15 230.147(e)) AS PROMULGATED UNDER THE
16 SECURITIES ACT OF 1933, AS AMENDED, AND THE
17 APPLICABLE STATE SECURITIES LAWS, PURSUANT
18 TO REGISTRATION OR EXEMPTION THEREFROM.
19 INVESTORS SHOULD BE AWARE THAT THEY WILL
20 BE REQUIRED TO BEAR THE FINANCIAL RISKS OF
21 THIS INVESTMENT FOR AN INDEFINITE PERIOD OF
22 TIME."

23 (I) The issuer requires each purchaser to certify in writing or
24 electronically as follows:

25 "I UNDERSTAND AND ACKNOWLEDGE THAT I am
26 investing in a high-risk, speculative business venture. I may
27 lose all of my investment, or under some circumstances
28 more than my investment, and I can afford this loss. This
29 offering has not been reviewed or approved by any state or
30 federal securities commission or division or other regulatory
31 authority and no such person or authority has confirmed the
32 accuracy or determined the adequacy of any disclosure made
33 to me relating to this offering. The securities I am acquiring
34 in this offering are illiquid, there is no ready market for the
35 sale of such securities, it may be difficult or impossible for
36 me to sell or otherwise dispose of this investment, and,
37 accordingly, I may be required to hold this investment
38 indefinitely. I may be subject to tax on my share of the
39 taxable income and losses of the company, whether or not I
40 have sold or otherwise disposed of my investment or
41 received any dividends or other distributions from the
42 company."



(J) The issuer obtains from each purchaser of a security offered under an exemption under this subdivision evidence that the purchaser is a resident of Indiana and, if applicable, is an accredited investor.

(K) All payments for purchase of securities offered under an exemption under this subdivision are directed to and held by the financial institution specified in clause (F)(iv). The commissioner may request from the financial institutions information necessary to ensure compliance with this section. This information is not a public record and is not available for public inspection.

(L) The issuer of securities offered under an exemption under this subdivision provides a disclosure document to each prospective investor at the time the offer of securities is made to the prospective investor that contains all the following:

(i) A description of the company, its type of entity, the address and telephone number of its principal office, its history, its business plan, and the intended use of the offering proceeds, including any amounts to be paid, as compensation or otherwise, to any owner, executive officer, director, managing member, or other person occupying a similar status or performing similar functions on behalf of the issuer.

(ii) The identity of all persons owning more than twenty percent (20%) of the ownership interests of any class of securities of the company.

(iii) The identity of the executive officers, directors, managing members, and other persons occupying a similar status or performing similar functions in the name of and on behalf of the issuer, including their titles and their prior experience.

(iv) The terms and conditions of the securities being offered and of any outstanding securities of the company; the minimum and maximum amount of securities being offered, if any; either the percentage ownership of the company represented by the offered securities or the valuation of the company implied by the price of the offered securities; the price per share, unit, or interest of the securities being offered; any restrictions on transfer of the securities being offered; and a disclosure of any anticipated future issuance of securities that might dilute the value of securities being offered.



(v) The identity of any person who has been or will be retained by the issuer to assist the issuer in conducting the offering and sale of the securities, including any ~~Internet web site~~ **website** operator but excluding persons acting solely as accountants or attorneys and employees whose primary job responsibilities involve the operating business of the issuer rather than assisting the issuer in raising capital.

(vi) For each person identified as required in this clause, a description of the consideration being paid to the person for such assistance.

(vii) A description of any litigation, legal proceedings, or pending regulatory action involving the company or its management.

(viii) The names and addresses, including the Uniform Resource Locator, of each ~~Internet web site~~ **website** that will be used by the issuer to offer or sell securities under an exemption under this subdivision.

(ix) Any additional information material to the offering, including, if appropriate, a discussion of significant factors that make the offering speculative or risky. This discussion must be concise and organized logically and may not be limited to risks that could apply to any issuer or any offering.

(M) The exemption under this subdivision may not be used in conjunction with any other exemption under this article, except for offers and sales to individuals identified in the disclosure document, during the immediately preceding twelve (12) month period.

(N) The exemption described in this subdivision does not apply if an issuer or person affiliated with the issuer or offering is subject to disqualification established by the commissioner by rule or contained in the Securities Act of 1933 (15 U.S.C. 77c(a)(11)) and Rule 262 adopted under the Securities Act of 1933 (17 CFR 230.262). However, this clause does not apply if both of the following are met:

(i) On a showing of good cause and without prejudice to any other action by the commissioner, the commissioner determines that it is not necessary under the circumstances that an exemption is denied.

(ii) The issuer establishes that it made a factual inquiry into whether any disqualification existed under this subdivision but did not know, and in the exercise of reasonable care,



could not have known that a disqualification existed under this subdivision. The nature and scope of the requisite inquiry will vary based on the circumstances of the issuer and the other offering participants.

(O) The offering exempted under this subdivision is made exclusively through one (1) or more ~~Internet web sites~~ **websites** and each ~~Internet web site~~ **website** is subject to the following:

(i) Before any offer or sale of securities, the issuer must provide to the ~~Internet web site~~ **website** operator evidence that the issuer is organized under the laws of Indiana and is authorized to do business in Indiana.

(ii) Subject to items (iii) and (v), the ~~Internet web site~~ **website** operator must register with the division by filing a statement, accompanied by the filing fee established by the commissioner, that includes all the information described in section 2.3(b) of this chapter.

(iii) The ~~Internet web site~~ **website** operator is not required to register as a broker-dealer if all the conditions in section 2.3(c) of this chapter apply with respect to the ~~Internet web site~~ **website** and its operator.

(iv) If any change occurs that affects the ~~Internet web site's~~ **website's** registration exemption, the ~~Internet web site~~ **website** operator must notify the division within thirty (30) days after the change occurs.

(v) The ~~Internet web site~~ **website** operator is not required to register as a broker-dealer under item (ii) if the ~~Internet web site~~ **website** operator is registered as a broker-dealer under the Securities Exchange Act of 1934 (15 U.S.C. 78o) or is a funding portal registered under the Securities Act of 1933 (15 U.S.C. 77d-1) and the Securities and Exchange Commission has adopted rules under authority of Section 3(h) of the Securities Exchange Act of 1934 (15 U.S.C. 78c(h)) and P.L.112-106, Section 304, governing funding portals. This item does not require ~~an Internet web site~~ **a website** operator to register as a broker-dealer under the Securities Exchange Act of 1934 or as a funding portal under the Securities Act of 1933.

(vi) The issuer and the ~~Internet web site~~ **website** operator must maintain records of all offers and sales of securities effected through the ~~Internet web site~~ **website** and must provide ready access to the records to the division, upon



request. The records of ~~an Internet web site~~ **a website** operator under this clause are subject to the reasonable periodic, special, or other audits or inspections by a representative of the commissioner, in or outside Indiana, as the commissioner considers necessary or appropriate in the public interest and for the protection of investors. An audit or inspection may be made at any time and without prior notice. The commissioner may copy, and remove for audit or inspection copies of, all records the commissioner reasonably considers necessary or appropriate to conduct the audit or inspection. The commissioner may assess a reasonable charge for conducting an audit or inspection under this item.

(vii) The ~~Internet web site~~ **website** operator shall limit ~~web site~~ **website** access to the offer or sale of securities to only Indiana residents.

(viii) The ~~Internet web site~~ **website** operator shall not hold, manage, possess, or handle investor funds or securities.

(ix) The ~~Internet web site~~ **website** operator may not be an investor in any Indiana offering under this subdivision or subdivision (26).

(P) An issuer of a security, the offer and sale of which is exempt under this subdivision, shall provide, free of charge, a quarterly report to the issuer's investors until no securities issued under an exemption under this subdivision are outstanding. An issuer may satisfy the reporting requirement of this clause by making the information available on ~~an Internet web site~~ **a website** if the information is made available within forty-five (45) days after the end of each fiscal quarter and remains available until the succeeding quarterly report is issued. An issuer shall file each quarterly report under this clause with the division and, if the quarterly report is made available on ~~an Internet web site~~ **a website**, the issuer shall also provide a written copy of the report to any investor upon request. The report must contain all the following:

- (i) Compensation received by each director and executive officer, including cash compensation earned since the previous report and on an annual basis and any bonuses, stock options, other rights to receive securities of the issuer or any affiliate of the issuer, or other compensation received.
- (ii) An analysis by management of the issuer of the business operations and financial condition of the issuer.



- 1 (Q) In 2019 and every fifth year thereafter, the commissioner
 2 shall cumulatively adjust the dollar limitations provided in
 3 clause (C) to reflect the change in the Consumer Price Index
 4 for all Urban Consumers published by the federal Bureau of
 5 Labor Statistics rounding each dollar limitation to the nearest
 6 fifty thousand dollars (\$50,000).
- 7 (28) An offer to sell or a sale of a security of an issuer made after
 8 June 30, 2017, in which the offer or sale is made in compliance
 9 with federal Regulation Crowdfunding (17 CFR 227) and
 10 Sections 4(a)(6) and 18(b)(4)(C) of the Securities Act of 1933.
 11 The following apply to an offering exempt under federal
 12 Regulation Crowdfunding (17 CFR 227):
- 13 (A) If the issuer either has its principal place of business in
 14 Indiana or sells fifty percent (50%) or greater of the aggregate
 15 amount of the offering to residents of Indiana, the issuer shall
 16 file the following with the commissioner:
- 17 (i) A completed Uniform Notice of Federal Crowdfunding
 18 Offering form or copies of all documents filed with the
 19 Securities and Exchange Commission.
- 20 (ii) A consent to service of process on Form U-2 if not filing
 21 on the Uniform Notice of Federal Crowdfunding Offering
 22 form.
- 23 (B) If the issuer has its principal place of business in Indiana,
 24 the filing required by clause (A) must be filed with the
 25 commissioner when the issuer makes its initial Form C filing
 26 concerning the offering with the Securities and Exchange
 27 Commission. If the issuer does not have its principal place of
 28 business in Indiana but residents of Indiana have purchased
 29 fifty percent (50%) or greater of the aggregate amount of the
 30 offering, the filing required by clause (A) must be filed when
 31 the issuer becomes aware that the purchases have met this
 32 threshold and not later than thirty (30) days after the date of
 33 completion of the offering.
- 34 (C) The initial notice filing is effective for twelve (12) months
 35 after the date of the filing with the commissioner.
- 36 (D) For each additional twelve (12) month period in which the
 37 same offering is continued, an issuer conducting an offering
 38 under federal Regulation Crowdfunding (17 CFR 227) may
 39 renew its notice filing by filing, on or before the expiration of
 40 the notice filing:
- 41 (i) a completed Uniform Notice of Federal Crowdfunding
 42 Offering form marked "renewal";



(ii) a cover letter or other document requesting renewal; or
 (iii) both the form described in item (i) and a cover letter or other document described in item (ii).

(E) The issuer may increase the amount of securities offered in Indiana by submitting a completed Uniform Notice of Federal Crowdfunding Offering form marked "amendment" or another document describing the transaction.

(29) An offer to sell or a sale of a security of an issuer made after June 30, 2017, in which the offer or sale is made in compliance with Tier 2 of federal Regulation A and Section 18(b)(3) or ~~Section~~ 18(b)(4) of the Securities Act of 1933. The following apply to an offering exempt under Tier 2 of federal Regulation A:

(A) The issuer shall file the following with the commissioner at least twenty-one (21) calendar days before the initial sale in Indiana:

(i) A completed Uniform Notice of Regulation A - Tier 2 Offering form or copies of all documents filed with the Securities and Exchange Commission.

(ii) A consent to service of process on Form U-2 if not filing on the Uniform Notice of Regulation A - Tier 2 Offering form.

(B) The initial notice filing is effective for twelve (12) months from the date of the filing with the commissioner.

(C) For each additional twelve (12) month period in which the same offering is continued, an issuer conducting a Tier 2 offering under federal Regulation A may renew its notice filing by filing, on or before the expiration of the notice filing:

(i) the Uniform Notice of Regulation A - Tier 2 Offering form marked "renewal";

(ii) a cover letter or other document requesting renewal; or
 (iii) both the form described in item (i) and a cover letter or other document described in item (ii).

(D) The issuer may increase the amount of securities offered in Indiana by submitting a completed Uniform Notice of Regulation A - Tier 2 Offering form marked "amendment" or another document describing the transaction.

SECTION 239. IC 23-19-2-2.3, AS ADDED BY P.L.106-2014, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2.3. (a) This section applies to an offering under section 2(27)(O) of this chapter that is made exclusively through one (1) or more ~~Internet web sites~~ **websites** and each ~~Internet web site~~ **website**.



(b) As required by section 2(27)(O)(ii) of this chapter, the ~~Internet web site~~ **website** operator shall register with the division by filing a statement, accompanied by the filing fee established by the commissioner, that includes all the following:

(1) That the ~~Internet web site~~ **website** operator is a business entity organized under the laws of Indiana and authorized to do business in Indiana.

(2) That the ~~Internet web site~~ **website** is being used to offer and sell securities pursuant to the exemption under section 2(27) of this chapter.

(3) The identity and location of, and contact information for, the ~~Internet web site~~ **website** operator.

(4) Except as provided in subsection (c), that the ~~Internet web site~~ **website** operator is registered as a broker-dealer under IC 23-19-4.

(c) The ~~Internet web site~~ **website** operator is not required to register as a broker-dealer if all the following apply with respect to the ~~Internet web site~~ **website** and its operator:

(1) It does not offer investment advice or recommendations.

(2) It does not solicit purchases, sales, or offers to buy the securities offered or displayed on the ~~Internet web site~~ **website**.

(3) It does not compensate employees, agents, or other persons for the solicitation or based on the sale of securities displayed or referenced on the ~~Internet web site~~ **website**.

(4) It is not compensated based on the amount of securities sold, and it does not hold, manage, possess, or otherwise handle investor funds or securities.

(5) The fee it charges an issuer for an offering of securities on the ~~Internet web site~~ **website** is a fixed amount for each offering, a variable amount based on the length of time that the securities are offered on the ~~Internet web site~~ **website**, or a combination of the fixed and variable amounts.

(6) It does not identify, promote, or otherwise refer to any individual security offered on the ~~Internet web site~~ **website** in any advertising for the ~~Internet web site~~ **website**.

(7) It does not engage in any other activities that the division, by rule, determines are prohibited of the ~~Internet web site~~ **website**.

(8) Neither the ~~Internet web site~~ **website** operator, nor any director, executive officer, general partner, managing member, or other person with management authority over the ~~Internet web site~~ **website** operator, has been subject to any conviction, order, judgment, decree, or other action specified in Rule 506(d)(1)



adopted under the Securities Act of 1933 (17 CFR 230.506(d)(1)) that would disqualify an issuer under Rule 506(d) adopted under the Securities Act of 1933 (17 CFR 230.506(d)) from claiming an exemption specified in Rule 506(a) to Rule 506(c) adopted under the Securities Act of 1933 (17 CFR 230.506(a) to 17 CFR 230.506(c)).

SECTION 240. IC 23-19-4.1-10, AS AMENDED BY P.L.158-2017, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. Not later than September 1, 2017, the commissioner shall develop and make available on the secretary of state's ~~Internet web site~~ **website** information that includes training resources to assist broker-dealers, investment advisers, and qualified individuals in the prevention and detection of financial exploitation of financially vulnerable adults. The training resources must include information on:

(1) indicators of financial exploitation of financially vulnerable adults; and

(2) the potential steps broker-dealers, investment advisers, and qualified individuals can take, under Indiana law, to prevent suspected financial exploitation of financially vulnerable adults.

SECTION 241. IC 23-20-1-12, AS ADDED BY P.L.114-2010, SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) A person eligible for restitution assistance under section 11 of this chapter may file an application for restitution assistance with the division.

(b) The application must be received by the division not more than one hundred eighty (180) days after the date of the order described in section 16 of this chapter. The division may grant an extension of time for good cause shown by the claimant. However, the division may not accept an application that is received more than two (2) years after the date of the order described in section 16 of this chapter.

(c) The application must be filed in the office of the division in person, through the division's ~~Internet web site~~, **website**, or by first class or certified mail. If requested, the division shall assist a claimant in preparing the application.

(d) The division shall accept all applications filed in compliance with this chapter. Upon receipt of a complete application, the division shall promptly begin processing the application.

SECTION 242. IC 24-4-21-4, AS ADDED BY P.L.153-2018, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) Except as provided in subsection (b), low THC hemp extract must be distributed in packaging that contains the



- 1 following information:
- 2 (1) A scannable bar code or QR code linked to a document that
- 3 contains information with respect to the manufacture of the low
- 4 THC hemp extract, including the:
- 5 (A) batch identification number;
- 6 (B) product name;
- 7 (C) batch date;
- 8 (D) expiration date, which must be not more than two (2) years
- 9 from the date of manufacture;
- 10 (E) batch size;
- 11 (F) total quantity produced;
- 12 (G) ingredients used, including the:
- 13 (i) ingredient name;
- 14 (ii) name of the company that manufactured the ingredient;
- 15 (iii) company or product identification number or code, if
- 16 applicable; and
- 17 (iv) ingredient lot number; and
- 18 (H) download link for a certificate of analysis for the low THC
- 19 hemp extract.
- 20 (2) The batch number.
- 21 (3) The Internet address of a ~~web site~~ **website** to obtain batch
- 22 information.
- 23 (4) The expiration date.
- 24 (5) The number of milligrams of low THC hemp extract.
- 25 (6) The manufacturer.
- 26 (7) The fact that the product contains not more than three-tenths
- 27 percent (0.3%) total delta-9-tetrahydrocannabinol (THC),
- 28 including precursors, by weight.
- 29 (b) Before July 1, 2018, low THC hemp extract may be distributed
- 30 in Indiana without having met the requirements described in subsection
- 31 (a).
- 32 SECTION 243. IC 24-4-26-2, AS ADDED BY P.L.227-2025,
- 33 SECTION 41, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 34 JULY 1, 2026]: Sec. 2. As used in this chapter, "marijuana" has the
- 35 meaning set forth in ~~IC 35-48-1-19~~ **IC 35-48-1.1-29**.
- 36 SECTION 244. IC 24-4.5-2-209, AS AMENDED BY P.L.85-2020,
- 37 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 38 JULY 1, 2026]: Sec. 209. (1) Subject to the provisions on rebate upon
- 39 prepayment (section 210 of this chapter), the buyer may prepay in full
- 40 the unpaid balance of a consumer credit sale, refinancing, or
- 41 consolidation at any time without penalty.
- 42 (2) At the time of prepayment of a credit sale not subject to the



provisions of rebate upon prepayment (section 210 of this chapter), the total credit service charge:

(a) including the prepaid credit service charge; but

(b) subject to section 201(13) of this chapter, excluding the nonrefundable prepaid finance charge allowed under section 201(11) of this chapter, in the case of a sale agreement entered into after June 30, 2020;

may not exceed the maximum charge allowed under this chapter for the period the credit sale was in effect.

(3) The creditor or mortgage servicer shall provide, in writing, an accurate payoff amount for the consumer credit sale to the debtor within seven (7) business days (excluding legal public holidays, Saturdays, and Sundays) after the creditor or mortgage servicer receives the debtor's written request for the accurate consumer credit sale payoff amount. A payoff statement provided by a creditor or mortgage servicer under this subsection must show the date the statement was prepared and itemize the unpaid principal balance and each fee, charge, or other sum included within the payoff amount. A creditor or mortgage servicer who fails to provide the accurate consumer credit sale payoff amount is liable for:

~~(A)~~ (a) one hundred dollars (\$100) if an accurate consumer credit sale payoff amount is not provided by the creditor or mortgage servicer within seven (7) business days (excluding legal public holidays, Saturdays, and Sundays) after the creditor or mortgage servicer receives the debtor's first written request; and

~~(B)~~ (b) the greater of:

(i) one hundred dollars (\$100); or

(ii) the credit service charge that accrues on the sale from the date the creditor or mortgage servicer receives the first written request until the date on which the accurate consumer credit sale payoff amount is provided;

if an accurate consumer credit sale payoff amount is not provided by the creditor or mortgage servicer within seven (7) business days (excluding legal public holidays, Saturdays, and Sundays) after the creditor or mortgage servicer receives the debtor's second written request, and the creditor or mortgage servicer failed to comply with ~~clause (A):~~ **subdivision (a).**

A liability under this subsection is an excess charge under IC 24-4.5-5-202.

(4) As used in this subsection, "mortgage transaction" means a consumer credit sale in which a mortgage or a land contract (or another consensual security interest equivalent to a mortgage or a land contract)



that constitutes a lien is created or retained against land upon which there is constructed or intended to be constructed a dwelling that is or will be used by the debtor primarily for personal, family, or household purposes. This subsection applies to a mortgage transaction with respect to which any installment or minimum payment due is delinquent for at least sixty (60) days. The creditor, servicer, or the creditor's agent shall acknowledge a written offer made in connection with a proposed short sale not later than five (5) business days (excluding legal public holidays, Saturdays, and Sundays) after the date of the offer if the offer complies with the requirements for a qualified written request set forth in 12 U.S.C. 2605(e)(1)(B). The creditor, servicer, or creditor's agent is required to acknowledge a written offer made in connection with a proposed short sale from a third party acting on behalf of the debtor only if the debtor has provided written authorization for the creditor, servicer, or creditor's agent to do so. Not later than thirty (30) business days (excluding legal public holidays, Saturdays, and Sundays) after receipt of an offer under this subsection, the creditor, servicer, or creditor's agent shall respond to the offer with an acceptance or a rejection of the offer. The thirty (30) day period described in this subsection may be extended for not more than fifteen (15) business days (excluding legal public holidays, Saturdays, and Sundays) if, before the end of the thirty (30) day period, the creditor, the servicer, or the creditor's agent notifies the debtor of the extension and the reason the extension is needed. Payment accepted by a creditor, servicer, or creditor's agent in connection with a short sale constitutes payment in full satisfaction of the mortgage transaction unless the creditor, servicer, or creditor's agent obtains:

- (a) the following statement: "The debtor remains liable for any amount still owed under the mortgage transaction."; or
- (b) a statement substantially similar to the statement set forth in subdivision (a);

acknowledged by the initials or signature of the debtor, on or before the date on which the short sale payment is accepted. As used in this subsection, "short sale" means a transaction in which the property that is the subject of a mortgage transaction is sold for an amount that is less than the amount of the debtor's outstanding obligation under the mortgage transaction. A creditor or mortgage servicer that fails to respond to an offer within the time prescribed by this subsection is liable in accordance with 12 U.S.C. 2605(f) in any action brought under that section.

(5) This section is not intended to provide the owner of real estate subject to the issuance of process under a judgment or decree of



1 foreclosure any protection or defense against a deficiency judgment for
 2 purposes of the borrower protections from liability that must be
 3 disclosed under 12 CFR 1026.38(p)(3) on the form required by 12 CFR
 4 1026.38 ("Closing Disclosures" form under the Amendments to the
 5 2013 Integrated Mortgage Disclosures Rule Under the Real Estate
 6 Settlement Procedures Act (Regulation X) and the Truth In Lending
 7 Act (Regulation Z) and the 2013 Loan Originator Rule Under the Truth
 8 in Lending Act (Regulation Z)).

9 SECTION 245. IC 24-4.8-2-2, AS ADDED BY P.L.115-2005,
 10 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 11 JULY 1, 2026]: Sec. 2. A person who is not the owner or operator of
 12 the computer may not knowingly or intentionally:

- 13 (1) transmit computer software to the computer; and
 14 (2) by means of the computer software transmitted under
 15 subdivision (1), do any of the following:

16 (A) Use intentionally deceptive means to modify computer
 17 settings that control:

18 (i) the page that appears when an owner or operator opens
 19 an Internet browser or similar computer software used to
 20 access and navigate the Internet;

21 (ii) the Internet service provider, search engine, or web
 22 proxy that an owner or operator uses to access or search the
 23 Internet; or

24 (iii) the owner or operator's list of bookmarks used to access
 25 web pages.

26 (B) Use intentionally deceptive means to collect personally
 27 identifying information:

28 (i) through the use of computer software that records a
 29 keystroke made by an owner or operator and transfers that
 30 information from the computer to another person; or

31 (ii) in a manner that correlates the personally identifying
 32 information with data respecting all or substantially all of
 33 the ~~web sites~~ **websites** visited by the owner or operator of
 34 the computer, not including a ~~web site~~ **website** operated by
 35 the person collecting the personally identifying information.

36 (C) Extract from the hard drive of an owner or operator's
 37 computer:

38 (i) a credit card number, debit card number, bank account
 39 number, or any password or access code associated with
 40 these numbers;

41 (ii) a Social Security number, tax identification number,
 42 driver's license number, passport number, or any other



government issued identification number; or
 (iii) the account balance or overdraft history of a person in
 a form that identifies the person.

(D) Use intentionally deceptive means to prevent reasonable
 efforts by an owner or operator to block or disable the
 installation or execution of computer software.

(E) Knowingly or intentionally misrepresent that computer
 software will be uninstalled or disabled by an owner or
 operator's action.

(F) Use intentionally deceptive means to remove, disable, or
 otherwise make inoperative security, antispyware, or antivirus
 computer software installed on the computer.

(G) Take control of another person's computer with the intent
 to cause damage to the computer or cause the owner or
 operator to incur a financial charge for a service that the owner
 or operator has not authorized by:

(i) accessing or using the computer's modem or Internet
 service; or

(ii) without the authorization of the owner or operator,
 opening multiple, sequential, standalone advertisements in
 the owner or operator's Internet browser that a reasonable
 computer user cannot close without turning off the computer
 or closing the browser.

(H) Modify:

(i) computer settings that protect information about a person
 with the intent of obtaining personally identifying
 information without the permission of the owner or operator;
 or

(ii) security settings with the intent to cause damage to a
 computer.

(I) Prevent reasonable efforts by an owner or operator to block
 or disable the installation or execution of computer software
 by:

(i) presenting an owner or operator with an option to decline
 installation of computer software knowing that the computer
 software will be installed even if the owner or operator
 attempts to decline installation; or

(ii) falsely representing that computer software has been
 disabled.

SECTION 246. IC 24-4.8-3-1, AS ADDED BY P.L.115-2005,
 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 JULY 1, 2026]: Sec. 1. In addition to any other remedy provided by



1 law, a provider of computer software, the owner of a ~~web site~~, **website**,
 2 or the owner of a trademark who is adversely affected by reason of the
 3 violation may bring a civil action against a person who violates
 4 IC 24-4.8-2:

5 (1) to enjoin further violations of IC 24-4.8-2; and

6 (2) to recover the greater of:

7 (A) actual damages; or

8 (B) one hundred thousand dollars (\$100,000);

9 for each violation of IC 24-4.8-2.

10 SECTION 247. IC 24-4.9-3-4, AS AMENDED BY P.L.137-2009,
 11 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 12 JULY 1, 2026]: Sec. 4. (a) Except as provided in subsection (b), a data
 13 base owner required to make a disclosure under this chapter shall make
 14 the disclosure using one (1) of the following methods:

15 (1) Mail.

16 (2) Telephone.

17 (3) Facsimile (fax).

18 (4) Electronic mail, if the data base owner has the electronic mail
 19 address of the affected Indiana resident.

20 (b) If a data base owner required to make a disclosure under this
 21 chapter is required to make the disclosure to more than five hundred
 22 thousand (500,000) Indiana residents, or if the data base owner
 23 required to make a disclosure under this chapter determines that the
 24 cost of the disclosure will be more than two hundred fifty thousand
 25 dollars (\$250,000), the data base owner required to make a disclosure
 26 under this chapter may elect to make the disclosure by using both of the
 27 following methods:

28 (1) Conspicuous posting of the notice on the ~~web site~~ **website** of
 29 the data base owner, if the data base owner maintains a ~~web site~~
 30 **website**.

31 (2) Notice to major news reporting media in the geographic area
 32 where Indiana residents affected by the breach of the security of
 33 a system reside.

34 (c) A data base owner that maintains its own disclosure procedures
 35 as part of an information privacy policy or a security policy is not
 36 required to make a separate disclosure under this chapter if the data
 37 base owner's information privacy policy or security policy is at least as
 38 stringent as the disclosure requirements described in:

39 (1) sections 1 through 4(b) of this chapter;

40 (2) subsection (d); or

41 (3) subsection (e).

42 (d) A data base owner that maintains its own disclosure procedures



as part of an information privacy, security policy, or compliance plan under:

- (1) the federal USA PATRIOT Act (P.L. 107-56);
- (2) Executive Order 13224;
- (3) the federal Driver's Privacy Protection Act (18 U.S.C. 2781 et seq.);
- (4) the federal Fair Credit Reporting Act (15 U.S.C. 1681 et seq.);
- (5) the federal Financial Modernization Act of 1999 (15 U.S.C. 6801 et seq.); or
- (6) the federal Health Insurance Portability and Accountability Act (HIPAA) (P.L. 104-191);

is not required to make a disclosure under this chapter if the data base owner's information privacy, security policy, or compliance plan requires that Indiana residents be notified of a breach of the security of data without unreasonable delay and the data base owner complies with the data base owner's information privacy, security policy, or compliance plan.

(e) A financial institution that complies with the disclosure requirements prescribed by the Federal Interagency Guidance on Response Programs for Unauthorized Access to Customer Information and Customer Notice or the Guidance on Response Programs for Unauthorized Access to Member Information and Member Notice, as applicable, is not required to make a disclosure under this chapter.

(f) A person required to make a disclosure under this chapter may elect to make all or part of the disclosure in accordance with subsection (a) even if the person could make the disclosure in accordance with subsection (b).

SECTION 248. IC 24-5-0.5-2, AS AMENDED BY P.L.206-2025, SECTION 5, AND AS AMENDED BY P.L.227-2025, SECTION 42, IS CORRECTED AND AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) As used in this chapter:

(1) "Consumer transaction" means a sale, lease, assignment, award by chance, or other disposition of an item of personal property, real property, a service, or an intangible, except securities and policies or contracts of insurance issued by corporations authorized to transact an insurance business under the laws of the state of Indiana, with or without an extension of credit, to a person for purposes that are primarily personal, familial, charitable, agricultural, or household, or a solicitation to supply any of these things. However, the term includes the following:

(A) A transfer of structured settlement payment rights under



- 1 IC 34-50-2.
- 2 (B) An unsolicited advertisement sent to a person by telephone
- 3 facsimile machine offering a sale, lease, assignment, award by
- 4 chance, or other disposition of an item of personal property,
- 5 real property, a service, or an intangible.
- 6 (C) The collection of or attempt to collect a debt by a debt
- 7 collector.
- 8 *(D) The provision of a product or service to a:*
- 9 *(i) state law enforcement agency; or*
- 10 *(ii) local law enforcement agency;*
- 11 *in Indiana.*
- 12 ~~(D)~~ (E) Conduct that arises from, occurs in connection with,
- 13 or otherwise involves a transaction for emergency towing (as
- 14 defined in IC 24-14-2-5) of a personal or commercial vehicle.
- 15 (2) "Person" means an individual, corporation, the state of Indiana
- 16 or its subdivisions or agencies, business trust, estate, trust,
- 17 partnership, association, nonprofit corporation or organization, or
- 18 cooperative or any other legal entity.
- 19 (3) "Supplier" means the following:
- 20 (A) A seller, lessor, assignor, or other person who regularly
- 21 engages in or solicits consumer transactions, including
- 22 soliciting a consumer transaction by using a telephone
- 23 facsimile machine to transmit an unsolicited advertisement.
- 24 The term includes a manufacturer, a wholesaler, ~~or~~ a retailer,
- 25 or, in a consumer transaction described in subdivision (1)(D),
- 26 an entity that provides a product or service to a state law
- 27 enforcement agency or local law enforcement agency in
- 28 Indiana, whether or not the person deals directly with the
- 29 consumer.
- 30 (B) A debt collector.
- 31 (4) "Subject of a consumer transaction" means the personal
- 32 property, real property, services, or intangibles offered or
- 33 furnished in a consumer transaction.
- 34 (5) "Cure" as applied to a deceptive act, means either:
- 35 (A) to offer in writing to adjust or modify the consumer
- 36 transaction to which the act relates to conform to the
- 37 reasonable expectations of the consumer generated by such
- 38 deceptive act and to perform such offer if accepted by the
- 39 consumer; or
- 40 (B) to offer in writing to rescind such consumer transaction
- 41 and to perform such offer if accepted by the consumer.
- 42 The term includes an offer in writing of one (1) or more items of



value, including monetary compensation, that the supplier delivers to a consumer or a representative of the consumer if accepted by the consumer.

(6) "Offer to cure" as applied to a deceptive act is a cure that:

(A) is reasonably calculated to remedy a loss claimed by the consumer; and

(B) includes a minimum additional amount that is the greater of:

(i) ten percent (10%) of the value of the remedy under clause (A), but not more than four thousand dollars (\$4,000); or

(ii) five hundred dollars (\$500);

as compensation for attorney's fees, expenses, and other costs that a consumer may incur in relation to the deceptive act.

(7) "Uncured deceptive act" means: ~~a deceptive act.~~

(A) **a deceptive act** with respect to which a consumer who has been damaged by such act has given notice to the supplier under section 5(a) of this chapter; and

(B) either:

(i) no offer to cure has been made to such consumer within thirty (30) days after such notice; or

(ii) the act has not been cured as to such consumer within a reasonable time after the consumer's acceptance of the offer to cure.

(8) "Incurable deceptive act" means a deceptive act done by a supplier as part of a scheme, artifice, or device with intent to defraud or mislead. The term includes a failure of a transferee of structured settlement payment rights to timely provide a true and complete disclosure statement to a payee as provided under IC 34-50-2 in connection with a direct or indirect transfer of structured settlement payment rights.

(9) "Senior consumer" means an individual who is at least sixty (60) years of age.

(10) "Telephone facsimile machine" means equipment that has the capacity to transcribe text or images, or both, from:

(A) paper into an electronic signal and to transmit that signal over a regular telephone line; or

(B) an electronic signal received over a regular telephone line onto paper.

(11) "Unsolicited advertisement" means material advertising the commercial availability or quality of:

(A) property;



- 1 (B) goods; or
- 2 (C) services;
- 3 that is transmitted to a person without the person's prior express
- 4 invitation or permission, in writing or otherwise.
- 5 (12) "Debt" has the meaning set forth in 15 U.S.C. 1692(a)(5).
- 6 (13) "Debt collector" has the meaning set forth in 15 U.S.C.
- 7 1692(a)(6). The term does not include a person admitted to the
- 8 practice of law in Indiana if the person is acting within the course
- 9 and scope of the person's practice as an attorney. The term
- 10 includes a debt buyer (as defined in IC 24-5-15.5).
- 11 (b) As used in section 3(b)(15) and 3(b)(16) of this chapter:
- 12 (1) "Directory assistance" means the disclosure of telephone
- 13 number information in connection with an identified telephone
- 14 service subscriber by means of a live operator or automated
- 15 service.
- 16 (2) "Local telephone directory" refers to a telephone classified
- 17 advertising directory or the business section of a telephone
- 18 directory that is distributed by a telephone company or directory
- 19 publisher to subscribers located in the local exchanges contained
- 20 in the directory. The term includes a directory that includes
- 21 listings of more than one (1) telephone company.
- 22 (3) "Local telephone number" refers to a telephone number that
- 23 has the three (3) number prefix used by the provider of telephone
- 24 service for telephones physically located within the area covered
- 25 by the local telephone directory in which the number is listed. The
- 26 term does not include long distance numbers or 800-, 888-, or
- 27 900- exchange numbers listed in a local telephone directory.
- 28 SECTION 249. IC 24-5-13-5, AS AMENDED BY P.L.198-2016,
- 29 SECTION 656, IS AMENDED TO READ AS FOLLOWS
- 30 [EFFECTIVE JULY 1, 2026]: Sec. 5. As used in this chapter, "motor
- 31 vehicle" or "vehicle" means any self-propelled vehicle that:
- 32 (1) has a declared gross vehicle weight of less than ten thousand
- 33 (10,000) pounds;
- 34 (2) is sold to:
- 35 (A) a buyer in Indiana and registered in Indiana; or
- 36 (B) a buyer in Indiana who is a nonresident (as defined in
- 37 IC 9-13-2-113);
- 38 (3) is intended primarily for use and operation on public
- 39 highways; and
- 40 (4) is required to be registered or licensed before use or operation.
- 41 The term does not include conversion vans, motor homes, farm
- 42 tractors, and other machines used in the actual production, harvesting,



1 and care of farm products, road building equipment, truck tractors, road
 2 tractors, motorcycles, motor driven cycles, snowmobiles, or vehicles
 3 designed primarily for ~~offroad~~ **off-road** use.

4 SECTION 250. IC 24-5-13.1-23, AS ADDED BY P.L.91-2022,
 5 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 6 JULY 1, 2026]: Sec. 23. (a) This chapter does not apply to any buyer
 7 who has not first resorted to an informal dispute settlement procedure
 8 established by a responsible manufacturer or installer or in which a
 9 responsible manufacturer or installer participates if:

10 (1) the procedure is certified by the attorney general as:

11 (A) complying in all respects with 16 CFR 703; and

12 (B) complying with any other rules concerning certification
 13 adopted by the attorney general, including but not limited to
 14 the requirement of oral hearings, pursuant to IC 4-22-2; and

15 (2) the buyer has received adequate written notice from the
 16 responsible manufacturer or installer of the existence of the
 17 procedure.

18 Adequate written notice includes the incorporation of the informal
 19 dispute settlement procedure into the terms of the written warranty to
 20 which the converted motor vehicle does not conform.

21 (b) A manufacturer under section 6(1) of this chapter shall provide
 22 adequate electronic notice of the procedure in subsection (a) on the
 23 ~~Internet web site~~ **website** of the manufacturer.

24 SECTION 251. IC 24-5-23.6-9, AS AMENDED BY P.L.137-2014,
 25 SECTION 18, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 26 JULY 1, 2026]: Sec. 9. (a) The five star mortgage program is
 27 established. Not later than June 1, 2010, the department shall adopt
 28 guidelines to implement the program. The program established by this
 29 section, as implemented through the department's guidelines, must
 30 meet the following criteria:

31 (1) The program must be available on a voluntary basis to
 32 creditors that offer mortgages to Indiana customers after June 30,
 33 2010.

34 (2) To participate in the program, a creditor must submit a
 35 certification, on a form prescribed by the department, attesting
 36 that the creditor qualifies as a five star mortgage lender.

37 (3) To qualify as a five star mortgage lender under the program,
 38 a creditor must certify, on the form described in subdivision (2),
 39 that the creditor meets the following conditions:

40 (A) The creditor offers or will offer to Indiana customers after
 41 June 30, 2010, at least one (1) mortgage product that qualifies
 42 as a five star mortgage under the program.



(B) The creditor does not have a record of any significant or recurring violation of:

(i) IC 24-5-23.5-7; or

(ii) any other state or federal law, regulation, or rule applicable to mortgage transactions;

as of the date of the creditor's certification. If the creditor is not certain whether it meets the criterion set forth in this clause, the creditor shall consult with the department before filing a certification to participate in the program.

(C) The creditor does not have a director or an executive officer who has been convicted of a felony involving fraud, deceit, or misrepresentation under the laws of Indiana or any other jurisdiction, as of the date of the creditor's certification. If the creditor is not certain whether it meets the criterion set forth in this clause, the creditor shall consult with the department before filing a certification to participate in the program.

(4) To qualify as a five star mortgage under the program, a mortgage must include the following terms and conditions:

(A) If the mortgage involves a purchase money transaction, the mortgage must require a down payment by the debtor, or a person acting on behalf of the debtor, of at least ten percent (10%) of the purchase price of the dwelling that is the subject of the mortgage. If the mortgage involves the refinancing of an existing mortgage, the customer must have equity of at least ten percent (10%) in the dwelling that is the subject of the mortgage.

(B) The mortgage must have a fixed rate of interest.

(C) The mortgage must provide for an escrow account that:

(i) is established by the creditor, or a person acting on behalf of the creditor, for the benefit of the debtor;

(ii) is maintained by the creditor, or a person acting on behalf of the creditor, during the life of the mortgage; and

(iii) is used during the life of the mortgage to pay taxes and insurance owed with respect to the dwelling that is the subject of the mortgage.

However, this clause does not apply if, in the creditor's ordinary course of business, the creditor does not regularly establish and maintain, or contract for the establishment and maintenance of, escrow accounts for the payment of taxes and insurance, on behalf of the creditor's customers.

(D) The term of the mortgage may not exceed thirty (30) years.



- 1 (E) The mortgage may not include a prepayment penalty or
 2 fee.
- 3 (5) A creditor that qualifies as a five star mortgage lender and
 4 files a certification with the department under subdivision (3)
 5 shall provide a written statement, on a form and in the manner
 6 prescribed by the department, to any Indiana customer who:
 7 (A) applies for a five star mortgage offered by the creditor; and
 8 (B) does not qualify for the five star mortgage based on the
 9 creditor's underwriting standards for the five star mortgage.
- 10 The statement must set forth the reasons why the Indiana
 11 customer did not qualify for the five star mortgage.
- 12 (6) A creditor that qualifies as a five star mortgage lender and
 13 files a certification with the department may include that fact in
 14 any marketing material or solicitation directed at Indiana
 15 customers, subject to any conditions or limitations imposed by the
 16 department in the guidelines adopted under this section.
- 17 (7) If a creditor:
 18 (A) holds itself out as a five star mortgage lender and:
 19 (i) the creditor has not filed an accurate certification,
 20 including any renewal certification required by the
 21 department under subsection (b)(3), with the department
 22 under this chapter; or
 23 (ii) the creditor has filed a certification or a renewal
 24 certification with the department under this chapter and
 25 subsequently ceases offering at least one (1) mortgage
 26 product that qualifies as a five star mortgage; or
 27 (B) fails to comply with any program requirement;
 28 the department, upon discovering the act described in clause (A)
 29 or (B), shall immediately provide written notice to the creditor
 30 that the creditor does not qualify for participation in the program,
 31 or no longer qualifies for participation in the program, as
 32 appropriate. The notice provided under this subdivision must
 33 inform the creditor of the reason or reasons the creditor does not
 34 qualify for participation in the program, or no longer qualifies for
 35 participation in the program, as appropriate. Not later than seven
 36 (7) days after the date of the notice provided to the creditor under
 37 this subdivision, the department shall remove the creditor from
 38 the list of creditors published on the department's ~~Internet web~~
 39 ~~site~~ **website** under subsection (c), as appropriate, and shall post,
 40 on the same ~~Internet~~ web page on which the list described in
 41 subsection (c) is published, a link to the notice provided to the
 42 creditor under this subdivision.



(b) In addition to the program criteria required by subsection (a), the guidelines adopted by the department under this section may include the following:

(1) Provisions allowing a creditor that qualifies as a five star mortgage lender and files a certification with the department to include in the paperwork associated with a five star mortgage:

(A) a statement;

(B) a seal; or

(C) any other designation considered appropriate by the department;

indicating that the particular mortgage product is a five star mortgage.

(2) A requirement that a creditor that qualifies as a five star mortgage lender and files a certification with the department shall report the following information to the department on an annual basis, or any other basis determined appropriate by the department:

(A) The total number and types of residential mortgage products that were offered by the creditor to Indiana customers during the applicable reporting period, including any five star mortgages reported under clause (C).

(B) The total number of residential mortgages described in clause (A) that were closed by the creditor during the applicable reporting period, including any five star mortgages that were closed during the reporting period, as reported under clause (D).

(C) The number of mortgage products that:

(i) qualified as five star mortgages under the program; and

(ii) were offered by the creditor to Indiana customers;

during the applicable reporting period.

(D) The number of five star mortgages offered to Indiana customers that were closed by the creditor during the applicable reporting period.

(3) A requirement that a creditor that qualifies as a five star mortgage lender and files a certification with the department shall periodically submit to the department a renewal certification, on a form prescribed by the department, in conjunction with a report filed under subdivision (2), or at such other time as the department determines appropriate. In any renewal certification required under this subdivision, a creditor must attest that the creditor:

(A) continued to meet the criteria necessary to qualify as a five



- 1 star mortgage lender; and
- 2 (B) complied with all program requirements;
- 3 during the applicable reporting period.
- 4 (4) A fee fixed by the department under IC 28-11-3-5 for each
- 5 certification and recertification submitted by a creditor under this
- 6 chapter. However, any fee fixed by the department under this
- 7 subdivision may not exceed the department's actual costs to:
- 8 (A) process certifications and renewal certifications;
- 9 (B) publish the list described in subsection (c) on the
- 10 department's ~~Internet web site~~; **website**; and
- 11 (C) otherwise administer the program.
- 12 (5) Any other program requirements, criteria, or incentives that
- 13 the department determines necessary to implement and evaluate
- 14 a program to encourage creditors to offer stable mortgage
- 15 products to qualified Indiana customers.
- 16 (c) The department shall publish on the department's ~~Internet web~~
- 17 ~~site~~ **website** a list of all creditors that have a current and accurate:
- 18 (1) certification under this chapter; or
- 19 (2) renewal certification under this chapter;
- 20 on file with the department. The Indiana housing and community
- 21 development authority and the securities division of the office of the
- 22 secretary of state shall provide a link to the list described in this
- 23 subsection on their respective ~~Internet web sites~~; **websites**.
- 24 (d) The program guidelines established by the department under
- 25 subsections (a) and (b) must be made available:
- 26 (1) for public inspection and copying at the offices of the
- 27 department under IC 5-14-3; and
- 28 (2) on the department's ~~Internet web site~~; **website**.
- 29 (e) The department shall investigate any credible complaint received
- 30 by any means alleging that a creditor has committed a violation
- 31 described in subsection (a)(7). If the creditor that is the subject of a
- 32 complaint under this subsection is not subject to regulation by the
- 33 department, the department shall forward the complaint to the
- 34 appropriate state or federal regulatory agency.
- 35 (f) Notwithstanding subsection (a), the department may adopt a
- 36 different name for the program, other than the five star mortgage
- 37 program, in adopting the guidelines to implement the program.
- 38 SECTION 252. IC 25-1-20-2, AS AMENDED BY P.L.186-2025,
- 39 SECTION 138, IS AMENDED TO READ AS FOLLOWS
- 40 [EFFECTIVE JULY 1, 2026]: Sec. 2. The following definitions apply
- 41 throughout this chapter:
- 42 (1) "Arising (or arises) from a (or the) state disaster emergency"



means an injury or harm:

(A) caused by or resulting from an act or omission performed in response to a state disaster emergency declared under IC 10-14-3-12 to respond to COVID-19; and

(B) arising from COVID-19 (as defined by ~~IC 34-6-2.1-14(b)~~).
IC 34-6-2.1-14(a)).

(2) "COVID-19" has the meaning set forth in ~~IC 34-6-2.1-40(c)~~.
IC 34-6-2.1-40.

(3) "Health care provider" has the meaning set forth in IC 4-6-14-2.

(4) "Health care services" has the meaning set forth in IC 34-6-2.1-84(b).

SECTION 253. IC 25-23.6-5-3.1, AS AMENDED BY P.L.149-2022, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3.1. (a) Except as provided in subsection (b), a graduate program is considered to have emphasized direct clinical patient or clinic health care services if the graduate program meets the following requirements:

(1) Required ~~coursework~~ **course work** in clinical social work and related areas such as psychiatric social work, medical social work, social case work, case management, psychotherapy, group therapy, and any other ~~coursework~~ **course work** accepted by the board.

(2) Required supervised field placement that was part of the applicant's advanced concentration in direct practice, during which the applicant provided clinical services directly to clients.

(b) An applicant who graduated from a graduate program that did not emphasize direct patient or client services may complete the clinical curriculum requirement by returning to a graduate program allowed under section 2(1)(B) of this chapter to complete the education requirements.

(c) ~~Coursework~~ **Course work** that was taken at a baccalaureate level does not meet the requirements under this section unless an official of the graduate program certifies that the specific course, which a student enrolled in the same graduate program was ordinarily required to complete at the graduate level, was waived or exempted based on completion of a similar course at the baccalaureate level.

SECTION 254. IC 25-39-6-1, AS ADDED BY P.L.84-2010, SECTION 90, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. Except as provided in section 6 of this chapter, a licensee who has held a license for at least one (1) ~~calendar~~ **calendar** year shall complete six (6) actual hours of continuing education before



December 31 of each even-numbered year.

SECTION 255. IC 26-3-7-2, AS AMENDED BY P.L.114-2025, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The following definitions apply throughout this chapter:

(1) "Agency" refers to the Indiana grain buyers and warehouse licensing agency established under section 1 of this chapter.

(2) "Anniversary date" means the date that is ninety (90) calendar days after the fiscal year end of a business licensed under this chapter.

(3) "Basis contract" means an agreement that establishes the difference between the flat price contract and a specified futures price of the same or a related commodity.

~~(3)~~ (4) "Bin" means a bin, tank, interstice, or other container in a warehouse in which bulk grain may be stored.

~~(4)~~ (5) "Board" means the governing body of the Indiana grain indemnity corporation created by IC 26-4-3-2.

~~(5)~~ (6) "Buyer-warehouse" means a person that operates both as a warehouse licensed under this chapter and as a grain buyer.

~~(6)~~ (7) "Claimant" means a person to whom a licensee owes a storage or financial obligation under this chapter for grain that has been delivered to the licensee for sale or for storage under a bailment.

~~(7)~~ (8) "Crop year" means the period from one (1) year's harvest to the next year for a specified field crop as follows:

(A) Barley and barley seed from June 1 to May 31.

(B) Canola and canola seed from July 1 to June 30.

(C) Corn and corn seed from September 1 to August 31.

(D) Lentils and lentil seed from July 1 to June 30.

(E) Oats and oat seed from June 1 to May 31.

(F) Popcorn and popcorn seed from September 1 to August 31.

(G) Rye and rye seed from June 1 to May 31.

(H) Sorghum and sorghum seed from September 1 to August 31.

(I) Soybeans and soybean seed from September 1 to August 31.

(J) Sunflower and sunflower seed from September 1 to August 31.

(K) Wheat and wheat seed from June 1 to May 31.

(L) All other field crops and other field crop seed from September 1 to August 31.

~~(8)~~ (9) "Daily position record" means a written or electronic



document that is maintained on a daily basis for each grain commodity, contains a record of the total amount of grain in inventory for that business day, and complies with any requirements established by the director.

~~(9)~~ **(10)** "Deferred pricing" means a purchase by a buyer in which title to the grain passes to the buyer and the price to be paid to the seller is not determined:

(A) at the time the grain is received by the buyer; or

(B) less than twenty-one (21) days after delivery.

~~(10)~~ **(11)** "Delayed payment" means:

(A) a purchase by a buyer in which title to the grain passes to the buyer at a determined price; and

(B) payment to the seller is not made in less than twenty-one (21) days after delivery.

~~(11)~~ **(12)** "Depositor" means any of the following:

(A) A person that delivers grain to a licensee under this chapter for storage or sale.

(B) A person that:

(i) owns or is the legal holder of a ticket or receipt issued by a licensee for grain received by the licensee; and

(ii) is the creditor of the issuing licensee for the value of the grain received in return for the ticket or receipt.

(C) A licensee that stores grain that the licensee owns solely, jointly, or in common with others in a warehouse owned or controlled by the licensee or another licensee.

~~(12)~~ **(13)** "Designated representative" means the person or persons designated by the director to act instead of the director in assisting in the administration of this chapter.

~~(13)~~ **(14)** "Director" means the director of the Indiana grain buyers and warehouse licensing agency appointed under section 1 of this chapter.

~~(14)~~ **(15)** "Facility" means a permanent business location or one (1) of several permanent business locations in Indiana that are operated as a warehouse or by a grain buyer.

~~(15)~~ **(16)** "Flat price contract" means a contract that sets a fixed price for a specific delivery requirement, where the price is determined by adding the basis to the futures price of the same commodity, which is set before the futures contract expires.

~~(16)~~ **(17)** "Fund" means the Indiana grain indemnity fund established under IC 26-4-4-1.

~~(17)~~ **(18)** "Grain" means corn for all uses, popcorn, wheat, oats, barley, rye, sorghum, soybeans, oil seeds, other agricultural



1 commodities as approved by the agency, and seed as defined in
 2 this section. The term does not include canning crops for
 3 processing or sweet corn.

4 ~~(+8)~~ **(19)** "Grain assets" means any of the following:

5 (A) All grain and grain coproducts owned or stored by a
 6 licensee, including the following:

7 (i) Grain that is in transit following shipment by a licensee.

8 (ii) Grain that has not been paid for.

9 (iii) Grain that is stored in unlicensed facilities that are
 10 leased, owned, or occupied by the licensee.

11 (B) All proceeds, due or to become due, from the sale of a
 12 licensee's grain.

13 (C) Equity, less any secured financing directly associated with
 14 the equity, in hedging or speculative margin accounts of a
 15 licensee held by a commodity or security exchange, or a dealer
 16 representing a commodity or security exchange, and any
 17 money due the licensee from transactions on the exchange,
 18 less any secured financing directly associated with the money
 19 due the licensee from the transactions on the exchange.

20 (D) Any other unencumbered funds, property, or equity in
 21 funds or property, wherever located, that can be directly traced
 22 to the sale of grain by a licensee. However, funds, property, or
 23 equity in funds or property may not be considered encumbered
 24 unless:

25 (i) the encumbrance results from valuable consideration paid
 26 to the licensee in good faith by a secured party; and

27 (ii) the encumbrance did not result from the licensee posting
 28 the funds, property, or equity in funds or property as
 29 additional collateral for an antecedent debt.

30 (E) Any other unencumbered funds, property, or equity in
 31 assets of the licensee.

32 ~~(+9)~~ **(20)** "Grain bank grain" means grain owned by a depositor
 33 for use in the formulation of feed and stored by the warehouse to
 34 be returned to the depositor on demand.

35 ~~(20)~~ **(21)** "Grain buyer" means a person who is engaged in the
 36 business of buying grain from producers.

37 ~~(21)~~ **(22)** "Grain coproducts" means any milled or processed
 38 grain, including the grain byproduct of ethanol production.

39 ~~(22)~~ **(23)** "Grain standards act" means the United States Grain
 40 Standards Act, approved August 11, 1916 (39 Stat. 482; 7 U.S.C.
 41 71-87 as amended).

42 ~~(23)~~ **(24)** "License" means a license issued under this chapter.



- 1 ~~(24)~~ **(25)** "Licensee" means a person who operates a facility that
 2 is licensed under this chapter.
 3 ~~(25)~~ **(26)** "Official grain standards of the United States" means the
 4 standards of quality or condition for grain, fixed and established
 5 by the secretary of agriculture under the grain standards act.
 6 ~~(26)~~ **(27)** "Parent entity" means an entity that owns at least twenty
 7 percent (20%) or the equivalent of another entity, including
 8 through shares, membership interests, or other securities, or as a
 9 partner in a general partnership or joint venture.
 10 ~~(27)~~ **(28)** "Person" means an individual, partnership, corporation,
 11 association, or other form of business enterprise.
 12 ~~(28)~~ **(29)** "Receipt" means a warehouse receipt issued by a
 13 warehouse licensed under this chapter.
 14 ~~(29)~~ **(30)** "Revocation of a license" means any of the following:
 15 (A) The inability of a licensee to financially satisfy fully all
 16 obligations due to claimants.
 17 (B) Public declaration of a licensee's insolvency.
 18 (C) Revocation of a licensee's license, if the licensee has
 19 outstanding indebtedness owed to claimants.
 20 (D) Nonpayment of a licensee's debts in the ordinary course of
 21 business, if there is not a good faith dispute.
 22 (E) Involuntary or voluntary bankruptcy of a licensee.
 23 ~~(30)~~ **(31)** "Seed", notwithstanding IC 15-15-1, means grain set
 24 apart to be used primarily for the purpose of producing new
 25 plants.
 26 ~~(31)~~ **(32)** "Seed inventory" means seed for commercial sale.
 27 ~~(32)~~ **(33)** "Storage" means a facility or system that is designed,
 28 structured, and equipped to receive, clean, dry, store, and
 29 dispense grains or seeds. The term includes a facility where the
 30 producer has maintained:
 31 (A) title to the grain until selling or moving the grain to a
 32 facility other than the facility where the grain was delivered;
 33 and
 34 (B) a record or proof of storage at the facility where the grain
 35 was delivered.
 36 ~~(33)~~ **(34)** "Storage loss" means a loss to a storage depositor
 37 resulting from a warehouse operator:
 38 (A) whose license has been revoked; and
 39 (B) who has not fully satisfied the warehouse operator's
 40 storage obligation to the depositor, after any outstanding
 41 charges against the grain.
 42 ~~(34)~~ **(35)** "Subsidiary" means an entity, including a general



partnership or joint venture, that is owned in whole or part by one (1) or more other entities, including at least one (1) entity that constitutes a parent entity.

~~(35)~~ **(36)** "Ticket" means a scale weight ticket, a load slip, or other evidence, other than a receipt, given to a depositor upon initial delivery of grain to a facility.

~~(36)~~ **(37)** "Warehouse act" means the United States Warehouse Act, approved August 11, 1916 (39 Stat. 486; 7 U.S.C. 241-273 as amended).

~~(37)~~ **(38)** "Warehouse" means any building or other protected enclosure in one (1) general location licensed or required to be licensed under this chapter, which building or other protected enclosure is operated under one (1) ownership and run from a single office, and in which grain is or may be:

(A) stored for hire;

(B) used for grain bank storage; or

(C) used to store company owned grain.

~~(38)~~ **(39)** "Warehouse operator" means a person that operates a facility or group of facilities in which grain is or may be stored for hire or which is used for grain bank storage and which is operated under one (1) ownership and run from a single office.

SECTION 256. IC 26-3-7-3, AS AMENDED BY P.L.114-2025, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) The director may do the following:

(1) Require any reports that are necessary to administer this chapter.

(2) Administer oaths, issue subpoenas, compel the attendance and testimony of witnesses, and compel the production of records in connection with any investigation, informal meeting, or hearing under this chapter.

(3) Prescribe all forms within the provisions of this chapter.

(4) Establish grain standards in accordance with the grain standards act and federal regulations promulgated under that act that must be used by warehouses.

(5) Investigate the activities required by this chapter including the storage, shipping, marketing, and handling of grain and complaints with respect to the storage, shipping, marketing, and handling of grain.

(6) Inspect a facility, the grain stored in a facility, and all property and records pertaining to a facility. All inspections of an applicant or licensee under this chapter must take into consideration the proprietary nature of an applicant's or licensee's commercial



information. This chapter does not authorize the inspection of an applicant's or licensee's trade secret or intellectual property information.

(7) Determine whether a facility for which a license has been applied for or has been issued is suitable for the proper storage, shipping, and handling of the grain that is stored, shipped, or handled, or is expected to be stored, shipped, or handled.

(8) Require a licensee to terminate storage, shipping, marketing, and handling agreements upon revocation of a license.

(9) Attend and preside over any investigation, informal meeting, or hearing allowed or required under this chapter.

(10) Impose sanctions for violations of this article.

(11) Require all contracts for the purchase of grain from producers, except a flat price contract or a contract for the production of seed, to include the following notice immediately above the place on the contract where the seller of the grain must sign:

"NOTICE - SELLER IS CAUTIONED THAT CONTRACTING FOR THE SALE AND DELIVERY OF GRAIN INVOLVES RISKS. THESE RISKS MAY INCLUDE FUTURE PAYMENTS BY YOU TO MAINTAIN THIS CONTRACT, A LOWER SALES PRICE, AND OTHER RISKS NOT SPECIFIED.

INDIANA STATE LAW REQUIRES THAT ALL DEFERRED PRICED GRAIN MUST BE PRICED WITHIN THE CROP YEAR AS DEFINED BY ~~IC 26-3-7-2(7)~~.

IC 26-3-7-2(8). THIS CONTRACT MUST BE PRICED BY (Insert Date).

COVERAGE UNDER THE INDIANA GRAIN INDEMNITY PROGRAM IS FOR GRAIN THAT HAS BEEN DELIVERED TO A FIRST PURCHASER LICENSEE WITHIN THE 15 MONTHS BEFORE THE DATE OF THE REVOCATION OF A LICENSE AND IS LIMITED TO 100% OF A LOSS FOR STORED GRAIN AND 80% OF A LOSS FOR OTHER COVERED CONTRACTS.

BE SURE YOU UNDERSTAND THE NATURE OF THIS CONTRACT AND THE ASSOCIATED RISKS."

(12) Require all contracts executed for the production of seed to include the following notice, in conspicuous letters, immediately above the place on the contract or an addendum where the seller of the seed must sign:

"NOTICE - IF THE TERMS OF THIS CONTRACT STATE



1 THAT THE CONTRACTOR RETAINS OWNERSHIP OF
 2 THE SEED AND ITS PRODUCTS, YOU MAY NOT BE
 3 ELIGIBLE FOR PARTICIPATION IN THE INDIANA
 4 GRAIN INDEMNITY PROGRAM. TO BE ELIGIBLE TO
 5 PARTICIPATE IN THE INDIANA GRAIN INDEMNITY
 6 PROGRAM, FARMERS MUST OWN AND SELL GRAIN
 7 OR SEED. BE SURE YOU UNDERSTAND THE NATURE
 8 OF THIS CONTRACT AND THE ASSOCIATED RISKS."

9 (13) At any time, order an unannounced audit for compliance with
 10 this article.

11 (14) Require all grain buyers offering deferred pricing, delayed
 12 payments, or contracts linked to the commodity futures or
 13 commodity options market in connection with a grain purchase to
 14 document the agreement in writing not more than twenty-one (21)
 15 days after delivery.

16 (15) Receive and consider financial audits of a licensee conducted
 17 by an independent audit or accounting firm.

18 (16) Share information with board members regarding the
 19 financial status of a licensee, while the board is in executive
 20 session and without disclosing the name or any other identifying
 21 information of the licensee, including the following:

22 (A) Whether there is a risk that a licensee's license may be
 23 revoked.

24 (B) The financial impact to the fund if a licensee identified in
 25 clause (A) were to have the licensee's license revoked.

26 (C) The estimated number of potential claimants that could
 27 result from the revocation of a licensee identified in clause
 28 (A).

29 (D) Any other information the director determines is necessary
 30 to solicit the advice of the board regarding the financial status
 31 of a licensee.

32 However, the director may not share information under this
 33 subdivision with a board member who has not executed a
 34 confidentiality agreement.

35 (b) The director shall do the following:

36 (1) Establish standards to ensure that a grain buyer has a suitable
 37 financial position to conduct a business as a grain buyer.

38 (2) Require a person who conducts business as a grain buyer to
 39 first be licensed by the agency.

40 (c) The director may designate an employee to act for the director
 41 in the administration of this chapter. An employee designee may not:

42 (1) adopt rules; or



- 1 (2) act as the ultimate authority in the administration of this
- 2 chapter.
- 3 (d) The director may designate an administrative law judge to act for
- 4 the director in the administration of this chapter.
- 5 (e) The director may determine whether geographically separate
- 6 facilities constitute a single warehouse or grain buyer and in making
- 7 the determination may consider the following:
- 8 (1) The number of facilities involved.
- 9 (2) Whether full weighing equipment is present at the
- 10 geographically separate facilities.
- 11 (3) The method of bookkeeping employed by the separate
- 12 facilities.
- 13 (4) The hours of operation of the separate facilities.
- 14 (5) The personnel employed at the separate facilities.
- 15 (6) Other factors the director deems relevant.
- 16 (f) For purposes of determining whether a building or other
- 17 protected enclosure constitutes a single warehouse that requires a
- 18 single license under this chapter, the director may consider the
- 19 following:
- 20 (1) The presence of a full weighing facility at geographically
- 21 diverse warehouse facilities.
- 22 (2) The traditional method of record keeping with respect to the
- 23 separate facilities.
- 24 (3) The hours, number of personnel, and activities of the separate
- 25 facilities.
- 26 (4) Any other factor considered relevant.
- 27 In the absence of contradictory information, any warehouses owned and
- 28 operated by the same person that are located within close proximity of
- 29 each other are presumed to constitute a single warehouse.
- 30 (g) The director and the director's designated representative shall
- 31 become members of the national grain regulatory organization and
- 32 shall:
- 33 (1) work in partnership with other state grain regulatory officials;
- 34 (2) participate in national grain regulatory meetings; and
- 35 (3) provide expertise and education at national meetings.
- 36 (h) The director shall engage an independent third party firm to
- 37 conduct a performance review of the agency's auditing practices and
- 38 procedures at least once every five (5) years. The agency shall make
- 39 reasonable efforts to implement any corrective measures identified in
- 40 the performance review to enhance and improve the agency's auditing
- 41 practices and procedures. The agency shall make the findings of the
- 42 performance review available to the board.



(i) The director may subpoena or require that certain records located outside Indiana, if any, be brought to a specified location in Indiana for review by the agency.

SECTION 257. IC 26-3-7-27.5, AS ADDED BY P.L.114-2025, SECTION 32, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 27.5. (a) For purposes of this section, the following apply:

(1) "Unencumbered assets" means a licensee's unencumbered assets as demonstrated by the agency's inspection of the licensee's books and records.

(2) "Unpaid balance of grain payables" means a licensee's unpaid balance of grain payables demonstrated by the agency's inspection of the licensee's books and records.

(b) If an on-premises inspection of a licensee's books and records demonstrates that the licensee, as of the time of the inspection, did not have unencumbered assets with a value at least equal to eighty-five percent (85%) of the unpaid balance of grain payables covered by each license held by the licensee, then:

(1) the director or the director's designated representative shall issue a notice of deficiency to the licensee; and

(2) the licensee shall cure the unencumbered asset deficiency within ninety (90) days from the receipt of the notice.

(c) Unencumbered assets may consist of the aggregate of any of the following:

(1) Company owned grain.

(2) Cash on hand.

(3) Cash held on account in federally or state licensed financial institutions or in lending institutions of the Federal Farm Credit Administration.

(4) Investments held in time accounts with federally or state licensed financial institutions.

(5) Direct obligations of the United States government.

(6) Balances in grain margin accounts determined by marking to market.

(7) Balances due or to become due to the licensee on deferred pricing contracts.

(8) Marketable securities, including mutual funds.

(9) Irrevocable letters of credit that:

(A) comply with the requirements of this chapter; and

(B) are in addition to any letter of credit filed with the director to satisfy the deposit, bond, or other security requirements of this chapter.



(10) Deferred pricing contract service charges due or to become due to the licensee.

(11) Other evidence of proceeds from or of grain that is acceptable to the agency.

(12) Seed inventory.

(13) Other assets that the agency may include in rules adopted under section 38 of this chapter.

(d) If a licensee has more than one (1) license, the unencumbered assets at the time of the inspections under subsection (b) must have a value at least equal to the sum of the amounts required under subsection (b) for each individual license held by the licensee.

(e) If the licensee's demonstrated current unencumbered assets ~~is~~ **are** less than or equal to eighty-five percent (85%) of the required amount or the licensee has not cured the unencumbered assets deficiency as required in subsection (b)(2), then the director shall hold an informal meeting in accordance with this chapter and, within thirty (30) days of the conclusion of the informal meeting, issue either:

(1) a consent agreement that requires the licensee to take certain actions within a set period, not to exceed twelve (12) months, to remedy the current unencumbered assets deficiency, as the director deems necessary and appropriate; or

(2) an order that revokes the license or licenses of the licensee.

(f) If a licensee, after an informal meeting in subsection (e):

(1) does not meet the requirements in subsection (e)(1), the director shall revoke; or

(2) has an unencumbered asset deficiency that has continued to decline, the director may revoke;

the license or licenses of the licensee.

(g) Subject to section 31.8 of this chapter, the director shall assess a fine of one thousand dollars (\$1,000) on a licensee that does not maintain the unencumbered asset requirement under subsection (b).

(h) Nothing in this section precludes the agency from conducting an on-premises inspection of a licensee at any time the director may consider an inspection to be necessary or appropriate.

SECTION 258. IC 26-3-7-31.6, AS ADDED BY P.L.114-2025, SECTION 37, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 31.6. (a) The director may revoke a license by issuing a revocation order upon notice.

(b) If a license is revoked under this chapter, the licensee shall **do the following:**

(1) Immediately cease all activities covered by the revoked license.



(2) Immediately remove all public indications regarding the existence or effectiveness of the revoked license, including the copy of the license physically on display at a facility.

(3) Promptly turn over and deliver to the director or the director's designated representative all books, records, and other property related to or containing information on the activities and any obligations covered by the revoked license.

(4) Comply with any additional terms and conditions determined by the director that the revocation order imposes on the licensee.

(5) Comply with the orders from the director respecting the revoked license, any obligations or activities covered by the revoked license, or the claims administration process.

(c) Notwithstanding anything to the contrary in this chapter, a license shall be revoked automatically if the licensee has done any of, and as of the respective dates or times of, the following:

(1) Has filed a voluntary bankruptcy petition under Chapter 7 of the federal Bankruptcy Code, as of the date the licensee filed the petition.

(2) Has filed:

(A) a voluntary bankruptcy petition under Chapter 11, 12, or 13 of the federal Bankruptcy Code; and

(B) within seven (7) days of the filing of the petition, either:

(i) a liquidating plan not predicated or premised on a prior sale process under Chapter 3 of the federal Bankruptcy Code; or

(ii) an affidavit of an owner, member, director, officer, or executive of the licensee stating that the licensee intends to propose a liquidating plan without first conducting a sale process under Chapter 3 of the federal Bankruptcy Code; as of the date the licensee filed the liquidating plan or affidavit.

(3) Is the subject of an involuntary bankruptcy petition if the bankruptcy court has entered an order for relief against the licensee, as of the date and time of the order for relief.

(4) Is the subject of a receivership order in any state court, as of the date and time of the receivership order.

(5) Is the assignor in an assignment for the benefit of creditors in any state court, as of the date and time of the filing of pleading initiating the proceeding.

(6) Is declared by any court of competent jurisdiction to be insolvent, as of the date and time of the order so declaring.

(7) Has entered into an agreement obligating the licensee to



discontinue and liquidate its business, or the portion of its business covered by the license, without legal or equitable proceedings, as of the effective date of the agreement.

(8) Has stated publicly and in writing that it is in the process of discontinuing its business, or the portion of its business covered by the license, or will be liquidating immediately, as of the date and time the writing is published or made widely available.

SECTION 259. IC 26-3-7-32.5, AS ADDED BY P.L.114-2025, SECTION 39, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 32.5. If the director or the director's designated representative is required or permitted to give notice under this chapter, the notice must contain, in addition to information or content required to be included in the notice under this chapter, ~~requiring or establishing the notice:~~ **the following:**

- (1) The date on which the notice is issued.
- (2) The full name and contact information, including telephone number and electronic mail address, for the director, the director's designated representative, or the other employee or agent of the agency responsible for the notice.
- (3) The full name and contact information, as available to the agency, for the recipient of the notice.
- (4) The reasons for the notice, including the applicable sections of this chapter under which the fine has been assessed.
- (5) Any deadlines or other times within which the recipient of the notice may or must act under this chapter.
- (6) A list of each person to whom the notice is being sent.
- (7) A list of any enclosures included with the notice.
- (8) The signature of the director, the director's designated representative, or the other employee or agent of the agency responsible for the notice.

SECTION 260. IC 26-4-1-3.7 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 3-7. "Basis contract" means an agreement that establishes the difference between the flat price contract and a specified futures price of the same or a related commodity.

SECTION 261. IC 26-4-1-13, AS AMENDED BY P.L.114-2025, SECTION 52, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. "Grain" means corn for all uses, popcorn, wheat, oats, rye, soybeans, barley, sorghum, oil seeds, other agricultural commodities as approved by the agency, and seed (as defined in ~~IC 26-3-7-2(30))~~ **IC 26-3-7-2(31))**). The term does not include canning crops for processing or sweet corn.

SECTION 262. IC 26-4-1-15.5, AS AMENDED BY P.L.208-2021,



1 SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
2 JULY 1, 2026]: Sec. 15.5. "Licensee" has the meaning set forth in
3 ~~IC 26-3-7-2(24)~~. **IC 26-3-7-2(25)**.

4 SECTION 263. IC 26-4-5-4, AS AMENDED BY P.L.114-2025,
5 SECTION 72, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
6 JULY 1, 2026]: Sec. 4. The board, in coordination with the agency,
7 shall develop educational information to be made available
8 electronically to producers, grain buyers, and warehouse operators,
9 explaining the following:

- 10 (1) The purpose of the fund.
- 11 (2) How the fund is operated.
- 12 (3) An explanation of coverage under the program, including the
- 13 duration of coverage and limits on losses.
- 14 (4) The process for claiming a refund.
- 15 (5) The process for reentering the program.
- 16 (6) Where a producer may locate information about the producer's
- 17 status in the program.
- 18 (7) Materials explaining normal industry marketing terms and the
- 19 ~~terms~~ **terms'** meanings.

20 SECTION 264. IC 27-7-17-7, AS ADDED BY P.L.19-2022,
21 SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
22 JULY 1, 2026]: Sec. 7. As used in this chapter, "eligible group" means
23 two (2) or more persons who are engaged in a common enterprise, or
24 have an economic, educational, or social affinity or relationship,
25 including the following:

- 26 (1) An entity engaged in the business of providing travel or travel
- 27 services, including tour operators, lodging providers, vacation
- 28 property owners, hotels and resorts, travel clubs, travel agencies,
- 29 property managers, cultural exchange programs, and common
- 30 carriers or the operator, owner, or lessor of a means of
- 31 transportation of passengers, including airlines, cruise lines,
- 32 railroads, steamship companies, and public bus carriers, wherein
- 33 with regard to any particular travel or type of travel or travelers,
- 34 all members or customers of the group must have a common
- 35 exposure to risk attendant in such travel.
- 36 (2) A college, school, or other institution of learning, covering
- 37 students, teachers, employees, or volunteers.
- 38 (3) An employer covering any group of employees, volunteers,
- 39 contractors, board of directors, dependents, or guests.
- 40 (4) A sports team, camp, or sponsor thereof, covering participants,
- 41 members, campers, employees, officials, supervisors, or
- 42 volunteers.



(5) A religious, charitable, recreational, educational, or civic organization, or branch thereof, covering any group of members, participants, or volunteers.

(6) A financial institution or financial institution vendor, or parent holding company, trustee, or agent of or designated by one (1) or more financial institutions or financial institution vendors, including account holders, credit card holders, debtors, guarantors, or purchasers.

(7) Any incorporated or unincorporated association, including labor unions, having a common interest, constitution, and bylaws and organized and maintained in good faith for purposes other than obtaining insurance for members or participants of such association covering its members.

(8) A trust or the trustees of a fund established, created, or maintained for the benefit of and covering members, employees, or customers, subject to the commissioner's permitting the use of a trust and the state's premium tax provisions in section 14 of this chapter of one (1) or more associations meeting the requirements of subdivision (7).

(9) An entertainment production company covering any group of participants, volunteers, audience members, contestants, or workers.

(10) A volunteer fire department, ambulance, rescue, police, court, or any first aid, civil defense, or other such volunteer group.

(11) A preschool, ~~daycare~~ **day care** institution for children or adults, or senior citizen club.

(12) An automobile or truck rental or leasing company covering a group of individuals who may become renters, lessees, or passengers defined by their travel status on the rented or leased vehicles. The common carrier, operator, owner, or lessor of a means of transportation or the automobile or truck rental or leasing company is the policyholder under a policy to which this chapter applies.

(13) Any other group for which the commissioner has determined that the members are engaged in a common enterprise or have an economic, educational, or social affinity or relationship, and that issuance of a policy would not be contrary to the public interest.

SECTION 265. IC 28-6.2-2-8 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. Each reorganization plan must:

(1) contain a description of all significant terms of the proposed reorganization; **and**



(2) include as an attachment and incorporate the following:

(A) Any proposed stock issuance plan.

(B) An opinion of counsel or a ruling from the federal Internal Revenue Service and the department of state revenue as to the federal and state tax treatment of the proposed reorganization.

(C) A copy of the proposed articles of reorganization and bylaws of the resulting savings bank.

(D) A description of the method of reorganization under this chapter.

(E) A statement that, upon consummation of the reorganization, certain assets and liabilities, including all deposit accounts of the reorganizing savings bank, shall be transferred to the resulting savings bank, which shall immediately become a savings bank subsidiary of the mutual holding company.

(F) A copy of any stock issuance plan that is proposed as part of the reorganization plan.

(G) A summary of the expenses to be incurred in connection with the reorganization.

SECTION 266. IC 31-34-12-4.6, AS ADDED BY P.L.179-2025, SECTION 15, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.6. (a) There is a rebuttable presumption that a child is a child in need of services if the court finds that the child lives in the same household as an adult who is subject to an order requiring the adult to participate in a program of care, treatment, or rehabilitation under IC 31-34-20-3.

(b) There is a rebuttable presumption that a child is a child in need of services if the court finds that the child's parent, guardian, or custodian willfully or knowingly:

(1) exposed the child to the illegal manufacture or distribution of a legend drug or controlled substance; or

(2) exposed the child to:

(A) methamphetamine;

(B) fentanyl; or

(C) a fentanyl containing substance (as defined by ~~IC 35-48-1-16.7~~; **IC 35-48-1.1-19**);

for which the parent, guardian, or custodian did not have a valid prescription.

SECTION 267. IC 31-34-21-7.3, AS AMENDED BY P.L.179-2025, SECTION 21, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7.3. (a) This section applies after:

(1) a court approves a permanency plan for a child under which



the only intended permanent or long term arrangement for care and custody of the child is placement of the child for adoption, if the child is not already in a pre-adoptive placement in a proposed adoptive home;

(2) a court authorizes the filing of a petition to terminate the parent-child relationship; or

(3) a petition to terminate the parent-child relationship is filed; in relation to a child in need of services.

(b) The department shall post the following nonidentifying information on the Internet to facilitate a potential adoptive placement of the child:

(1) The child's age, gender, and summary of the child's educational, social, and medical background, including known disabilities.

(2) The reason the child was removed from the child's home.

(3) Whether a person has expressed an interest in adopting the child.

(4) The name, address, and telephone number of a contact person from:

(A) the department;

(B) the appropriate local office; or

(C) **the appropriate** licensed child placing agency; where a person who may be interested in adopting the child may obtain further information about adopting the child.

(5) Whether a petition to terminate the rights of the child's parents has been authorized or filed, and whether the rights of the child's parents have been terminated.

(6) An address and telephone number of:

(A) the department;

(B) the appropriate local office; or

(C) **the appropriate** licensed child placing agency; where a person who may be interested in adopting the child may obtain further information about adopting the child.

(c) Except as provided in subsection (d), the information posted under subsection (b) may not identify the name of any of the following persons:

(1) The child.

(2) The child's biological or adoptive parents.

(3) A sibling of the child.

(4) A caretaker of the child.

(d) If the child is a hard to place child, the information posted by the department under subsection (b) may include the child's first name and



1 picture.

2 (e) The department shall update any relevant information under this
3 section after either of the following:

4 (1) Each of the child's periodic reviews that occur after the
5 information under this section is required to be posted.

6 (2) The rights of the child's parents have been terminated.

7 (f) The department shall remove the information required under
8 subsection (b) from the Internet whenever the child is reunited with the
9 child's family or an adoption of the child is filed under IC 31-19-2.

10 (g) Upon request, the department shall inform the person making the
11 request of the address of the website containing the information
12 described in this section.

13 SECTION 268. IC 34-6-2.1-14, AS ADDED BY P.L.186-2025,
14 SECTION 176, IS AMENDED TO READ AS FOLLOWS
15 [EFFECTIVE JULY 1, 2026]: Sec. 14. ~~(a) "Arising from COVID-19",~~
16 ~~for purposes of IC 34-30-32, has the meaning set forth in~~
17 ~~IC 34-30-32-2.~~

18 ~~(b)~~ **(a)** "Arising from COVID-19", for purposes of section 13 of this
19 chapter, IC 34-12-5, and IC 34-13-3-3, means an injury or harm caused
20 by or resulting from:

21 (1) the actual, alleged, or possible exposure to or contraction of
22 COVID-19; or

23 (2) services, treatment, or other actions performed for COVID-19.

24 ~~(c)~~ **(b)** The definition under subsection ~~(b)~~ **(a)** includes:

25 (1) the implementation of policies and procedures to:

26 (A) prevent or minimize the spread of COVID-19; and

27 (B) reallocate or procure staff or resources for COVID-19;

28 (2) testing in response to COVID-19;

29 (3) monitoring, collecting, reporting, tracking, tracing, disclosing,
30 or investigating COVID-19 exposure or other COVID-19 related
31 information;

32 (4) using, designing, manufacturing, providing, donating, or
33 servicing precautionary, diagnostic, collection, or other health
34 equipment or supplies, including personal protective equipment,
35 for COVID-19;

36 (5) closing or partially closing to prevent or minimize the spread
37 of COVID-19;

38 (6) delaying or modifying the scheduling or performance of a
39 nonemergency medical procedure or appointment due to
40 COVID-19;

41 (7) reasonable nonperformance of medical services due to
42 COVID-19; and



(8) providing services or products in response to government appeal or repurposing operations to address an urgent need for personal protective equipment, sanitation products, or other products necessary to protect the public from COVID-19.

SECTION 269. IC 34-6-2.1-40, AS ADDED BY P.L.186-2025, SECTION 176, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 40. (a) ~~"COVID-19", for purposes of IC 34-30-32, has the meaning set forth in IC 34-30-32-3.~~

(b) ~~"COVID-19", for purposes of IC 34-30-33, has the meaning set forth in IC 34-30-33-2.~~

(c) ~~"COVID-19", for purposes of sections 14 and 84 of this chapter, IC 34-7-8, IC 34-12-5, IC 34-13-3-3, IC 34-30-13.5-1, and IC 34-30-13.5-3, has the meaning set forth in IC 34-30-32-3.~~ means:

(1) severe acute respiratory syndrome coronavirus 2 or a mutated form of severe acute respiratory syndrome coronavirus 2; or

(2) the disease caused by severe acute respiratory syndrome coronavirus 2 or a mutated form of severe acute respiratory syndrome coronavirus 2.

SECTION 270. IC 34-6-2.1-41 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 41. ~~"COVID-19 protective product", for purposes of IC 34-30-33, has the meaning set forth in IC 34-30-33-2.~~

SECTION 271. IC 34-6-2.1-120 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 120. ~~"Manufacturer or supplier", for purposes of IC 34-30-33, has the meaning set forth in IC 34-30-33-2.~~

SECTION 272. IC 34-6-2.1-149, AS ADDED BY P.L.186-2025, SECTION 176, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 149. (a) "Person", for purposes of IC 34-14, has the meaning set forth in IC 34-14-1-13.

(b) "Person", for purposes of IC 34-11-2-11.5 and IC 34-24-4, means:

(1) an individual;

(2) a governmental entity;

(3) a corporation;

(4) a firm;

(5) a trust;

(6) a partnership; or

(7) an incorporated or unincorporated association that exists under or is authorized by the laws of this state, another state, or a foreign country.

(c) "Person", for purposes of section 67 of this chapter and IC 34-30-29-1, means an adult or a minor.



(d) "Person", for purposes of IC 34-26-4, has the meaning set forth in IC 35-31.5-2-234.

(e) "Person", for purposes of IC 34-30-5, means any of the following:

- (1) An individual.
- (2) A corporation.
- (3) A partnership.
- (4) An unincorporated association.
- (5) The state (as defined in section 193 of this chapter).
- (6) A political subdivision (as defined in section 155 of this chapter).
- (7) Any other entity recognized by law.

(f) "Person", for purposes of IC 34-30-6, means an individual, a corporation, a limited liability company, a partnership, an unincorporated association, or a governmental entity that:

- (1) has qualifications or experience in:
 - (A) storing, transporting, or handling a hazardous substance or compressed gas;
 - (B) fighting fires;
 - (C) emergency rescue; or
 - (D) first aid care; or
- (2) is otherwise qualified to provide assistance appropriate to remedy or contribute to the remedy of the emergency.

(g) "Person", for purposes of IC 34-30-18, includes:

- (1) an individual;
- (2) an incorporated or unincorporated organization or association;
- (3) the State of Indiana;
- (4) a political subdivision (as defined in IC 36-1-2-13);
- (5) an agency of the state or a political subdivision; or
- (6) a group of such persons acting in concert.

(h) "Person", for purposes of sections 58, 59, 100, and 141 of this chapter, means an individual, an incorporated or unincorporated organization or association, or a group of such persons acting in concert.

(i) "Person", for purposes of IC 34-30-10.5, means the following:

- (1) A political subdivision (as defined in IC 36-1-2-13).
- (2) A volunteer fire department (as defined in IC 36-8-12-2).
- (3) An employee of an entity described in subdivision (1) or (2) who acts within the scope of the employee's responsibilities.
- (4) A volunteer firefighter (as defined in IC 36-8-12-2) who is acting for a volunteer fire department.
- (5) A corporation, a limited liability company, a partnership, an



unincorporated association, or any other entity recognized by law.

(j) "Person", for purposes of IC 34-28-7, means:

- (1) an individual;
- (2) a governmental entity;
- (3) a corporation;
- (4) a firm;
- (5) a trust;
- (6) a partnership; or
- (7) an incorporated or unincorporated association that exists under or is authorized by the laws of this state, another state, or a foreign country.

(k) "Person", for purposes of IC 34-31-9, has the meaning set forth in IC 34-31-9-8.

~~(l) "Person"; for purposes of IC 34-30-32, has the meaning set forth in IC 34-30-32-4.~~

SECTION 273. IC 34-6-2.1-160 IS REPEALED [EFFECTIVE JULY 1, 2026]. ~~Sec. 160: "Premises", for purposes of IC 34-30-32, has the meaning set forth in IC 34-30-32-5.~~

SECTION 274. IC 34-7-4-2, AS AMENDED BY P.L.68-2005, SECTION 58, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. Statutes outside IC 34 providing causes of action or procedures include the following:

- (1) IC 4-21.5-5 (Judicial review of administrative agency actions).
- (2) IC 22-3-4 (Worker's compensation administration and procedures).
- (3) IC 22-4-17 (Unemployment compensation system, employee's claims for benefits).
- (4) IC 22-4-32 (Unemployment compensation system, employer's appeal process).
- (5) IC 22-9 (Civil rights actions).
- (6) IC 22-9.5 (Fair housing).**
- ~~(6) (7)~~ IC 24-9 (Home loans).
- ~~(7) (8)~~ IC 31-14 (Paternity).
- ~~(8) (9)~~ IC 31-15 (Dissolution of marriage and legal separation).
- ~~(9) (10)~~ IC 31-16 (Support of children and other dependents).
- ~~(10) (11)~~ IC 31-17 (Custody and parenting time).
- ~~(11) (12)~~ IC 31-19 (Adoption).
- ~~(12) (13)~~ IC 32-27-2, IC 32-30-1, IC 32-30-2, IC 32-30-4, IC 32-30-9, IC 32-30-10, IC 32-30-12, IC 32-30-13, and IC 32-30-14 (Real property).
- ~~(13) (14)~~ IC 33-43-4 (Attorney liens).

SECTION 275. IC 34-21.5-1-1, AS ADDED BY P.L.29-2019,



SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. ~~(a)~~ Except as provided in sections 2 and 3 of this chapter, this article does not apply to the following:

(1) A photograph, digital image, or video that is disclosed in good faith:

(A) to report a possible criminal act;

(B) in connection with a criminal investigation;

(C) under a court order;

(D) by a news reporting or an entertainment medium (as defined in IC 32-36-1-4); or

(E) as a matter of public concern or public interest.

(2) The disclosure of an intimate image of a child by the child's parent, legal guardian, or legal custodian.

SECTION 276. IC 34-30-2.1-32.7, AS ADDED BY P.L.15-2025, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 32.7. IC 5-2-26-4(b) (Concerning law enforcement notification of property owners after **an** accident).

SECTION 277. IC 34-31-6.5-4, AS ADDED BY P.L.77-2013, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) Ice skaters are considered to:

~~(1) have knowledge of; and~~

~~(2) assume;~~

(1) have knowledge of; and

(2) assume;

the risks of ice skating.

(b) For purposes of this chapter, risks of ice skating include the following:

(1) Injuries that result from collisions or incidental contact with other ice skaters or other individuals who are properly on the skating surface.

(2) Injuries that result from falls caused by loss of balance.

(3) Injuries that involve objects or artificial structures that:

(A) are properly within the intended path of travel of the ice skater; and

(B) are not otherwise attributable to an operator's breach of the operator's duties or responsibilities under section 2 of this chapter.

SECTION 278. IC 34-31-7-3, AS ADDED BY P.L.149-2005, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) As used in this section, "premises" means a part of a building that is:

(1) used primarily for worship services;



(2) owned, operated, or controlled by a nonprofit religious organization; and

(3) used for purposes of providing ~~childcare~~ **child care** services for which a fee is charged.

(b) If a customer who purchases ~~childcare~~ **child care** services or the customer's child enters the premises for the purpose of receiving fee based ~~childcare~~ **child care** services, with the actual or implied consent of the ~~childcare~~ **child care** provider or nonprofit religious organization, the ~~childcare~~ **child care** provider and nonprofit religious institution have the duty to:

(1) warn the customer or the customer's child of a hidden danger on the premises if a representative of the ~~childcare~~ **child care** provider or the nonprofit religious institution has actual knowledge of the hidden danger;

(2) refrain from intentionally harming the customer or the customer's child; and

(3) inspect the premises for dangerous hazards and defects, and correct any dangerous hazard or defect within a reasonable period of time after becoming aware of the existence of the dangerous hazard or defect.

SECTION 279. IC 35-31.5-2-127.8, AS AMENDED BY P.L.98-2025, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 127.8. (a) "Family member", for purposes of IC 35-44.1-3-1, has the meaning set forth in IC 35-44.1-3-1.

(b) ~~Family member~~, **"Family member"**, for purposes of IC 35-38-2-2.3, has the meaning set forth in IC 35-38-2-2.3.

SECTION 280. IC 35-48-2-6, AS AMENDED BY P.L.84-2024, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) The controlled substances listed in this section are included in schedule II.

(b) Any of the following substances, except those narcotic drugs listed in other schedules, whether produced directly or indirectly by extraction from substances of vegetable origin, or independently by means of chemical synthesis, or by combination of extraction and chemical synthesis:

(1) Opium and opiate, and any salt, compound, derivative, or preparation of opium or opiate, excluding apomorphine, dextrorphan, nalbuphine, naloxone, naltrexone, and their respective salts but including:

(A) raw opium (9600);

(B) opium extracts (9610);



- 1 (C) opium fluid extracts (9620);
- 2 (D) powdered opium (9639);
- 3 (E) granulated opium (9640);
- 4 (F) tincture of opium (9630);
- 5 (G) codeine (9050);
- 6 (H) dihydroetorphine (9334);
- 7 (I) ethylmorphine (9190);
- 8 (J) etorphine hydrochloride (9059);
- 9 (K) hydrocodone (9193), and any hydrocodone combination
- 10 product, as determined by the federal Food and Drug
- 11 Administration;
- 12 (L) hydromorphone (9150);
- 13 (M) metopon (9260);
- 14 (N) morphine (9300);
- 15 (O) oxycodone (9143);
- 16 (P) oxymorphone (9652);
- 17 (Q) thebaine (9333); and
- 18 (R) oripavine.
- 19 (2) Any salt, compound, isomer, derivative, or preparation thereof
- 20 which is chemically equivalent or identical with any of the
- 21 substances referred to in ~~subdivision (b)(1) of this section;~~
- 22 **subdivision (1)**, but not including the isoquinoline alkaloids of
- 23 opium.
- 24 (3) Opium poppy and poppy straw.
- 25 (4) Coca leaves (9040) and any salt, compound, derivative, or
- 26 preparation of coca leaves (including cocaine (9041) and
- 27 ecgonine (8180) and their salts, isomers, derivatives, and salts of
- 28 isomers and derivatives), and any salt, compound, derivative, or
- 29 preparation thereof that is chemically equivalent or identical with
- 30 these substances except that the substances do not include:
- 31 (A) decocainized coca leaves or an extraction of coca leaves
- 32 that does not contain cocaine or ecgonine;
- 33 (B) [¹²³I]ioflupane; or
- 34 (C) [¹⁸F]FP-CIT.
- 35 (5) Concentrate of poppy straw (the crude extract of poppy straw
- 36 in either liquid, solid, or powder form which contains the
- 37 phenanthrene alkaloids of the opium poppy) (9670).
- 38 (c) Opiates. Any of the following opiates, including their isomers,
- 39 esters, ethers, salts, and salts of isomers, esters, and ethers whenever
- 40 the existence of these isomers, esters, ethers, and salts is possible
- 41 within the specific chemical designation:
- 42 Alfentanil (9737).



- 1 Alphaprodine (9010).
- 2 Anileridine (9020).
- 3 Bezitramide (9800).
- 4 Bulk dextropropoxyphene (nondosage forms) (9273).
- 5 Carfentanil (9743).
- 6 Dihydrocodeine (9120).
- 7 Diphenoxylate (9170).
- 8 Fentanyl (9801).
- 9 Isomethadone (9226).
- 10 Levo-alpha-acetylmethadol (9648). Other names:
- 11 Levo-alpha-acetylmethadol; levomethadyl acetate; and LAAM.
- 12 Levomethorphan (9210).
- 13 Levorphanol (9220).
- 14 Metazocine (9240).
- 15 Methadone (9250).
- 16 Methadone-Intermediate, 4-cyano-2-dimethyl-amino-4,
- 17 4-diphenyl butane (9254).
- 18 Moramide-Intermediate, 2-methyl-3-morpholino-1,
- 19 1-diphenylpropane- carboxylic acid (9802).
- 20 Oliceridine (N-[(3-methoxythiophen- 2-yl) methyl]({2- [(9R)-9-
- 21 (pyridin- 2-yl)-6-oxaspiro[4.5]decan-9-yl]ethyl})amine) (9245).
- 22 Pethidine (Meperidine) (9230).
- 23 Pethidine-Intermediate- A, 4-cyano-1-methyl-4-phenylpiperidine
- 24 (9232).
- 25 Pethidine-Intermediate-B, ethyl-4-phenylpiperidine-4-carboxylate
- 26 (9233).
- 27 Pethidine-Intermediate-C, 1-methyl-4-phenylpiperidine-4-carbo
- 28 xylic acid (9234).
- 29 Phenazocine (9715).
- 30 Piminodine (9730).
- 31 Racemethorphan (9732).
- 32 Racemorphan (9733).
- 33 Remifentanil (9739).
- 34 Sufentanil (9740).
- 35 Tapentadol.
- 36 Thiafentanil.
- 37 (d) Stimulants. Any material compound, mixture, or preparation
- 38 which contains any quantity of the following substances having a
- 39 potential for abuse associated with a stimulant effect on the central
- 40 nervous system:
- 41 (1) Amphetamine, its salts, optical isomers, and salts of its optical
- 42 isomers (1100).



(2) Methamphetamine, including its salts, isomers, and salts of its isomers (1105).

(3) Phenmetrazine and its salts (1631).

(4) Methylphenidate (1724).

(5) Lisdexamfetamine, its salts, its isomers, and salts of its isomers.

(e) Depressants. Unless specifically excepted by rule of the board or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances having a depressant effect on the central nervous system, including its salts, isomers, and salts of isomers whenever the existence of such salts, isomers, and salts of isomers is possible within the specific chemical designation:

Amobarbital (2125).

Glutethimide (2550).

Pentobarbital (2270).

Phencyclidine (7471).

Secobarbital (2315).

(f) Immediate precursors. Unless specifically excepted by rule of the board or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of the following substances:

(1) Immediate precursor to amphetamine and methamphetamine: Phenylacetone (8501). Some trade or other names: phenyl-2-propanone; P2P; benzyl methyl ketone; methyl benzyl ketone.

(2) Immediate precursors to phencyclidine (PCP):

(A) 1-phenylcyclohexylamine (7460); or

(B) 1-piperidinocyclohexanecarbonitrile (PCC) (8603).

(3) Immediate precursor to fentanyl:

(A) 4-anilino-N-phenethylpiperidine (ANPP) (8333); or

(B) N-phenyl-N-(piperidin-4-yl)propionamide (norfentanyl) (8366).

(g) Hallucinogenic substances:

Dronabinol oral solution. Other name: (-)-delta-9-trans-tetrahydrocannabinol (delta-9-THC).

Nabilone (7379). Other name: (+/-)-trans-3-(1,1-dimethylheptyl)-6,6a,7,8,10,10a-hexahydro-1-hydroxy-6,6-dimethyl-9H-dibenzo [b,d] pyran-9-one.

SECTION 281. IC 35-50-6-3.3, AS AMENDED BY P.L.142-2020, SECTION 88, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3.3. (a) In addition to any educational credit a



person earns under subsection (b), or good time credit a person earns under section 3 or 3.1 of this chapter, a person earns educational credit if the person:

- (1) is in credit Class I, Class A, or Class B;
- (2) has demonstrated a pattern consistent with rehabilitation; and
- (3) successfully completes requirements to obtain one (1) of the following:

(A) A general educational development (GED) diploma under IC 20-20-6 (before its repeal) or IC 22-4.1-18, if the person has not previously obtained a high school diploma.

(B) Except as provided in subsection (o), a high school diploma, if the person has not previously obtained a general educational development (GED) diploma.

(C) An associate degree from an approved postsecondary educational institution (as defined under IC 21-7-13-6(a)) earned during the person's incarceration.

(D) A ~~bachelor~~ **bachelor's** degree from an approved postsecondary educational institution (as defined under IC 21-7-13-6(a)) earned during the person's incarceration.

(b) In addition to any educational credit that a person earns under subsection (a), or good time credit a person earns under section 3 or 3.1 of this chapter, a person may earn educational credit if, while confined by the department of correction, the person:

- (1) is in credit Class I, Class A, or Class B;
- (2) demonstrates a pattern consistent with rehabilitation; and
- (3) successfully completes requirements for at least one (1) of the following:

(A) To obtain a certificate of completion of a career and technical or vocational education program approved by the department of correction.

(B) To obtain a certificate of completion of a substance abuse program approved by the department of correction.

(C) To obtain a certificate of completion of a literacy and basic life skills program approved by the department of correction.

(D) To obtain a certificate of completion of a reformatory program approved by the department of correction.

(E) An individualized case management plan approved by the department of correction.

(c) The department of correction shall establish admissions criteria and other requirements for programs available for earning educational credit under subsection (b). A person may not earn educational credit under this section for the same program of study. The department of



correction, in consultation with the department of workforce development, shall approve a program only if the program is likely to lead to an employable occupation.

(d) The amount of educational credit a person may earn under this section is the following:

(1) Six (6) months for completion of a state of Indiana general educational development (GED) diploma under IC 20-20-6 (before its repeal) or IC 22-4.1-18.

(2) One (1) year for graduation from high school.

(3) Not more than one (1) year for completion of an associate degree.

(4) Not more than two (2) years for completion of a ~~bachelor~~ **bachelor's** degree.

(5) Not more than a total of one (1) year, as determined by the department of correction, for the completion of one (1) or more career and technical or vocational education programs approved by the department of correction.

(6) Not more than a total of six (6) months, as determined by the department of correction, for the completion of one (1) or more substance abuse programs approved by the department of correction.

(7) Not more than a total of six (6) months, as determined by the department of correction, for the completion of one (1) or more literacy and basic life skills programs approved by the department of correction.

(8) Not more than a total of six (6) months, as determined by the department of correction, for completion of one (1) or more reformatory programs approved by the department of correction. However, a person who is serving a sentence for an offense listed under IC 11-8-8-4.5 may not earn educational credit under this subdivision.

(9) An amount determined by the department of correction under a policy adopted by the department of correction concerning the individualized case management plan, not to exceed the maximum amount described in subsection (j).

However, a person who does not have a substance abuse problem that qualifies the person to earn educational credit in a substance abuse program may earn not more than a total of twelve (12) months of educational credit, as determined by the department of correction, for the completion of one (1) or more career and technical or vocational education programs approved by the department of correction. If a person earns more than six (6) months of educational credit for the



1 completion of one (1) or more career and technical or vocational
 2 education programs, the person is ineligible to earn educational credit
 3 for the completion of one (1) or more substance abuse programs.

4 (e) Educational credit earned under this section must be directly
 5 proportional to the time served and course work completed while
 6 incarcerated. The department of correction shall adopt rules under
 7 IC 4-22-2 necessary to implement this subsection.

8 (f) Educational credit earned by a person under this section is
 9 subtracted from the release date that would otherwise apply to the
 10 person by the sentencing court after subtracting all other credit time
 11 earned by the person.

12 (g) A person does not earn educational credit under subsection (a)
 13 unless the person completes at least a portion of the degree
 14 requirements after June 30, 1993.

15 (h) A person does not earn educational credit under subsection (b)
 16 unless the person completes at least a portion of the program
 17 requirements after June 30, 1999.

18 (i) Educational credit earned by a person under subsection (a) for a
 19 diploma or degree completed before July 1, 1999, shall be subtracted
 20 from:

21 (1) the release date that would otherwise apply to the person after
 22 subtracting all other credit time earned by the person, if the
 23 person has not been convicted of an offense described in
 24 subdivision (2); or

25 (2) the period of imprisonment imposed on the person by the
 26 sentencing court, if the person has been convicted of one (1) of
 27 the following crimes:

28 (A) Rape (IC 35-42-4-1).

29 (B) Criminal deviate conduct (IC 35-42-4-2) (before its
 30 repeal).

31 (C) Child molesting (IC 35-42-4-3).

32 (D) Child exploitation (IC 35-42-4-4(b) or IC 35-42-4-4(c)).

33 (E) Vicarious sexual gratification (IC 35-42-4-5).

34 (F) Child solicitation (IC 35-42-4-6).

35 (G) Child seduction (IC 35-42-4-7).

36 (H) Sexual misconduct with a minor (IC 35-42-4-9) as a:

37 (i) Class A felony, Class B felony, or Class C felony for a
 38 crime committed before July 1, 2014; or

39 (ii) Level 1, Level 2, or Level 4 felony, for a crime
 40 committed after June 30, 2014.

41 (I) Incest (IC 35-46-1-3).

42 (J) Sexual battery (IC 35-42-4-8).



- 1 (K) Kidnapping (IC 35-42-3-2), if the victim is less than
 2 eighteen (18) years of age.
- 3 (L) Criminal confinement (IC 35-42-3-3), if the victim is less
 4 than eighteen (18) years of age.
- 5 (j) The maximum amount of educational credit a person may earn
 6 under this section is the lesser of:
- 7 (1) two (2) years; or
 8 (2) one-third (1/3) of the person's total applicable credit time.
- 9 (k) Educational credit earned under this section by an offender
 10 serving a sentence for stalking (IC 35-45-10-5), a felony against a
 11 person under IC 35-42, or for a crime listed in IC 11-8-8-5, shall be
 12 reduced to the extent that application of the educational credit would
 13 otherwise result in:
- 14 (1) postconviction release (as defined in IC 35-40-4-6); or
 15 (2) assignment of the person to a community transition program;
 16 in less than forty-five (45) days after the person earns the educational
 17 credit.
- 18 (l) A person may earn educational credit for multiple degrees at the
 19 same education level under subsection (d) only in accordance with
 20 guidelines approved by the department of correction. The department
 21 of correction may approve guidelines for proper sequence of education
 22 degrees under subsection (d).
- 23 (m) A person may not earn educational credit:
- 24 (1) for a general educational development (GED) diploma if the
 25 person has previously earned a high school diploma; or
 26 (2) for a high school diploma if the person has previously earned
 27 a general educational development (GED) diploma.
- 28 (n) A person may not earn educational credit under this section if
 29 the person:
- 30 (1) commits an offense listed in IC 11-8-8-4.5 while the person is
 31 required to register as a sex or violent offender under IC 11-8-8-7;
 32 and
 33 (2) is committed to the department of correction after being
 34 convicted of the offense listed in IC 11-8-8-4.5.
- 35 (o) For a person to earn educational credit under subsection
 36 (a)(3)(B) for successfully completing the requirements for a high
 37 school diploma through correspondence courses, each correspondence
 38 course must be approved by the department before the person begins
 39 the correspondence course. The department may approve a
 40 correspondence course only if the entity administering the course is
 41 recognized and accredited by the department of education in the state
 42 where the entity is located.



(p) The department of correction shall, before May 1, 2023, submit a report to the legislative council, in an electronic format under IC 5-14-6, concerning the implementation of the individualized case management plan. The report must include the following:

(1) The ratio of case management staff to offenders participating in the individualized case management plan as of January 1, 2023.

(2) The average number of days awarded to offenders participating in the individualized case management plan from January 1, 2022, through December 31, 2022.

(3) The percentage of the prison population currently participating in an individualized case management plan as of January 1, 2023.

(4) Any other data points or information related to the status of the implementation of the individualized case management plan.

This subsection expires June 30, 2023.

SECTION 282. IC 35-52-7-26, AS ADDED BY P.L.169-2014, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 26. ~~IC 7-1-5-4-6~~ **IC 7.1-5-4-6** defines a crime concerning alcohol.

SECTION 283. IC 35-52-12-2, AS AMENDED BY P.L.174-2025, SECTION 47, AND P.L.243-2025, SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. IC 12-11-13-16 defines a crime concerning **the** statewide bureau of disabilities services ombudsman.

SECTION 284. IC 36-2-14-22.1, AS AMENDED BY P.L.225-2025, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 22.1. (a) As used in this section, "hospital" refers to a hospital that is licensed under IC 16-21-2.

(b) Upon the request of a coroner who is conducting or will conduct a death investigation on an individual who is admitted or was admitted to a hospital, the hospital shall provide a sample of the individual's blood or tissue to the coroner.

(c) A hospital shall have a blood retention protocol for the preservation of the first sample of blood drawn for an individual seeking ~~treatment of~~ emergency care services at an emergency department of the hospital, regardless of whether the individual is ultimately admitted to the hospital. The protocol shall include a plan for:

(1) when a patient is transferred to another hospital; and

(2) notifying the laboratory for a requisition or order for whole blood sample analysis to indicate when a patient is:

(A) treated for an injury that is suspicious, violent, accidental, or from an overdose; and



1 (B) determined by a provider to be critically injured or
 2 mortally wounded at the time the patient seeks emergency care
 3 services at the emergency department.

4 (d) A laboratory that receives an order for whole blood sample
 5 analysis and the notification under subsection (c)(2) shall do the
 6 following:

7 (1) The laboratory shall hold the blood sample in storage until the
 8 earlier of the following:

9 (A) The expiration of the twenty-one (21) day period
 10 beginning on the date that the sample of the patient's blood is
 11 drawn.

12 (B) The date of the patient's discharge from the hospital. For
 13 purposes of this clause, the transfer of the patient to another
 14 hospital does not constitute a discharge.

15 (C) The date of the patient's death.

16 (2) This subdivision applies if:

17 (A) the patient is transferred to another hospital; and

18 (B) at the time of the transfer, the ~~transferring hospital~~
 19 **laboratory** is still holding the first blood sample in storage in
 20 accordance with subdivision (1)(A).

21 The transferring hospital laboratory shall hold the first blood
 22 sample in storage in accordance with subdivision (1)(A), unless
 23 the transferring hospital laboratory receives information from the
 24 receiving hospital that the patient has been discharged from the
 25 receiving hospital or has died.

26 The requirements set forth in this subsection may be waived in any
 27 case where the sample is tested and cannot be retained for reasons of
 28 medical necessity in the clinical care of the patient.

29 (e) A coroner does not need to obtain a warrant to request a blood
 30 or tissue sample under this section.

31 SECTION 285. IC 36-3-4-4, AS AMENDED BY P.L.159-2025,
 32 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 33 JULY 1, 2026]: Sec. 4. The city-county legislative body may:

34 (1) expel any member for violation of an official duty;

35 (2) declare the seat of any member vacant if the member is unable
 36 or fails to perform the duties of the member's office; and

37 (3) adopt its own rules to govern proceedings under this
 38 ~~subsection.~~ **section.**

39 However, a two-thirds (2/3) vote is required to expel a member or
 40 vacate the member's seat.

41 SECTION 286. IC 36-3-8-4, AS ADDED BY P.L.52-2025,
 42 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]: Sec. 4. The town legislative body and the legislative body of the consolidated city and county shall take any steps necessary to implement this chapter, including adopting ordinances **and** resolutions and entering into interlocal agreements.

SECTION 287. IC 36-4-5-5, AS AMENDED BY P.L.127-2017, SECTION 125, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. On reasonable notice of at least three (3) days to the person complained of, the executive shall hear any complaint against a person to whom the city has issued a license, and may issue subpoenas to compel the attendance of witnesses, administer oaths to those witnesses, and require them to testify. To the extent they can be applied, the Indiana rules of procedure, including the right to appear by counsel and to compel the attendance of witnesses for or against persons complained of, apply to proceedings under this section. If the executive finds that the person complained of has ~~wilfully~~ **willfully** violated a term or condition of the person's license, or has ~~wilfully~~ **willfully** done or permitted to be done an act in violation of a statute or city ordinance relating to the business licensed, the executive shall revoke or suspend the license. The executive shall file a copy of the executive's findings and determination with the city fiscal officer within twenty-four (24) hours after it is made.

SECTION 288. IC 36-7-2-9.1, AS AMENDED BY P.L.146-2025, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9.1. (a) This section does not apply to:

- (1) a manufactured housing community; or
- (2) a mobile home community;

that is licensed, permitted, and inspected by the Indiana department of health or a local board of health.

(b) This section applies only to a city, town, or county that requires a building permit, plan review, or inspection for the construction of a Class 2 structure.

(c) As used in this section, "Class 2 structure" has the meaning set forth in IC 22-12-1-5.

(d) A city, town, or county shall allow the plan review or inspection to be conducted by the following:

- (1) An individual who is employed by the city, town, or county as a building inspector.
- (2) An individual who is employed by another city, town, or county as a building inspector.
- (3) A private provider who is:
 - (A) an architect registered under IC 25-4-1;
 - (B) a professional engineer registered under IC 25-31-1; or



(C) a certified building official (as defined in ~~IC 36-7-2.5-3~~);

IC 36-7-2.5-4).

(e) An applicant for a building permit may choose to have a private provider under subsection (d)(3) conduct the plan review or inspection as provided in IC 36-7-2.5.

SECTION 289. IC 36-7-32.5-9, AS AMENDED BY P.L.213-2025, SECTION 310, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) Before the corporation may designate territory within the jurisdiction of a city, town, or county, or within the jurisdiction of more than one (1) city, town, or county, as an innovation development district under this section, the board of the corporation established under IC 5-28-4 shall establish uniform policies and guidelines that the corporation must follow when notifying and collaborating with an executive, or, if applicable, executives, to designate territory within the jurisdiction of a city, town, or county as an innovation development district under this section. The corporation shall publish the uniform policies and procedures established under this subsection on the corporation's website.

(b) Subject to subsection (c) and section 12(a) of this chapter, after:

(1) budget committee review; and

(2) notifying and collaborating with the executive, or, if an innovation development district will include territory within the jurisdiction of more than one (1) city, town, or county, with the executives of each city, town, or county, in the manner provided under the policies and guidelines established under subsection

(a);

the corporation may designate territory within the jurisdiction of a city, town, or county, or territory within the jurisdiction of more than one (1) city, town, or county, as an innovation development district if the corporation determines that

(~~1~~) the designation will support economic growth and

(~~2~~) the total investment plan is an amount equal to or greater than seven hundred fifty million dollars (\$750,000,000).

(c) Notwithstanding section 10(b) of this chapter, but subject to section 12(c) of this chapter, the corporation may designate territory that is located in an existing allocation area described in section 10(b) of this chapter as an innovation development district after:

(1) budget committee review; and

(2) obtaining consent from the executive, executives, or the board of any military base reuse authority, in the manner provided under the policies and guidelines established under subsection (a).

(d) The requirements in subsection (c) apply to all innovation



development districts established under this chapter regardless of the total costs and benefits of the proposed investment of an innovation development district.

SECTION 290. [EFFECTIVE UPON PASSAGE] (a) This act may be referred to as the "technical corrections bill of the 2026 general assembly".

(b) The phrase "technical corrections bill of the 2026 general assembly" may be used in the lead-in line of a SECTION of an act other than this act to identify provisions added, amended, or repealed by this act that are also amended or repealed in the other act.

(c) This SECTION expires December 31, 2026.

SECTION 291. [EFFECTIVE UPON PASSAGE] (a) This SECTION applies to publication of the following:

(1) A provision of the Indiana Code that is:

(A) added or amended by this act; and

(B) repealed by another act without recognizing the existence of the amendment made by this act by an appropriate reference in the lead-in line of the SECTION of the other act repealing the same provision of the Indiana Code.

(2) A provision of the Indiana Code that is:

(A) amended by this act; and

(B) amended by another act without recognizing the existence of the amendment made by this act by an appropriate reference in the lead-in line of the SECTION of the other act amending the same provision of the Indiana Code.

(b) As used in this SECTION, "other act" refers to an act enacted in the 2026 session of the general assembly other than this act. "Another act" has a corresponding meaning.

(c) Except as provided in subsections (d) and (e), a provision repealed by another act shall be considered repealed, regardless of whether there is a difference in the effective date of the provision added or amended by this act and the provision repealed by the other act. Except as provided in subsection (d), the lawful compilers of the Indiana Code, in publishing the affected Indiana Code provision, shall publish only the version of the Indiana Code provision that is repealed by the other act. The history line for an Indiana Code provision that is repealed by the other act must reference that act.

(d) This subsection applies if a provision described in subsection



1 (a) that is added or amended by this act takes effect before the
2 corresponding provision repeal in the other act. The lawful
3 compilers of the Indiana Code, in publishing the provision added
4 or amended in this act, shall publish that version of the provision
5 and note that the provision is effective until the effective date of the
6 corresponding provision repeal in the other act. On and after the
7 effective date of the corresponding provision repeal in the other
8 act, the provision repealed by the other act shall be considered
9 repealed, regardless of whether there is a difference in the effective
10 date of the provision added or amended by this act and the
11 provision repealed by the other act. The lawful compilers of the
12 Indiana Code, in publishing the affected Indiana Code provision,
13 shall publish the version of the Indiana Code provision that is
14 repealed by the other act, and shall note that this version of the
15 provision is effective on the effective date of the repealed provision
16 of the other act.

17 (e) If, during the same year, two (2) or more other acts repeal
18 the same Indiana Code provision as the Indiana Code provision
19 added or amended by this act, the lawful compilers of the Indiana
20 Code, in publishing the Indiana Code provision, shall follow the
21 principles set forth in this SECTION.

22 (f) Except as provided in subsections (g) and (h), a provision
23 amended by another act that includes all amendments made to the
24 provision by this act shall be published in the Indiana Code only in
25 the version of the provision amended by the other act. The history
26 line for an Indiana Code provision that is amended by the other act
27 must reference that act.

28 (g) This subsection applies if a provision in this act described in
29 subsection (f) takes effect before the corresponding provision in the
30 other act. The lawful compilers of the Indiana Code, in publishing
31 the provision amended in this act, shall publish this version of the
32 provision and note that the provision is effective until the effective
33 date of the corresponding provision in the other act. The lawful
34 compilers of the Indiana Code, in publishing the corresponding
35 provision in the other act, shall publish that version of the
36 provision and note that the provision is effective on and after the
37 effective date of the provision in the other act.

38 (h) If, during the same year, two (2) or more other acts amend
39 the same Indiana Code provision as the Indiana Code provision
40 amended by this act, the lawful compilers of the Indiana Code, in
41 publishing the Indiana Code provision, shall follow the principles
42 set forth in this SECTION.



- 1 **(i) This SECTION expires December 31, 2026.**
- 2 **SECTION 292. An emergency is declared for this act.**

